



English Devolution and Community Empowerment Act 2026

2026 CHAPTER 23

An Act to make provision about combined authorities, combined county authorities, the Greater London Authority, local authorities, police and crime commissioners and fire and rescue authorities, local audit and terms in business tenancies about rent. [29th April 2026]

BE IT ENACTED by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART 1

STRATEGIC AUTHORITIES

The strategic authorities

1 Strategic authorities

- (1) This section sets out the meaning of “strategic authority” and other related expressions for the purposes of this Act.

Strategic authorities

- (2) “Strategic authority” means—
- (a) a single foundation strategic authority,
 - (b) a combined foundation strategic authority, or
 - (c) a mayoral strategic authority, including an established mayoral strategic authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Foundation strategic authorities

- (3) “Single foundation strategic authority” means—
- (a) a unitary district council, or
 - (b) a county council,
- which is designated under section 3.
- (4) “Combined foundation strategic authority” means—
- (a) a non-mayoral combined authority, or
 - (b) a non-mayoral combined county authority.

Mayoral strategic authorities

- (5) “Mayoral strategic authority” means—
- (a) a mayoral combined authority,
 - (b) a mayoral combined county authority, or
 - (c) the GLA.

Established mayoral strategic authorities

- (6) A mayoral strategic authority is “established” if it is—
- (a) a mayoral combined authority which is designated under section 106B of LDEDCA 2009,
 - (b) a mayoral combined county authority which is designated under section 25A of LURA 2023, or
 - (c) the GLA.

Commencement Information

- II** S. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

The areas of competence

2 Areas of competence

For the purposes of this Act, the subjects or subject referred to in each of the following paragraphs is an “area of competence”—

- (a) transport and local infrastructure;
- (b) skills and employment support;
- (c) housing and strategic planning;
- (d) economic development and regeneration;
- (e) the environment and climate change;
- (f) health, well-being and public service reform;
- (g) public safety;
- (h) culture;
- (i) rural affairs and coastal communities.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I2 S. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Single foundation strategic authorities

3 Single foundation strategic authorities

- (1) The Secretary of State may, by regulations, designate a unitary district council or a county council as a single foundation strategic authority.
- (2) The Secretary of State may not designate a council if the council's area is within, or is, the area of another strategic authority.
- (3) The Secretary of State may not designate a council unless the council consents to the designation.
- (4) Regulations under this section are subject to affirmative resolution procedure.
- (5) In this Act, see Schedule [27](#) for powers for the Secretary of State to confer functions on single foundation strategic authorities.

Commencement Information

I3 S. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I4 [S. 3](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Combined authorities and CCAs

4 Combined authorities and CCAs: establishment, expansion and functions

[Schedule 1](#) contains provision amending requirements relating to the establishment and expansion of, and conferral of functions on, combined authorities and CCAs.

Commencement Information

I5 S. 4 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)\(6\)](#)

5 Combined authorities and CCAs: functions generally

- (1) Before section 18 of LURA 2023 insert—

“17A The functions of CCAs

A CCA has the functions that are conferred by—

- (a) this Chapter or any regulations under this Chapter,
- (b) any regulations under Schedule [27](#) to the English Devolution and Community Empowerment Act 2026, or
- (c) any other enactment (whenever passed or made).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) After section 103 of LDEDCA 2009 insert—

“Functions of combined authorities

103A The functions of combined authorities

A combined authority has the functions that are conferred by—

- (a) this Part or any order under this Part,
- (b) any regulations under Schedule 27 to the English Devolution and Community Empowerment Act 2026, or
- (c) any other enactment (whenever passed or made).”

Commencement Information

I6 S. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

6 Combined authorities and CCAs: decision-making and validity of proceedings

(1) LURA 2023 is amended in accordance with subsections (2) and (3).

(2) After section 13 insert—

“13A Decision-making

- (1) This section applies to any decision of a CCA.
- (2) A decision of a non-mayoral CCA is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA.
- (3) A decision of a mayoral CCA is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA; and such a majority must include the mayor, or the deputy mayor acting in place of the mayor.
- (4) But if—
 - (a) the office of mayor is vacant, and
 - (b) there is no deputy mayor,
 the decision is to be made by a simple majority of the voting members present and voting on that question at a meeting of the CCA.
- (5) On a decision of any CCA—
 - (a) each voting member has one vote;
 - (b) in the case of a tied vote—
 - (i) no person has a casting vote; and
 - (ii) the CCA must be regarded as having disagreed to the question that the decision should be made.
- (6) Subsections (1) to (5) are subject to provision made in any other enactment (whenever passed or made).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (7) That includes regulations under this Chapter or under Schedule 27 to the English Devolution and Community Empowerment Act 2026.
- (8) In this section “voting member” means—
- (a) in relation to a decision of a non-mayoral CCA—
 - (i) a person appointed by a constituent council to be a member of the CCA (a “constituent member”) or a person acting as a member of the CCA in the absence of the constituent member, and
 - (ii) a non-constituent member (within the meaning of section 11) who is a voting member in relation to the decision by virtue of a resolution under section 11(4) or a person acting as a member of the CCA in the absence of the non-constituent member;
 - (b) in relation to a decision of a mayoral CCA—
 - (i) a person appointed by a constituent council to be a member of the CCA (a “constituent member”) or a person acting as a member of the CCA in the absence of the constituent member,
 - (ii) a non-constituent member (within the meaning of section 11) who is a voting member in relation to the decision by virtue of a resolution under section 11(4) or a person acting as a member of the CCA in the absence of the non-constituent member, and
 - (iii) the mayor, or the deputy mayor acting in place of the mayor.

13B Validity of proceedings

- (1) The proceedings of a CCA are not invalidated—
- (a) by any vacancy—
 - (i) among its members or substitute members, or
 - (ii) (in the case of a mayoral CCA) in the office of deputy mayor, or
 - (b) by any defect in the appointment or qualifications of—
 - (i) any member or substitute member, or
 - (ii) (in the case of a mayoral CCA) of the deputy mayor.
- (2) In this section “substitute member” means a person appointed to act as a member in the absence of another member.”
- (3) In section 13 (regulations about members), in subsection (2)(a), after “members of a particular kind” insert “(including provision disapplying or modifying the effect of section 13A)”.
- (4) LDEDCA 2009 is amended in accordance with subsections (5) and (6).
- (5) After section 104C insert—

“104CA Decision-making

- (1) This section applies to any decision of a combined authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) A decision of a non-mayoral combined authority is to be made by a simple majority of the voting members present and voting on that question at a meeting of the combined authority.
- (3) A decision of a mayoral combined authority is to be made by a simple majority of the voting members present and voting on that question at a meeting of the combined authority; and such a majority must include the mayor, or the deputy mayor acting in place of the mayor.
- (4) But if—
 - (a) the office of mayor is vacant, and
 - (b) there is no deputy mayor,
 the decision is to be made by a simple majority of the other voting members present and voting on that question at a meeting of the combined authority.
- (5) On a decision of any combined authority—
 - (a) each voting member has one vote;
 - (b) in the case of a tied vote—
 - (i) no person has a casting vote; and
 - (ii) the combined authority must be regarded as having disagreed to the question that the decision should be made.
- (6) Subsections (1) to (5) are subject to provision made in any other enactment (whenever passed or made).
- (7) That includes an order under this Part or regulations under Schedule 27 to the English Devolution and Community Empowerment Act 2026.
- (8) In this section “voting member” means—
 - (a) in relation to a decision of a non-mayoral combined authority—
 - (i) a person appointed by a constituent council to be a member of the combined authority (a “constituent member”) or a person acting as a member of the combined authority in the absence of the constituent member, and
 - (ii) a non-constituent member (within the meaning of section 104A) who is a voting member in relation to the decision by virtue of a resolution under section 104A(4) or a person acting as a member of the combined authority in the absence of the non-constituent member;
 - (b) in relation to a decision of a mayoral combined authority—
 - (i) a person appointed by a constituent council to be a member of the combined authority (a “constituent member”) or a person acting as a member of the combined authority in the absence of the constituent member,
 - (ii) a non-constituent member (within the meaning of section 104A) who is a voting member in relation to the decision by virtue of a resolution under section 104A(4) or a person acting as a member of the combined authority in the absence of the non-constituent member, and
 - (iii) the mayor, or the deputy mayor acting in place of the mayor.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

104CB Validity of proceedings

- (1) The proceedings of a combined authority are not invalidated—
 - (a) by any vacancy—
 - (i) among its members or substitute members, or
 - (ii) (in the case of a mayoral combined authority) in the office of deputy mayor, or
 - (b) by any defect in the appointment or qualifications of—
 - (i) any member or substitute member, or
 - (ii) (in the case of a mayoral combined authority) of the deputy mayor.
- (2) In this section “substitute member” means a person appointed to act as a member in the absence of another member.”
- (6) In section 104C (regulations about members), in subsection (2)(a), after “members of a particular kind” insert “(including provision disapplying or modifying the effect of section 104CA)”.
- (7) Schedule 2 makes further provision about decision-making and exercise of functions.

Commencement Information

I7 S. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

7 Combined authorities and CCAs: powers not limited by other provision or powers

- (1) In LURA 2023, after section 24B (inserted by section 43(2) of this Act) insert—

“24C Powers not limited by other provision or powers

- (1) This section applies to a power under this Chapter to make subordinate legislation (the “SI-making power”) and a CCA if conditions A and B are met.
- (2) *Condition A*: the SI-making power confers power to make provision about a particular function or other matter (the “relevant function or matter”) in relation to the CCA.
- (3) *Condition B*: provision about the relevant function or matter which relates to the CCA—
 - (a) is made by an enactment (whenever passed or made) that is not subordinate legislation made under this Chapter (the “separate provision”), or
 - (b) could be made under a power conferred by an enactment that is not contained in this Chapter (the “separate power”),
 (whether or not that provision also relates to any other CCAs).
- (4) The separate provision or separate power does not limit the subordinate legislation that may be made under the SI-making power in relation to the CCA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) In particular, the separate provision or separate power does not prevent subordinate legislation under the SI-making power from—
- (a) making provision about the relevant function or matter in relation to the CCA which is to apply instead of the separate provision;
 - (b) making modifications or other contrary provision to which the separate provision is to be subject in its application in relation to the CCA.
- (6) Subsection (4) applies to provision made under the SI-making power before or after the coming into force of this section.”
- (2) In LDEDCA 2009, after section 104CB (inserted by section 6 of this Act) insert—

“104CC Powers not limited by other provision or powers

- (1) This section applies to a power under this Part to make subordinate legislation (the “SI-making power”) and a combined authority if conditions A and B are met.
- (2) *Condition A*: the SI-making power confers power to make provision about a particular function or other matter (the “relevant function or matter”) in relation to the combined authority, and
- (3) *Condition B*: provision about the relevant function or matter which relates to the combined authority—
 - (a) is made by an enactment (whenever passed or made) that is not subordinate legislation made under this Part (the “separate provision”), or
 - (b) could be made under a power conferred by an enactment that is not contained in this Part (the “separate power”),
 (whether or not that provision also relates to any other combined authority).
- (4) The separate provision or separate power does not limit the subordinate legislation that may be made under the SI-making power in relation to the combined authority.
- (5) In particular, the separate provision or separate power does not prevent subordinate legislation under the SI-making power from—
 - (a) making provision about the relevant function or matter in relation to the combined authority which is to apply instead of the separate provision;
 - (b) making modifications or other contrary provision to which the separate provision is to be subject in its application in relation to the combined authority.
- (6) Subsection (4) applies to provision made under the SI-making power before or after the coming into force of this section.”

Commencement Information

18 S. 7 in force at Royal Assent, see s. 108(1)(3)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

8 Combined authorities and CCAs: designation as established mayoral strategic authorities

(1) After section 25 of LURA 2023 insert—

“25A Designation as an established mayoral strategic authority

- (1) The Secretary of State may, by regulations, designate a mayoral CCA as an established mayoral strategic authority.
- (2) The Secretary of State may not designate a mayoral CCA unless the mayoral CCA has submitted to the Secretary of State a written proposal to be designated (the “designation proposal”).
- (3) The designation proposal must identify—
 - (a) any provision—
 - (i) that applies in relation to the mayoral CCA,
 - (ii) that would not be of general application to the mayoral CCA if designated, and
 - (iii) which the mayoral CCA would like to continue to apply in relation to it if designated;
 - (b) any provision—
 - (i) that does not apply in relation to the mayoral CCA,
 - (ii) that would not be of general application to the mayoral CCA, if designated, and
 - (iii) which the mayoral CCA would like the Secretary of State to make (using a power conferred by this Chapter or otherwise) so as to apply in relation to it, if designated.
- (4) If the Secretary of State decides not to designate the mayoral CCA, the Secretary of State must notify the authority in writing of the reasons for the decision.
- (5) If the Secretary of State decides not to designate the mayoral CCA, that mayoral CCA may not be designated unless another written proposal to be designated is submitted in accordance with this section.
- (6) A Minister of the Crown must not exercise any power to make subordinate legislation (whenever conferred) so as to cause a mayoral CCA to cease to be an established mayoral strategic authority.
- (7) That does not limit the making of provision that is—
 - (a) in consequence of, or
 - (b) otherwise in connection with,
 the abolition or merger of an established mayoral strategic authority (whether the abolition or merger is provided for in secondary legislation or an Act of Parliament).
- (8) For the purposes of this section provision would be “of general application to a mayoral CCA if designated” if the provision is contained in an enactment and applies in relation to—
 - (a) all established mayoral strategic authorities, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) a class of established mayoral strategic authorities which would include the mayoral CCA if designated.”

(2) LDEDCA 2009 is amended in accordance with subsections (3) and (4).

(3) Before section 106 insert—

“Changes to combined authorities”.

(4) After section 106A insert—

“106B Designation as an established mayoral strategic authority

- (1) The Secretary of State may, by order, designate a mayoral combined authority as an established mayoral strategic authority.
- (2) The Secretary of State may not designate a mayoral combined authority unless the mayoral combined authority has submitted to the Secretary of State a written proposal to be designated (the “designation proposal”).
- (3) The designation proposal must identify—
 - (a) any provision—
 - (i) that applies in relation to the mayoral combined authority,
 - (ii) that would not be of general application to the mayoral combined authority if designated, and
 - (iii) which the mayoral combined authority would like to continue to apply in relation to it if designated;
 - (b) any provision—
 - (i) that does not apply in relation to the mayoral combined authority,
 - (ii) that would not be of general application to the mayoral combined authority, if designated, and
 - (iii) which the mayoral combined authority would like the Secretary of State to make (using a power conferred by this Part or otherwise) so as to apply in relation to it, if designated.
- (4) If the Secretary of State decides not to designate the mayoral combined authority, the Secretary of State must notify the authority in writing of the reasons for the decision.
- (5) If the Secretary of State decides not to designate the mayoral combined authority, that mayoral combined authority may not be designated unless another written proposal to be designated is submitted in accordance with this section.
- (6) A Minister of the Crown must not exercise any power to make subordinate legislation (whenever conferred) so as to cause a mayoral combined authority to cease to be an established mayoral strategic authority.
- (7) That does not limit the making of provision that is—
 - (a) in consequence of, or
 - (b) otherwise in connection with,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

the abolition or merger of an established mayoral strategic authority (whether the abolition or merger is provided for in secondary legislation or an Act of Parliament).

(8) For the purposes of this section provision would be “of general application to a mayoral combined authority if designated” if the provision is contained in an enactment and applies in relation to—

- (a) all established mayoral strategic authorities, or
- (b) a class of established mayoral strategic authorities which would include the mayoral combined authority if designated.”

Commencement Information

I9 S. 8 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I10 S. 8 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

9 Appointment of commissioners by mayors

(1) After section 29 of LURA 2023 insert—

“29A Appointment of commissioners by the mayor

- (1) The mayor for the area of a CCA may appoint not more than 10 persons—
 - (a) to assist the mayor in the exercise of the mayor’s general functions in relation to the areas of competence, and
 - (b) to otherwise assist the mayor in relation to the exercise by the CCA of functions which relate to the areas of competence.

(2) A person appointed under this section is referred to in this Chapter as a “commissioner”.

(3) Schedule [2A](#) makes provision about commissioners.

(4) In this section and Schedule [2A](#) “area of competence” has the meaning given by section [2](#) of the English Devolution and Community Empowerment Act 2026.”

(2) In section 30(3) of LURA 2023 (delegation of functions by the mayor), after paragraph (b) insert—

“(ba) for a commissioner appointed under section [29A](#) to exercise any such function, or”.

(3) In Schedule 1 to LURA 2023 (overview and scrutiny committees etc), in paragraph 1 (functions of overview and scrutiny committees), after sub-paragraph (4) insert—

“(4A) Paragraph [9](#) of Schedule [2A](#) makes provision about particular functions of overview and scrutiny committees in relation to commissioners appointed under section [29A](#).”

(4) After section 107C of LDEDCA 2009 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“107CA Appointment of commissioners by the mayor

- (1) The mayor for the area of a combined authority may appoint not more than 10 persons—
 - (a) to assist the mayor in the exercise of the mayor’s general functions in relation to the areas of competence, and
 - (b) to otherwise assist the mayor in relation to the exercise by the combined authority of functions which relate to the areas of competence.
- (2) A person appointed under this section is referred to in this Part as a “commissioner”.
- (3) Schedule 5BA makes provision about commissioners.
- (4) In this section and Schedule 5BA “area of competence” has the meaning given by section 2 of the English Devolution and Community Empowerment Act 2026.”
- (5) In section 107D(3) of LDEDCA 2009 (delegation of functions by the mayor), after paragraph (b) insert—

“(ba) for a commissioner appointed under section 107CA to exercise any such function, or”.
- (6) In Schedule 5A to LDEDCA 2009 (overview and scrutiny committees etc), in paragraph 1 (functions of overview and scrutiny committees), after sub-paragraph (4) insert—

“(4A) Paragraph 9 of Schedule 5BA makes provision about particular functions of overview and scrutiny committees in relation to commissioners appointed under section 107CA.”
- (7) Schedule 3 inserts the new Schedule 2A into LURA 2023 and the new Schedule 5BA into LDEDCA 2009.

Commencement Information

III S. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

10 Combined authorities and CCAs: allowances for members with special responsibilities

- (1) LURA 2023 is amended in accordance with subsections (2) and (3).
- (2) After section 52 insert—

“52A Allowances for members with special responsibilities

- (1) A CCA may—
 - (a) make a scheme providing for the payment of allowances to members of the CCA who have special responsibilities, and
 - (b) pay allowances in accordance with the scheme.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) A CCA may only make a scheme if—
 - (a) the CCA has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
- (3) A CCA which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
- (4) In exercising the powers conferred by this section, or complying with the duty to produce and publish reports, a CCA must take account of any guidance issued for this purpose by the Secretary of State.
- (5) In deciding the terms of a report produced for the purposes of this section, a relevant remuneration panel must take account of any guidance issued for this purpose by the Secretary of State.
- (6) If a member of a CCA is entitled to be paid—
 - (a) an allowance under this section, and
 - (b) an allowance or other payment by a constituent council,
 in respect of the same special responsibilities, the amount payable under this section is to be reduced by the amount payable by the constituent council (and the amount payable under this section is to be reduced to nil if it is smaller than the amount payable by the constituent council).
- (7) Regulations under section 10(1) (about the constitutional arrangements of a CCA) may not prevent or otherwise affect the exercise of the power to pay an allowance under this section; but this section does not otherwise limit the power conferred by section 10(1).
- (8) In this section—
 - “relevant remuneration panel”, means a panel that is specified, or of a description specified, in regulations made by the Secretary of State for the purposes of this section;
 - “special responsibilities”, in relation to a member of CCA, means any responsibilities which the member has in addition to the general responsibilities of being a member of the CCA.”
- (3) In section 252 (regulations)—
 - (a) in subsection (2), for “(c)” substitute “(ca)”;
 - (b) in subsection (5)(a), for “(c)” substitute “(ca)”;
 - (c) in subsection (8), after paragraph (c) insert—
 - “(ca) under section [52A](#),”
- (4) After section 113D of LDEDCA 2009 insert—

“113E Allowances for members with special responsibilities

- (1) A combined authority may—
 - (a) make a scheme providing for the payment of allowances to members of the combined authority who have special responsibilities, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) pay allowances in accordance with the scheme.
- (2) A combined authority may only make a scheme if—
 - (a) the combined authority has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
- (3) A combined authority which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
- (4) In exercising the powers conferred by this section, or complying with the duty to produce and publish reports, a combined authority must take account of any guidance issued for this purpose by the Secretary of State.
- (5) In deciding the terms of a report produced for the purposes of this section, a relevant remuneration panel must take account of any guidance issued for this purpose by the Secretary of State.
- (6) If a member of a combined authority is entitled to be paid—
 - (a) an allowance under this section, and
 - (b) an allowance or other payment by a constituent council,
 in respect of the same special responsibilities, the amount payable under this section is to be reduced by the amount payable by the constituent council (and the amount payable under this section is to be reduced to nil if it is smaller than the amount payable by the constituent council).
- (7) An order under section 104(1)(a) (about the constitutional arrangements of a combined authority) may not prevent or otherwise affect the exercise of the power to pay an allowance under this section; but this section does not otherwise limit the power conferred by section 104(1)(a).
- (8) In this section—
 - “relevant remuneration panel” means a panel that is specified, or of a description specified, in an order made by the Secretary of State for the purposes of this section;
 - “special responsibilities” in relation to a member of combined authority, means any responsibilities which the member has in addition to the general responsibilities of being a member of the combined authority.”

Commencement Information

I12 S. 10 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I13 [S. 10](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

11 Mayoral combined authorities and CCAs: overview and scrutiny committees

- (1) [Schedule 4](#) changes the system of overview and scrutiny committees for mayoral CCAs.
- (2) [Schedule 5](#) changes the system of overview and scrutiny committees for mayoral combined authorities.

Commencement Information

I14 S. 11 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PROSPECTIVE

12 Mayoral combined authorities and CCAs: precepts

- (1) In [section 40](#) of the [Local Government Finance Act 1992](#) (issue of precepts by major precepting authorities)—
 - (a) omit subsection (11)(a);
 - (b) in subsection (11)(b), for “that section” substitute “section 107G of the Local Democracy, Economic Development and Construction Act 2009”;
 - (c) omit subsection (12)(a);
 - (d) in subsection (12)(b), for “that section” substitute “section 41 of the Levelling-up and Regeneration Act 2023”.
- (2) In section 107G of LDEDCA 2009 (mayors for combined authority areas: financial matters)—
 - (a) omit subsection (1);
 - (b) in subsection (2), omit “in respect of mayoral functions”;
 - (c) in subsection (4)(a), for the words from “consists” to the end of that paragraph substitute “includes a separate component in respect of the mayor’s PCC functions,”;
 - (d) in subsection (5)(b), after “functions,” insert “or the other functions of the authority (other than any PCC functions that are exercisable by the mayor), or both”.
- (3) In section 41 of LURA 2023 (mayors for CCA areas: financial matters)—
 - (a) omit subsection (1);
 - (b) in subsection (2), omit “in respect of mayoral functions”;
 - (c) in subsection (4)(a), for the words from “consists” to the end of that paragraph substitute “includes a separate component in respect of the mayor’s PCC functions,”;
 - (d) in subsection (5)(b), after “functions,” insert “or the other functions of the CCA (other than any PCC functions that are exercisable by the mayor), or both”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I15 S. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

13 Power to borrow

- (1) Section 23 of the Local Government Act 2003 (meaning of “local authority” and application of provisions to combined authorities and CCAs) is amended in accordance with subsections [\(2\)](#) to [\(6\)](#).
- (2) In subsection (5), for “except that section 1 confers power on such a combined authority” substitute “except that—
 - (a) the power conferred by section 1 on a mayoral combined authority is subject to the requirements in subsection (9A) to obtain consent from the Secretary of State, and
 - (b) section 1 confers power on a non-mayoral combined authority”.
- (3) In subsection (8), for “The reference in subsection (5)” substitute “A reference in subsection (5) or (9A)”.
- (4) In subsection (8A), for “except that section 1 confers power on a CCA” substitute “except that—
 - (a) the power conferred by section 1 on a mayoral CCA is subject to the requirements in subsection (9A) to obtain consent from the Secretary of State, and
 - (b) section 1 confers power on a non-mayoral CCA”.
- (5) In subsection (8C), for “The reference in subsection (8A)” insert “A reference in subsection (8A) or (9A)”.
- (6) After subsection (9) insert—

“(9A) These are the requirements to obtain consent from the Secretary of State which apply to the exercise of the power conferred by section 1 on a mayoral combined authority or mayoral CCA—

 - (a) if the combined authority or CCA had the power to borrow under section 1 before the applicable commencement day, it does not need to obtain consent from the Secretary of State before any exercise of the power to borrow;
 - (b) if the combined authority or CCA did not have the power to borrow under section 1 before the applicable commencement day—
 - (i) it does not need to obtain consent from the Secretary of State before any exercise of the power to borrow money for a purpose relevant to its transport, police or fire and rescue functions;
 - (ii) it must obtain consent from the Secretary of State before the first exercise of the power to borrow money for a purpose relevant to a function other than its transport, police or fire and rescue functions;
 - (iii) once it has obtained consent in accordance with subparagraph [\(ii\)](#) (in relation to any kind of function), it does not need to obtain any further consent under that sub-

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

paragraph (whether in relation to the same kind, or a different kind, of function).

(9B) In this section—

“applicable commencement day” means the day on which section 13 of the English Devolution and Community Empowerment Act 2026 comes into force;

“non-mayoral CCA” means a CCA other than a mayoral CCA;

“non-mayoral combined authority” means a combined authority other than a mayoral combined authority;

“transport, police or fire and rescue functions”, in relation to a mayoral combined authority or mayoral CCA, means—

- (a) transport functions of the combined authority or CCA,
- (b) functions of a police and crime commissioner exercisable by the mayor for the area of the combined authority or CCA, and
- (c) functions of a fire and rescue authority exercisable by the mayor for the area of the combined authority or CCA.”

(7) The coming into force of this section does not affect the validity of—

- (a) any borrowing undertaken by a combined authority or CCA under Part 1 of the Local Government Act 2003 before this section came into force, or
- (b) anything else done by a combined authority or CCA, or any other person, before this section came into force—
 - (i) under or for the purposes of Part 1 of the Local Government Act 2003, or
 - (ii) in relation to borrowing by a combined authority or CCA under Part 1 of the Local Government Act 2003.

Commencement Information

I16 S. 13 in force at 29.6.2026, see s. 108(5)

14 Levies

(1) Section 74 of LGFA 1988 (levies) is amended in accordance with subsections (2) to (9).

(2) For subsections (8) and (10) substitute—

“(8) A combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009 is to be treated as a levying body for the purposes of this section.

(8A) A combined authority has (by virtue of this subsection) power to issue to its constituent councils a levy under this section in respect of any chargeable financial year to meet relevant transport costs in relation to that year which are not otherwise met (for example by the issuing of a precept).

(8B) That power is to be exercised in accordance with regulations made under subsection (2).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (8C) Regulations under subsection (2) may be made conferring on a combined authority power to issue to its constituent councils and in accordance with the regulations a levy under this section in respect of any chargeable financial year, but only to meet costs that are not relevant transport costs.”
- (3) In subsection (11), for “subsection (8) that include provision within subsection (10) (b)” substitute “subsection (8B) or (8C)”.
- (4) In subsection (13), for “subsection (8)” substitute “subsection (8B) or (8C)”.
- (5) In subsection (14)—
- (a) in the words before the definition of “constituent council”, after “(13)” insert “and this subsection”;
 - (b) after the definition of “mayoral functions” insert—

““relevant transport costs” means costs that are reasonably attributable to the exercise of a combined authority’s functions, excluding mayoral functions, relating to transport.”
- (6) For subsection (15) substitute—
- “(15) A combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023 is to be treated as a levying body for the purposes of this section.
- (15A) A combined county authority has (by virtue of this subsection) power to issue to its constituent councils a levy under this section in respect of any chargeable financial year to meet relevant transport costs in relation to that year which are not otherwise met (for example by the issuing of a precept).
- (15B) That power is to be exercised in accordance with regulations made under subsection (2).
- (15C) Regulations under subsection (2) may be made conferring on a combined county authority power to issue to its constituent councils and in accordance with the regulations a levy under this section in respect of any chargeable financial year, but only to meet costs that are not relevant transport costs.”
- (7) In subsection (16), for “subsection (15)” substitute “subsection (15B) or (15C)”.
- (8) In subsection (17), for “of subsection (15)” substitute “subsection (15B) or (15C)”.
- (9) In subsection (18)—
- (a) in the words before the definition of “constituent council”, after “(17)” insert “and this subsection”;
 - (b) after the definition of “mayoral functions” insert—

““relevant transport costs” means costs that are reasonably attributable to the exercise of a combined county authority’s functions, excluding mayoral functions, relating to transport.”
- (10) In consequence of those amendments—
- (a) in section 143 of LGFA 1988 (orders and regulations)—
 - (i) in subsection (4B), for “subsection (8)” substitute “subsection (8B) or (8C)”;
 - (ii) in subsection (4C), for “subsection (15)” substitute “subsection (15B) or (15C)”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) in section 106A of LDEDCA 2009 (consent requirements under other powers), in subsection (5)(b), for “subsection (8)” substitute “subsection (8B) or (8C)”.

Commencement Information

I17 S. 14 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

15 Combined authorities and CCAs: minor amendments

- (1) In section 57 of LURA 2023 (interpretation)—
 - (a) after the definition of “economic prosperity board” insert—

““established mayoral strategic authority” means a mayoral CCA designated by the Secretary of State under section [25A](#);”;
 - (b) after the definition of “non-constituent member” insert—

““non-mayoral CCA” means a CCA that is not a mayoral CCA;”.
- (2) Part 6 of LDEDCA 2009 is amended as follows—
 - (a) before the italic heading before section 88 insert—

“Chapter 1

Economic prosperity boards”;
 - (b) before the italic heading before section 103 insert—

“Chapter 2

Combined authorities”;
 - (c) before the italic heading before section 113A insert—

“Chapter 3

General provision”.
- (3) In section 120 of LDEDCA 2009 (interpretation)—
 - (a) after the definition of “deputy mayor” insert—

““established mayoral strategic authority” means a mayoral combined authority designated by the Secretary of State under section [106B](#);”;
 - (b) after the definition of “non-constituent member” insert—

““non-mayoral combined authority” means a combined authority that is not a mayoral combined authority;”.

Commencement Information

I18 S. 15 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

The Greater London Authority

16 Additional functions of the GLA

After section 40 of the GLAA 1999 insert—

“Additional functions

40A Additional functions of the Authority, Mayor and functional bodies

Schedule 27 to the English Devolution and Community Empowerment Act 2026 contains powers for the Secretary of State to confer further additional functions on the Authority, the Mayor and the functional bodies.”

Commencement Information

I19 S. 16 in force at 29.6.2026, see s. 108(5)

Mayors

17 Members of legislatures disqualified for being a mayor of a strategic authority

(1) In Schedule 5B to LDEDCA 2009 (mayors for combined authority areas: further provision about elections), after paragraph 9A insert—

“9B (1) A person is disqualified for holding office as the mayor for the area of a combined authority if the person is an elected member of a legislature in the United Kingdom.

(2) If a person—

- (a) is elected as the mayor for the area of a combined authority, and
- (b) is, on the first day of the mayoral term, an elected member of a legislature in the United Kingdom,

the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the first day of the mayoral term.

(3) If a person—

- (a) becomes an elected member of a legislature in the United Kingdom, and
- (b) is, when the person becomes the elected member, the mayor for the area of a combined authority,

the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the day on which the person becomes the elected member of the legislature.

(4) In this paragraph—

“elected member of a legislature in the United Kingdom” means a member of—

- (a) the House of Commons;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the Scottish Parliament;
- (c) Senedd Cymru;
- (d) the Northern Ireland Assembly;

“first day of the mayoral term”, in relation to a person who is elected as the mayor for the area of a combined authority, means the day that would be the first day of the person’s term as the mayor if it is assumed that the person is not disqualified under this paragraph.”

- (2) In Schedule 5C to that Act (mayors for combined authority areas: PCC functions), in paragraph 9 (disqualification)—

- (a) in sub-paragraph (1), for “sections 64 to 68” substitute “sections 64 to 66 and section 68”;
- (b) in sub-paragraph (2), for “and 9A” substitute “, 9A and 9B”.

- (3) In Schedule 2 to LURA 2023 (mayors for combined county authority areas: further provisions about elections), after paragraph 9 insert—

“9A (1) A person is disqualified for holding office as the mayor for the area of a CCA if the person is an elected member of a legislature in the United Kingdom.

- (2) If a person—

- (a) is elected as the mayor for the area of a CCA, and
- (b) is, on the first day of the mayoral term, an elected member of a legislature in the United Kingdom,

the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the first day of the mayoral term.

- (3) If a person—

- (a) becomes an elected member of a legislature in the United Kingdom, and
- (b) is, when the person becomes the elected member, the mayor for the area of a CCA,

the person is not disqualified under this paragraph for holding office as the mayor at any time in the period of eight days beginning with the day on which the person becomes the elected member of the legislature.

- (4) In this paragraph—

“elected member of a legislature in the United Kingdom” means a member of—

- (a) the House of Commons;
- (b) the Scottish Parliament;
- (c) Senedd Cymru;
- (d) the Northern Ireland Assembly;

“first day of the mayoral term”, in relation to a person who is elected as the mayor for the area of a CCA, means the day that would be the first day of the person’s term as the mayor if it is assumed that the person is not disqualified under this paragraph.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) In Schedule 3 to that Act (mayors for combined county authority areas: PCC functions), in paragraph 10 (disqualification)—
- (a) in sub-paragraph (1), for “sections 64 to 68” substitute “sections 64 to 66 and section 68”;
 - (b) in sub-paragraph (2), for “and 9” substitute “, 9 and [9A](#)”.
- (5) In the GLAA 1999, after section 21A insert—

“21B Disqualification from being the Mayor: members of legislatures

- (1) A person is disqualified from being the Mayor if the person is an elected member of a legislature in the United Kingdom.
- (2) If a person—
- (a) is elected as the Mayor, and
 - (b) is, on the first day of the Mayoral term, an elected member of a legislature in the United Kingdom,
- the person is not disqualified under this section from being the Mayor at any time in the period of eight days beginning with the first day of the Mayoral term.
- (3) If a person—
- (a) becomes an elected member of a legislature in the United Kingdom, and
 - (b) is, when the person becomes the elected member, the Mayor,
- the person is not disqualified under this section from being the Mayor at any time in the period of eight days beginning with the day on which the person becomes the elected member of the legislature.
- (4) In this section—
- “elected member of a legislature in the United Kingdom” means a member of—
- (a) the House of Commons;
 - (b) the Scottish Parliament;
 - (c) Senedd Cymru;
 - (d) the Northern Ireland Assembly;
- “first day of the Mayoral term”, in relation to a person who is elected as the Mayor, means the day that would be the first day of the person’s term as the Mayor if it is assumed that the person is not disqualified under this section.”

Commencement Information

I20 [S. 17](#) in force at 29.6.2026, see [s. 108\(5\)](#)

18 Functions of mayors of combined authorities or CCAs

- (1) In section 30 of LURA 2023 (functions of mayors: general), after subsection (1) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(1A) Any mayoral function is to be taken to be a function of the CCA that is exercisable only by the mayor acting on behalf of the CCA.

(1B) The members and officers of a mayoral CCA may assist the mayor in the exercise of any mayoral function (and here “members” means the members of the constituent councils who are appointed to be members of the CCA).

(1C) For the purposes of this section a “mayoral function” is—

- (a) a function which is conferred by an enactment on the mayor for the area of the CCA, or
- (b) a function which is conferred on the CCA by an enactment if an enactment provides for the function to be exercisable only by the mayor for the area of the CCA.”

(2) In section 107D of LDEDCA 2009 (functions of mayors: general), after subsection (1) insert—

“(1A) Any mayoral function is to be taken to be a function of the combined authority that is exercisable only by the mayor acting on behalf of the combined authority.

(1B) The members and officers of a mayoral combined authority may assist the mayor in the exercise of any mayoral function (and here “members” means the members of the constituent councils who are appointed to be members of the combined authority).

(1C) For the purposes of this section a “mayoral function” is—

- (a) a function which is conferred by an enactment on the mayor for the area of the combined authority, or
- (b) a function which is conferred on the combined authority by an enactment if an enactment provides for the function to be exercisable only by the mayor for the area of the combined authority.”

Commencement Information

I21 S. 18 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

19 The “general functions” of mayors

(1) Section 30 of LURA 2023 (functions of mayors: general) is amended in accordance with subsections [\(2\)](#) and [\(3\)](#).

(2) In subsection (2), after “exercisable by the mayor” insert “(whether by virtue of regulations under subsection (1) or otherwise)”.

(3) In subsection (8), for “by virtue of this Act” substitute “(whether by virtue of this Act or otherwise)”.

(4) Section 107D of LDEDCA 2009 (functions of mayors: general) is amended in accordance with subsections [\(5\)](#) and [\(6\)](#).

(5) In subsection (2), after “exercisable by the mayor” insert “(whether by virtue of an order under subsection (1) or otherwise)”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (6) In subsection (6), for “by virtue of this Act” substitute “(whether by virtue of this Act or otherwise)”.

Commencement Information

I22 S. 19 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Annual report on devolution

20 Report under section 1 of the Cities and Local Government Devolution Act 2016

For section 1 of the Cities and Local Government Devolution Act 2016 (devolution: annual report) substitute—

“1 Devolution: annual report

- (1) The Secretary of State must lay before each House of Parliament an annual report about devolution for all areas within England pursuant to the provisions of—
 - (a) this Act,
 - (b) Part 6 of the Local Democracy, Economic Development and Construction Act 2009,
 - (c) Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023,
 - (d) Parts 1 and 2 of the English Devolution and Community Empowerment Act 2026, and
 - (e) any other enactment.
- (2) The annual report must include information on—
 - (a) the areas of the country where strategic authorities have been established,
 - (b) the areas of the country where proposals have been received by the Secretary of State for establishment of a strategic authority and negotiations have taken place but agreement has not yet been reached,
 - (c) strategic authorities which have moved from one category of strategic authorities to another category,
 - (d) additional functions which have been conferred on strategic authorities within each category of strategic authorities or on particular strategic authorities, and
 - (e) additional financial resources which have been devolved on strategic authorities within each category of strategic authorities or on particular strategic authorities.
- (3) The annual report must be laid before each House of Parliament as soon as practicable after 31 March each year.
- (4) In this section “strategic authority” and “category of strategic authorities” have the same meanings as in the English Devolution and Community Empowerment Act 2026 (see section [101\(1\)](#) of that Act).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I23 S. 20 in force at 29.6.2026, see s. 108(5)

PART 2

FUNCTIONS OF STRATEGIC AUTHORITIES AND MAYORS

Mayoral powers of competence

21 Extension of general power of competence to strategic authorities

Schedule 6 amends the Localism Act 2011 to extend the general power of competence to combined authorities and CCAs and their mayors.

Commencement Information

I24 S. 21 in force at Royal Assent for specified purposes, see s. 108(1)(3)

I25 S. 21 in force at 29.6.2026 in so far as not already in force, see s. 108(5)

22 Power of mayors to convene meetings with local partners

(1) After section 17A of LURA 2023 (inserted by section 5 of this Act) insert—

“Collaboration

17B Mayoral power to convene meetings with local partners

- (1) The mayor for the area of a CCA may convene meetings with local partners to consider relevant local matters.
- (2) In exercising the function of convening meetings, a mayor must have regard to any guidance issued for this purpose by the Secretary of State.
- (3) If a mayor notifies a local partner that the mayor intends to convene a meeting under this section with that local partner, the local partner must respond to the notification.
- (4) In responding to a notification given by a mayor, a local partner must have regard to any guidance issued for this purpose by the Secretary of State.
- (5) In this section—
 - “local partner” means a person specified, or of a description specified, in regulations made by the Secretary of State;
 - “relevant local matter”, in relation to the mayor for the area of a CCA, means a matter which relates both to—
 - (a) the area of the CCA, and
 - (b) any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) In section 252 of LURA 2023 (regulations)—
 - (a) in subsection (5)(a), after “subsection” insert “(8)(aa) or”;
 - (b) in subsection (8), before paragraph (a) insert—
 - “(aa) under section 17B(5);”.
- (3) After section 103A of LDEDCA 2009 (inserted by section 5 of this Act) insert—

“103B Mayoral power to convene meetings with local partners

- (1) The mayor for the area of a combined authority may convene meetings with local partners to consider relevant local matters.
- (2) In exercising the function of convening meetings, a mayor must have regard to any guidance issued for this purpose by the Secretary of State.
- (3) If a mayor notifies a local partner that the mayor intends to convene a meeting under this section with that local partner, the local partner must respond to the notification.
- (4) In responding to a notification given by a mayor, a local partner must have regard to any guidance issued for this purpose by the Secretary of State.
- (5) In this section—
 - “local partner” means a person specified, or of a description specified, in regulations made by the Secretary of State;
 - “relevant local matter”, in relation to the mayor for the area of a combined authority, means a matter which relates both to—
 - (a) the area of the combined authority, and
 - (b) any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026.”
- (4) In section 117 of LDEDCA 2009 (orders and regulations), in subsection (3)(a), after “order” insert “or regulations”.
- (5) After section 40A of GLAA 1999 (inserted by section 16 of this Act) insert—

“Collaboration

40B Mayor’s power to convene meetings with local partners

- (1) The Mayor may convene meetings with local partners to consider relevant local matters.
- (2) In exercising the function of convening meetings, the Mayor must have regard to any guidance issued for this purpose by the Secretary of State.
- (3) If the Mayor notifies a local partner that the Mayor intends to convene a meeting under this section with that local partner, the local partner must respond to the notification.
- (4) In responding to a notification given by the Mayor, a local partner must have regard to any guidance issued for this purpose by the Secretary of State.
- (5) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“local partner” means a person specified, or of a description specified, in regulations made by the Secretary of State;

“relevant local matter”, in relation to the Mayor of London, means a matter which relates both to—

- (a) Greater London, and
- (b) any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026.”

- (6) In section 420 of GLAA 1999 (regulations and orders), in subsection (7), in the appropriate place, insert “section 40B;”.

Commencement Information

I26 S. 22 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I27 [S. 22](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

23 Duty of mayors to collaborate

- (1) After section [17B](#) of LURA 2023 (inserted by section [22](#) of this Act) insert—

“17C Request to collaborate

- (1) The mayor for the area of a CCA (“mayor A”) may make a request to another elected mayor (“mayor B”) for the mayors to collaborate in relation to a matter relating to any aspect of any area of competence.
- (2) A collaboration request must specify—
 - (a) the matter on which mayor A wants the mayors to collaborate, and
 - (b) the way in which mayor A wants the mayors to collaborate.
- (3) Mayor A may make a collaboration request only if mayor A considers that the requested collaboration would be likely to improve the economic, social or environmental well-being of—
 - (a) some or all of the people who live or work in mayor A’s area, or
 - (b) some or all of the people who live or work in mayor A’s area and some or all of the people who live or work in mayor B’s area.
- (4) Mayor A may make a collaboration request only if mayor A’s area adjoins mayor B’s area.
- (5) A collaboration request must be in writing.
- (6) Mayor A must publish, in such manner as the mayor thinks appropriate, any collaboration request which the mayor makes.
- (7) The mayors for the areas of CCAs must have regard to any guidance issued by the Secretary of State in exercising powers, and complying with duties, under this section.
- (8) Section [17E](#) makes provision about collaboration requests made by, or to, two or more elected mayors.
- (9) In this section, section [17D](#) and section [17E](#)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“area of competence” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 2 of that Act);

“collaboration request” means a request made under subsection (1);

“elected mayor” means—

- (a) the mayor for the area of a CCA,
- (b) the mayor for the area of a combined authority, or
- (c) the Mayor of London;

“mayor A” has the meaning given in subsection (1);

“mayor A’s area” means the area for which mayor A is the mayor;

“mayor B” has the meaning given in subsection (1);

“mayor B’s area” means the area for which mayor B is the mayor.

17D Responding to a collaboration request

- (1) In a case where a collaboration request is made to mayor B, the mayor must—
 - (a) consider the collaboration request and decide how to respond,
 - (b) set out the response in writing,
 - (c) give the response to mayor A, and
 - (d) publish, in such manner as the mayor thinks appropriate, the response.
- (2) In considering the collaboration request and deciding how to respond, mayor B must have regard to the economic, social and environmental well-being of some or all of the people who live or work in mayor B’s area.
- (3) If mayor B decides not to agree to the collaboration request, or any part of it, mayor B must—
 - (a) give the reasons for that decision, and
 - (b) include the reasons in the response to mayor A.
- (4) Mayors to whom collaboration requests are made must have regard to any guidance issued by the Secretary of State in exercising the powers, and complying with the duties, under this section.

17E Collaboration requests made by or to several mayors

- (1) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to a single elected mayor (the “potential collaborating mayor”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a CCA, and
 - (b) each requesting mayor’s area meets the neighbour test.
- (2) For that purpose, a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins the potential collaborating mayor’s area.
- (3) If two or more elected mayors make a collaboration request to a single elected mayor—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) sections 17C and 17D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor.
- (4) A single mayor for the area of a CCA (the “requesting mayor”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if each potential collaborating mayor’s area meets the neighbour test.
- (5) For that purpose, a potential collaborating mayor’s area meets the neighbour test if that area adjoins the requesting mayor’s area.
- (6) If a single mayor for the area of a CCA makes a collaboration request to two or more elected mayors—
 - (a) sections 17C and 17D apply in relation to each of the potential collaborating mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (7) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a CCA,
 - (b) each requesting mayor’s area meets the neighbour test, and
 - (c) each potential collaborating mayor’s area meets the neighbour test.
- (8) For the purposes of subsection (7), a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins every potential collaborating mayor’s area.
- (9) For the purposes of subsection (7), a potential collaborating mayor’s area meets the neighbour test if that area adjoins every requesting mayor’s area.
- (10) If two or more elected mayors make a collaboration request to two or more elected mayors—
 - (a) sections 17C and 17D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor;
 - (c) sections 17C and 17D apply in relation to each of the potential collaborating mayors separately, and
 - (d) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (11) In this section—
 - “potential collaborating mayor’s area” means the area for which a potential collaborating mayor is the mayor;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“requesting mayor’s area” means the area for which a requesting mayor is the mayor.”

(2) After section 103B of LDEDCA 2009 (inserted by section 22 of this Act) insert—

“103C Request to collaborate

- (1) The mayor for the area of a combined authority (“mayor A”) may make a request to another elected mayor (“mayor B”) for the mayors to collaborate in relation to a matter relating to any aspect of any area of competence.
- (2) A collaboration request must specify—
 - (a) the matter on which mayor A wants the mayors to collaborate, and
 - (b) the way in which mayor A wants the mayors to collaborate.
- (3) Mayor A may make a collaboration request only if mayor A considers that the requested collaboration would be likely to improve the economic, social or environmental well-being of—
 - (a) some or all of the people who live or work in mayor A’s area, or
 - (b) some or all of the people who live or work in mayor A’s area and some or all of the people who live or work in mayor B’s area.
- (4) Mayor A may make a collaboration request only if mayor A’s area adjoins mayor B’s area.
- (5) A collaboration request must be in writing.
- (6) Mayor A must publish, in such manner as the mayor thinks appropriate, any collaboration request which the mayor makes.
- (7) The mayors for the areas of combined authorities must have regard to any guidance issued by the Secretary of State in exercising powers, and complying with duties, under this section.
- (8) Section 103E makes provision about collaboration requests made by, or to, two or more elected mayors.
- (9) In this section, section 103D and section 103E—

“area of competence” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 2 of that Act);

“collaboration request” means a request made under subsection (1);

“elected mayor” means—

 - (a) the mayor for the area of a combined authority,
 - (b) the mayor for the area of a combined county authority, or
 - (c) the Mayor of London;

“mayor A” has the meaning given in subsection (1);

“mayor A’s area” means the area for which mayor A is the mayor;

“mayor B” has the meaning given in subsection (1);

“mayor B’s area” means the area for which mayor B is the mayor.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

103D Responding to a collaboration request

- (1) In a case where a collaboration request is made to mayor B, the mayor must—
 - (a) consider the collaboration request and decide how to respond,
 - (b) set out the response in writing,
 - (c) give the response to mayor A, and
 - (d) publish, in such manner as the mayor thinks appropriate, the response.
- (2) In considering the collaboration request and deciding how to respond, mayor B must have regard to the economic, social and environmental well-being of some or all of the people who live or work in mayor B's area.
- (3) If mayor B decides not to agree to the collaboration request, or any part of it, mayor B must—
 - (a) give the reasons for that decision, and
 - (b) include the reasons in the response to mayor A.
- (4) Mayors to whom collaboration requests are made must have regard to any guidance issued by the Secretary of State in exercising the powers, and complying with the duties, under this section.

103E Collaboration requests made by or to several mayors

- (1) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to a single elected mayor (the “potential collaborating mayor”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a combined authority, and
 - (b) each requesting mayor's area meets the neighbour test.
- (2) For that purpose, a requesting mayor's area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor's area, and
 - (b) adjoins the potential collaborating mayor's area.
- (3) If two or more elected mayors make a collaboration request to a single elected mayor—
 - (a) sections 103C and 103D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor.
- (4) A single mayor for the area of a combined authority (the “requesting mayor”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if each potential collaborating mayor's area meets the neighbour test.
- (5) For that purpose, a potential collaborating mayor's area meets the neighbour test if that area adjoins the requesting mayor's area.
- (6) If a single mayor for the area of a combined authority makes a collaboration request to two or more elected mayors—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) sections 103C and 103D apply in relation to each of the potential collaborating mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
 - (7) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if—
 - (a) at least one of the requesting mayors is the mayor for the area of a combined authority,
 - (b) each requesting mayor’s area meets the neighbour test, and
 - (c) each potential collaborating mayor’s area meets the neighbour test.
 - (8) For the purposes of subsection (7), a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins every potential collaborating mayor’s area.
 - (9) For the purposes of subsection (7), a potential collaborating mayor’s area meets the neighbour test if that area adjoins every requesting mayor’s area.
 - (10) If two or more elected mayors make a collaboration request to two or more elected mayors—
 - (a) sections 103C and 103D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor;
 - (c) sections 103C and 103D apply in relation to each of the potential collaborating mayors separately, and
 - (d) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
 - (11) In this section—
 - “potential collaborating mayor’s area” means the area for which a potential collaborating mayor is the mayor;
 - “requesting mayor’s area” means the area for which a requesting mayor is the mayor.”
- (3) After section 40B of GLAA 1999 (inserted by section 22 of this Act) insert—

“40C Request to collaborate

- (1) The Mayor of London (“mayor A”) may make a request to another elected mayor (“mayor B”) for the mayors to collaborate in relation to a matter relating to any aspect of any area of competence.
- (2) A collaboration request must specify—
 - (a) the matter on which mayor A wants the mayors to collaborate, and
 - (b) the way in which mayor A wants the mayors to collaborate.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Mayor A may make a collaboration request only if mayor A considers that the requested collaboration would be likely to improve the economic, social or environmental well-being of—
 - (a) some or all of the people who live or work in Greater London, or
 - (b) some or all of the people who live or work in Greater London and some or all of the people who live or work in mayor B’s area.
- (4) Mayor A may make a collaboration request only if Greater London adjoins mayor B’s area.
- (5) A collaboration request must be in writing.
- (6) Mayor A must publish, in such manner as the mayor thinks appropriate, any collaboration request which the mayor makes.
- (7) The Mayor of London must have regard to any guidance issued by the Secretary of State in exercising powers, and complying with duties, under this section.
- (8) Section 40E makes provision about collaboration requests made by, or to, two or more elected mayors.
- (9) In this section, section 40D and section 40E—
 - “area of competence” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 2 of that Act);
 - “collaboration request” means a request made under subsection (1);
 - “elected mayor” means—
 - (a) the Mayor of London,
 - (b) the mayor for the area of a combined authority, or
 - (c) the mayor for the area of a combined county authority;
 - “mayor A” has the meaning given in subsection (1);
 - “mayor B” has the meaning given in subsection (1);
 - “mayor B’s area” means the area for which mayor B is the mayor.

40D Responding to a collaboration request

- (1) In a case where a collaboration request is made to mayor B, the mayor must—
 - (a) consider the collaboration request and decide how to respond,
 - (b) set out the response in writing,
 - (c) give the response to mayor A, and
 - (d) publish, in such manner as the mayor thinks appropriate, the response.
- (2) In considering the collaboration request and deciding how to respond, mayor B must have regard to the economic, social and environmental well-being of some or all of the people who live or work in mayor B’s area.
- (3) If mayor B decides not to agree to the collaboration request, or any part of it, mayor B must—
 - (a) give the reasons for that decision, and
 - (b) include the reasons in the response to mayor A.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) Mayors to whom collaboration requests are made must have regard to any guidance issued by the Secretary of State in exercising the powers, and complying with the duties, under this section.

40E Collaboration requests made by or to several mayors

- (1) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to a single elected mayor (the “potential collaborating mayor”) if—
 - (a) at least one of the requesting mayors is the Mayor of London, and
 - (b) each requesting mayor’s area meets the neighbour test.
- (2) For that purpose, a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins the potential collaborating mayor’s area.
- (3) If two or more elected mayors make a collaboration request to a single elected mayor—
 - (a) sections 40C and 40D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor.
- (4) The Mayor of London (the “requesting mayor”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if each potential collaborating mayor’s area meets the neighbour test.
- (5) For that purpose, a potential collaborating mayor’s area meets the neighbour test if that area adjoins Greater London.
- (6) If the Mayor of London makes a collaboration request to two or more elected mayors—
 - (a) sections 40C and 40D apply in relation to each of the potential collaborating mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (7) Two or more elected mayors (the “requesting mayors”) may make a collaboration request to two or more elected mayors (the “potential collaborating mayors”) if—
 - (a) at least one of the requesting mayors is the Mayor of London,
 - (b) each requesting mayor’s area meets the neighbour test, and
 - (c) each potential collaborating mayor’s area meets the neighbour test.
- (8) For the purposes of subsection (7), a requesting mayor’s area meets the neighbour test if that area—
 - (a) adjoins every other requesting mayor’s area, and
 - (b) adjoins every potential collaborating mayor’s area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (9) For the purposes of subsection (7), a potential collaborating mayor’s area meets the neighbour test if that area adjoins every requesting mayor’s area.
- (10) If two or more elected mayors make a collaboration request to two or more elected mayors—
- (a) sections 40C and 40D apply in relation to each of the requesting mayors separately, and
 - (b) accordingly, in the application of those sections in relation to a particular requesting mayor, “mayor A” means that mayor;
 - (c) sections 40C and 40D apply in relation to each of the potential collaborating mayors separately, and
 - (d) accordingly, in the application of those sections in relation to a particular potential collaborating mayor, “mayor B” means that mayor.
- (11) In this section—
- “potential collaborating mayor’s area” means the area for which a potential collaborating mayor is the mayor;
 - “requesting mayor’s area” means the area for which a requesting mayor is the mayor.”

Commencement Information

I28 S. 23 in force at 29.6.2026, see s. 108(5)

Transport and local infrastructure

24 Regulation of provision of micromobility vehicles

Schedule 7 confers on strategic authorities, and local authorities where there is no strategic authority, powers to regulate the provision of micromobility vehicles.

Commencement Information

I29 S. 24 in force at Royal Assent for specified purposes, see s. 108(1)(6)

25 Arrangements to carry out works on highways

Schedule 8 makes provision about arrangements made by combined authorities and CCAs to carry out works on highways.

Commencement Information

I30 S. 25 in force at Royal Assent, see s. 108(1)(3)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

26 Charges payable by undertakers executing works in maintainable highways

Schedule 9 makes provision about charges payable by undertakers executing works in maintainable highways.

Commencement Information

I31 S. 26 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

27 Civil enforcement of traffic contraventions

Schedule 10 confers on combined authorities and CCAs functions in relation to civil enforcement of traffic contraventions.

Commencement Information

I32 S. 27 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

28 Restrictions on disposal of land by Transport for London

(1) The GLAA 1999 is amended as follows.

(2) In section 163(1), in the words after paragraph (b), for “Secretary of State” substitute “appropriate person”.

(3) In section 163(2), for “Secretary of State” substitute “appropriate person”.

(4) After section 163(4), insert—

“(4A) Transport for London must consult Network Rail Limited, or a subsidiary of Network Rail Limited nominated by Network Rail Limited, before seeking from the appropriate person—

- (a) consent under subsection (1) in relation to land used by Network Rail, or
- (b) consent under subsection (2) in relation to a company in which is vested land used by Network Rail.

(4B) The Secretary of State may by regulations—

- (a) amend subsection (4A) by adding or removing a person who must be consulted under that subsection;
- (b) amend this section to include other requirements for Transport for London to consult before seeking a consent under this section.”

(5) For section 163(5) substitute—

“(5) Any consent—

- (a) of the appropriate person under this section may be given in relation to any particular transaction or description of transactions; and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) of the Secretary of State under this section may be given subject to conditions.”
- (6) In section 163(7), for “Secretary of State”, substitute “appropriate person”.
- (7) In section 163(8), before “operational land” insert—
- ““appropriate person” means—
- (a) in relation to consent under subsection (1)—
- (i) the Mayor of London, in a case where the consent relates to land which is entirely within Greater London and is not Crown land;
- (ii) the Secretary of State, in case where the consent relates to any other land;
- (b) in relation to consent under subsection (2)—
- (i) the Mayor of London, in a case where all the operational land vested in the subsidiary company is entirely within Greater London and is not Crown land;
- (ii) the Secretary of State, in any other case;
- “Crown land” means land in which the Crown has any estate or interest, or over which the Crown has any right;
- “land used by Network Rail” means—
- (a) land that is used wholly or partly for the provision of network services by Network Rail; and
- (b) land that is used by Network Rail wholly or partly for a purpose ancillary or incidental to use of land that falls within paragraph (a);
- “Network Rail” means Network Rail Limited or any subsidiary of Network Rail Limited;
- “network services” has the same meaning as in Part 1 of the Railways Act 1993 (see section 82 of that Act);”
- (8) In section 164(a), after “Secretary of State” insert “or Mayor”.
- (9) In section 420, after subsection (5), insert—
- “(5A) A statutory instrument containing regulations under section 163(4B) of this Act may not be made unless a draft of the instrument has been laid before, and approved by a resolution of, each House of Parliament.”

Commencement Information

I33 S. 28 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I34 [S. 28](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

29 Key route network roads

Schedule 11 makes provision about key route network roads (including road traffic reduction).

Commencement Information

I35 S. 29 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

30 **Constituent councils to act in accordance with local transport plans etc**

For section 113 of the Transport Act 2000 substitute—

“113 Role of councils in relation to policies etc of ITAs, combined authorities & CCAs

- (1) A metropolitan district council that is within the area of an Integrated Transport Authority (the “ITA”)—
 - (a) must carry out its functions so as to implement the policies developed by the ITA in accordance with section 108(1)(b);
 - (b) must, in carrying out its functions in accordance with paragraph (a)—
 - (i) comply with the duties set out in section 108(2ZB), and
 - (ii) have regard to the proposals contained in the applicable local transport plan;
 - (c) must—
 - (i) cause a copy of the applicable local transport plan to be made available for inspection (at all reasonable hours) at such places as it thinks fit,
 - (ii) give notice, by such means as it thinks expedient for bringing the applicable local transport plan to the attention of the public, as to the places at which a copy of it may be inspected, and
 - (iii) supply a copy of the applicable local transport plan (or any part of it) to any person on request, either free of charge or at a charge representing no more than the cost of providing the copy.
- (2) A constituent council of a combined authority or a combined county authority—
 - (a) must carry out its functions so as to implement the policies developed by the combined authority or combined county authority in accordance with section 108(1)(b);
 - (b) must, in carrying out its functions in accordance with paragraph (a)—
 - (i) comply with the duties set out in section 108(2ZB), and
 - (ii) have regard to the proposals contained in the applicable local transport plan;
 - (c) must—
 - (i) cause a copy of the applicable local transport plan to be made available for inspection (at all reasonable hours) at such places as it thinks fit,
 - (ii) give notice, by such means as it thinks expedient for bringing the applicable local transport plan to the attention of the public, as to the places at which a copy of it may be inspected, and
 - (iii) supply a copy of the applicable local transport plan (or any part of it) to any person on request, either free of charge or at a charge representing no more than the cost of providing the copy.
- (3) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“applicable local transport plan”—

- (a) in relation to a metropolitan district council that is within the area of an Integrated Transport Authority, means the local transport plan of the ITA;
- (b) in relation to a constituent council of a combined authority or combined county authority, means the local transport plan of that authority;

“constituent council”—

- (a) in relation to a combined authority, means—
 - (i) a county council the whole or any part of whose area is within the area of the authority, or
 - (ii) a district council whose area is within the area of the authority;
- (b) in relation to a combined county authority, means—
 - (i) a county council for an area within the area of the authority, or
 - (ii) a unitary district council for an area within the area of the authority;

and here “unitary district council” means a district council whose area does not form part of the area of a county council.

(4) In any enactment, a reference—

- (a) to section 108(1)(b) includes subsection (2)(a) of this section;
- (b) to section 108(2ZA) includes subsection (2)(b)(i) of this section;
- (c) to section 108(3B) includes subsection (2)(b)(ii) of this section;
- (d) to section 109(4) includes subsection (2)(c) of this section.”

Commencement Information

I36 S. 30 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

31 Local transport authorities and other transport functions

[Schedule 12](#) confers on combined authorities and CCAs functions as local transport authorities and makes provision about other functions relating to transport.

Commencement Information

I37 S. 31 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Skills and employment support

32 Education

[Schedule 13](#) confers on strategic authorities functions relating to education.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I38 S. 32 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Housing and strategic planning

PROSPECTIVE

33 Planning applications of potential strategic importance

Schedule [14](#) confers on mayors of combined authorities and CCAs functions in relation to planning applications of potential strategic importance.

Commencement Information

I39 S. 33 not in force at Royal Assent, see [s. 108\(6\)](#)

34 Development orders

- (1) Schedule [15](#) confers on mayors of combined authorities and CCAs functions in relation to development orders.
- (2) [Schedule 16](#) contains amendments relating to section [33](#) and this section.

Commencement Information

I40 S. 34(2) in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

35 Power to charge community infrastructure levy

Schedule [17](#) confers on mayors of combined authorities and CCAs powers to charge community infrastructure levy.

Commencement Information

I41 S. 35 not in force at Royal Assent, see [s. 108\(6\)](#)

36 Acquisition and development of land

Schedule [18](#) confers on strategic authorities functions relating to the acquisition and development of land.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I42 S. 36 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

37 Housing accommodation

Schedule 19 confers on combined authorities and CCAs functions relating to housing accommodation.

Commencement Information

I43 S. 37 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

38 Mayoral development corporations

Schedule 20 provides for mayoral development corporations to be established within the areas of mayoral combined authorities and mayoral CCAs.

Commencement Information

I44 S. 38 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

39 Prioritisation of development of brownfield land

In section 12G of the Planning and Compulsory Purchase Act 2004 (preparation of draft spatial development strategy), after subsection (2) insert—

“(2A) The Secretary of State must make regulations under subsection (2)(d) which prescribe the desirability of prioritising development on land that has been previously developed.”

Commencement Information

I45 S. 39 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Economic development and regeneration

40 Assessment of economic conditions

Schedule 21 confers on combined authorities and CCAs functions in relation to the assessment of economic conditions.

Commencement Information

I46 S. 40 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

41 Local growth plans

[Schedule 22](#) confers on mayoral strategic authorities functions in relation to local growth plans.

Commencement Information

I47 S. 41 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I48 [S. 41](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

42 Local Government Act 2003: expenditure grant

- (1) Chapter 1 of Part 3 of the Local Government Act 2003 (expenditure grant) is amended in accordance with this section.
- (2) In the heading of section 31 (power to pay grant), after “power” insert “of Ministers”.
- (3) After section 32 insert—

“32A Power of strategic authorities to pay grant

- (1) A combined authority or CCA may pay to a constituent council a grant towards expenditure incurred or to be incurred by it.
- (2) The amount of a grant under this section and the manner of its payment are to be such as the person paying it may determine.
- (3) A grant under this section may be paid on such conditions as the person paying it may determine.
- (4) Conditions under subsection [\(3\)](#) may, in particular, include—
 - (a) provision as to the use of the grant;
 - (b) provision as to circumstances in which the whole or part of the grant must be repaid.
- (5) Subsection [\(6\)](#) applies where, in exercising a function under this section, a combined authority or CCA determines an amount of grant to be paid towards expenditure incurred or to be incurred by a constituent council in relation to the exercise of its highway functions.
- (6) In determining that amount, the combined authority or CCA must have regard to the desirability of ensuring that the constituent council has sufficient funds to facilitate the effective discharge of those highway functions.
- (7) To comply with subsection [\(6\)](#), the combined authority or CCA must take into account any other sources of funding available to the constituent council for expenditure incurred or to be incurred in relation to the exercise of its highway functions.
- (8) The functions conferred by this section on a mayoral combined authority or mayoral CCA are functions of the authority or CCA exercisable only by the mayor on behalf of the authority or CCA.
- (9) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“constituent council” means—

(a) in relation to a combined authority—

- (i) a county council the whole or any part of whose area is within the area of the authority, or
- (ii) a district council whose area is within the area of the authority;

(b) in relation to a combined county authority—

- (i) a county council for an area within the area of the authority, or
- (ii) a unitary district council for an area within the area of the authority;

“highway functions” means functions exercisable by a constituent council (in whatever capacity) in relation to the highways for which it is the highway authority;

“mayoral CCA” has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 (see section 27(8) of that Act);

“mayoral combined authority” has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 (see section 107A(8) of that Act).”

Commencement Information

149 S. 42 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

43 Co-operation with local government pension scheme managers

(1) After section [107ZB](#) of LDEDCA 2009 (inserted by section [45\(1\)](#) of this Act), insert—

*“Combined authorities: co-operation with
local government pension scheme managers*

107ZC Co-operation with local government pension scheme managers

- (1) This section applies where a scheme manager is responsible for managing and administering part of a scheme for local government workers in England and Wales in relation to a current employee of a constituent council of a combined authority in connection with that employment.
- (2) The combined authority must co-operate with the scheme manager to identify and develop investment opportunities appropriate to the pension fund that the scheme manager maintains for its part of the scheme.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Where the scheme manager participates in an asset pool company, the combined authority may fulfil its duty to co-operate with the scheme manager under [subsection \(2\)](#) by co-operating with—
 - (a) the scheme manager,
 - (b) the asset pool company, or
 - (c) both the scheme manager and the asset pool company.
- (4) A scheme manager participates in an asset pool company by—
 - (a) being a shareholder of the company,
 - (b) being a shareholder in another company which is the only shareholder of the company, or
 - (c) contracting with the company for it to manage the funds and other assets for which the scheme manager is responsible.
- (5) In this section—

“asset pool company” has the meaning given by section 1(9) of the Pension Schemes Act 2026;

“local government worker” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme manager”, in relation to a scheme for local government workers, means a person who is a scheme manager by virtue of section 4(5) of the Public Service Pensions Act 2013 (being a person responsible for the local administration of pensions and other benefits payable under the scheme who maintains a pension fund for the purposes of providing pensions and other benefits under its part of the scheme).”

- (2) After section [24A](#) of LURA 2023 (inserted by section [45\(2\)](#) of this Act), insert—

“24B Co-operation with local government pension scheme managers

- (1) This section applies where a scheme manager is responsible for managing and administering part of a scheme for local government workers in England and Wales in relation to a current employee of—
 - (a) a constituent council of a CCA, or
 - (b) a district council which is not a constituent council where any part of the area of the council falls within the area of a CCA,
 in connection with that employment.
- (2) The CCA must cooperate with the scheme manager to identify and develop investment opportunities appropriate to the pension fund that the scheme manager maintains for its part of the scheme.
- (3) Where the scheme manager participates in an asset pool company, the CCA may fulfil its duty to co-operate with the scheme manager under [subsection \(2\)](#) by co-operating with—
 - (a) the scheme manager,
 - (b) the asset pool company, or
 - (c) both the scheme manager and the asset pool company.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) A scheme manager participates in an asset pool company by—
- (a) being a shareholder of the company,
 - (b) being a shareholder in another company which is the only shareholder of the company, or
 - (c) contracting with the company for it to manage the funds and other assets for which the scheme manager is responsible.

- (5) In this section—

“asset pool company” has the meaning given by section 1(9) of the Pension Schemes Act 2026;

“local government worker” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme” has the meaning given by section 37 of the Public Service Pensions Act 2013;

“scheme manager”, in relation to a scheme for local government workers, means a person who is a scheme manager by virtue of section 4(5) of the Public Service Pensions Act 2013 (being a person responsible for the local administration of pensions and other benefits payable under the scheme who maintains a pension fund for the purposes of providing pensions and other benefits under its part of the scheme).”

- (3) After section 403 of the GLAA 1999, insert—

“403ZA Co-operation with local government pension scheme managers

- (1) The Authority must co-operate with a scheme manager for a scheme for local government workers in England and Wales who falls within [subsection \(2\)](#) to identify and develop investment opportunities appropriate to the pension fund that the scheme manager maintains for its part of the scheme.
- (2) A scheme manager falls within this subsection if the scheme manager is—
- (a) the London Pensions Fund Authority, or
 - (b) a London borough.
- (3) Where the scheme manager participates in an asset pool company, the Authority may fulfil its duty to co-operate with the scheme manager under [subsection \(1\)](#) by co-operating with—
- (a) the scheme manager,
 - (b) the asset pool company, or
 - (c) both the scheme manager and the asset pool company.
- (4) A scheme manager participates in an asset pool company by—
- (a) being a shareholder of the company,
 - (b) being a shareholder in another company which is the only shareholder of the company, or
 - (c) contracting with the company for it to manage the funds and other assets for which the scheme manager is responsible.
- (5) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“asset pool company” has the meaning given by section 1(9) of the Pension Schemes Act 2026;

“local government worker” has the meaning given by [section 37](#) of the [Public Service Pensions Act 2013](#);

“scheme” has the meaning given by [section 37](#) of the [Public Service Pensions Act 2013](#);

“scheme manager”, in relation to a scheme for local government workers, means a person who is a scheme manager by virtue of section 4(5) of the Public Service Pensions Act 2013 (being a person responsible for the local administration of pensions and other benefits payable under the scheme who maintains a pension fund for the purposes of providing pensions and other benefits under its part of the scheme).”

Commencement Information

I50 S. 43 not in force at Royal Assent, see [s. 108\(6\)](#)

I51 [S. 43](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(1\)\(a\)](#)

44 Miscellaneous local authority functions

Schedule [23](#) confers on combined authorities and CCAs and the GLA miscellaneous functions exercisable by local authorities.

Commencement Information

I52 S. 44 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Health, well-being & public service reform

45 Health improvement and health inequalities duty

(1) After section 107ZA of LDEDCA 2009 insert—

“Combined authorities: health

107ZB Health improvement and health inequalities duty

- (1) When considering whether or how to exercise any of its functions, a combined authority must have regard to the need to—
 - (a) improve the health of persons in the combined authority’s area, and
 - (b) reduce health inequalities between persons living in the combined authority’s area.
- (2) When considering whether or how to exercise any function, the mayor for the area of a combined authority must have regard to the considerations set out in [subsection \(1\)](#).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Health inequalities “between persons” living in an area means health inequalities between persons, or persons of different descriptions, living in, or in different parts of, an area.
- (4) “Health inequalities” means inequalities in respect of life expectancy or general state of health which are wholly or partly a result of differences in respect of general health determinants.
- (5) “General health determinants” are—
 - (a) standards of housing, transport services or public safety,
 - (b) environmental factors, including air quality and access to green space and bodies of water,
 - (c) employment prospects, earning capacity and any other matters that affect levels of prosperity,
 - (d) the degree of ease or difficulty with which persons have access to public services,
 - (e) the use, or level of use, of tobacco, alcohol or other substances, and any other matters of personal behaviour or lifestyle, that are or may be harmful to health,and any other matters that are determinants of life expectancy or the state of health of persons generally, other than genetic or biological factors.
- (6) In [subsection \(1\)\(a\)](#), the reference to improving the health of persons includes a reference to mitigating any detriment to health which would otherwise be occasioned by the exercise of a combined authority’s function.
- (7) In [subsection \(1\)\(b\)](#), the reference to reducing health inequalities includes a reference to mitigating any increase in health inequalities which would otherwise be occasioned by the exercise of a combined authority’s function.”

(2) After section 24 of LURA 2023 insert—

“24A Health improvement and health inequalities duty

- (1) When considering whether or how to exercise any of its functions, a CCA must have regard to the need to—
 - (a) improve the health of persons in the CCA’s area, and
 - (b) reduce health inequalities between persons living in the CCA’s area.
- (2) When considering whether or how to exercise any function, the mayor for the area of a CCA must have regard to the considerations set out in [subsection \(1\)](#).
- (3) Health inequalities “between persons” living in an area means health inequalities between persons, or persons of different descriptions, living in, or in different parts of, an area.
- (4) “Health inequalities” means inequalities in respect of life expectancy or general state of health which are wholly or partly a result of differences in respect of general health determinants.
- (5) “General health determinants” are—
 - (a) standards of housing, transport services or public safety,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) environmental factors, including air quality and access to green space and bodies of water,
 - (c) employment prospects, earning capacity and any other matters that affect levels of prosperity,
 - (d) the degree of ease or difficulty with which persons have access to public services,
 - (e) the use, or level of use, of tobacco, alcohol or other substances, and any other matters of personal behaviour or lifestyle, that are or may be harmful to health,
- and any other matters that are determinants of life expectancy or the state of health of persons generally, other than genetic or biological factors.
- (6) In [subsection \(1\)\(a\)](#) above, the reference to improving the health of persons includes a reference to mitigating any detriment to health which would otherwise be occasioned by the exercise of a CCA’s function.
- (7) In [subsection \(1\)\(b\)](#) above, the reference to reducing health inequalities includes a reference to mitigating any increase in health inequalities which would otherwise be occasioned by the exercise of a CCA’s function.”
- (3) In section 309(F)(5) of GLAA 1999 (health inequalities between persons living in Greater London) after paragraph (a), insert—
- “(aa) environmental factors, including air quality and access to green space and bodies of water,”.

Commencement Information

I53 S. 45 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Public safety

46 Functions of police and crime commissioners

- (1) In section 107F of LDEDCA 2009 (functions of mayors: policing)—
- (a) after subsection (1) insert—

“(1A) The mayor for the area of a combined authority is to exercise functions of a police and crime commissioner in relation to that area if the combined authority meets the eligibility condition and transfer condition in relation to that area (see section [107FA](#)).”;
 - (b) in subsection (2), for “The reference in subsection (1)” substitute “A reference in this section”;
 - (c) in subsection (3), for “subsection (1)” substitute “this section”;
 - (d) after subsection (4) insert—

“(4A) For provision about the exercise of functions of a police and crime commissioner by the mayor for the area of a combined authority by virtue of subsection [\(1A\)](#), see Schedule [10A](#) to the Police Reform and Social Responsibility Act 2011.”;
 - (e) in subsection (8)(b), after “Schedule 5C” insert “to this Act or Schedule [10A](#) to the Police Reform and Social Responsibility Act 2011”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) After section 107F of LDEDCA 2009 insert—

“107FA The “eligibility” and “transfer” conditions

(1) This section sets out the “eligibility condition” and “transfer condition” referred to in section 107F(1A).

(2) A combined authority meets the eligibility condition in case A or case B.

(3) *Case A:* the authority’s area is the same as a single English police area.

In this case, the authority meets the eligibility condition in relation to the single police area.

(4) *Case B:* the authority’s area is the same as two or more English police areas (when those areas are taken together).

In this case, the authority meets the eligibility condition in relation to each of those police areas.

(5) A combined authority meets the transfer condition in relation to an English police area if—

- (a) the Secretary of State has, by order, specified the time at which the mayor for the area of the authority is to begin exercising functions of a police and crime commissioner (the “transfer time”), and
- (b) the transfer time has passed.

(6) If a combined authority meets the eligibility condition in relation to two or more English police areas, the Secretary of State may only exercise the power conferred by subsection (5)(a) so as to specify the same transfer time in relation to all of those police areas.

(7) In this section “English police area” means a police area listed in Schedule 1 to the Police Act 1996 (police areas outside London) that is in England.”

(3) In section 107G of LDEDCA 2009 (mayors for combined authorities: financial matters), after subsection (4) insert—

“(4A) Where the mayoral functions of a mayor include PCC functions in relation to more than one police area, the provision made in accordance with subsection (4)(a) which ensures that there is a separate component in respect of the mayor’s PCC functions must include separate components in respect of the mayor’s PCC functions in relation to the different police areas.”

(4) In section 33 of LURA 2023 (functions of mayors: policing)—

(a) after subsection (1) insert—

“(1A) The mayor for the area of a CCA is to exercise functions of a police and crime commissioner in relation to that area if the CCA meets the eligibility condition and transfer condition in relation to that area (see section 33A).”;

(b) in subsection (2), for “The reference in subsection (1)” substitute “A reference in this section”;

(c) in subsection (3), for “subsection (1)” substitute “this section”;

(d) after subsection (4) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(4A) For provision about the exercise of functions of a police and crime commissioner by the mayor for the area of a CCA by virtue of subsection (1A), see Schedule 10A to the Police Reform and Social Responsibility Act 2011.”;

- (e) in subsection (8)(b), after “Schedule 3” insert “to this Act or Schedule 10A to the Police Reform and Social Responsibility Act 2011”.

(5) After section 33 of LURA 2023 insert—

“33A The “eligibility” and “transfer” conditions

- (1) This section sets out the “eligibility condition” and “transfer condition” referred to in section 33(1A).

(2) A CCA meets the eligibility condition in case A or case B.

(3) *Case A:* the CCA’s area is the same as a single English police area.

In this case, the CCA meets the eligibility condition in relation to the single police area.

(4) *Case B:* the CCA’s area is the same as two or more English police areas (when those areas are taken together).

In this case, the CCA meets the eligibility condition in relation to each of those police areas.

(5) A CCA meets the transfer condition in relation to an English police area if—

- (a) the Secretary of State has, by order, specified the time at which the mayor for the area of the CCA is to begin exercising functions of a police and crime commissioner (the “transfer time”), and
- (b) the transfer time has passed.

(6) If a CCA meets the eligibility condition in relation to two or more English police areas, the Secretary of State may only exercise the power conferred by subsection (5)(a) so as to specify the same transfer time in relation to all of those police areas.

(7) In this section “English police area” means a police area listed in Schedule 1 to the Police Act 1996 (police areas outside London) that is in England.”

(6) In section 41 of LURA 2023 (mayors for CCA areas: financial matters), after subsection (4) insert—

“(4A) Where the mayoral functions of a mayor include PCC functions in relation to more than one police area, the provision made in accordance with subsection (4)(a) which ensures that there is a separate component in respect of the mayor’s PCC functions must include separate components in respect of the mayor’s PCC functions in relation to the different police areas.”

(7) After paragraph 21(a) of Schedule 1 to the Greater Manchester Combined Authority (Transfer of Police and Crime Commissioner Functions to the Mayor) Order 2017 (S.I. 2017/470), insert—

“(aa) for subsection (1) substitute—

“(1) The mayor must—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) appoint a person as the deputy mayor for policing and crime for the area, and
- (b) arrange for the deputy mayor for policing and crime to exercise one or more of the mayor’s PCC functions.””

(8) After—

- (a) paragraph 21(a) of Schedule 5 to the West Yorkshire Combined Authority (Election of Mayor and Functions) Order 2021 ([S.I. 2021/112](#)),
- (b) paragraph 21(a) of Schedule 5 to the York and North Yorkshire Combined Authority Order 2023 ([S.I. 2023/1432](#)), and
- (c) paragraph 21(a) of Schedule 1 to the South Yorkshire Mayoral Combined Authority (Election of Mayor and Transfer of Police and Crime Commissioner Functions) Order 2024 ([S.I. 2024/414](#)),

insert—

“(aa) for subsection (1) substitute—

“(1) The Mayor must—

- (a) appoint a person as the deputy mayor for policing and crime for the area, and
- (b) arrange for the deputy mayor for policing and crime to exercise one or more of the Mayor’s PCC functions.””

Commencement Information

I54 [S. 46](#) in force at 29.6.2026, see [s. 108\(5\)](#)

47 PCCs and police areas

(1) In section 1 of PRSRA 2011 (police and crime commissioners), for subsection (9A) substitute—

“(9A) Subsection (1) does not apply to an area if the mayor for the area of a combined authority or combined county authority is to exercise functions of a police and crime commissioner in relation to the area in accordance with—

- (a) an order under section 107F(1) of the Local Democracy, Economic Development and Construction Act 2009;
- (b) section 107F([1A](#)) of that Act;
- (c) regulations under section 33(1) of the Levelling-up and Regeneration Act 2023;
- (d) section 33([1A](#)) of that Act.

(9B) See section [76A](#) and Schedule [10A](#) for provision about cases where a mayor is to exercise functions in accordance with—

- (a) section 107F([1A](#)) of the Local Democracy, Economic Development and Construction Act 2009, or
- (b) section 33([1A](#)) of the Levelling-up and Regeneration Act 2023.”

(2) After section 76 of PRSRA 2011 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“CHAPTER 6A

EXERCISE OF PCC FUNCTIONS BY ELECTED MAYORS

76A Exercise of PCC functions by elected mayors

Schedule 10A makes provision about cases where a mayor is to exercise functions in accordance with—

- (a) section 107F(1A) of the Local Democracy, Economic Development and Construction Act 2009, or
 - (b) section 33(1A) of the Levelling-up and Regeneration Act 2023.”
- (3) After Schedule 10 to PRSRA 2011, insert Schedule 10A set out in Schedule 24 to this Act.
- (4) In the Police Act 1996—
- (a) in section 32 (power to alter police areas by order), in subsection (3)—
 - (i) in the words before paragraph (a), omit “either”;
 - (ii) in paragraph (b), after “effectiveness” insert “, or
 - (c) the order is made in connection with the functions of a police and crime commissioner becoming exercisable by the mayor for the area of a mayoral strategic authority.
- (3A) For that purpose, an order “is made in connection with the functions of a police and crime commissioner becoming exercisable by the mayor for the area of a mayoral strategic authority” if—
- (a) the police areas that are altered by the order are all in England, and
 - (b) the Secretary of State’s purpose in making the order is to—
 - (i) cause a mayoral strategic authority to meet the eligibility condition in relation to an altered police area, and
 - (ii) enable the Secretary of State to specify a transfer time in relation to that mayoral strategic authority and altered police area that will result in the mayor for the area of the mayoral strategic authority exercising functions of a police and crime commissioner in relation to that area.”;
- (b) in section 32, after subsection (4) insert—
- “(4A) In this section—
- “eligibility condition” has the same meaning as in—
- (a) section 107FA of the Local Democracy, Economic Development and Construction Act 2009, or
 - (b) section 33A of the Levelling-up and Regeneration Act 2023;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“mayoral strategic authority” means—

- (a) a mayoral combined authority (which has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 107A(8) of that Act), or
- (b) a mayoral CCA (which has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 — see section 27(8) of that Act);

“transfer time” has the same meaning as in—

- (a) section 107FA of the Local Democracy, Economic Development and Construction Act 2009, or
- (b) section 33A of the Levelling-up and Regeneration Act 2023.”;
- (c) in section 34 (orders altering police areas: supplementary provision), in subsection (5), after “subsection (3)(a)” insert “or (3)(c)”.

Commencement Information

I55 S. 47 in force at 29.6.2026, see s. 108(5)

48 Functions of fire and rescue authorities

- (1) Section 1 of FRSA 2004 (fire and rescue authorities) is amended in accordance with subsections (2) and (3).

- (2) In subsection (2), after paragraph (e) insert—

“(f) a mayoral combined authority or mayoral CCA is the fire and rescue authority for the whole of its area if the Secretary of State designates it as the fire and rescue authority for that area in accordance with section 1A(1);

- (g) a mayoral combined authority or mayoral CCA is the fire and rescue authority for a part of its area if the Secretary of State—

(i) specifies that part of its area, and

(ii) designates it as the fire and rescue authority for that part of its area,

in accordance with section 1A(2) and (3).”

- (3) After subsection (2) insert—

“(2A) If a mayoral combined authority or mayoral CCA is the fire and rescue authority for an area by virtue of subsection (2)(f) or (g), a council or other authority is not the fire and rescue authority for that area by virtue of subsection (2)(a) to (e) or section 2 or 4.

(2B) The functions of a mayoral combined authority or mayoral CCA as a fire and rescue authority are functions of the mayoral combined authority or mayoral CCA exercisable only by the mayor on behalf of the combined authority or CCA.”

- (4) After section 1 of FRSA 2004 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“1A Designation of mayoral combined authorities and mayoral CCAs

- (1) The Secretary of State may by order designate a mayoral combined authority or mayoral CCA as the fire and rescue authority for the whole of its area.
- (2) The Secretary of State may—
 - (a) by order specify a part of the area of a mayoral combined authority or mayoral CCA, and
 - (b) by order designate the mayoral combined authority or mayoral CCA as the fire and rescue authority for the specified part of its area.
- (3) But, if the Secretary of State exercises the powers conferred by subsection (2) in relation to a particular mayoral combined authority or mayoral CCA (the “relevant mayoral authority”), the Secretary of State must ensure that those powers are exercised so as to secure that—
 - (a) two or more parts are specified under subsection (2)(a) which, when taken together, consist of the whole of the area of the relevant mayoral authority;
 - (b) the relevant mayoral authority is designated as the fire and rescue authority for each specified part;
 - (c) all of those designations come into effect at the same time.
- (4) Accordingly, where the powers conferred by subsection (2) are exercised in relation to the relevant mayoral authority—
 - (a) there are separate fire and rescue authorities for each area specified under subsection (2)(a);
 - (b) the fire and rescue authority for each of those areas is the relevant mayoral authority.
- (5) The Secretary of State may by order provide for the name by which an area specified under subsection (2)(a) is to be known.
- (6) An order under subsection (1) or (2)(a) or (b) may make consequential alterations to any other—
 - (a) section 1A(2) area,
 - (b) section 2 combined area, or
 - (c) section 4 combined area.
- (7) The alterations that may be made by virtue of subsection (6) include alterations that result in a reduction or an increase in the number of such areas.
- (8) An order under subsection (1) or (2)(a) or (b) may make provision for the abolition of—
 - (a) a metropolitan county fire and rescue authority,
 - (b) a combined fire and rescue authority constituted by a scheme under section 2, or
 - (c) a combined fire and rescue authority constituted by a scheme to which section 4 applies.
- (9) The provision that may be made by regulations under section 56 of the English Devolution and Community Empowerment Act 2026 (incidental etc provision) for the purposes of, or in consequence of, an order under

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

subsection (1) or (2)(a) or (b) relating to a particular mayoral combined authority or mayoral CCA and particular area includes—

- (a) provision for functions of a fire rescue authority to be exercisable in relation to the area by the mayoral combined authority or mayoral CCA during a shadow period (and not by any fire and rescue authority by which those functions would otherwise be exercisable);
- (b) provision for those functions to be exercisable only by the mayor on behalf of the mayoral combined authority or mayoral CCA;
- (c) provision about who is to scrutinise the exercise of those functions;
- (d) any other incidental, consequential, transitional, transitory or supplementary provision.

(10) In this section—

“section 1A(2) area” means an area specified in an order under subsection (2)(a) (including such an area as varied from time to time);

“section 2 combined area” means an area for which a combined fire and rescue authority is, or used to be, constituted by a scheme under section 2 (including such an area as varied from time to time);

“section 4 combined area” means the area for which a combined fire and rescue authority is, used to be, constituted by a scheme to which section 4 applies (including such an area as varied from time to time);

“shadow period”, in relation to provision made in accordance with subsection (9)(a) in relation to a particular area, means a period which—

- (a) ends when the designation of the mayoral combined authority or mayoral CCA as the fire and rescue authority for the area takes effect, and
- (b) is no longer than one year.”

(5) In section 5M of FRSA 2004 (interpretation), after the definition of “City of London police area” insert—

““mayoral CCA” has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 (see section 27(8) of that Act);

“mayoral combined authority” has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 (see section 107A(8) of that Act);”.

(6) Schedule 25 contains further provision about fire and rescue services.

Commencement Information

I56 S. 48 in force at Royal Assent for specified purposes, see s. 108(1)

I57 S. 48 in force at 29.6.2026 in so far as not already in force, see s. 108(5)

49 Mayor with PCC and fire and rescue functions

(1) In section 107EA of LDEDCA 2009 (exercise of fire and rescue functions)—

- (a) for subsection (1) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- “(1) This section applies to a mayor for the area of a combined authority who—
- (a) by virtue of—
 - (i) section 107D(1), or
 - (ii) section 1(2B) of the Fire and Rescue Services Act 2004,
 may exercise functions which are conferred on a fire and rescue authority in that name (“fire and rescue functions”), and
 - (b) by virtue of—
 - (i) section 107F(1), or
 - (ii) section 107F(1A),
 may exercise functions of a police and crime commissioner.”;
 - (b) in subsection (5), after “107D(1)” insert “, or in section 1(2B) of the Fire and Rescue Services Act 2004.”.
- (2) In section 34 of LURA 2023 (exercise of fire and rescue functions)—
- (a) for subsection (1) substitute—

“(1) This section applies to a mayor for the area of a CCA who—

 - (a) by virtue of—
 - (i) section 30(1), or
 - (ii) section 1(2B) of the Fire and Rescue Services Act 2004,
 may exercise functions which are conferred on a fire and rescue authority in that name (“fire and rescue functions”), and
 - (b) by virtue of—
 - (i) section 33(1), or
 - (ii) section 33(1A),
 may exercise functions of a police and crime commissioner.”;
 - (b) in subsection (5), after “30(1)” insert “, or in section 1(2B) of the Fire and Rescue Services Act 2004.”.

Commencement Information

I58 S. 49 in force at 29.6.2026, see s. 108(5)

50 Sharing of information

In section 115 of the Crime and Disorder Act 1998 (disclosure of information), in subsection (2), after paragraph (c) insert—

- “(ca) a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;
- (cb) a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I59 S. 50 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

51 Licensing functions of the GLA and the Mayor of London

Schedule 26 amends the Licensing Act 2003 to confer licensing functions on the GLA and the Mayor of London.

Commencement Information

I60 S. 51 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I61 [S. 51](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Culture

52 Encouragement of visitors and promotion of visitors

- (1) LGA 1972 is amended in accordance with this section.
- (2) In section 144 (power to encourage visitors and provide conference and other facilities), in subsections (1) and (2), after “local authority” insert “, combined authority or combined county authority”.
- (3) In section 145 (provision of entertainments)—
 - (a) in subsection (1), in the words before paragraph (a), after “local authority” insert “, combined authority or combined county authority”;
 - (b) in subsection (2), in the words before paragraph (a), after “local authority” insert “, combined authority or combined county authority”.

Commencement Information

I62 S. 52 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Requests by mayors of established mayoral strategic authorities

53 Requests by mayors of EMSAs for changes

- (1) One or more mayors for EMSAs may notify the Secretary of State of—
 - (a) any change to the law relating to strategic authorities,
 - (b) any change to the funding of strategic authorities, or
 - (c) any other change relating to strategic authorities,which the mayor or mayors believe would secure, or contribute to securing, the effective exercise of functions in relation to any aspect of any area of competence.
- (2) In exercising the function of giving notifications under this section, a mayor must have regard to any guidance issued for this purpose by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) If a notification under this section is given, the Secretary of State must, within the period of six months beginning with the day on which the notification is given—
- (a) decide how to respond, and
 - (b) notify the mayor or mayors that gave the notification of—
 - (i) the decision, and
 - (ii) the reasons for making the decision.

Commencement Information

I63 S. 53 in force at 29.6.2026, see s. 108(5)

Regulations relating to functions of strategic authorities and mayors

54 Powers to make regulations in relation to functions of strategic authorities and mayors

Schedule 27 confers on the Secretary of State powers in relation to the functions of strategic authorities and mayors (including powers to use pilot schemes).

Commencement Information

I64 S. 54 in force at Royal Assent for specified purposes, see s. 108(1)

I65 S. 54 in force at 29.6.2026 in so far as not already in force, see s. 108(5)

55 Health service functions: application of existing limitations on devolution

- (1) Section 18 of the Cities and Local Government Devolution Act 2016 (devolving health service functions) is amended in accordance with this section.
- (2) In subsection (1)—
- (a) for the words before paragraph (a) substitute—

“(1) A devolution of functions SI—”;
 - (b) in paragraph (c)—
 - (i) for “or a combined county authority” substitute “a combined county authority or a category of strategic authorities”;
 - (ii) after “that authority” insert “or those authorities”.
- (3) In subsection (2), in the words after paragraph (h), for the words from “transferable” to the end substitute “transferable by a devolution of functions SI.”
- (4) In subsection (7), in the words before paragraph (a), for “2022” substitute “2023”.
- (5) After subsection (7) insert—
- “(7A) For the purposes of this section, a function is transferred by regulations under Part 1 or 6 of Schedule 27 to the 2026 Act if provision under paragraph 1(1), 2(1) or 3(1) of that Schedule conferring the function is made, including such provision made by virtue of Part 6 of that Schedule.”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(6) In subsection (8), for the words from “transferred” to the end substitute “transferred to it by a devolution of functions SI.”

(7) For subsection (9) substitute—

“(9) In this section—

“the 2009 Act” means the Local Democracy, Economic Development and Construction Act 2009;

“the 2023 Act” means the Levelling-up and Regeneration Act 2023;

“the 2026 Act” means the English Devolution and Community Empowerment Act 2026;

“category of strategic authority” has the same meaning as in the 2026 Act (see section 101(1) of that Act);

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“devolution of functions SI” means any of the following—

- (a) regulations under section 16 of this Act;
- (b) an order under section 105A of the 2009 Act (conferral of functions of public authority on combined authority);
- (c) regulations under section 19(1) of the 2023 Act (conferral of functions of public authority on combined county authority);
- (d) regulations under Part 1 or 6 of Schedule 27 to the 2026 Act (conferral of functions of public authority on category of strategic authority);

“the health service” has the meaning given by section 275(1) of the NHS Act 2006.”

Commencement Information

I66 S. 55 in force at 29.6.2026, see s. 108(5)

Supplementary provision relating to extension of functions

56 Incidental etc provision

(1) The Secretary of State may by regulations make incidental, consequential, transitional, transitory or supplementary provision for the purposes of, or in consequence of—

- (a) the conferral of a function on a relevant authority, or
- (b) the modification of a function of a relevant authority,

by relevant legislation.

(2) Regulations under this section may not include provision amending or disapplying sections 15 to 17 of, and Schedule 1 to, the Local Government and Housing Act 1989 (political balance on local authority committees etc).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Regulations under this section may (in particular) amend any Act of Parliament (whenever passed), including by amending this Act.
- (4) Regulations under this section which contain provision amending an Act of Parliament are subject to affirmative resolution procedure.
- (5) Any other regulations under this section are subject to negative resolution procedure.
- (6) In this section—
 - “relevant authority” means—
 - (a) a strategic authority;
 - (b) the mayor for the area of a CCA or the area of a combined authority;
 - (c) the Mayor of London;
 - (d) a GLA functional body.
 - “relevant legislation” means—
 - (a) this Act,
 - (b) regulations under this Act, or
 - (c) any other legislation (whenever passed or made),
 except for functions conferred by an order under Chapter 1 of Part 6 of LDEDCA 2009 (instead see section 114 of that Act) or by regulations under Chapter 1 of Part 2 of LURA 2023 (instead see section 53 of that Act).

Commencement Information

I67 S. 56 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I68 [S. 56](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

57 Transfer of property, rights and liabilities

- (1) The Secretary of State may by regulations make provision for the transfer of property, rights and liabilities (including criminal liabilities) for the purposes of, or in consequence of, or for giving full effect to—
 - (a) the conferral of a function on a relevant authority, or
 - (b) the modification of a function of a relevant authority,
 by relevant legislation.
- (2) Property, rights and liabilities may be transferred by—
 - (a) the regulations,
 - (b) a scheme made by the Secretary of State under the regulations, or
 - (c) a scheme required to be made under the regulations by a person other than the Secretary of State.
- (3) A transfer by virtue of this section may have effect—
 - (a) whether or not the property, rights and liabilities would otherwise be capable of being transferred;
 - (b) without any instrument or formality being required.
- (4) The rights and liabilities which may be transferred by virtue of this section include rights and liabilities in relation to a contract of employment.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) The Transfer of Undertakings (Protection of Employment) Regulations 2006 ([SI 2006/246](#)) apply to the transfer by virtue of this section (whether or not the transfer is a relevant transfer for the purposes of those regulations).
- (6) Regulations under this section or a scheme made under them may define the property, rights and liabilities to be transferred by specifying or describing them.
- (7) Provision for the transfer of property, rights and liabilities made by virtue of this section may include provision—
- (a) for the creation or imposition by the Secretary of State of new rights or liabilities in respect of anything transferred;
 - (b) for the shared ownership or use of any property or facilities;
 - (c) for the management or custody of transferred property;
 - (d) for bodies to make agreements with respect to any property, income, rights, liabilities and expenses of, and any financial relations between, the parties to the agreement.
- (8) Provision for the transfer of property, rights and liabilities made by virtue of this section may include provision—
- (a) for the continuing effect of things done by the transferor in relation to anything transferred;
 - (b) for the continuation of things (including legal proceedings) in the process of being done, by or on behalf of or in relation to the transferor in relation to anything transferred;
 - (c) for references to the transferor in any agreement (whether written or not), instrument or other document in relation to anything transferred to be treated (so far as necessary for the purposes of or in consequence of the transfer) as references to the transferee.
- (9) Regulations under this section are subject to affirmative resolution procedure.
- (10) In this section—
- “relevant authority” means—
 - (a) a strategic authority;
 - (b) the mayor for the area of a CCA or the area of a combined authority;
 - (c) the Mayor of London;
 - (d) a GLA functional body;
 - “relevant legislation” means—
 - (a) this Act,
 - (b) regulations under this Act, or
 - (c) any other legislation (whenever passed or made),
 except for functions conferred by an order under Chapter 1 of Part 6 of LDEDCA 2009 (instead see section 114 of that Act) or by regulations under Chapter 1 of Part 2 of LURA 2023 (instead see section 53 of that Act).

Commencement Information

I69 S. 57 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I70 [S. 57](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Protection of functions

58 Prohibition of secondary legislation removing functions

- (1) A Minister of the Crown must not exercise any power to make secondary legislation (whenever conferred) so as to cause a function to cease to be exercisable by—
 - (a) strategic authorities generally, or
 - (b) a category of strategic authorities.
- (2) This section does not apply to a function conferred by regulations under Part 6 of Schedule 27.
- (3) This section does not limit the making of—
 - (a) permitted provision, or
 - (b) provision that is—
 - (i) in consequence of, or
 - (ii) otherwise in connection with,
 permitted provision (whether the permitted provision is made in secondary legislation or an Act of Parliament).
- (4) In this section “permitted provision” means provision—
 - (a) modifying a function;
 - (b) abolishing a function;
 - (c) repealing or revoking provision conferring a function in consequence of, or otherwise in connection with, other legislation conferring the function (with or without modifications).

Commencement Information

I71 S. 58 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I72 [S. 58](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

PART 3

OTHER MEASURES ABOUT LOCAL AUTHORITIES AND PCCs

CHAPTER 1

REORGANISATION, GOVERNANCE, ELECTIONS AND COUNCILLORS

Reorganisation

59 Single tiers of local government

Schedule 28 makes provision about arrangements relating to single tiers of local government.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

- I73** S. 59 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)
I74 [S. 59](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

60 Certain functions of shadow authorities for single tiers of local government

In section 12 of LGPIHA 2007 (provision relating to membership etc of authorities)—

(a) after subsection (3) insert—

“(3A) Where an order makes provision under subsection (1)(k) conferring functions on a new local authority in relation to a combined authority or combined county authority, the order may provide that such functions are no longer functions of an existing local authority.”;

(b) after subsection (5) insert—

“(5A) In this section—

“combined authority” means a combined authority established under [section 103](#) of the [Local Democracy, Economic Development and Construction Act 2009](#);

“combined county authority” means a combined county authority established under [section 9\(1\)](#) of the [Levelling-up and Regeneration Act 2023](#).”

Commencement Information

- I75** [S. 60](#) in force at 29.6.2026, see [s. 108\(5\)](#)

Governance

61 Local authority governance and executives

Schedule [29](#) contains provision about local authority governance and executives.

Commencement Information

- I76** [S. 61](#) in force at 29.6.2026, see [s. 108\(5\)](#)

62 Local authorities: effective neighbourhood governance

- (1) Local authorities in England must make appropriate arrangements to secure the effective governance of any area of a specified description that falls within the authority's area (a “neighbourhood area”).
- (2) In making appropriate arrangements in relation to a neighbourhood area in which there are one or more parish councils, the local authority must engage with the parish council or councils about parish representation under those arrangements.
- (3) “Appropriate arrangements” for the purposes of [subsection \(1\)](#) are such arrangements as are specified in regulations made by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) Regulations under [subsection \(3\)](#) may include provision—
- (a) requiring the establishment and maintenance by local authorities of specified organisational structures for the governance of neighbourhood areas (or for the use of specified existing organisational structures for that purpose);
 - (b) about the number, membership, funding and review of such structures;
 - (c) about the functions that may or must be carried out by such structures for the purpose of ensuring the effective governance of neighbourhood areas (including for the structures to carry out functions on behalf of the local authority);
 - (d) requiring the carrying out of such activities for the purpose of ensuring local engagement with the neighbourhood area as may be specified.
- (5) Regulations under this section about the membership of specified organisational structures may, in particular, make provision for the membership to include parish representation.
- (6) Regulations under this section may—
- (a) confer a function, including a function involving the exercise of a discretion, on any person;
 - (b) provide for exceptions.
- (7) In this section—
- “local authority” means—
- (a) a county council,
 - (b) a district council,
 - (c) a London borough council;
- “parish representation” means representation of any parish council or councils within a neighbourhood area;
- “specified” means specified or described in regulations under this section.
- (8) Regulations under this section are subject to affirmative resolution procedure.

Commencement Information

I77 S. 62 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I78 [S. 62](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Elections

63 Mayors and Police and Crime Commissioners: supplementary vote system

Schedule [30](#) makes provision for the use of the supplementary vote system in elections of mayors and police and crime commissioners.

Commencement Information

I79 S. 63 not in force at Royal Assent, see [s. 108\(6\)](#)

I80 [S. 63](#) in force at 18.6.2026 for specified purposes by [S.I. 2026/656](#), [reg. 2\(a\)](#) (with [reg. 3](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

64 Limit on delay of election in connection with local government reorganisation

- (1) An election timing order (the “invalid order”) has no effect if—
- (a) the order relates to an election of councillors of an English principal council (the “affected election”),
 - (b) the order is made for a reason which relates to a process of local government reorganisation affecting that council (the “reorganisation process”), whether that process is proposed or has begun at the time when the order is made, and
 - (c) the order would delay the affected election by more than 53 weeks.
- (2) For the purposes of this section—
- (a) “process of local government reorganisation affecting” an English principal council means—
 - (i) the Secretary of State giving that council an invitation or direction under section 2 or 2A of LGPIHA 2007, or
 - (ii) the Local Government Boundary Commission making a recommendation for a boundary change relating to that council to the Secretary of State under section 8 of LGPIHA 2007;
 - (b) it does not matter if the reason which relates to the reorganisation process is the only reason, or one of several reasons, for the election timing order being made;
 - (c) the circumstances in which a process of local government reorganisation affecting a council “is proposed” include circumstances in which the Secretary of State has notified the council that the Secretary of State might give that council an invitation or direction under section 2 or 2A of LGPIHA 2007;
 - (d) an election timing order delays an election by more than 53 weeks if, as a result of the order, the election would take place after the end of the period of 53 weeks beginning with the original election date;
 - (e) it does not matter if the delay by more than 53 weeks would result—
 - (i) solely from the invalid order, or
 - (ii) from the cumulative effect of the invalid order and one or more previous related election timing orders;
 - (f) an election timing order is to be regarded as delaying the affected election even if the election would not actually take place on the date to which it is delayed because of the eventual outcome of the reorganisation process.
- (3) In this section—
- “election timing order” means an order under—
 - (a) section 87 of LGA 2000 (power to change years in which elections held),
 - (b) section 7 of LGPIHA 2007 (implementation of proposals by order), or
 - (c) section 10 of LGPIHA 2007 (implementation of recommendations by order);
 - “English principal council” means—
 - (a) a county council in England,
 - (b) a district council, or
 - (c) a London borough council;
 - “original election date” means the date on which the affected election would have been held, ignoring the effect of—
 - (a) the invalid order, and
 - (b) any previous related election timing order;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“previous related election timing order” means an election timing order which—

- (a) delays the affected election,
- (b) was made for a reason which relates to the reorganisation process (whether that was the only reason, or one of several reasons, for the election timing order being made), and
- (c) was made before the invalid order.

Commencement Information

I81 S. 64 in force at 29.6.2026, see s. 108(5)

Councillors

65 Publication of addresses of members etc in authority registers

- (1) In section 100G (principal councils to publish additional information) of LGA 1972, in subsection (5), omit “, in relation to a principal council in Wales,”.
- (2) The Localism Act 2011 is amended as follows.
- (3) In section 29 (register of interests), in subsection (8), for “section 32(2)” substitute “sections 32(2) and 32A”.
- (4) In section 31 (pecuniary interests in matters considered at meetings or by a single member), in subsection (2), for “section 32(3)” substitute “sections 32(3) and 32A(9)”.
- (5) After section 32 (sensitive interests) insert—

“32A Residential addresses

- (1) This section applies where a member or co-opted member of a relevant authority notifies the authority’s monitoring officer of a disclosable pecuniary interest that includes their usual residential address.
- (2) Subject to subsections (3) to (7), the relevant authority’s public register must not include that address.
- (3) The member or co-opted member may request that their usual residential address be included in that public register.
- (4) The member or co-opted member may withdraw a request made under subsection (3).
- (5) A request under subsection (3) or a withdrawal of a request under subsection (4) must be made by written notice to the relevant authority’s monitoring officer.
- (6) Where the member or co-opted member withdraws a request under subsection (4), the monitoring officer must remove the member or co-opted member’s usual residential address from the public register.
- (7) Withdrawal of a request under subsection (4) does not affect the power of the member or co-opted member to make another request under subsection (3).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (8) Where a member or co-opted member's usual residential address is excluded from a public register under this section, that public register must state that the member or co-opted member has an interest the address of which is withheld under this section.
- (9) If section 31(2) applies in relation to the interest, that provision is to be read as requiring the member or co-opted member to disclose not the interest but merely the fact that the member or co-opted member has a disclosable pecuniary interest in the matter concerned.
- (10) For the purposes of this section, a person has no more than one usual residential address.
- (11) In this section “public register”, in relation to a relevant authority, means—
 - (a) a copy of its register that is made available for inspection, and
 - (b) any published version of its register.”

Commencement Information

182 [S. 65](#) in force at 29.6.2026, see [s. 108\(5\)](#)

CHAPTER 2

GRANTS TO JOINT COMMITTEES OF LONDON COUNCILS

66 Power to pay grant to joint committees of London councils

After section 32 of the Local Government Act 2003 insert—

“32A Power to pay grant to joint committees of London councils

- (1) A Minister of the Crown may pay a grant to an eligible London joint committee towards expenditure incurred or to be incurred—
 - (a) by the committee, or
 - (b) by an eligible sub-committee of the committee.
- (2) The amount of a grant under this section and the manner of its payment are to be such as the person paying it may determine.
- (3) A grant under this section may be paid on such conditions as the person paying it may determine.
- (4) Conditions under subsection (3) may, in particular, include—
 - (a) provision as to the use of the grant;
 - (b) provision as to circumstances in which the whole or part of the grant must be repaid.
- (5) Where a Minister of the Crown wishes to pay a grant towards expenditure incurred or to be incurred by an eligible London joint committee or an eligible sub-committee, the Secretary of State may pay a grant under this section to

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

one or more persons (other than the committee) to hold and use in respect of the expenditure by the committee or sub-committee.

(6) The powers under this section are exercisable with the consent of the Treasury.

(7) The Secretary of State may, by regulations—

- (a) make provision for determining the question of whether a committee, or sub-committee, is “eligible”, including provision about conditions that must be met for a committee or sub-committee to become or remain eligible;
- (b) make provision about the constitution, procedures, administration and oversight of London joint committees, or their sub-committees, that are eligible.

(8) Regulations under subsection (7)(a) may (in particular) make provision about conditions that relate to—

- (a) the power under which, or way in which, the committee or sub-committee is established;
- (b) the functions or purpose of the committee or sub-committee;
- (c) the kinds of persons who are members of the committee or sub-committee;
- (d) the constitution, procedures, administration or oversight of the committee or sub-committee.

(9) Regulations under subsection (7) may amend any Act passed before, or in the same session as, the English Devolution and Community Empowerment Act 2026.

(10) No regulations under subsection (7) may be made unless a draft of the statutory instrument containing the regulations (whether containing them alone or with other provisions) has been laid before, and approved by a resolution of, each House of Parliament.

(11) In this section—

“eligible” has the meaning determined in accordance with regulations under subsection (7)(a);

“London joint committee” means a joint committee established under section 101(5) of the Local Government Act 1972 by—

- (a) all the London borough councils, and
- (b) the Common Council of the City of London.”

Commencement Information

I83 S. 66 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

CHAPTER 3

ASSETS OF COMMUNITY VALUE

67 Community right to buy assets of community value and protection of sporting assets

Schedule 31 makes provision for a community right to buy assets of community value and for the protection of sporting assets of community value in England, and related minor and consequential amendments.

Commencement Information

184 S. 67 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

CHAPTER 4

PARKING ON FOOTWAYS AND VERGES

68 Prohibition of parking on footways and verges

Schedule 32 makes provision about the prohibition of the parking of motor vehicles on footways and verges.

Commencement Information

185 S. 68 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

CHAPTER 5

LAND DISPOSED OF BY LOCAL COUNCILS

Discharge of statutory trusts

69 Secretary of State to have power to discharge statutory trusts

- (1) LGA 1972 is amended in accordance with this section.
- (2) After section 128 (consents to land transactions by local authorities and protection of purchasers) insert—

“Discharge of statutory trusts

128A Statutory trust discharge orders

- (1) The Secretary of State may make an order under this section in relation to land in England (a “statutory trust discharge order”).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) The Secretary of State may not make a statutory trust discharge order in relation to land unless—
 - (a) a person has applied to the Secretary of State for the statutory trust discharge order to be made in relation to the land, and
 - (b) the Secretary of State is satisfied that the qualifying conditions are met (see [section 128D](#)).
- (3) The effect of an order being made in relation to land is that the land is freed from any trust arising solely by virtue of its being land held in trust for enjoyment by the public in accordance with—
 - (a) section 164 of the Public Health Act 1875 (pleasure grounds), or
 - (b) section 10 of the Open Spaces Act 1906 (duty of local authority to maintain open spaces and burial grounds).
- (4) The order has that effect in relation to that land generally (and so its effect is not limited to that land as freehold or leasehold land as held by the applicant for the order).
- (5) The Secretary of State may, by regulations, make provision as to the making and determination of any application for a statutory trust discharge order.
- (6) Regulations under [subsection \(5\)](#) may in particular make provision as to—
 - (a) the steps to be taken by a person before making an application;
 - (b) the form of an application;
 - (c) the information or evidence to be supplied with an application;
 - (d) the publication of an application;
 - (e) the holding of an inquiry before determination of an application;
 - (f) the evidence to be taken into account in making a determination and the weight to be given to any evidence.
- (7) Regulations under [subsection \(5\)](#) may include provision for the Secretary of State to appoint a person to discharge any or all of the Secretary of State's functions in relation to an application for a statutory trust discharge order.
- (8) The power under [subsection \(5\)](#) to make regulations includes power to make—
 - (a) different provision for different cases;
 - (b) incidental, supplementary or consequential provision;
 - (c) transitional or saving provision.
- (9) A statutory instrument containing regulations under [subsection \(5\)](#) is subject to annulment in pursuance of a resolution of either House of Parliament.
- (10) [Section 128G](#) contains further provision about the making of statutory trust discharge orders.

128B Applications for statutory trust discharge orders

- (1) A person making an application must have regard to any guidance issued by the Secretary of State (whether relating to how the application is made or to its form or content).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) Qualifying condition B (see [section 128D\(3\)](#)) limits which kind of person is able to make a successful application.
- (3) An application may be varied after it has been made (and [section 128A](#), this section, and sections [128D](#) to [128G](#) then apply to the application as varied).
- (4) The Secretary of State may require a person making an application to pay a fee before the Secretary of State considers the application (the “application fee”).
- (5) The application fee is to be of an amount specified in, or determined in accordance with, regulations made under [section 128A\(5\)](#).
- (6) The determination of an application for a statutory trust discharge order which relates to particular land does not prevent a further application from being made subsequently in relation to the same land.
- (7) But the Secretary of State may reject a further application if the Secretary of State considers that there has not been a material change in the circumstances relevant to the qualifying conditions.
- (8) If a further application is rejected, the Secretary of State must publish notice of the rejection in the manner which the Secretary of State considers appropriate.

128C Applications where land has been divided up

- (1) This section applies where—
 - (a) a principal council, parish council or parish meeting appropriated or disposed of land, and
 - (b) the freehold or leasehold title to that land has subsequently been divided.
- (2) An application may be made in relation to the land comprised in any of the relevant titles.
- (3) A single joint application may be made in relation to the land comprised in two or more of the relevant titles, and, in the case of such an application, the question of whether the qualifying conditions are met must be decided separately in relation to the land comprised in each title.
- (4) For the purposes of this section—
 - (a) a freehold title is “divided” if either or both of the following occurs—
 - (i) the title is divided into two or more different freehold titles;
 - (ii) a lease (including a sublease) is granted over some or all of the land comprised in the freehold title;
 - (b) a leasehold title is “divided” if—
 - (i) the title is divided into two or more different leasehold titles (for example by an assignment of part);
 - (ii) a sublease (including a sublease that is not immediately inferior to the leasehold title) is granted over some or all of the land comprised in the leasehold title.
- (5) In this section “relevant title” means—
 - (a) the freehold title to the whole or a part of the land appropriated or disposed of;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the title to a long lease of the whole or a part of the land appropriated or disposed of.

128D The qualifying conditions

- (1) This section sets out the “qualifying conditions” (referred to in [section 128A\(2\)\(b\)](#)).
- (2) *Qualifying condition A*: the application for the statutory trust discharge order identifies land in England in relation to which the order is being sought.
- (3) *Qualifying condition B*: the applicant for the order is—
 - (a) the freehold owner of the relevant land, or
 - (b) the tenant of the relevant land under a long lease, whether granted before or after commencement,
 at the time of the application (whether or not by virtue of the previous appropriation or disposal).
- (4) *Qualifying condition C*: a principal council, parish council or parish meeting—
 - (a) appropriated, or
 - (b) disposed of,
 the relevant land at a time before the application for the statutory trust discharge order is made (the “previous appropriation or disposal”).
- (5) It does not matter whether the previous appropriation or disposal occurred before or after commencement.
- (6) *Qualifying condition D*: the previous advertisement procedure was not complied with in relation to the previous appropriation or disposal.
- (7) For the purposes of determining whether qualifying condition D is met—
 - (a) it is sufficient that the previous advertisement procedure was not complied with;
 - (b) accordingly, it is irrelevant—
 - (i) whether the previous advertisement procedure in fact had to be complied with, or
 - (ii) whether the land was in fact land held in trust for enjoyment by the public in accordance with a trust of the kind mentioned in [section 128A\(3\)](#).
- (8) Section [128F](#) includes provision for presuming that the previous advertisement procedure was not complied with; and qualifying condition D must be taken to be met if that presumption is made.
- (9) *Qualifying condition E*: the new publicity requirements have been complied with.
- (10) *Qualifying condition F*: it is in the public interest for the relevant land to be freed from the trusts by virtue of the order.
- (11) The reference in [subsection \(10\)](#) to the public interest includes the public interest in—
 - (a) nature conservation;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the conservation of the landscape;
- (c) the protection of public rights of access to the relevant land;
- (d) the protection of archaeological remains and features of historic interest;
- (e) development proposals relating to the relevant land;
- (f) economic, environmental or social benefits which the order would facilitate if made.

128E The new publicity requirements

- (1) This section sets out the “new publicity requirements” (referred to in qualifying condition E in [section 128D\(9\)](#)).
- (2) The applicant must publish a notice of the application in four consecutive weeks—
 - (a) in a local newspaper, and, if there are two or more local newspapers, it must be the main local newspaper;
 - (b) if there is no local newspaper, either—
 - (i) in a national newspaper, or
 - (ii) on a website with a readership in the local area that is comparable to the readership of a local newspaper.
- (3) If—
 - (a) a newspaper is published in print and on a website, and
 - (b) it is possible to publish notices of the kind required by [subsection \(2\)](#) in both versions,
 a requirement under [subsection \(2\)](#) to publish a notice in the newspaper can only be complied with by publication of the notice in both versions.
- (4) If the applicant is a principal council, a parish council or parish trustees, they must also publish a notice of the application for a period of 28 days on their website (if they have one).
- (5) The applicant must display a notice of the application for a period of 28 days at the point of entry, or at the main points of entry, to the relevant land.
- (6) The Secretary of State must publish a notice of the application for a period of 28 days on the website, or main website, containing information about the Secretary of State’s department.
- (7) A notice under this section must identify the relevant land.
- (8) A notice under this section must—
 - (a) state that a person who wishes to make representations about whether or not the order should be made may notify the Secretary of State of the representations, and
 - (b) state the manner in which, and date by which, representations must be notified;
 and that date must be later than the last day of the period of 56 days beginning with the day when that notice is first published or displayed.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (9) When publishing or displaying a notice under this section, the applicant must have regard to any guidance issued by the Secretary of State (whether relating to its publication or display or its form or content).
- (10) In this section—
 - “local area” means area in which the relevant land is situated;
 - “local newspaper” means a newspaper circulating in the local area.

128F Previous advertisement procedure: co-operation by councils etc and presumption

- (1) This section applies if an application has been made to the Secretary of State for a statutory trust discharge order.
- (2) The Secretary of State must notify the relevant council or parish trustees of—
 - (a) the application,
 - (b) the relevant land, and
 - (c) the information about the previous appropriation or disposal which the Secretary of State has as a result of the application.
- (3) Within the response period, the relevant council or parish trustees must give the Secretary of State—
 - (a) notice which—
 - (i) confirms that the previous advertisement procedure was complied with in relation to the previous appropriation or disposal,
 - (ii) confirms that the previous advertisement procedure was not complied with in relation to the previous appropriation or disposal, or
 - (iii) states that the relevant council or parish trustees are not able to confirm either of those things, and
 - (b) any information relating to compliance, or non-compliance, with the previous advertisement procedure which the relevant council or parish trustees have.
- (4) If the relevant council or parish trustees—
 - (a) give the Secretary of State a notice under [subsection \(3\)\(a\)\(iii\)](#) within the response period, or
 - (b) do not give the Secretary of State any notice under [subsection \(3\)\(a\)](#) within the response period,
 the Secretary of State must presume that the previous advertisement procedure was not complied with in relation to the previous appropriation or disposal, unless the Secretary of State is satisfied that the procedure was complied with.
- (5) In this section—
 - “relevant council or parish trustees” means—
 - (a) in a case where a principal council undertook the previous appropriation or disposal, the principal council for the area where the relevant land is situated;
 - (b) in a case where a parish council undertook the previous appropriation or disposal—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) the parish council or parish trustees for the area where the relevant land is situated, or
- (ii) if the relevant land is no longer in the area of a parish, the principal council for the area where the relevant land is situated;
- (c) in a case where a parish meeting undertook the previous appropriation or disposal—
 - (i) the parish trustees or parish council for the area where the relevant land is situated, or
 - (ii) if the relevant land is no longer in the area of a parish, the principal council for the area where the relevant land is situated;

“response period”, in relation to a notification given by the Secretary of State under [subsection \(2\)](#), means the period of 28 days beginning with the day on which the notice is received by the relevant council or parish trustees.

128G Making statutory trust discharge orders

- (1) In deciding whether to make a statutory trust discharge order, the Secretary of State must take into account all matters that are relevant, including these matters—
 - (a) whether, and how, the person making the application has had regard to the guidance issued by the Secretary of State under [section 128B\(1\)](#) and [section 128E\(9\)](#);
 - (b) any representations about whether or not the order should be made that are notified to the Secretary of State (including any representations made by persons who are freehold owners, or tenants, of land comprised in the previous appropriation or disposal but who are not applying for the order).
- (2) A statutory trust discharge order may relate to only some of the relevant land specified in the application.
- (3) A statutory trust discharge order takes effect—
 - (a) on the day after the day on which the order is made, or
 - (b) if the order specifies a later day on which it is to take effect, on that day.
- (4) In relation to each application for a statutory trust discharge order, the Secretary of State—
 - (a) must publish notice of the decision whether or not to make the order, and
 - (b) if the order is made, must publish the order.
- (5) That notice, or the order, is to be published in the manner which the Secretary of State considers appropriate.

128H Sections [128H 128A](#) to [128H 128G](#): interpretation and application to the Crown

- (1) In sections [128A](#) to [128G](#) and this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“application” means an application for a statutory trust discharge order;

“commencement” means the coming into force of [section 69](#) of the English Devolution and Community Empowerment Act 2026;

“long lease” means a lease which was granted for a term of 20 years or longer;

“new publicity requirements” has the meaning given in [section 128E\(1\)](#);

“previous advertisement procedure” means whichever of the following applied to the previous appropriation or disposal—

(a) the requirement to advertise notice of the intention to make the appropriation in accordance with—

(i) section 122(2A) in the case of an appropriation by a principal council;

(ii) section 126(4A) in the case of an appropriation by a parish council or parish meeting;

(b) the requirement to advertise notice of the intention to make the disposal in accordance with—

(i) section 123(2A) in the case of a disposal by a principal council;

(ii) section 123(2A) as applied by section 127(2) in the case of a disposal by a parish council or parish meeting;

“previous appropriation or disposal” has the meaning given in [section 128D\(4\)](#);

“qualifying conditions” has the meaning given in [section 128D\(1\)](#);

“relevant land” means the land identified in the application for a statutory trust discharge order as the land relation to which the order is being sought;

“statutory trust discharge order” has the meaning given in [section 128A\(1\)](#).

(2) A reference in sections [128A](#) to [128G](#) to the freehold owner, or the tenant under a long lease, is a reference to—

(a) the Crown Estate Commissioners, if the freehold or long lease belongs to His Majesty in right of the Crown and forms part of the Crown Estate;

(b) the government department having the management of the freehold or long lease, if it belongs to His Majesty in right of the Crown but does not form part of the Crown estate;

(c) the government department concerned, if the freehold or long lease belongs to a government department or is held in trust for His Majesty for the purposes of a government department;

(d) a person appointed by His Majesty in writing under the Royal Sign Manual, or if no such appointment is made the Secretary of State, if the freehold or long lease belongs to His Majesty in right of His private estates (which must be construed in accordance with section 1 of the Crown Private Estates Act 1862);

(e) the Chancellor of the Duchy of Lancaster, if the freehold or long lease belongs to His Majesty in right of the Duchy of Lancaster;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (f) a person appointed by the Duke of Cornwall, or the possessor for the time being of the Duchy of Cornwall, if the freehold or long lease belongs to the Duchy of Cornwall.”

- (3) In section 266(1) (orders which are to be made by statutory instrument), for “other than section 261 above” substitute “other than section 128A(1)”.

Commencement Information

I86 S. 69 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

CHAPTER 6

LICENSING OF TAXIS AND PRIVATE HIRE VEHICLES

National standards

70 “National standard” and “regulated licence”

A “national standard” is a standard prescribed by the Secretary of State under any of sections [71](#) to [73](#).

Commencement Information

I87 S. 70 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

71 Standards relating to the grant of a regulated licence

- (1) The Secretary of State may, by regulations, prescribe standards which are relevant to whether it is appropriate for a regulated licence to be granted.
- (2) For each national standard prescribed under this section, the Secretary of State may, by regulations, provide for whether the licensing authority—
 - (a) is required to refuse to grant the licence, or
 - (b) has a power to refuse to grant the licence,
 if the licensing authority is not satisfied that the standard is met.
- (3) Regulations under subsection [\(2\)](#) which relate to a standard may include provision—
 - (a) for the licensing authority—
 - (i) to be required to give an opportunity to remedy the failure to meet the standard, or
 - (ii) to have a power to give such an opportunity, and
 - (b) for the requirement or power to refuse the grant of the licence to cease to apply if the failure is remedied.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) Regulations under this section may, in particular, provide for an existing power of refusal to be extended so that the existing power is used, or is treated as being used, to refuse the grant of a licence where the licensing authority is not satisfied that a national standard is met.
- (5) In this section “existing power of refusal” means a power to refuse to grant a licence (whenever conferred) which arises otherwise than under regulations under this section.

Commencement Information

I88 S. 71 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

72 Standards relating to the suspension or revocation of a regulated licence

- (1) The Secretary of State may, by regulations, prescribe standards which are relevant to whether it is appropriate for a regulated licence to continue in force.
- (2) For each national standard prescribed under this section, the Secretary of State may, by regulations—
 - (a) provide for when, or the circumstances in which, a licensing authority must determine whether the standard is met;
 - (b) provide for which permitted response or responses will be available if the licensing authority is not satisfied that the standard is met;
 - (c) provide, if both permitted responses are available, for the circumstances in which a particular permitted response is to be made;
 - (d) provide for whether the licensing authority—
 - (i) is required to make a permitted response, or
 - (ii) has a power to make a permitted response,
 if the licensing authority is not satisfied that the standard is met;
 - (e) provide for when, or the circumstances in which, the suspension of a regulated licence is to end, including provision under which the licensing authority has a discretion.
- (3) Regulations under subsection (2) which relate to a standard may include provision—
 - (a) for the licensing authority—
 - (i) to be required to give an opportunity to remedy the failure to meet the standard, or
 - (ii) to have a power to give such an opportunity, and
 - (b) for the requirement or power to make a permitted response to cease to apply if the failure is remedied.
- (4) Regulations under this section may, in particular, provide for an existing power of suspension or revocation to be extended so that the existing power is used, or is treated as being used, to suspend or revoke a licence where the licensing authority is not satisfied that a national standard is met.
- (5) In this section—

“existing power of suspension or revocation” means a power to suspend or revoke a licence (whenever conferred) which arises otherwise than under regulations under this section;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“permitted response” means—

- (a) suspending a regulated licence, or
- (b) revoking a regulated licence;

and a reference to making a permitted response is to be read accordingly.

Commencement Information

189 S. 72 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

73 Standards relating to the renewal of a regulated licence

- (1) The Secretary of State may, by regulations, prescribe standards which are relevant to whether it is appropriate for a regulated licence to be renewed.
- (2) For each national standard prescribed under this section, the Secretary of State may, by regulations, provide for whether the licensing authority—
 - (a) is required to refuse to renew the licence, or
 - (b) has a power to refuse to renew the licence,
 if the licensing authority is not satisfied that the standard is met.
- (3) Regulations under subsection (2) which relate to a standard may include provision—
 - (a) for the licensing authority—
 - (i) to be required to give an opportunity to remedy the failure to meet the standard, or
 - (ii) to have a power to give such an opportunity, and
 - (b) for the requirement or power to refuse the renewal of the licence to cease to apply if the failure is remedied.
- (4) Regulations under this section may, in particular, provide for an existing power of refusal to be extended so that the existing power is used, or is treated as being used, to refuse the renewal of a licence where the licensing authority is not satisfied that a national standard is met.
- (5) In this section “existing power of refusal” means a power to refuse to renew a licence (whenever conferred) which arises otherwise than under regulations under this section.

Commencement Information

190 S. 73 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

74 Further provision about standards

- (1) National standards may relate to any of the following—
 - (a) persons applying for or holding regulated licences;
 - (b) other persons;
 - (c) vehicles;
 - (d) the types of services provided using taxis or private hire vehicles;
 - (e) premises;
 - (f) any other matters which appear to the Secretary of State to be appropriate.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) National standards may require action to be taken (for example undertaking training, or installing or using equipment, technology or services).
- (3) National standards prescribed under section 72 or 73 may (in particular) relate to regulated licences granted before the regulations come into force.
- (4) This section does not limit the kinds of national standards that may be prescribed.

Commencement Information

191 S. 74 not in force at Royal Assent, see s. 108(2)(6)

75 Duty to report concerns about drivers licensed in other areas

- (1) The Taxis and Private Hire Vehicles (Safeguarding and Road Safety) Act 2022 is amended in accordance with this section.
- (2) Section 5 (duty to report concerns about drivers licensed in other areas) is amended in accordance with subsections (3) and (4).
- (3) In subsection (1), for paragraph (a) substitute—
 - “(a) an English licensing authority (“the first authority”) becomes aware of—
 - (i) relevant information, or
 - (ii) information about a breach of a national standard,
 - (b) the information relates to a person who has driven in the first authority’s area in reliance on a driver’s licence or a relevant licence granted by another licensing authority or a relevant authority (“the second authority”),”.
- (4) In subsection (2)—
 - (a) in paragraph (a), for “relevant information” substitute “information of which it has become aware”;
 - (b) in the words after paragraph (b), omit “relevant”.
- (5) After section 6 insert—

“6A Production and publication of collated data

- (1) The Secretary of State may, by regulations made by statutory instrument—
 - (a) specify descriptions of relevant collated data, and
 - (b) require English licensing authorities to produce and publish that collated data.
- (2) In this section “relevant collated data” means—
 - (a) data derived from information provided in accordance with section 5, and
 - (b) data derived from information about actions taken in accordance with section 6.
- (3) Regulations under this section may make different provision for different purposes.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) A statutory instrument containing regulations under this section is subject to annulment in pursuance of a resolution of either House of Parliament.”

Commencement Information

I92 S. 75 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Temporary suspension of licences

76 Power to suspend licence temporarily

- (1) An enforcement officer may suspend a regulated driver licence if—
- (a) the licence relates to the driver of a relevant vehicle being driven in the officer’s enforcement area, and
 - (b) the officer considers that it is necessary in the interests of public safety to temporarily suspend the licence with immediate effect.
- (2) An enforcement officer may suspend a regulated vehicle licence if—
- (a) the licence relates to a relevant vehicle being driven in the officer’s enforcement area, and
 - (b) the officer considers that it is necessary in the interests of public safety to temporarily suspend the licence with immediate effect.
- (3) An enforcement officer may suspend a regulated PHV operator licence if—
- (a) the licence relates to the operation of a relevant vehicle being driven in the officer’s enforcement area, and
 - (b) the officer considers that it is necessary in the interests of public safety to temporarily suspend the licence with immediate effect.
- (4) A power under this section to suspend a licence is exercisable by an enforcement officer in respect of a licence granted by any licensing authority in England (whether or not it is the licensing authority which appointed or authorised the officer).

Commencement Information

I93 S. 76 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

77 Suspension under [section 76](#)

- (1) This section applies if an enforcement officer decides to suspend a licence under [section 76](#).
- (2) The enforcement officer must give notice of the suspension to the person the officer believes to have been driving the relevant vehicle at the time the officer decided to suspend the licence.
- (3) The suspension takes effect at the time when the notice is given to the person.
- (4) The effect of the suspension is that the licence holder may not exercise any of the rights granted by the licence.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) The suspension ceases to have effect at the end of the period of 48 hours beginning with the time when the notice was given.
- (6) But that is subject to section [section 80\(3\)](#).
- (7) The Secretary of State may, by regulations—
 - (a) amend subsection (5) so as to provide for suspensions to cease to have effect at a different time, and
 - (b) make consequential amendments of section [section 79\(2\)](#).
- (8) The Secretary of State may, by regulations, make provision about—
 - (a) the form or contents of suspension notices;
 - (b) the manner in which suspension notices are to be given.

Commencement Information

I94 S. 77 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

78 Suspension notice given to person who is not licence holder

- (1) This section applies if—
 - (a) an enforcement officer gives a suspension notice to a person, and
 - (b) before the end of the suspension, the enforcement officer becomes aware that a different person is the holder of the licence (the “licence holder”).
- (2) The enforcement officer must notify the licence holder that the suspension notice has been given.
- (3) The Secretary of State may, by regulations, make provision about—
 - (a) the form or contents of notifications under this section;
 - (b) the period within which notifications under this section are to be given;
 - (c) the manner in which notifications under this section are to be given.

Commencement Information

I95 S. 78 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

79 Responsible licensing authority to be notified of suspension

- (1) This section applies if—
 - (a) an enforcement officer gives a suspension notice in respect of a licence, and
 - (b) the responsible licensing authority is not the licensing authority which appointed or authorised the officer.
- (2) The enforcement officer must notify the responsible licensing authority of the suspension before the end of the period of 24 hours beginning with the time when the notice was given.
- (3) The Secretary of State may, by regulations, make provision about—
 - (a) the form or contents of notifications under this section;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the manner in which notifications under this section are to be given.

Commencement Information

196 S. 79 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

80 Responsible licensing authority's response to suspension of licence

- (1) This section applies if an enforcement officer gives a suspension notice in respect of a licence (the “suspended licence”).
- (2) If the suspending authority is not the responsible licensing authority, this section does not apply unless the notification required by [section 79](#) has been given.
- (3) The responsible licensing authority must—
 - (a) terminate the suspension,
 - (b) extend the period of suspension, or
 - (c) allow the suspension to cease to have effect at the end of the period of suspension.
- (4) The responsible licensing authority must notify the holder of the suspended licence of—
 - (a) the authority's decision under subsection (3), and
 - (b) any further extension of the period of suspension.
- (5) If the responsible licensing authority does not terminate the suspension, it may also notify the holder of any steps which would (if taken) result in the suspension being terminated.
- (6) After making the decision under subsection (3), the responsible licensing authority must decide whether and how to exercise its other functions as a licensing authority in relation to the suspended licence.
- (7) If the suspending authority is not the responsible licensing authority, the responsible licensing authority must notify the suspending authority of—
 - (a) any decision by the responsible licensing authority under subsection (3);
 - (b) any further extension of the period of suspension;
 - (c) any decision by the responsible licensing authority under subsection (6).
- (8) The Secretary of State may, by regulations, make provision about the making of decisions under subsection (3) or (6).
- (9) The regulations may, in particular, make provision about the period within which those decisions must be made.
- (10) The Secretary of State may, by regulations, make provision about the extension of periods of suspension.
- (11) The regulations may, in particular, make provision about—
 - (a) the length by which periods of suspension may be extended under subsection (3);
 - (b) whether and how, and the length by which, periods of suspension may be extended more than once.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (12) The Secretary of State may, by regulations, make provision about—
- (a) the form or contents of notifications under this section;
 - (b) the period within which notifications under this section are to be given;
 - (c) the manner in which notifications under this section are to be given.
- (13) In this section—
- “period of suspension” means—
 - (a) the period of suspension under [section 76\(5\)](#), or
 - (b) if that period has been extended under this section, that extended period;
 - “suspended licence” has the meaning given in subsection (1);
 - “suspending authority”, in relation to the suspended licence, means the licensing authority which appointed or authorised the enforcement officer who suspended the licence.

Commencement Information

I97 S. 80 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

81 Appeals and compensation

- (1) The Secretary of State must make regulations providing for the holder of a licence that is suspended under the licence suspension provisions to appeal to a magistrates’ court against—
- (a) the suspension, or
 - (b) any decision under [section 80\(3\)](#).
- (2) The Secretary of State may make regulations providing for compensation to be payable by licensing authorities in cases where—
- (a) an appeal under regulations under subsection (1) is successful, or
 - (b) an enforcement officer gives a suspension notice but fails to give notice as required under [section 78\(2\)](#) in circumstances where it was reasonably practicable for the officer to have done so.
- (3) The regulations may provide for—
- (a) the amounts of compensation, or
 - (b) the minimum or the maximum amounts of compensation.
- (4) The regulations may, in particular, confer (whether on a court or tribunal or person)—
- (a) the function of determining liability to pay compensation,
 - (b) the function of determining the amount of compensation that is payable (in cases where the amount is not fixed by regulations under subsection (3)), or
 - (c) other functions relating to compensation.

Commencement Information

I98 S. 81 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

82 Enforcement officers

- (1) In the licence suspension provisions, “enforcement officer” means a person appointed or authorised by a licensing authority in England (the “appointing licensing authority”) to carry out functions conferred by those provisions on behalf of that authority.
- (2) Accordingly—
 - (a) functions expressed in the licence suspension provisions as functions of enforcement officers are functions of the appointing licensing authority that are exercisable on that authority’s behalf by the officers appointed or authorised by that authority in accordance with subsection (1), and
 - (b) a reference to a licensing authority in section 83 includes a reference to an enforcement officer.
- (3) Where a function is expressed as a function of the enforcement officer who gave a suspension notice, that function may instead be exercised by any other enforcement officer appointed or authorised by the appointing licensing authority.
- (4) The Secretary of State may make regulations providing for the issue and use of documents, clothing or badges or other marks to identify persons as enforcement officers.

Commencement Information

I99 S. 82 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

General provision

83 Guidance

- (1) The Secretary of State may issue guidance to licensing authorities in connection with the exercise of their functions in accordance with this Chapter.
- (2) The Secretary of State may revise or revoke guidance issued under this section.
- (3) The Secretary of State must arrange for guidance under this section, and any revision of it, to be published.
- (4) A licensing authority must have regard to guidance issued under this section.

Commencement Information

I100 S. 83 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

84 Relationship with existing licensing legislation

- (1) This Chapter does not prevent the exercise of any other power or duty of a licensing authority to—
 - (a) grant,
 - (b) suspend,
 - (c) revoke, or
 - (d) renew,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

a regulated licence in a way that is consistent with provision made by or under this Chapter (which includes refusing to grant, suspending, revoking, or refusing to renew a licence when not required or authorised to do so by that provision).

(2) Before section 37 of the Town Police Clauses Act 1847 insert—

“36A Licensing: national standards and temporary suspension

The provisions of this Act relating to the licensing of hackney carriages are subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

(3) After section 45 of the Local Government (Miscellaneous Provisions) Act 1976 insert—

“45A Licensing: national standards and temporary suspension

This Part is subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

(4) After section 2 of the London Hackney Carriages Act 1843 insert—

“2A Licensing: national standards and temporary suspension

This Act is subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

(5) After section 2 of the Metropolitan Public Carriage Act 1869 insert—

“2A Licensing: national standards and temporary suspension

This Act is subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

(6) After section 1 of the Private Hire Vehicles (London) Act 1998 insert—

“1A Licensing: national standards and temporary suspension

This Act is subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

(7) After section 1 of the Plymouth City Council Act 1975 insert—

“1A Licensing: national standards and temporary suspension

This Act is subject to Chapter 3 of the English Devolution and Community Empowerment Act 2026 (which makes provision about national standards for licences and the temporary suspension of licences).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I101 S. 84 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

85 Regulations

- (1) Before making regulations under sections [71](#) to [73](#), the Secretary of State must consult such persons as the Secretary of State considers appropriate.
- (2) Regulations under this Chapter may amend or repeal provision made by an Act of Parliament passed before, or in the same session as, this Act.
- (3) Regulations under sections [71](#) to [73](#) are subject to affirmative resolution procedure.
- (4) Regulations under—
 - (a) [section 77\(7\)](#), or
 - (b) [section 80\(11\)](#),
 are subject to affirmative resolution procedure.
- (5) Regulations under this Chapter which amend or repeal provision made by an Act of Parliament (whether or not they also contain other provision) are subject to affirmative resolution procedure.
- (6) Any other regulations under this Chapter are subject to negative resolution procedure.

Commencement Information

I102 S. 85 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

86 Interpretation

In this Chapter—

“enforcement area”, in relation to an enforcement officer, means both of the following—

- (a) the area of the licensing authority which appointed or authorised the officer, in relation to the suspension of any regulated licence;
- (b) the whole of the rest of England, but only in relation to the suspension of a regulated licence granted by the licensing authority which appointed or authorised the officer;

“enforcement officer” has the meaning given in section [82\(1\)](#);

“licence suspension provisions” means sections [76](#) to [82](#) and this section;

“licensing authority”, in relation to a regulated licence, means a public authority which has licensing functions under—

- (a) sections 37 to 68 of the Town Police Clauses Act 1847;
- (b) the Metropolitan Public Carriage Act 1869;
- (c) the Plymouth City Council Act 1975;
- (d) Part 2 of the Local Government (Miscellaneous Provisions) Act 1976;
- (e) the Private Hire Vehicles (London) Act 1998;

“national standards” has the meaning given in section [70](#);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“PHV driver licence” is a licence under—

- (a) section 51 of the Local Government (Miscellaneous Provisions) Act 1976,
- (b) section 13 of the Private Hire Vehicles (London) Act 1998, or
- (c) section 9 of the Plymouth City Council Act 1975;

“PHV operator licence” is a licence under—

- (a) section 55 of the Local Government (Miscellaneous Provisions) Act 1976,
- (b) section 3 of the Private Hire Vehicles (London) Act 1998, or
- (c) section 13 of the Plymouth City Council Act 1975;

“PHV vehicle licence” is a licence under—

- (a) section 48 of the Local Government (Miscellaneous Provisions) Act 1976,
- (b) section 7 of the Private Hire Vehicles (London) Act 1998, or
- (c) section 5 of the Plymouth City Council Act 1975;

“regulated driver licence” means—

- (a) a taxi driver licence, or
- (b) a PHV driver licence,

granted by a licensing authority in England;

“regulated licence” means—

- (a) a taxi driver licence,
- (b) a taxi vehicle licence,
- (c) a PHV driver licence,
- (d) a PHV vehicle licence, or
- (e) a PHV operator licence,

granted by a licensing authority in England;

“regulated PHV operator licence” means a PHV operator granted by a licensing authority in England;

“regulated vehicle licence” means—

- (a) a taxi vehicle licence, or
- (b) a PHV vehicle licence,

granted by a licensing authority in England;

“relevant vehicle” means a vehicle that an enforcement officer reasonably believes is licensed by—

- (a) a taxi vehicle licence, or
- (b) a PHV vehicle licence;

“responsible licensing authority”, in relation to a regulated licence, means the licensing authority with the power to revoke the licence;

“standard” includes—

- (a) a requirement, and
- (b) a condition;

“suspension notice” means notice of a suspension given in accordance with [section 77\(2\)](#);

“taxi driver licence” is a licence under—

- (a) section 46 of the Town Police Clauses Act 1847, or
- (b) section 8 of the Metropolitan Public Carriage Act 1869;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- “taxi vehicle licence” is a licence under—
- (a) section 37 of the Town Police Clauses Act 1847, or
 - (b) section 6 of the Metropolitan Public Carriage Act 1869.

Commencement Information

I103 S. 86 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PROSPECTIVE

CHAPTER 7

LICENSING OF GAMBLING PREMISES

87 Licensing of gambling premises: impact assessments

- (1) The Gambling Act 2005 is amended in accordance with this section.
- (2) In section 153 (licensing authorities’ functions: principles to be applied), in subsection (3), for “section” substitute “sections [165A](#) and”.
- (3) After section 153 insert—

“153A Gambling impact assessments

- (1) A licensing authority may publish a document (“a gambling impact assessment”) containing a statement that the licensing authority consider that the grant of any relevant licence, or of any further relevant licences, in respect of premises in one or more parts of their area described in the assessment (the “affected part or parts”) is not likely to be reasonably consistent with one or more of the licensing objectives because of—
 - (a) the cumulative impact of relevant licences in respect of premises in the affected part or parts, or
 - (b) other reasons which relate to that licensing objective, or those licensing objectives, and to the affected part or parts.
- (2) A gambling impact assessment must set out the evidence for the authority’s opinion as set out in the assessment in accordance with subsection [\(1\)](#).
- (3) A gambling impact assessment may include a statement which is framed by reference to the grant of relevant licences in excess of a number specified in the statement.
- (4) A gambling impact assessment may relate—
 - (a) to all relevant licences, or
 - (b) only to relevant licences of a kind described in the assessment.
- (5) A licensing authority must—
 - (a) from time to time review any gambling impact assessment published by them,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) if they think it necessary in the light of a review, revise or withdraw the assessment, and
 - (c) publish any revision.
- (6) Before publishing a gambling impact assessment (including a revised assessment), the licensing authority must consult the persons mentioned in section 349(3).
- (7) For the purposes of the consultation, the licensing authority must provide the persons mentioned in section 349(3) with the following information—
 - (a) the reasons why they are considering publishing or revising a gambling impact assessment;
 - (b) a general indication of the part or parts of their area which they are considering describing in the assessment;
 - (c) whether they consider that the assessment will relate to all relevant licences or only to relevant licences of a particular kind.
- (8) In determining—
 - (a) whether to publish a gambling impact assessment (including a revised assessment) or withdraw an assessment, or
 - (b) the terms of a gambling impact assessment,
 a licensing authority may not have regard to the expected demand for facilities of the kinds that would require relevant licences to be operated lawfully.
- (9) If a licensing authority have published a gambling impact assessment, the authority must include a summary of the assessment in the three-year licensing policy.
- (10) For provision about the role of gambling impact assessments in the process of applying for relevant licences, see section [165A](#).
- (11) In this section—
 - “relevant licence” means—
 - (a) a bingo premises licence,
 - (b) an adult gaming centre premises licence,
 - (c) a family entertainment centre premises licence, or
 - (d) a betting premises licence;
 - “three-year licensing policy” means the statement published in accordance with section 349.”
- (4) After section 165 insert—

“165A Rejection of application: gambling impact assessment

- (1) This section applies to an application for a relevant licence (the “prospective licence”) if—
 - (a) the licensing authority have published a gambling impact assessment in accordance with section 153A, and
 - (b) the licensing authority’s three-year licensing policy includes a presumption that the authority will reject an application for a relevant licence if the licence is within the scope of the assessment.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) It is lawful for the licensing authority to reject the application solely on the ground that the prospective licence is within the scope of the gambling impact assessment (and therefore regardless of anything, including any legislation, which would otherwise support or require the grant of the prospective licence).
 - (3) But a rejection of the application is not lawful on that ground (whether by virtue of subsection (2) or otherwise) if the person applying for the prospective licence—
 - (a) asserts in the application that the grant of the prospective licence would be reasonably consistent with the licensing objective or objectives to which the gambling impact assessment relates, and
 - (b) then shows that the grant of the prospective licence would be reasonably consistent with that licensing objective or those licensing objectives;
 (and, accordingly, inconsistency with that licensing objective or those licensing objectives cannot otherwise be a ground for rejecting the application).
 - (4) For the purposes of this section, a licence is “within the scope of” a gambling impact assessment if the licence would (if granted)—
 - (a) relate to premises in the part or parts of the authority’s area described in the assessment in accordance with section 153A(1), and
 - (b) be a kind of licence to which the assessment applies in accordance with section 153A(1) (whether by virtue of section 153A(4)(a) or (b)).
 - (5) But if the assessment is framed by reference to the grant of relevant licences in excess of a number specified in the statement, a licence is not within the scope of the assessment unless (additionally)—
 - (a) the grant of the prospective licence, or
 - (b) the grant of that licence and any other relevant licences for which applications are being considered at the same time,
 would result in that number being exceeded.
 - (6) This section does not affect the powers of a licensing authority to decide what is included in their three-year licensing policy; and, in particular, it does not affect any powers—
 - (a) to make other kinds of presumptions, and
 - (b) to act lawfully in accordance with the terms of other kinds of presumptions.
 - (7) In this section—

“relevant licence” has the same meaning as in section 153A;

“three-year licensing policy” means the statement published in accordance with section 349.”
- (5) In section 349 (three-year licensing policy), after subsection (3) insert—
- “(3A) Subsection (3) does not require consultation in relation to a—
- (a) gambling impact assessment (within the meaning of section 153A) of which a summary is included in the statement being prepared or revised, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) a presumption of the kind referred to in section 165A(1)(b) included in that statement;
and, instead, see section 153A(6).”

Commencement Information
I104 S. 87 not in force at Royal Assent, see s. 108(6)

CHAPTER 8

NATIONAL PARK AUTHORITIES AND THE BROADS AUTHORITY

The general power of competence

88 **Extension of general power of competence to English National Park authorities and the Broads Authority**

Schedule 33 amends the Localism Act 2011 to extend the general power of competence to English National Park authorities and the Broads Authority.

Commencement Information
I105 S. 88 in force at 29.6.2026, see s. 108(5)

PART 4

LOCAL AUDIT

89 **Establishment of Local Audit Office**

(1) In the Local Audit and Accountability Act 2014, after Part 1 insert—

“PART 1A

THE LOCAL AUDIT OFFICE

1A Establishment and constitution

- (1) A body corporate called the Local Audit Office is established.
- (2) Schedule 1A makes provision about the Office, including provision about its constitution and proceedings.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

1B Main objective

- (1) The main objective of the Local Audit Office in performing its functions is to secure the effective operation of the system of audit established by this Act, with a view to meeting the needs of users of the audited accounts.
- (2) That includes, in particular, securing—
 - (a) that audits under this Act are carried out to a high standard, and
 - (b) that there is a suitable range of persons able and willing to carry out such audits.

1C Financial matters

- (1) The Secretary of State may pay grants to the Local Audit Office.
- (2) The Office must, on request by the Secretary of State, provide estimates of its income and expenditure.
- (3) The Office may charge a person a fee for the exercise in relation to that person of any of its functions that is not the subject of more specific provision about fees.
- (4) That includes functions under—
 - (a) an agreement under section [6B\(5\)\(a\)](#), or
 - (b) rules or arrangements made for the purposes of [Schedule 1C](#).
- (5) A fee charged by the Office (under subsection [\(3\)](#) or otherwise) need not be calculated by reference to the cost of doing the thing to which the fee relates.
- (6) But the Office must set its fees with a view to securing that, over time, its income from fees is broadly equivalent to such of its expenditure as is not met by way of grant from the Secretary of State.
- (7) In subsection [\(6\)](#)—
 - (a) the reference to fees includes other sums payable to the Office by agreement (see in particular section [6B\(5\)\(b\)](#)), and
 - (b) the reference to setting fees includes agreeing fees and other sums so payable.
- (8) Subsection [\(9\)](#) applies to any sum received by the Office by way of penalty under—
 - (a) paragraph [3](#) of [Schedule 1B](#) (penalties against external registration body), or
 - (b) arrangements made for the purposes of paragraph [10](#) of [Schedule 1C](#) (penalties against registered local audit provider),including any interest.
- (9) The Office—
 - (a) must pay the sum to the Secretary of State, but
 - (b) may deduct any costs incurred by it in connection with the imposition or enforcement of the penalty, so far as those costs are not otherwise recoverable.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

1D Oversight and intervention by Secretary of State

- (1) The Local Audit Office must exercise its functions in accordance with any direction, and having regard to any guidance, given to it by the Secretary of State.
- (2) The Office must comply with any written request by the Secretary of State to be provided with information about the exercise of the Office's functions.
- (3) Such a request may cover information about the exercise of functions after the request is made.
- (4) No direction, guidance or request under this section may relate to the exercise of functions in relation to a particular relevant authority.
- (5) The Secretary of State must—
 - (a) consult the Local Audit Office before giving any direction or guidance under this section, and
 - (b) publish any direction or guidance given under this section.”
- (2) Schedule 34 makes further provision about the Local Audit Office (including the insertion of the [Schedule 1A](#) referred to above).

Commencement Information

I106 S. 89 not in force at Royal Assent, see [s. 108\(6\)](#)

I107 S. 89 in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(1\)\(b\)](#)

90 Local audit providers: registration and public provision

- (1) In the Local Audit and Accountability Act 2014, after Part 2 insert—

“PART 2A

PROVIDERS OF AUDIT SERVICES

6A Local audit register

- (1) The Local Audit Office must secure that there is at least one public register of individuals and firms who are (by virtue of their registration) entitled to carry out audits in accordance with this Act.
- (2) It may do so by—
 - (a) keeping a register itself, or
 - (b) designating another body as an external registration body (see [section 6B](#)).
- (3) An external registration body must keep a register meeting the description in subsection (1).
- (4) In this Act—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“local audit register” means a register kept in accordance with this section;

“registered local audit provider” means an individual or firm that is registered in a local audit register.

(5) Fees may be charged in respect of—

- (a) applications for registration in a local audit register;
- (b) entry in such a register;
- (c) remaining in such a register.

6B External registration bodies

(1) The Local Audit Office may designate a body as an external registration body only if—

- (a) the body consents, and
- (b) the Office is satisfied that—
 - (i) the body is able and willing to co-operate with the Office in pursuit of the objective set out in section 1B,
 - (ii) the body is able and willing to promote and maintain high standards of integrity in the conduct of audits under this Act, and
 - (iii) the rules and arrangements of the body that will have effect in relation to registered local audit providers and lead partners (see in particular Schedule 1C) will be fair, reasonable, and fit for purpose.

(2) The Office—

- (a) may revoke the designation of an external registration body, and
- (b) must do so if no longer satisfied of the matters set out in subsection (1)(b), unless it considers that the body is likely to satisfy it of those matters again within a reasonable period.

(3) The making or revocation of a designation is to be done by written notice to the body in question; and the Office must publish such a notice.

(4) The making or revocation is to have effect from the time specified in the notice.

(5) The Local Audit Office and an external registration body, or a body that anticipates becoming an external registration body, may enter into an agreement about—

- (a) how the body is to carry out its functions as an external registration body;
- (b) fees, costs or other sums that are to be paid by the body to the Office;
- (c) circumstances in which the Office will or will not exercise its power under subsection (2)(a);
- (d) procedures to be followed in order for the Office to reach a decision whether to exercise that power or whether its duty under subsection (2)(b) is engaged.

(6) Fees charged by an external registration body under section 6A(5) may be calculated by reference to any costs borne by the body as a result of this Act.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (7) [Schedule 1B](#) makes further provision about external registration bodies, including provision for the enforcement of their duties.

6C Eligibility and regulation of registered providers

- (1) The body that keeps a local audit register must comply with the requirements of [Schedule 1C](#) (which sets out requirements in connection with the register, including requirements about eligibility for registration and the regulation of registered providers).
- (2) The requirements of [Schedule 1C](#) do not limit the ability of the body to have in place rules or arrangements going beyond those requirements (whether relating to the same or different subject matter).
- (3) An agreement under section [6B\(5\)\(a\)](#) may, accordingly, include terms supplementing those requirements or imposing additional requirements.

6D Professional qualifications

In [Schedule 1D](#)—

- (a) [Part 1](#) sets out certain requirements as to professional qualification referred to in [Schedule 1C](#), and
- (b) [Part 2](#) makes provision about bodies offering qualifications referred to in [Part 1](#).

6E Powers of Local Audit Office to facilitate provision by firms

The Local Audit Office may—

- (a) form a firm,
- (b) acquire interests in a firm, or
- (c) give assistance (financial or otherwise) to a firm,

with a view to the firm becoming, or remaining, a registered local audit provider that carries out audits under this Act.

6F Scrutiny of Local Audit Office as audit provider

- (1) This section applies if the Local Audit Office decides that it is to carry out audits under this Act.
- (2) The Office must put in place arrangements under which its audit practice will be monitored, inspected and reported on by persons acting independently of the Office.
- (3) The Office must send to the Secretary of State reports made to it under the arrangements.”

- (2) [Schedule 35](#) inserts the [Schedule 1B](#), [Schedule 1C](#) and [Schedule 1D](#) referred to above.

Commencement Information

I108 S. 90 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

91 New appointment arrangements for non-NHS audits

In the Local Audit and Accountability Act 2014, after [Part 2A](#) (inserted by section [90\(1\)](#)) insert—

“PART 2B

APPOINTMENT ETC OF LOCAL AUDITORS: AUTHORITIES OTHER THAN HEALTH SERVICE BODIES

6G Local Audit Office to appoint auditor

- (1) This section applies in relation to a relevant authority other than a health service body.
- (2) The Local Audit Office must, in relation to each financial year—
 - (a) decide that it is to audit the accounts of the authority, or
 - (b) appoint a registered local audit provider to audit those accounts.
- (3) A decision under subsection [\(2\)\(a\)](#) is to be treated for the purposes of this Act as the appointment of the Office as a local auditor under this section.
- (4) In the following provisions of this Part, references to an appointment are to an appointment under this section.

6H Further provision about appointments

- (1) A single appointment may be made for multiple financial years.
- (2) An appointment must be made before the beginning of the financial year (or the first of the financial years) to which it relates.
- (3) The appointment of a registered local audit provider is to be on terms agreed in writing between the Local Audit Office and the provider.
- (4) Two or more local auditors may be appointed—
 - (a) to act jointly in relation to some or all parts of the accounts;
 - (b) to act separately in relation to different parts of the accounts;
 - (c) to carry out different functions in relation to the audit.
- (5) If, as a result of an appointment made in accordance with subsection [\(4\)](#), a function under this Act may be exercised by two or more local auditors—
 - (a) it may be exercised by both or all of them acting jointly or by such one or more of them as they may determine, and
 - (b) references (however expressed) to the local auditor by whom the function is or has been exercised are to the auditors by whom it is or has been exercised.
- (6) The Local Audit Office must not appoint a person whom it has reason to think will be unable to act because of section [32B](#) (independence requirement).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

6I Procedure for appointment

- (1) Before making an appointment, the Local Audit Office must inform the relevant authority of the person it proposes to appoint and give the authority a reasonable opportunity to make representations.
- (2) As soon as practicable after making an appointment, the Office must send to the relevant authority concerned a notice that—
 - (a) states that it has made the appointment,
 - (b) identifies the local auditor that has been appointed, and
 - (c) specifies the financial year or years for which the local auditor has been appointed.
- (3) A relevant authority must publish a notice under subsection (2) within the period of 28 days beginning with the day on which it receives it.
- (4) The notice must be published—
 - (a) if the relevant authority has a website, on its website;
 - (b) otherwise, in such manner as the relevant authority thinks is likely to bring the notice to the attention of persons who live in its area.

6J Resignation and removal

- (1) If the Local Audit Office is appointed, it may resign from the appointment by giving written notice to the relevant authority concerned.
- (2) If a registered local audit provider is appointed, the terms of the appointment must include—
 - (a) provision for the resignation of the provider, and
 - (b) provision for the removal of the provider by the Local Audit Office.
- (3) If the appointed local auditor resigns or is removed, section 6G(2) applies again in relation to the relevant authority concerned.
- (4) But if the timing of the resignation or removal makes it impracticable for section 6H(2) to be complied with, the new appointment must instead be made as soon as practicable.

6K Audit fees

- (1) The Local Audit Office must charge a relevant authority a fee in respect of the carrying out of an audit by a local auditor appointed by the Office.
- (2) The amount of the fee may be revised (even after it has been paid or the audit concerned has been completed).
- (3) The payment terms are to be determined by the Office and notified in writing to the relevant authority.
- (4) The Office must publish a table of indicative fees, from which each relevant authority (other than a health service body) can, in respect of each financial year, ascertain the amount the Office would ordinarily expect to charge it for that year.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) The Office must give reasons if it—
- (a) revises a fee upwards, or
 - (b) charges a relevant authority a higher amount than that indicated in the table of indicative fees.”

Commencement Information

I109 S. 91 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

92 Audit providers to nominate lead partner

In the Local Audit and Accountability Act 2014, before section 20 insert—

“19A Requirement to nominate lead partner

- (1) Subsections (2) and (3) apply where a firm is appointed as a local auditor.
- (2) The firm must ensure that—
 - (a) an individual working for the firm acts as the lead partner for the audit in question, and
 - (b) the name of that individual is known to—
 - (i) the Local Audit Office, and
 - (ii) the relevant authority whose accounts are being audited.
- (3) The individual must appear in a list kept in relation to the firm in accordance with paragraph 6 of [Schedule 1C](#) (list of eligible lead partners in firm’s register entry).
- (4) Subsections (5) and (6) apply where the Local Audit Office is appointed as a local auditor.
- (5) The Office must ensure that—
 - (a) an individual working for the Office acts as the lead partner for the audit in question, and
 - (b) the name of that individual is known to the relevant authority whose accounts are being audited.
- (6) The individual must appear in a public list kept by the Office of individuals who may act as the lead partner for an audit carried out by the Office.
- (7) The Office must make arrangements designed to secure that an individual appears in its list only if the individual would be able to appear in a list kept in relation to a firm in accordance with paragraph 6 of [Schedule 1C](#).
- (8) For the purposes of this Act, an individual acts as the lead partner for an audit if the individual is primarily responsible for the local auditor’s decisions as to—
 - (a) the opinion to be given under section 20(2)(b) or 21(5)(a),

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the making of any public interest report or recommendation, and
- (c) the issuing of any advisory notice.”

Commencement Information

I110 S. 92 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

93 Code of audit practice

(1) In the Local Audit and Accountability Act 2014, paragraph 1 of Schedule 6 (preparation of code of audit practice) is amended as follows.

(2) For sub-paragraph (1) substitute—

“(1) The Local Audit Office must prepare one or more codes of audit practice.

(1A) A code—

- (a) must prescribe the auditing standards that are to be applied in the carrying out of audits under this Act, and
- (b) may impose other requirements as to the way in which local auditors carry out their functions under this Act.”

(3) In sub-paragraph (2), for “Comptroller and Auditor General” substitute “Office”.

(4) For sub-paragraph (4) substitute—

“(4) A code may prescribe auditing standards or impose other requirements by—

- (a) setting out, or referring to, standards or requirements formulated by the Office, or
- (b) adopting, with or without modification, standards or requirements formulated by another body;

and any reference in a code to a standard or requirement set out elsewhere may be to that standard or requirement as amended or replaced in the future.”

(5) For sub-paragraph (5) substitute—

“(5) Before preparing a code, the Office must consult—

- (a) the Comptroller and Auditor General,
- (b) such associations or representatives of relevant authorities as the Office considers appropriate,
- (c) registered local audit providers,
- (d) the Secretary of State,
- (e) the Treasury,
- (f) any external registration body, and
- (g) such other persons as the Office considers appropriate.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (6) A code that has effect as a code of audit practice under the Local Audit and Accountability Act 2014 when this section comes into force continues to have effect until (and except so far as) superseded by a code of audit practice prepared in accordance with Schedule 6 to that Act as amended by this Act.
- (7) Guidance that has effect under paragraph 9 of Schedule 6 to that Act when this section comes into force continues to have effect until (and except so far as)—
 - (a) superseded by guidance prepared in accordance with that paragraph as amended by this Act, or
 - (b) revoked by the Office.

Commencement Information

I111 S. 93 not in force at Royal Assent, see [s. 108\(6\)](#)

94 Audit committees

In the Local Audit and Accountability Act 2014, before section 34 insert—

“33A Audit committees

- (1) A relevant authority other than a health service body must—
 - (a) have an audit committee, and
 - (b) arrange for its audit committee to exercise the functions set out in subsection (3).
- (2) The audit committee is to be—
 - (a) in the case of a relevant authority that has a general power under an enactment to appoint committees, a committee of the authority designated by the authority as its audit committee, or
 - (b) in any other case, a group of individuals appointed by the relevant authority.
- (3) The functions referred to in subsection (1)(b) are—
 - (a) reviewing and scrutinising the authority’s financial affairs,
 - (b) reviewing and assessing the authority’s risk management, internal control and governance arrangements,
 - (c) reviewing and assessing the economy, efficiency and effectiveness with which resources have been used in discharging the authority’s functions, and
 - (d) making reports and recommendations to the authority in relation to reviews conducted under paragraphs (a), (b) and (c).
- (4) The Secretary of State may by regulations provide for an enactment that applies in relation to a relevant authority, or a committee of a relevant authority, to apply, with or without modification, in relation to a group of individuals appointed under subsection (2)(b).
- (5) The Secretary of State may by regulations make provision about—
 - (a) the membership of an audit committee;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English
Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the appointment of the members;
 - (c) payment to the members of allowances, expenses, gratuities or pensions.
- (6) Provision must be made under subsection (5) so as to ensure that at least one member of an audit committee is an independent person, as defined by the regulations.
- (7) Regulations under subsection (5)(c) may, in particular, make provision applying provision made, or corresponding to any provision that could be made, under section 18 of the Local Government and Housing Act 1989 or section 100 of the Local Government Act 2000.
- (8) Subsection (5)(c) does not affect the application of the enactments referred to in subsection (7), or provision made under them, in relation to members of an audit committee.
- (9) In the case of a relevant authority within subsection (2)(a), the powers of the authority in relation to its committees are to be taken to include (so far as they would otherwise not)—
 - (a) the powers necessary to give effect to regulations under subsection (5), and
 - (b) the power to appoint to its audit committee persons who are not members of the authority (even where not required by regulations under subsection (5)).
- (10) A relevant authority must have regard to any guidance issued by the Secretary of State in relation to audit committees.
- (11) References in this section to a committee of a relevant authority include a sub-committee of such a committee.”

Commencement Information

- I112** S. 94 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)
- I113** [S. 94](#) in force at 15.7.2026 for specified purposes by [S.I. 2026/812](#), [reg. 2\(1\)\(c\)](#)

PROSPECTIVE

95 Review of audit and reporting arrangements at Secretary of State’s request

In the Local Audit and Accountability Act 2014, after section [33A](#) (inserted by section [94](#)) insert—

“33B Review of audit and reporting arrangements at Secretary of State’s request

- (1) If requested to do so by the Secretary of State, the Local Audit Office must—
 - (a) carry out a review of a relevant authority’s audit and reporting arrangements, and
 - (b) report the findings of the review to the authority and the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) An authority’s “audit and reporting arrangements” are the arrangements it has (or recently had) in place for the purposes of—
 - (a) enabling it to discharge its functions under this Act, or
 - (b) enabling a local auditor to discharge its functions in relation to the authority.
- (3) A request by the Secretary of State under this section—
 - (a) may require or permit the review to be limited to certain aspects of the authority’s audit and reporting arrangements;
 - (b) must specify the time by which the Office is to submit its report;
 - (c) may be varied or withdrawn by notice to the Office.
- (4) Section 22 (right to documents and information) applies in relation to the Office and its functions under this section as it applies in relation to a local auditor and its functions under this Act.
- (5) But section 23 (offences of obstruction and non-compliance) does not apply in relation to section 22 as applied by subsection (4) (“the applied section 22”).
- (6) If the High Court is satisfied, on an application by the Office, that any person has—
 - (a) obstructed the exercise of any power conferred by the applied section 22, or
 - (b) failed to comply with any requirement of the applied section 22,it may order the person to take such steps as it considers will remedy the obstruction or non-compliance.
- (7) The Secretary of State must publish a summary of any findings reported under this section.”

Commencement Information

I114 S. 95 not in force at Royal Assent, see [s. 108\(6\)](#)

96 Smaller authorities: change of terminology

- (1) In sections 5 and 6 of the Local Audit and Accountability Act 2014 (smaller authorities), for “smaller”, in each place it occurs except section 5(6)(b), substitute “category 2”.
- (2) In any regulations, guidance or other instrument made or issued under that Act before this section comes into force, any reference to a smaller authority is to be read, in relation to matters arising after this section comes into force, as a reference to a category 2 authority.

Commencement Information

I115 S. 96 not in force at Royal Assent, see [s. 108\(6\)](#)

I116 [S. 96](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(1\)\(d\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

97 Power to provide for smaller authority treatment in previous years where audit outstanding

- (1) The Secretary of State may by regulations make provision applying in a case set out in subsection (2) and having the effect set out in subsection (3).
- (2) The case is one in which an audit has not been completed in relation to the accounts of a relevant authority other than a smaller authority for any of the following financial years—
 - (a) that ending with 31 March 2023,
 - (b) that ending with 31 March 2024, and
 - (c) that ending with 31 March 2025.
- (3) The effect is that of enabling an audit to be carried out or completed, or anything in relation to the audit to be done, as if the relevant authority had been a smaller authority for the financial year or years in question.
- (4) Subsections (2) and (3) are to be read as if they were contained in the Local Audit and Accountability Act 2014 (as it has or had effect in relation to the financial years concerned).
- (5) Regulations under this section may modify any time limit (whether or not it has already been reached).
- (6) Regulations under this section are subject to negative resolution procedure.

Commencement Information

I117 S. 97 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

I118 [S. 97](#) in force at 15.7.2026 in so far as not already in force by [S.I. 2026/812](#), [reg. 2\(1\)\(e\)](#)

98 Amendment paving way for separation of LGPS accounts

In section 20 of the Local Audit and Accountability Act 2014 (general duties of auditors), for subsection (3) substitute—

- “(3) If a statement of accounts prepared by a relevant authority under this Act includes both—
- (a) accounts of a pension fund maintained by the authority under regulations under section 1 of the Public Service Pensions Act 2013 as they relate to local government workers (within the meaning of that Act), and
 - (b) other accounts of the authority,
- the authority’s local auditor must give a separate opinion on the part of the statement that relates to the accounts of the pension fund.”

Commencement Information

I119 S. 98 not in force at Royal Assent, see [s. 108\(6\)](#)

I120 [S. 98](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(1\)\(f\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

99 Minor and consequential amendments

Schedule 36 makes further amendments in connection with local audit.

Commencement Information

I121 S. 99 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PART 5

BUSINESS TENANCIES: RENT REVIEWS AND ARRANGEMENTS FOR NEW TENANCIES

100 Rent reviews and arrangements for new tenancies

(1) After section 54 of the Landlord and Tenant Act 1954 insert—

“54A Rent reviews and arrangements for new tenancies

(1) Schedule 7A makes provision about rent reviews.

(2) Schedule 7B makes provision about terms relating to rent in arrangements which require a new tenancy to be granted or taken.”

(2) Schedule 37 inserts the new Schedules 7A and 7B into the Landlord and Tenant Act 1954 and otherwise amends that Act.

Commencement Information

I122 S. 100 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PART 6

FINAL PROVISIONS

101 Interpretation

(1) In this Act—

“area of competence” has the meaning given in section 2;

“category of strategic authorities” means each of the following—

- (a) the single foundation strategic authorities;
- (b) the combined foundation strategic authorities;
- (c) the mayoral strategic authorities except the established mayoral strategic authorities;
- (d) the established mayoral strategic authorities;

“CCA” means a combined county authority established under section 9(1) of LURA 2023;

“combined authority” means a combined authority established under section 103 of LDEDCA 2009;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“county council” means a county council in England;

“established”, in relation to a mayoral strategic authority, has the meaning given in section 1;

“foundation strategic authority” means—

- (a) a single foundation strategic authority, or
- (b) a combined foundation strategic authority;

“FRSA 2004” means the Fire and Rescue Services Act 2004;

“GLA” means the Greater London Authority;

“GLA functional body” means a functional body within the meaning of the GLAA 1999 (see section 424 of that Act);

“GLAA 1999” means the Greater London Authority Act 1999;

“LDEDCA 2009” means the Local Democracy, Economic Development and Construction Act 2009;

“legislation” means—

- (a) an Act of Parliament, or
- (b) secondary legislation;

“LGA 1972” means the Local Government Act 1972;

“LGA 1985” means the Local Government Act 1985;

“LGA 2000” means the Local Government Act 2000;

“LGFA 1988” means the Local Government Finance Act 1988;

“LGPIHA 2007” means the Local Government and Public Involvement in Health Act 2007;

“LURA 2023” means the Levelling-up and Regeneration Act 2023;

“mayor for an EMSA” means—

- (a) the mayor for the area of a mayoral combined authority, or mayoral CCA, that is an established mayoral strategic authority, or
- (b) the Mayor of London;

“mayoral CCA” or “mayoral combined county authority” means a CCA for an area for which provision is made in regulations under section 27(1) of the Levelling-up and Regeneration Act 2023 for there to be a mayor;

“mayoral combined authority” means a combined authority for an area for which provision is made in an order under section 107A of LDEDCA 2009 for there to be a mayor;

“mayoral strategic authority” has the meaning given in section 1;

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“non-mayoral CCA” or “non-mayoral combined county authority” means a CCA which is not a mayoral CCA;

“non-mayoral combined authority” means a combined authority which is not a mayoral combined authority;

“PRSRA 2011” means the Police Reform and Social Responsibility Act 2011;

“secondary legislation” means any instrument under an Act of Parliament;

“strategic authority”, in relation to a mayoral strategic authority, has the meaning given in section 1;

“unitary district council” means a district council (in England) whose area does not form part of the area of a county council.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I123 S. 101 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

102 Saving of orders and regulations relating to combined authorities and CCAs

- (1) This section applies to any provision of any subordinate legislation made under—
- (a) Part 6 of LDEDCA 2009, or
 - (b) Chapter 1 of Part 2 of LURA 2023,
- before this section comes into force (the “subordinate legislation”).
- (2) The provision made by Part 1 or 2 of this Act (the “primary legislation”) does not impliedly amend, modify or revoke the subordinate legislation.
- (3) Accordingly—
- (a) the primary legislation does not affect any contrary subordinate legislation; and
 - (b) the primary legislation has effect subject to the contrary subordinate legislation.
- (4) For that purpose “contrary subordinate legislation” means any of the subordinate legislation that—
- (a) makes provision which is to continue to apply instead of the primary legislation by virtue of subsection (2), or
 - (b) makes modifications or other contrary provision to which the primary legislation is to continue to be subject by virtue of subsection (2).
- (5) For provision about the relationship between—
- (a) the powers under which the subordinate legislation is made, and
 - (b) the primary legislation,
- see section 104CC of LDEDCA 2009 or section 24C of LURA 2023 (inserted by section 7 of this Act).
- (6) This section does not prevent the exercise of the power conferred by section 103 to make amendments, modifications or revocations of the subordinate legislation that are consequential on the primary legislation.
- (7) A reference in this section to the provision made by Part 1 or 2 of this Act includes any legislation as amended by that provision.

Modifications etc. (not altering text)

C1 [S. 102](#) applied (30.4.2026) by [The English Devolution and Community Empowerment Act 2026 \(Transitional and Saving Provisions\) \(England\) Regulations 2026 \(S.I. 2026/482\)](#), regs. 1(1), [2\(3\)](#)

Commencement Information

I124 S. 102 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

103 Power to make consequential provision

- (1) The Secretary of State may by regulations make provision that is consequential on this Act.
- (2) Regulations under this section may amend or repeal provision made by an Act of Parliament passed before, or in the same Session as, this Act.
- (3) Regulations under this section which amend or repeal provision made by an Act of Parliament (whether or not they also contain other provision) are subject to affirmative resolution procedure.
- (4) Any other regulations under this section are subject to negative resolution procedure.

Modifications etc. (not altering text)

C2 S. 103 applied (30.4.2026) by [The English Devolution and Community Empowerment Act 2026 \(Transitional and Saving Provisions\) \(England\) Regulations 2026 \(S.I. 2026/482\)](#), regs. 1(1), [2\(3\)](#)

Commencement Information

I125 S. 103 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

104 Certain orders and regulations provided for by Parts 1 and 2

- (1) Section 117 of LDEDCA 2009 (orders and regulations) is amended in accordance with subsections [\(2\)](#) to [\(5\)](#).
- (2) In subsection (2) for “An order to which subsection (2A) applies” substitute “Subject to subsections (2A) and (3), an order under this Part”.
- (3) In subsection (2A)—
 - (a) for “This subsection applies to an order under this Part other than—” substitute “Subsection (2) does not apply to—”;
 - (b) before paragraph (a) insert—

“(za) an order under section 107FA.”;
 - (c) in paragraph (b), omit the second “or”;
 - (d) after paragraph (b) insert—

“(ba) an order under section 113E.”
 - (e) at the end of paragraph (c) insert “, or”
 - (d) an order under Schedule 5BA.”
- (4) In subsection (3A), after “107K(1)” insert “or Schedule 5AA”.
- (5) In subsection (5), for “(2A)(a) or (b)” substitute “(2A)([za](#)) to ([ba](#)) or (2A)([d](#))”.
- (6) Section 252 of LURA 2023 (regulations) is amended in accordance with subsections [\(7\)](#) to [\(9\)](#).
- (7) In subsection (2)—
 - (a) for “(8)(a)” substitute “(8)(aa)”;
 - (b) before “, includes” insert “or (8)(l), or regulations under Schedule 1A”.
- (8) In subsection (5)(a)—
 - (a) after “subsection” insert “(8)(ac) or”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) after “(c)” insert “or (8)(l)”.

(9) In subsection (8), before paragraph (a) insert—
“(ac) under section 33A,”.

Commencement Information

I126 S. 104 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

105 Regulations

- (1) Regulations under this Act are to be made by statutory instrument.
- (2) Any power to make regulations under this Act includes power to make—
 - (a) different provision for different purposes;
 - (b) incidental, supplementary or consequential provision;
 - (c) transitional or saving provision.
- (3) Where this Act provides that regulations are “subject to affirmative resolution procedure”, a statutory instrument containing the regulations may not be made unless a draft of it has been laid before, and approved by, each House of Parliament.
- (4) Where this Act provides that regulations are “subject to negative resolution procedure”, a statutory instrument containing the regulations is subject to annulment in pursuance of a resolution of either House of Parliament.
- (5) Any provision that may be made by regulations under this Act that are subject to negative procedure may be made by regulations that are subject to affirmative procedure.
- (6) If a draft of a statutory instrument containing regulations under this Act would, apart from this subsection, be treated for the purposes of the standing orders of either House of Parliament as a hybrid instrument, it is to proceed in that House as if it were not a hybrid instrument.
- (7) This section does not apply to regulations under section [108](#).

Commencement Information

I127 S. 105 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

106 Financial provision

There is to be paid out of money provided by Parliament—

- (a) any expenditure incurred under or by virtue of the Act by the Secretary of State, and
- (b) any increase attributable to the Act in the sums payable under or by virtue of any other Act out of money so provided.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I128 S. 106 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

107 Extent

- (1) This Act extends to England and Wales only.
- (2) That is subject to the following provisions of this section.
- (3) Any amendment or repeal has the same extent as the provision amended or repealed.
- (4) But section [24](#) and Schedule [7](#) extend to England and Wales only.

Commencement Information

I129 S. 107 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

108 Commencement

- (1) On the day on which this Act is passed—
 - (a) this Part comes into force;
 - (b) the provisions referred to in subsection [\(3\)](#) come into force;
 - (c) any other provision of this Act comes into force (including provision modifying other legislation) so far as it confers power to make secondary legislation or is otherwise necessary for enabling the exercise of such a power on or after the day on which this Act is passed.
- (2) But none of the following provisions comes into force in accordance with [subsection \(1\)\(c\)](#)—
 - (a) section [11](#) (and Schedules [4](#) and [5](#)) (mayoral combined authorities & CCAs: overview and scrutiny committees);
 - (b) section [26](#) (and Schedule [9](#)) (charges payable by undertakers executing works in maintainable highways);
 - (c) [Chapter 6](#) of [Part 3](#) (licensing of taxis and private hire vehicles);
- (3) The provisions that come into force in accordance with subsection [\(1\)\(b\)](#) are—
 - (a) [section 1](#) (strategic authorities);
 - (b) [section 2](#) (areas of competence);
 - (c) [section 4](#) (and [Schedule 1](#)) (combined authorities and CCAs: establishment, expansion and functions), apart from paragraphs [18](#) and [39](#) of [Schedule 1](#) and any provision of that Schedule so far as relating to any of those paragraphs;
 - (d) [section 5](#) (combined authorities and CCAs: functions generally);
 - (e) [section 6](#) (and [Schedule 2](#)) (combined authorities and CCAs: decision-making and validity of proceedings);
 - (f) [section 7](#) (combined authorities and CCAs: powers not limited by other provision or powers);
 - (g) [section 9](#) (and [Schedule 3](#)) (appointment of commissioners by mayors);
 - (h) [section 14](#) (levies);
 - (i) [section 15](#) (combined authorities and CCAs: minor amendments);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (j) [section 18](#) (functions of mayors of combined authorities or CCAs);
 - (k) [section 19](#) (the “general functions” of mayors);
 - (l) [section 21](#) (and [Schedule 6](#)) (extension of general power of competence to strategic authorities) so far as they relate to mayoral combined authorities and mayoral CCAs;
 - (m) [section 25](#) (and [Schedule 8](#)) (arrangements to carry out works on highways);
 - (n) [section 27](#) (and [Schedule 10](#)) (civil enforcement of traffic contraventions);
 - (o) [section 29](#) (and [Schedule 11](#)) (key route network roads);
 - (p) [section 30](#) (constituent councils to act in accordance with local transport plans etc);
 - (q) [section 31](#) (and [Schedule 12](#)) (local transport authorities and other transport functions);
 - (r) [section 32](#) (and [Schedule 13](#)) (education);
 - (s) [section 36](#) (and [Schedule 18](#)) (acquisition and development of land);
 - (t) [section 37](#) (and [Schedule 19](#)) (housing accommodation);
 - (u) [section 38](#) (and [Schedule 20](#)) (mayoral development corporations);
 - (v) [section 40](#) (and [Schedule 21](#)) (assessment of economic conditions);
 - (w) [section 42](#) (Local Government Act 2003: expenditure grant);
 - (x) [section 44](#) (and [Schedule 23](#)) (miscellaneous local authority functions);
 - (y) [section 45](#) (health improvement and health inequalities duty);
 - (z) [section 50](#) (sharing of information);
 - (zl) [section 52](#) (encouragement of visitors and promotion of visitors).
- (4) The provisions of this Act come into force in accordance with subsection [\(5\)](#) or [\(6\)](#) (if, or to the extent that, they do not come into force in accordance with subsection [\(1\)](#)).
- (5) The following provisions come into force at the end of the period of two months beginning with the day on which this Act is passed—
- (a) [section 3](#) (single foundation strategic authorities);
 - (b) [section 8](#) (combined authorities and CCAs: designation as established mayoral strategic authorities);
 - (c) [section 10](#) (combined authorities and CCAs: allowances for members with special responsibilities);
 - (d) [section 13](#) (power to borrow);
 - (e) [section 16](#) (additional functions of the GLA);
 - (f) [section 17](#) (members of legislatures disqualified for being a mayor of strategic authority);
 - (g) [section 20](#) (report under section 1 of the Cities and Local Government Devolution Act 2016);
 - (h) [section 21](#) (and [Schedule 6](#)) (extension of general power of competence to strategic authorities), except so far as they relate to mayoral combined authorities and mayoral CCAs;
 - (i) [section 22](#) (power of mayors to convene meetings with local partners);
 - (j) [section 23](#) (duty of mayors to collaborate);
 - (k) [section 28](#) (restrictions on disposal of land by Transport for London);
 - (l) [section 41](#) (and [Schedule 22](#)) (local growth plans);
 - (m) [section 46](#) (functions of police and crime commissioners);
 - (n) [section 47](#) (and [Schedule 24](#)) (PCCs and police areas);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (o) [section 48](#) (and [Schedule 25](#)) (functions of fire and rescue authorities);
 - (p) [section 49](#) (mayor with PCC and fire and rescue functions);
 - (q) [section 51](#) (and [Schedule 26](#)) (licensing functions of the GLA and the Mayor of London);
 - (r) [section 53](#) (requests by mayors of EMSAs for changes);
 - (s) [section 54](#) (and [Schedule 27](#)) (regulations relating to functions of strategic authorities and mayors);
 - (t) [section 55](#) (health service functions: application of existing limitations on devolution);
 - (u) [section 56](#) (incidental etc provision);
 - (v) [section 57](#) (transfer of property, rights and liabilities);
 - (w) [section 58](#) (prohibition of secondary legislation removing functions);
 - (x) [section 59](#) (and [Schedule 28](#)) (single tiers of local government);
 - (y) [section 60](#) (certain functions of shadow authorities for single tiers of local government);
 - (z) [section 61](#) (and [Schedule 29](#)) (local authority governance and executives);
 - (z1) [section 64](#) (limit on delay of election in connection with local government reorganisation);
 - (z2) [section 65](#) (publication of addresses of members etc in authority registers);
 - (z3) [section 88](#) (and [Schedule 33](#)) (extension of general power of competence to English National Park authorities and the Broads Authority).
- (6) This Act comes into force on such day or days as the Secretary of State may by regulations appoint (if, and to the extent that, it does not come into force in accordance with subsection (1) or (5)).
- (7) Any reference in this Act to the coming into force of a provision is to its coming into force other than for the purpose of making secondary legislation.
- (8) A power under [this section](#) to appoint a day may be exercised to appoint different days for different purposes or areas.
- (9) The Secretary of State may, by regulations, make transitional or saving provision in connection with the coming into force of any provision of this Act.
- (10) The power to make regulations under [this section](#) includes power to make different provision for different purposes or areas.
- (11) Regulations under [this section](#) are to be made by statutory instrument.

Commencement Information

1130 S. 108 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

109 Short title

This Act may be cited as the English Devolution and Community Empowerment Act 2026.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I131 S. 109 in force at Royal Assent, see [s. 108\(1\)\(a\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULES

SCHEDULE 1

Section 4

ESTABLISHMENT, EXPANSION AND FUNCTIONS OF COMBINED AUTHORITIES AND CCAS

PART 1

COMBINED AUTHORITIES

1 LDEDCA 2009 is amended as follows.

Commencement Information

I132 Sch. 1 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 2 In section 104 (constitution and functions: transport)—
- (a) in subsection (10)—
 - (i) in the opening words, for “section 107ZA(7)” substitute “subsections (10A), (11B) and (12)”;
 - (ii) in the opening words, for “a combined authority” substitute “an existing combined authority”;
 - (iii) in paragraph (b), omit “in the case of an order in relation to an existing combined authority.”;
 - (b) after subsection (10) insert—

“(10A) Subsection (10) does not apply where a proposal for the making of the order has been submitted to the Secretary of State in accordance with section 112A (proposal for changes to existing combined arrangements - locally led).”;
 - (c) in subsection (11), for the opening words substitute “In this Part “constituent council”, in relation to a combined authority, means—”;
 - (d) omit subsection (11A).

Commencement Information

I133 Sch. 1 para. 2 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 3 In section 104A (non-constituent members of a combined authority), omit subsection (7).

Commencement Information

I134 Sch. 1 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 4 In section 105 (constitution and functions: local authority functions generally)—
- (a) in subsection (3A)—
 - (i) in the opening words, for “a combined authority” substitute “an existing combined authority”;
 - (ii) in paragraph (a), omit “(as defined by section 104(11))”;
 - (iii) in paragraph (b), omit “in the case of an order in relation to an existing combined authority.”;
 - (b) after subsection (3A) insert—

“(3AA) Subsection (3A) does not apply where a proposal for the making of the order has been submitted to the Secretary of State in accordance with section 112A (proposal for changes to existing combined arrangements - locally led).”;
 - (c) in subsection (3B), after “is” insert “also”.

Commencement Information

I135 Sch. 1 para. 4 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 5 In section 105B (section 105A orders: procedure)—
- (a) for subsection (1) substitute—

“(1) The Secretary of State may make an order under section 105A in relation to an existing combined authority’s area only if—

 - (a) a proposal for the making of the order in relation to the combined authority has been submitted to the Secretary of State in accordance with section 112A, or
 - (b) the appropriate consent is given.”;
 - (b) for subsection (2) substitute—

“(2) For the purposes of [subsection \(1\)\(b\)](#), the appropriate consent is given to the making of an order under section 105A only if—

 - (a) each constituent council consents, and
 - (b) the combined authority consents.”;
 - (c) omit subsections (3) to (5);
 - (d) omit subsection (12).

Commencement Information

I136 Sch. 1 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 6 After section 105B insert—

“105C Non-mayoral combined authority: consent to budget

- (1) A non-mayoral combined authority may only exercise the following functions with the consent of each constituent council—
 - (a) adopt or amend the authority’s budget;
 - (b) where it is not part of the budget, approve the total sum of the transport levy.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) In this section a reference to the “transport levy” is a reference to any levy issued by the combined authority relating to the exercise of its functions relating to transport in accordance with any regulations made from time to time under section 74(2) of the Local Government Finance Act 1988.”

Commencement Information

I137 Sch. 1 para. 6 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 7 After section 105C (inserted by paragraph 6 of this Schedule) insert—

“105D Non-mayoral combined authority: functions imposing financial liability

- (1) This section applies where a non-mayoral combined authority considers that the exercise of a function by the authority may result in a financial liability being incurred by one or more constituent councils (each such council being a “relevant constituent council”).
- (2) The function may only be exercised with the consent of each relevant constituent council.
- (3) When deciding whether [subsection \(1\)](#) applies, the authority must have regard to the “Code of Practice on Local Authority Accounting in the United Kingdom” published by the Chartered Institute of Public Finance and Accountancy, as amended or reissued from time to time.”

Commencement Information

I138 Sch. 1 para. 7 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 8 In section 106 (changes to boundaries of a combined authority’s area), omit subsections (3A) to (3D).

Commencement Information

I139 Sch. 1 para. 8 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 9 In section 107 (dissolution of a combined authority’s area), omit subsections (2) and (3).

Commencement Information

I140 Sch. 1 para. 9 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 10 In section 107ZA (designation of key route network roads)—
- (a) omit subsections (7) and (8);
 - (b) in subsection (9), omit the definitions of “constituent council” and “eligible power”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I141 Sch. 1 para. 10 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

11 For section 107B substitute—

“107B Requirements in connection with orders under section 107A

- (1) The Secretary of State may make an order under section 107A for there to be a mayor for the area of an existing combined authority only if the requirements under [subsection \(2\)](#), [\(3\)](#) or [\(4\)](#) are met (and for any further requirements in relation to such order see [section 113](#) (requirements in connection with changes to existing combined arrangements)).
- (2) The requirement under this subsection is that a proposal for there to be a mayor for the authority’s area has been submitted to the Secretary of State in accordance with section 112A (proposal for changes to existing combined arrangements - locally led).
- (3) The requirements under this subsection are that—
 - (a) the order does not confer any additional functions on the authority, and
 - (b) the order has been consented to in writing by each constituent council and the combined authority.
- (4) The requirements under this subsection are that the order implements a proposal that the Secretary of State is satisfied that the constituent councils and the combined authority have consented to in principle.”

Commencement Information

I142 Sch. 1 para. 11 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

12 In section 107D (functions of mayors: general)—

(a) for subsection (9) substitute—

“(9) Except as provided for by subsections [\(10A\)](#) and [\(11\)](#), an order under this section may be made in relation to an existing combined authority only with the consent of the appropriate authorities.

(9A) The “appropriate authorities” for the purposes of this section means—

(a) in relation to a mayoral combined authority—

(i) the constituent councils, and

(ii) the mayor;

(b) in relation to a non-mayoral combined authority—

(i) the constituent councils, and

(ii) the combined authority.”

(b) for subsection (10) substitute—

“(10A) The requirement in [subsection \(9\)](#) does not apply where a proposal to make the order has been submitted to the Secretary of State in

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

accordance with section 112A (proposal for changes to existing combined arrangements - locally led).”

Commencement Information

I143 Sch. 1 para. 12 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 13 In section 107DA (procedure for direct conferral of general functions on mayor), omit subsection (5).

Commencement Information

I144 Sch. 1 para. 13 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 14 In section 107EB (section 107EA orders: procedure), in subsection (12), omit the definition of “constituent councils”.

Commencement Information

I145 Sch. 1 para. 14 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 15 In section 109A (proposal for new combined authority)—
- (a) in the heading, at the end insert “(locally led)”;
 - (b) in subsection (4), for paragraph (a) substitute—
 “(a) consult the relevant consultees,”;
 - (c) after subsection (4) insert—
 “(4A) The “relevant consultees” for the purposes of subsection (4)(a) are—
 (a) the constituent councils, and
 (b) any other persons that the authority or the authorities preparing the proposal consider it appropriate to consult.”;
 - (d) omit subsection (7).

Commencement Information

I146 Sch. 1 para. 15 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 16 For section 110 substitute—

“110 Requirements in connection with establishment of combined authority

- (1) The Secretary of State may make an order establishing a combined authority for an area (whether or not including other provision made under this Part) only if the following requirements are met in relation to the order.
- (2) The Secretary of State considers that the statutory test is met.
- (3) The order must—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) implement a proposal submitted to the Secretary of State in accordance with section 109A (proposal for new combined authority - locally led), with or without modifications, or
 - (b) implement a proposal which the Secretary of State is satisfied that the constituent councils have consented to in principle.
- (4) If the order falls under [subsection \(3\)\(a\)](#) or [\(b\)](#), the consultation requirement must be met.
- (5) If the order falls under subsection ..., the Secretary of State must in making the order have regard to any representations received before the end of the period specified in the notice.
- (6) The “statutory test” is that it is appropriate to make the order in relation to the area having regard to the need to secure effective and convenient local government in relation to the areas of competence.
- (7) The “consultation requirement” is that the Secretary of State has consulted—
 - (a) if the order falls under [subsection \(3\)\(a\)](#), such persons (if any) as the Secretary of State considers it necessary to consult about—
 - (i) the proposal that the order will implement, and
 - (ii) any modifications to that proposal;
 - (b) if the order falls under [subsection \(3\)\(b\)](#), the relevant consultees about the proposal.
- (8) Subsection [\(9\)](#) applies where the Secretary of State is considering whether to make an order establishing a combined authority for an area and—
 - (a) part of the area is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area is surrounded by local government areas that are within the area.
- (9) In deciding whether to make the order, the Secretary of State must have regard to the likely effect of the creation of the proposed combined authority on the exercise of functions equivalent to those of the proposed combined authority's functions in each local government area that is next to any part of the proposed area.
- (10) The requirements of this section do not apply to an order to the extent that it includes provision made under section 107F (functions of mayors: policing).
- (11) In this section—
 - “areas of competence” has the meaning given by [section 2](#) of the English Devolution and Community Empowerment Act 2026;
 - “proposed area” means the area for which the combined authority is proposed to be established;
 - the “relevant consultees”, in relation to [subsection \(7\)\(b\)](#) are—
 - (a) the constituent councils, and
 - (b) any other persons that the Secretary of State considers it appropriate to consult.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I147 Sch. 1 para. 16 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 17 In section 112A (proposal for changes to existing combined arrangements)—
- (a) in the heading, at the end insert “(locally led)”;
 - (b) in subsection (1)(a), for the words from “section 104” to “107F” substitute “any of the relevant sections”;
 - (c) after subsection (1) insert—
 - “(1A) The “relevant sections” are—
 - (a) section 104 (constitution and functions: transport);
 - (b) section 105 (constitution and functions: local authority functions generally);
 - (c) section 105A (other public authority functions);
 - (d) section 106 (changes to boundaries);
 - (e) section 107 (dissolution);
 - (f) section 107A (power to provide for election of mayor);
 - (g) section 107D (functions of mayors: general).”;
 - (d) in subsection (3), for paragraph (a), substitute—
 - “(a) consult any persons that the authority or the authorities consider it appropriate to consult, and”;
 - (e) in subsection (5), after “an order” insert “under section 104, 105, 105A or 107D”;
 - (f) after subsection (5) insert—
 - “(5A) Before a proposal under this section for the making of an order under section 106 or 107 is submitted to the Secretary of State, the relevant consenting authorities must consent to the submission of the proposal.
 - (5B) Before a proposal under this section for the making of an order under section 107A is submitted to the Secretary of State, the constituent councils and the combined authority must consent to the submission of the proposal.”;
 - (g) in subsection (6), after “(5)” insert “, [\(5A\)](#) or [\(5B\)](#)”;
 - (h) after subsection (6) insert—
 - “(6A) In determining for the purposes of subsection (5) who would have to consent to the making of an order under section 104, 105, 105A or 107D, the consent of an authority is taken to be required even if the requirement for their consent under that section does not apply where a proposal is made under this section.”;
 - (i) omit subsection (8);
 - (j) for subsection (9) substitute—
 - “(9A) For the meaning of the “relevant consenting authorities” in relation to an order under section 106 or 107 see sections [113ZB](#) and [113ZC](#).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

1148 Sch. 1 para. 17 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

PROSPECTIVE

18 After section 112A insert—

“112B Proposal to add an area to an existing area of a combined authority (Secretary of State directed)”

- (1) The Secretary of State may prepare a proposal under this section for the making of an order under section 106 to add a local government area to an existing area of a combined authority only if the following requirements are met.
- (2) The local government area, or any part of it, is not within the area of a combined authority or combined county authority.
- (3) At the time the Secretary of State starts to prepare the proposal—
 - (a) no relevant proposals have been submitted to the Secretary of State in relation to the local government area (or any part of that area), or
 - (b) a relevant proposal has been so submitted but the Secretary of State does not consider it to be a viable proposal.
- (4) A “relevant proposal” is a proposal—
 - (a) under section 109A to establish a new combined authority;
 - (b) under section 45 of the Levelling-up and Regeneration Act 2023 to establish a new combined county authority;
 - (c) under section 112A to add an area to the existing area of a combined authority;
 - (d) under section 47 of the Levelling-up and Regeneration Act 2023 to add an area to the existing area of a combined county authority.
- (5) The Secretary of State has had regard to whether the statutory test would be met in relation to the order that the proposal would give effect to (and for that purpose the reference in the statutory test to “the area” is to the proposed area).
- (6) The Secretary of State must give notice of any proposal prepared under [subsection \(1\)](#) (including a copy of the proposal) to—
 - (a) any district council whose area would be added to the area of the combined authority,
 - (b) any county council any of whose area would be added to the area of the combined authority,
 - (c) if the combined authority is a mayoral combined authority, the mayor,
 - (d) the constituent councils of the combined authority, and
 - (e) any other persons that the Secretary of State considers appropriate.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(7) The notice under [subsection \(6\)](#) must specify the period before the end of which any notified person may make representations in writing to the Secretary of State.

(8) In this section—

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“notified person” means a person notified about a proposal under this section in accordance with [subsection \(6\)](#);

“proposed area” means the area of a combined authority after the local government area that is proposed to be added to it has been added to the area;

“statutory test” has the meaning given by section [110\(6\)](#).”

Commencement Information

1149 Sch. 1 para. 18 not in force at Royal Assent, see [s. 108\(1\)\(3\)\(6\)](#)

19 For section 113 substitute—

“113 Requirements in connection with changes to existing combined arrangements

(1) The Secretary of State may make an order under any of the relevant sections in relation to an existing combined authority only if—

- (a) the Secretary of State considers that the statutory test is met, and
- (b) any consultation required by [subsection \(3\)](#) or [\(4\)](#) has been carried out.

(2) The “relevant sections” are—

- (a) section 104 (constitution and functions: transport);
- (b) section 105 (constitution and functions: local authority functions generally);
- (c) section 105A (other public authority functions);
- (d) section 107A (power to provide for election of mayor);
- (e) section 107D (functions of mayors: general).

(3) If the order implements a proposal submitted to the Secretary of State in accordance with section 112A, the Secretary of State must consult such persons (if any) as the Secretary of State considers it necessary to consult about the proposal.

(4) In any other case, the Secretary of State must consult the relevant consultees.

(5) Subsection [\(4\)](#) does not apply if the order is made in accordance with the requirements under [section 107B\(3\)](#).

(6) The “relevant consultees” for the purposes of [subsection \(4\)](#)—

- (a) in relation to a mayoral combined authority means—
 - (i) the constituent councils, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) the mayor;
- (b) in relation a non-mayoral combined authority means—
 - (i) the constituent councils, and
 - (ii) the combined authority.

(7) In this section, “statutory test” has the meaning given by [section 110\(6\)](#).”

Commencement Information

1150 Sch. 1 para. 19 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

20 After section 113 (inserted by [paragraph 19](#)) insert—

“113ZA Requirements in connection with boundary changes or dissolution of combined authority

- (1) The Secretary of State may make an order under section 106 (boundary changes) or 107 (dissolution) in relation to an existing combined authority only if the following requirements are met.
- (2) The Secretary of State considers that the statutory test is met.
- (3) For the purposes of [subsection \(2\)](#), the reference in the statutory test to “the area”—
 - (a) in relation to an order under section 106, means the area after the local government area in question has been added or removed, or
 - (b) in relation to an order under section 107, means the area of the combined authority.
- (4) The order must—
 - (a) implement a proposal submitted to the Secretary of State in accordance with section 112A, with or without modifications,
 - (b) implement a proposal of which notice was given under [section 112B](#), with or without modifications, or
 - (c) implement a proposal which the Secretary of State is satisfied that the relevant consenting authorities have consented to in principle (see sections [113ZB](#) and [113ZC](#): relevant consenting authorities).
- (5) If the order falls under [subsection \(4\)\(a\)](#) or [\(c\)](#), the consultation requirement must be met.
- (6) If the order falls under [subsection \(4\)\(b\)](#), the Secretary of State must in making the order have regard to any representations received before the end of the period specified in the notice.
- (7) The “consultation requirement” is that the Secretary of State has consulted—
 - (a) if the order falls under [subsection \(4\)\(a\)](#), such persons (if any) as the Secretary of State considers it necessary to consult about—
 - (i) the proposal that the order will implement, and
 - (ii) any modifications to that proposal;
 - (b) if the order falls under [subsection \(4\)\(c\)](#), the relevant consultees about the proposal.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (8) Subsection (9) applies where the Secretary of State is considering whether to make an order under section 106 and—
- (a) part of the area to be created is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area to be created is surrounded by local government areas that are within the area.
- (9) In deciding whether to make the order under section 106, the Secretary of State must have regard to the likely effect of the change to the combined authority's area on the exercise of functions equivalent to those of the combined authority's functions in each local government area that is next to any part of the area to be created by the order.
- (10) In this section—
- “relevant consultee” —
- (a) in relation to an order under section 106 means—
 - (i) the council of the local government area to be added to or removed from the area of the combined authority;
 - (ii) if the local government area is to be added to or removed from a mayoral combined authority, the mayor of that authority;
 - (iii) if the local government area is to be added to or removed from a non-mayoral combined authority, the combined authority;
 - (iv) any other persons that the Secretary of State considers appropriate;
 - (b) in relation to an order under section 107 means—
 - (i) the constituent councils of the combined authority that is to be abolished;
 - (ii) if the combined authority that is to be abolished is a mayoral combined authority, the mayor of that authority;
 - (iii) if the combined authority that is to be abolished is a non-mayoral combined authority, the combined authority;
 - (iv) any other persons that the Secretary of State considers appropriate;
- “statutory test” has the meaning given by [section 110\(6\)](#).

113ZB Relevant consenting authorities in relation to orders under section 106

- (1) The “relevant consenting authorities” in relation to an order under section 106 means—
- (a) the relevant council for the local government area to be added to or removed from the area of the combined authority;
 - (b) if the local government area is to be added to or removed from a mayoral combined authority, the mayor of that authority;
 - (c) if the local government area is to be added to or removed from a non-mayoral combined authority, the combined authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) The “relevant council” in relation to a local government area for the purposes of [subsection \(1\)\(a\)](#) is—
- (a) if the local government area is the area of a county council, the county council;
 - (b) if the local government area is the area of a district council whose area does not form part of the area of a county council, the district council;
 - (c) if the local government area is the area of a district council whose area forms part of the area of a county council, the district council or the county council.
- (3) If there are two relevant councils in relation to a local government area by virtue of [subsection \(2\)](#), the condition in [subsection \(1\)\(a\)](#) is met if—
- (a) in the case of an order adding a local government area to an existing area of a combined authority, either or both of the relevant councils consent;
 - (b) in the case of an order removing a local government area from an existing area of a combined authority, both of the relevant councils consent.
- (4) Where the combined authority is a relevant consenting authority, the question of whether to consent in principle for the purpose of [section 113ZA\(4\)\(c\)](#) is to be decided at a meeting of the combined authority by a simple majority of the voting members of the authority who are present at the meeting.
- (5) A reference in [subsection \(4\)](#) to a voting member—
- (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.

113ZC Relevant consenting authorities in relation to orders under section 107

- (1) The “relevant consenting authorities” in relation to an order under section 107 to dissolve or abolish a combined authority means—
- (a) a majority of the relevant councils;
 - (b) if the combined authority that is to be abolished is a mayoral combined authority, the mayor of that authority.
- (2) The “relevant councils” for the purposes of this section are—
- (a) a county council whose area, or part of whose area, is within the area of the combined authority;
 - (b) a unitary district council whose area is within the area of the combined authority.”

Commencement Information

1151 Sch. 1 para. 20 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- (a) in subsection (2), omit “(as defined by section 107B(5))”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) for subsection (3) substitute—

“(2A) The “appropriate authorities” for the purpose of this section are—

- (a) the constituent councils, and
- (b) in the case of an order in relation to an existing combined authority, the combined authority.”

Commencement Information

I152 Sch. 1 para. 21 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

PART 2

CCAs

22 LURA 2023 is amended as follows.

Commencement Information

I153 Sch. 1 para. 22 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

23 In section 10 (constitutional arrangements)—

- (a) in subsection (8)—
 - (i) in the opening words, for “a CCA” substitute “an existing CCA”;
 - (ii) in paragraph (b), omit “in the case of regulations in relation to an existing CCA,”;
- (b) after subsection (8) insert—

“(8A) Subsection (8) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”;
- (c) omit subsection (9).

Commencement Information

I154 Sch. 1 para. 23 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

24 In section 16 (funding)—

- (a) in subsection (2)—
 - (i) in the opening words, for “a CCA” substitute “an existing CCA”;
 - (ii) in paragraph (b), omit “in the case of regulations in relation to an existing CCA,”;
- (b) after subsection (2) insert—

“(2A) Subsection (2) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I155 Sch. 1 para. 24 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 25 In section 18 (local authority functions)—
- (a) in subsection (6)—
 - (i) in the opening words, for “a CCA” substitute “an existing CCA”;
 - (ii) in paragraph (b), omit “in the case of regulations in relation to an existing CCA,”;
 - (b) after subsection (6) insert—

“(7) Subsection (6) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”

Commencement Information

I156 Sch. 1 para. 25 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 26 In section 20 (section 19 regulations: procedure)—
- (a) for subsection (1) substitute—

“(1) The Secretary of State may make regulations under section 19(1) in relation to an existing CCA only if—

 - (a) a proposal for the making of the regulations in relation to the CCA has been submitted to the Secretary of State in accordance with section 47, or
 - (b) the appropriate authorities consent.”
 - (b) omit subsection (2);
 - (c) in subsection (4), for “appropriate consent to be given” substitute “appropriate authorities to consent”;
 - (d) in subsection (8)(b), omit “in the case of regulations in relation to an existing CCA,”.

Commencement Information

I157 Sch. 1 para. 26 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 27 In section 21 (integrated transport authority and passenger transport executive)—
- (a) in subsection (5)—
 - (i) in the opening words, for “a CCA” substitute “an existing CCA”;
 - (ii) in paragraph (b), omit “in the case of regulations in relation to an existing CCA,”;
 - (b) after subsection (5) insert—

“(5A) Subsection (5) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I158 Sch. 1 para. 27 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 28 In section 22 (directions relating to highways and traffic functions)—
- (a) in subsection (11)—
 - (i) for the opening words, substitute “Regulations under subsection (1) may be made in relation to an existing CCA only with the consent of—”;
 - (ii) in paragraph (b), omit “in the case of regulations in relation to an existing CCA,”;
 - (b) after subsection (11) insert—

“(12) Subsection (11) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”

Commencement Information

I159 Sch. 1 para. 28 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 29 In section 24 (designation of key route network roads)—
- (a) omit subsections (7) and (8);
 - (b) in subsection (9), omit the definition of “eligible power”.

Commencement Information

I160 Sch. 1 para. 29 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 30 After [section 24C](#) (inserted by [section 7](#) of this Act) insert—

“24D Non-mayoral CCA: consent to budget

- (1) A non-mayoral CCA may only exercise the following functions with the consent of each constituent council—
 - (a) adopt or amend the CCA’s budget;
 - (b) where it is not part of the budget, approve the total sum of the transport levy.
- (2) In this section a reference to the “transport levy” is a reference to any levy issued by the CCA relating to the exercise of its functions relating to transport in accordance with any regulations made from time to time under section 74(2) of the Local Government Finance Act 1988.”

Commencement Information

I161 Sch. 1 para. 30 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 31 After [section 24D](#) (inserted by paragraph 31 of this Schedule) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“24E Non-mayoral CCA: functions imposing financial liability

- (1) This section applies where a non-mayoral CCA considers that the exercise of a function by the CCA may result in a financial liability being incurred by one or more constituent councils (each such council being a “relevant constituent council”).
- (2) The function may only be exercised with the consent of each relevant constituent council.
- (3) When deciding whether [subsection \(1\)](#) applies, the CCA must have regard to the “Code of Practice on Local Authority Accounting in the United Kingdom” published by the Chartered Institute of Public Finance and Accountancy, as amended or reissued from time to time.”

Commencement Information

I162 Sch. 1 para. 31 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 32 In section 25 (changes to boundaries of a CCA’s area), omit subsections (6) to (10).

Commencement Information

I163 Sch. 1 para. 32 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 33 In section 26 (dissolution of a CCA’s area), omit subsection (4).

Commencement Information

I164 Sch. 1 para. 33 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 34 For section 28 substitute—

“28 Requirements in connection with regulations under section 27

- (1) The Secretary of State may make regulations under section 27(1) for there to be a mayor for the area of an existing CCA only if the requirements under [subsection \(2\)](#), [\(3\)](#) or [\(4\)](#) are met (and for any further requirements in relation to such regulations see [section 48](#) (requirements in connection with changes to existing CCA)).
- (2) The requirement under this subsection is that a proposal for there to be a mayor for the CCA’s area has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).
- (3) The requirements under this subsection are that—
 - (a) the regulations do not confer any additional functions on the CCA, and
 - (b) the regulations have been consented to in writing by each constituent council and the CCA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) The requirements under this subsection are that the regulations implement a proposal that the Secretary of State is satisfied that the constituent councils and the CCA have consented to in principle.”

Commencement Information

I165 Sch. 1 para. 34 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 35 In section 30 (functions of mayors: general)—
- (a) for subsection (11) substitute—
- “(11) Regulations under this section may be made in relation to an existing CCA only with the consent of—
- (a) the constituent councils and the CCA, and
- (b) in the case of regulations made in relation to a mayoral CCA, the mayor of the CCA.
- (11A) The “appropriate authorities” for the purposes of this section—
- (a) in relation to a mayoral CCA means—
- (i) the constituent councils, and
- (ii) the mayor;
- (b) in relation to a non-mayoral CCA means—
- (i) the constituent councils, and
- (ii) the CCA.”;
- (b) for subsection (12) substitute—
- “(12A) The requirement in subsection (11) does not apply where a proposal to make the regulations has been submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA - locally led).”

Commencement Information

I166 Sch. 1 para. 35 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 36 In section 45 (proposal for new CCA)—
- (a) in the heading, at the end insert “(locally led)”;
- (b) in subsection (4), for paragraph (a) substitute—
- “(a) consult the relevant consultees,”;
- (c) after subsection (4) insert—
- “(4A) The “relevant consultees” for the purposes of subsection (4)(a) are—
- (a) the constituent councils, and
- (b) any other persons that the authority or authorities preparing the proposal consider it appropriate to consult.”;
- (d) omit subsection (7).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I167 Sch. 1 para. 36 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

37 For section 46 substitute—

“46 Requirements in connection with establishment of CCA

- (1) The Secretary of State may make regulations establishing a CCA for an area (whether or not including other provision made under this Part) only if the following requirements are met in relation to the regulations.
- (2) The Secretary of State considers that the statutory test is met.
- (3) The regulations must—
 - (a) implement a proposal submitted to the Secretary of State in accordance with section 45 (proposal for new CCA - locally led), with or without modifications, or
 - (b) implement a proposal which the Secretary of State is satisfied that the constituent councils have consented to in principle.
- (4) If the regulations fall under [subsection \(3\)\(a\)](#) or [\(b\)](#), the consultation requirement must be met.
- (5) If the regulations fall under subsection ..., the Secretary of State must in making the regulations have regard to any representations received before the end of the period specified in the notice.
- (6) The “statutory test” is that it is appropriate to make the regulations having regard to the need to secure effective and convenient local government across the area in relation to the areas of competence.
- (7) The “consultation requirement” is that the Secretary of State has consulted—
 - (a) if the regulations fall under [subsection \(3\)\(a\)](#), such persons (if any) as the Secretary of State considers it necessary to consult about—
 - (i) the proposal that the regulations will implement, and
 - (ii) any modifications to that proposal;
 - (b) if the regulations fall under [subsection \(3\)\(b\)](#), the relevant consultees about the proposal.
- (8) Subsection [\(9\)](#) applies where the Secretary of State is considering whether to make regulations establishing a CCA for an area and—
 - (a) part of the area is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area is surrounded by local government areas that are within the area.
- (9) In deciding whether to make the regulations, the Secretary of State must have regard to the likely effect of the creation of the proposed CCA on the exercise of functions equivalent to those of the proposed CCA's functions in each local government area that is next to any part of the proposed CCA area.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (10) The requirements of this section do not apply to regulations to the extent that they include provision made under section 33 (functions of mayors: policing).
- (11) In this section—
- “areas of competence” has the meaning given by [section 2](#) of the English Devolution and Community Empowerment Act 2026;
 - “proposed area” means the area for which the CCA is proposed to be established;
 - the “relevant consultees” means—
 - (a) the constituent councils, and
 - (b) any other persons that the Secretary of State considers it appropriate to consult.”

Commencement Information

1168 Sch. 1 para. 37 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

- 38 In section 47 (proposal for changes to existing arrangements relating to CCA)—
- (a) in the heading, at the end insert “(locally led)”;
 - (b) in subsection (1)(a), for the words from “section 10” to “33” substitute “any of the relevant sections”;
 - (c) after subsection (1) insert—
 - “(1A) The “relevant sections” are—
 - (a) section 10 (constitutional arrangements);
 - (b) section 16 (funding);
 - (c) section 18 (local authority functions);
 - (d) section 19 (other public authority functions);
 - (e) section 21 (integrated transport authority and passenger transport executive);
 - (f) section 22 (directions relating to highways and traffic functions);
 - (g) section 25 (changes to boundaries of a CCA’s area);
 - (h) section 26 (dissolution of a CCA’s area);
 - (i) section 27 (power to provide for election of mayor);
 - (j) section 30 (functions of mayors: general).”;
 - (d) in subsection (3), for paragraph (a), substitute—
 - “(a) consult any persons that the authority or the authorities consider it appropriate to consult.”;
 - (e) in subsection (5), after “regulations”, in the first place it occurs, insert “under section 10, 16, 18, 19, 21, 22, or 30”;
 - (f) after subsection (5) insert—
 - “(5A) Before a proposal under this section for the making of regulations under section 25 or 26 is submitted to the Secretary of State, the relevant consenting authorities must consent to the submission of the proposal.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5B) Before a proposal under this section for the making of regulations under section 27 is submitted to the Secretary of State, the constituent councils and the CCA must consent to the submission of the proposal.”;
- (g) in subsection (6), after “(5)” insert “,(5A) or (5B)”;
- (h) after subsection (6) insert—
- “(6A) In determining for the purposes of subsection (5) who would have to consent to the making of regulations under section 10, 16, 18, 19, 21, 22, or 30, the consent of an authority is taken to be required even if the requirement for their consent under that section does not apply where a proposal is made under this section.”;
- (i) omit subsection (7);
- (j) for subsection (8) substitute—
- “(8A) For the meaning of the “relevant consenting authorities” in relation to regulations under section 25 or 26 see sections 48B and 48C.”

Commencement Information

I169 Sch. 1 para. 38 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

PROSPECTIVE

39 After section 47 insert—

“47A Proposal to add an area to an existing area of a CCA (Secretary of State directed)

- (1) The Secretary of State may prepare a proposal under this section to add a local government area to an existing area of a CCA only if the following requirements are met.
- (2) The local government area, or any part of it, is not within the area of a combined authority or CCA.
- (3) At the time the Secretary of State starts to prepare the proposal—
 - (a) no relevant proposals have been submitted to the Secretary of State in relation to the local government area (or any part of that area), or
 - (b) a relevant proposal has been so submitted but the Secretary of State does not consider it to be a viable proposal.
- (4) A “relevant proposal” is a proposal—
 - (a) under section 109A of the Local Democracy, Economic Development and Construction Act 2009 to establish a new combined authority;
 - (b) under section 45 to establish a new combined county authority;
 - (c) under section 112A of the Local Democracy, Economic Development and Construction Act 2009 to add an area to the existing area of a combined authority;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) under section 47 to add an area to the existing area of a combined county authority.
- (5) The Secretary of State has had regard to whether the statutory test would be met in relation to the regulations that would give effect to the proposal (and for that purpose the reference in the statutory test to “the area” is to the proposed area).
- (6) The Secretary of State must give notice of any proposal prepared under [subsection \(1\)](#) (including a copy of the proposal) to—
 - (a) any county council whose area would be added to the area of the CCA,
 - (b) any unitary district council whose area would be added to the area of the CCA,
 - (c) if the CCA is a mayoral CCA, the mayor,
 - (d) the constituent councils of the CCA, and
 - (e) any other persons that the Secretary of State considers appropriate.
- (7) The notice under [subsection \(6\)](#) must specify the period before the end of which any notified person may make representations in writing to the Secretary of State.
- (8) In this section—
 - “notified person” means a person notified about a proposal under this section in accordance with [subsection \(6\)](#);
 - “proposed area” means the area of a CCA after the local government area that is proposed to be added to it has been added to the area;
 - “statutory test” has the meaning given by section 46(6).”

Commencement Information

I170 Sch. 1 para. 39 not in force at Royal Assent, see [s. 108\(1\)\(3\)\(6\)](#)

40 For section 48 substitute—

“48 Requirements for changes to existing arrangements relating to CCA

- (1) The Secretary of State may make regulations under any of the relevant sections in relation to an existing CCA only if—
 - (a) the Secretary of State considers that the statutory test is met, and
 - (b) any consultation required by [subsection \(3\)](#) or [\(4\)](#) has been carried out.
- (2) The relevant sections are—
 - (a) section 10 (constitutional arrangements);
 - (b) section 16 (funding);
 - (c) section 18 (local authority functions);
 - (d) section 19 (other public authority functions);
 - (e) section 21 (integrated transport authority and passenger transport executive);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (f) section 22 (directions relating to highways and traffic functions);
 - (g) section 27 (power to provide for election of mayor);
 - (h) section 30 (functions of mayors: general).
- (3) If the regulations implement a proposal submitted to the Secretary of State in accordance with section 47, the Secretary of State must consult such persons (if any) as the Secretary of State considers it necessary to consult about the proposal.
- (4) In any other case, the Secretary of State must consult the relevant consultees.
- (5) Subsection (4) does not apply if the regulations are made in accordance with the requirements under [section 28\(3\)](#).
- (6) The “relevant consultees” for the purposes of [subsection \(4\)](#)—
- (a) in relation to a mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the mayor;
 - (b) in relation a non-mayoral CCA means—
 - (i) the constituent councils, and
 - (ii) the CCA.
- (7) In this section, “statutory test” has the meaning given by [section 46\(6\)](#).”

Commencement Information

I171 Sch. 1 para. 40 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

41 After section 48 insert—

“48A Requirements in connection with boundary changes or dissolution of CCA

- (1) The Secretary of State may make regulations under section 25 (boundary changes) or 26 (dissolution) in relation to an existing CCA only if the following requirements are met.
- (2) The Secretary of State considers that the statutory test is met.
- (3) For the purposes of [subsection \(2\)](#), the reference in the statutory test to “the area”—
 - (a) in relation to regulations under section 25, means the area after the local government area in question has been added or removed, or
 - (b) in relation to regulations under section 26, means the area of the CCA.
- (4) The regulations must—
 - (a) implement a proposal submitted to the Secretary of State in accordance with section 47 (proposal for changes to existing arrangements relating to CCA, locally led), with or without modifications,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) implement a proposal of which notice was given under [section 47A](#) (proposal to add an area to an existing area of a CCA, Secretary of State directed), with or without modifications, or
 - (c) implement a proposal which the Secretary of State is satisfied that the relevant consenting authorities have consented to in principle (see sections [48B](#) and [48C](#): relevant consenting authorities).
- (5) If the regulations falls under [subsection \(4\)\(a\)](#) or (c), the consultation requirement must be met.
- (6) If the regulations fall under [subsection \(4\)\(b\)](#), the Secretary of State must in making the regulations have regard to any representations received before the end of the period specified in the notice.
- (7) The “consultation requirement” is that the Secretary of State has consulted—
 - (a) if the regulations fall under [subsection \(4\)\(a\)](#), such persons (if any) as the Secretary of State considers it necessary to consult about the proposal that the regulations will implement;
 - (b) if the regulations fall under [subsection \(4\)\(c\)](#), the relevant consultees about the proposal.
- (8) Subsection (9) applies where the Secretary of State is considering whether to make regulations under section 25 and—
 - (a) part of the area to be created is separated from the rest of it by one or more local government areas that are not within the area, or
 - (b) a local government area that is not within the area to be created is surrounded by local government areas that are within the area.
- (9) In deciding whether to make regulations under section 25, the Secretary of State must have regard to the likely effect of the change to the CCA’s area on the exercise of functions equivalent to those of the CCA’s functions in each local government area that is next to any part of the area to be created by the regulations.
- (10) In this section—
 - “relevant consultee”—
 - (a) in relation to regulations under section 25 means—
 - (i) the council of the local government area to be added to or removed from the area of the CCA;
 - (ii) if the CCA that the local government area is to be added to or removed from is a mayoral CCA, the mayor of the CCA;
 - (iii) if the CCA that the local government area is to be added to or removed from is a non-mayoral CCA, the CCA;
 - (iv) any other persons that the Secretary of State considers appropriate;
 - (b) in relation to regulations under section 26 means—
 - (i) the constituent councils of the CCA that is to be abolished,
 - (ii) if the CCA that is to be abolished is a mayoral CCA, the mayor of the CCA;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (iii) if the CCA that is to be abolished is a non- mayoral CCA, the CCA;
 - (iv) any other persons that the Secretary of State considers appropriate;
- “statutory test” has the meaning given by section 46(6).

48B Relevant consenting authorities in relation to regulations under section 25

- (1) The “relevant consenting authorities” in relation to regulations under section 25 means—
- (a) the relevant council in relation to the relevant local government area to be added to or removed from the area of the CCA, and
 - (b) if the CCA that the local government area is to be added to or removed from is a mayoral CCA, the mayor of the CCA;
 - (c) if the CCA that the local government area is to be added to or removed from is a non-mayoral CCA, the CCA.
- (2) The “relevant council” in relation to a relevant local government area is—
- (a) if the local government area is the area of a county council, the county council;
 - (b) if the local government area is the area of a unitary district council, the unitary district council.
- (3) Where a CCA is a relevant consenting authority, the question of whether to consent in principle for the purpose of [section 48A\(4\)\(c\)](#) is to be decided at a meeting of the CCA by a simple majority of the voting members of the authority who are present at the meeting.
- (4) A reference in subsection (3) to a voting member—
- (a) includes a substitute member who may act in place of a voting member;
 - (b) does not include a non-constituent member.

48C Relevant consenting authorities in relation to regulations under section 26

The “relevant consenting authorities” in relation to regulations under section 26 means—

- (a) a majority of the constituent councils, and
- (b) if the CCA to be abolished is a mayoral CCA, the mayor for the area of the authority.”

Commencement Information

I172 Sch. 1 para. 41 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

42 In section 52 (general power of competence)—

- (a) in subsection (2) omit “(as defined by section 28(4))”;
- (b) for subsection (3) substitute—

“(2A) The “appropriate authorities” for the purposes of this section are—

- (a) the constituent councils, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) in the case of regulations in relation to an existing CCA, the CCA.”

Commencement Information

I173 Sch. 1 para. 42 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

SCHEDULE 2

Section 6

DECISION-MAKING AND EXERCISE OF FUNCTIONS

Planning and Compulsory Purchase Act 2004

- 1 The provisions of the Planning and Compulsory Purchase Act 2004 referred to in paragraphs 2 to 4 are inserted by section 58 of the Planning and Infrastructure Act 2025.

Commencement Information

I174 Sch. 2 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 2 In section 12A of the Planning and Compulsory Purchase Act 2004 (spatial development strategy to be produced by strategic planning authorities), after subsection (3) insert—

“(3A) Where there is a mayor for the area of a combined authority or combined county authority, the functions of the authority under this Part as a strategic planning authority are functions of the authority exercisable only by the mayor on behalf of the authority.”

Commencement Information

I175 Sch. 2 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 3 (1) Section 12L of the Planning and Compulsory Purchase Act 2004 (adoption of spatial development strategy) is amended in accordance with this paragraph.
- (2) In subsection (4), for “Subsection (5) applies” substitute “Subsections (4A) to (5) apply”.
- (3) For subsections (4) and (5) substitute—
- “(4) Subsections (4A) to (5) apply in relation to the adoption of a spatial development strategy by—
- (a) a combined authority, or
- (b) a combined county authority.
- (4A) In the case of a non-mayoral combined authority or non-mayoral combined county authority, a resolution to adopt the strategy is to be made by a simple

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

majority of the constituent members present and voting on that resolution at a meeting of the authority.

(4B) In the case of a mayoral combined authority or mayoral combined county authority, a resolution to adopt the strategy is to be made by a simple majority of the relevant members present and voting on that resolution at a meeting of the authority; and such a majority must include the mayor, or the deputy mayor acting in place of the mayor.

(4C) But if—

- (a) the office of mayor is vacant, and
- (b) there is no deputy mayor,

the decision is to be made by a simple majority of the other relevant members present and voting on that question at a meeting of the authority.

(4D) In the case of a resolution by a non-mayoral combined authority or non-mayoral combined county authority—

- (a) each constituent member has one vote;
- (b) in the case of a tied vote—
 - (i) no person has a casting vote; and
 - (ii) the authority must be regarded as having disagreed to the question that the decision should be made.

(5) In the case of a resolution of a mayoral combined authority or mayoral combined county authority—

- (a) each relevant member has one vote;
- (b) in the event of a tied vote then (unless it is a case where subsection (4C) applies), the mayor, or the deputy mayor acting in place of the mayor, has a casting vote (in addition to any other vote the mayor or deputy mayor may have)."

(4) After subsection (7) insert—

“(8) In this section—

“constituent member”, in relation to a combined authority or combined county authority—

- (a) means a person appointed by a constituent council to be a member of the authority; and
- (b) also includes a person acting as a member of the authority in the absence of such a member;

and here “constituent council” has the meaning given in section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 (in relation to a combined authority) or section 10(11) of the Levelling-up and Regeneration Act 2023 (in relation to a combined county authority);

“relevant member”, in relation to mayoral combined authority or mayoral combined county authority means—

- (a) a constituent member, or
- (b) the mayor,

and also includes the deputy mayor acting in place of the mayor.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I176 Sch. 2 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 4 In section 12X of the Planning and Compulsory Purchase Act 2004 (interpretation), in subsection (1), after the definition of “national development management policy”, insert—

““non-mayoral combined authority” means a combined authority that is not a mayoral combined authority;

“non-mayoral combined county authority” means a combined county authority that is not a mayoral combined county authority;”

Commencement Information

I177 Sch. 2 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Local Government and Housing Act 1989

- 5 In section 13 of LGHA 1989 (voting rights of members of certain committees: England and Wales), before subsection (6) insert—

“(5B) Nothing in this section prevents the appointment of any of the following as a voting member of a committee or sub-committee of a combined authority or combined county authority—

- (a) a person who is a member of a constituent council of that authority;
- (b) a person who is a non-constituent member of that authority, if that authority has resolved that that person is to be a voting member of that committee or sub-committee.

(5C) In subsection (5B)—

“combined authority” has the same meaning as in section 21(1)(j);

“combined county authority” has the same meaning as in section 21(1)(jba);

“constituent council” means—

(a) in relation to a combined authority—

- (i) a county council the whole or any part of whose area is within the area of the authority, or
- (ii) a district council whose area is within the area of the authority;

(b) in relation to a combined county authority—

- (i) a county council for an area within the area of the authority, or
- (ii) a unitary district council for an area within the area of the authority;

and here “unitary district council” means a district council whose area does not form part of the area of a county council;

“non-constituent member” has the same meaning—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) as in section 104A of the Local Democracy, Economic Development and Construction Act 2009 in relation to a combined authority;
 - (b) as in section 11 of the Levelling-up and Regeneration Act 2023 in relation to a combined county authority;
- “resolved” means—
- (a) in relation to a combined authority, resolved under section 104A(4) of the Local Democracy, Economic Development and Construction Act 2009;
 - (b) in relation to a combined county authority, resolved under section 11(4) of the Levelling-up and Regeneration Act 2023.”

Commencement Information

1178 Sch. 2 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Local Government Act 1972

- 6 (1) Section 101 of LGA 1972 (arrangements for discharge of functions by local authorities) is amended in accordance with this paragraph.
- (2) For subsection (1D) substitute—
- “(1D) A combined authority may not arrange for the discharge of a function under subsection (1) if, or to the extent that, the function is a mayoral function of a mayor for the area of the authority unless a mayor for the area of the authority has given the authority written consent for the function to be so discharged.
- (1DA) If a mayor for the area of the authority notifies the authority of withdrawal of the consent (whether the consent was given by that mayor or a predecessor), the arrangements made under subsection (1) for the discharge of the function cease to have effect; but that does not affect anything already done under the arrangements.”
- (3) For subsection (1F) substitute—
- “(1F) A combined county authority may not arrange for the discharge of a function under subsection (1) if, or to the extent that, the function is a mayoral function of a mayor for the area of the authority unless a mayor for the area of the authority has given the authority written consent for the function to be so discharged.
- (1FA) If a mayor for the area of the authority notifies the authority of withdrawal of the consent (whether the consent was given by that mayor or a predecessor), the arrangements made under subsection (1) for the discharge of the function cease to have effect; but that does not affect anything already done under the arrangements.”

Commencement Information

1179 Sch. 2 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 3

Section 9

COMMISSIONERS

Schedule 2A to LURA 2023

1 After Schedule 2 to LURA 2023 insert—

“SCHEDULE 2A

Section 29A

COMMISSIONERS

Application of Schedule

- 1 This Schedule applies to commissioners appointed by the mayor for the area of a CCA (see section 29A).

Persons ineligible for appointment

- 2 (1) The appointment of an ineligible person as a commissioner is of no effect.
- (2) The appointment of a person ceases to have effect if a person becomes ineligible after appointment as a commissioner.
- (3) For the purposes of this paragraph a person is “ineligible” if the person—
- (a) is disqualified for being elected or holding office as the mayor for the area of a CCA under paragraph 8, 9 or 9A of Schedule 2, or
 - (b) is the mayor or deputy mayor for the area of the CCA to which the appointment relates.
- (4) But being a commissioner does not make a person ineligible by virtue of paragraph 8(1)(a) of Schedule 2 (as applied by sub-paragraph (3)(a)) — instead see paragraph 4(3).
- (5) Any defect in the appointment of a person as a commissioner, or in the qualifications of a person appointed as a commissioner, does not affect the validity of anything done by the person as commissioner.

Terms and conditions of appointment

- 3 (1) The mayor must determine the terms and conditions of a person’s appointment as a commissioner.
- (2) But that is subject to the provisions of this Schedule.

Commissioner to work in only one area of competence

- 4 (1) The terms and conditions must provide for the person’s work as commissioner to relate to one of the areas of competence (the commissioner’s “special” area of competence), whether by relating to—
- (a) one or more aspects of that area of competence, or
 - (b) that area of competence generally.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) This paragraph does not prevent a person’s work as a commissioner from relating incidentally—
 - (a) to any area of competence other than the commissioner’s special area, or
 - (b) to matters outside any of the areas of competence.
- (3) The appointment of a person as a commissioner (the “invalid appointment”) is of no effect if (in the absence of this paragraph) the person would, at any particular time, be serving—
 - (a) as commissioner under the invalid appointment, and
 - (b) as commissioner under another appointment made before, or at the same time as, the invalid appointment—
 - (i) under section 29A (whether or not in relation to the same CCA as the invalid appointment), or
 - (ii) under section 107CA of the Local Democracy, Economic Development and Construction Act 2009 (appointments by mayors of combined authorities).

Duration of appointment

- 5
 - (1) The terms and conditions must provide for a person’s appointment as a commissioner to end on or before the last day of the relevant term of office of the mayor making the appointment.
 - (2) If the mayor who made the appointment ceases to hold office before the last day of the relevant term of office—
 - (a) any arrangements under section 30(3)(ba) for the commissioner to exercise functions cease to have effect;
 - (b) the commissioner must not carry out any work as commissioner, except work in preparation for the ending of the appointment in accordance with paragraph (c); and
 - (c) the appointment as commissioner ends with the earlier of the following days—
 - (i) the day on which a person next becomes mayor for the area of the CCA;
 - (ii) the last day of the period of three months beginning with the day on which the mayor ceases to hold office.
 - (3) In this paragraph “relevant term of office”, in relation to an appointment of a person as a commissioner made by a mayor, means the term of office of the mayor during which, or in relation to which, the appointment is made.

Limitation on delegation of functions

- 6
 - (1) The power of the mayor to arrange under section 30(3)(ba) for a commissioner to exercise a function is subject to this paragraph.
 - (2) The mayor may not arrange for a commissioner to exercise—
 - (a) any function of approving—
 - (i) a local growth plan under section 32A,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) a local transport plan under Part 2 of the Transport Act 2000,
 - (iii) a spatial development strategy under Part 2 of the Planning and Compulsory Purchase Act 2004, or
 - (iv) any other document that is specified for the purposes of this paragraph in regulations made by the Secretary of State;
 - (b) any function of making or terminating the appointment of a person as a member of staff or holder of any office or role (whether as an employee or otherwise);
 - (c) any function of a police and crime commissioner that is exercisable by the mayor or the deputy mayor for policing and crime;
 - (d) excepted fire and rescue functions.
- (3) The mayor must obtain the consent of the CCA to any arrangement for a commissioner to exercise a function; but this does not apply to a function that is exercisable only by the mayor on behalf of the CCA.
- (4) The mayor may not arrange for a commissioner to exercise a function except in relation to the commissioner's special area of competence.
- (5) That does not prevent the mayor from arranging for the commissioner to exercise the function incidentally in relation—
- (a) to any area of competence other than the commissioner's special area, or
 - (b) to matters outside any of the areas of competence.
- (6) In this paragraph "excepted fire and rescue functions" means—
- (a) functions under the following provisions of the FRSA 2004—
 - (i) section 13 (reinforcement schemes);
 - (ii) section 15 (arrangements with other employers of fire-fighters);
 - (iii) section 16 (arrangements for discharge of functions by others);
 - (b) the functions of—
 - (i) appointing, suspending or dismissing the chief fire officer;
 - (ii) approving the terms of appointment of the chief fire officer;
 - (iii) holding the chief fire officer to account for managing the fire and rescue service;
 - (c) approving—
 - (i) the community risk management plan;
 - (ii) the fire and rescue declaration;
 - (d) approving plans, modifications to plans and additions to plans for the purpose of ensuring that—
 - (i) as far as reasonably practicable, the CCA is able to perform its fire and rescue functions if an emergency occurs, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) the CCA is able to perform its functions so far as is necessary or desirable for the purpose of preventing an emergency or reducing, controlling or mitigating the effects of an emergency, or taking other action in connection with it;
 - (e) approving any arrangements for the co-operation of the CCA in relation to its fire and rescue functions with other Category 1 responders and Category 2 responders in respect of—
 - (i) the performance of the CCA’s duty as a fire and rescue authority under section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise);
 - (ii) any duties under subordinate legislation made in exercise of powers under that Act.
- (7) In sub-paragraph (6) and this sub-paragraph—
- “Category 1 responder” and “Category 2 responder” have the meanings given in section 3 of the Civil Contingencies Act 2004 (section 2: supplemental);
- “chief fire officer” means the person with responsibility for managing the fire and rescue service;
- “community risk management plan” means a plan which—
- (a) is prepared and published by the CCA in accordance with the Fire and Rescue National Framework, and
 - (b) sets out for the period covered by the document in accordance with the requirements of the Framework—
 - (i) the CCA’s priorities and objectives, and
 - (ii) an assessment of all foreseeable fire and rescue related risks that could affect its community, in accordance with the discharge of the CCA’s fire and rescue functions;
- “emergency” has the meaning given in section 1 of the Civil Contingencies Act 2004 (meaning of “emergency”);
- “fire and rescue authority” means a fire and rescue authority under the FRSA 2004;
- “fire and rescue declaration” means a document which—
- (a) is prepared and published by the CCA in accordance with the Fire and Rescue National Framework, and
 - (b) contains a statement of the way in which the CCA has had regard, in the period covered by the document, to the Framework and to any community risk management plan prepared by the CCA for that period;
- “fire and rescue functions” means—
- (a) functions of a fire and rescue authority which the CCA has by virtue of regulations under section 19, or
 - (b) functions which the CCA has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the FRSA 2004;
- “Fire and Rescue National Framework” means the document prepared by the Secretary of State under section 21 of the FRSA 2004;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“fire and rescue service” means the personnel, services and equipment secured for the purposes of carrying out the functions of a fire and rescue authority under—

- (a) section 6 of the FRSA 2004 (fire safety);
- (b) section 7 of the FRSA 2004 (fire-fighting);
- (c) section 8 of the FRSA 2004 (road traffic accidents);
- (d) any applicable order under section 9 of the FRSA 2004 (emergencies);
- (e) section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise) and any applicable subordinate legislation made under that Act;
- (f) any other provision of, or made under, an enactment which confers functions on a fire and rescue authority;

“FRSA 2004” means the Fire and Rescue Services Act 2004.

Allowances

- 7 (1) A CCA may—
- (a) make a scheme providing for the payment of allowances to commissioners appointed by the mayor for the area of the CCA, and
 - (b) pay allowances in accordance with the scheme.
- (2) A CCA may only make a scheme if—
- (a) the CCA has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
- (3) A CCA which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
- (4) In this section “relevant remuneration panel” means a panel that is specified, or of a description specified, in regulations made by the Secretary of State for the purposes of this paragraph.

Ending of appointment

- 8 The appointment of a person as a commissioner ends if—
- (a) the appointment ceases to have effect in accordance with paragraph 2(2) or 4(3),
 - (b) the appointment ends—
 - (i) in accordance with the terms and conditions included by virtue of paragraph 5(1), or
 - (ii) in accordance with paragraph 5(2),
 - (c) the appointment is terminated in accordance with its terms and conditions or otherwise in accordance with contract law—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) by the mayor for the area of the CCA (whether that is the person who made the appointment or a successor), or
- (ii) by the commissioner,
- (d) the appointment ceases to have effect in accordance with paragraph 9(4), or
- (e) the commissioner dies.

Role of overview and scrutiny committees

- 9
- (1) The power which the CCA's overview and scrutiny committee has (or its overview and scrutiny committees have between them) in accordance with paragraph 1(3) of Schedule 1 must include power to recommend that a commissioner's appointment is terminated.
 - (2) If a recommendation is made that a commissioner's appointment is terminated, the CCA must decide whether or not to accept the recommendation.
 - (3) A decision to accept the recommendation must be made by a two thirds majority of the non-mayoral members, or substitute members acting in their place, of the CCA present and voting on the question at a meeting of the authority.
 - (4) If a decision is made to accept the recommendation, the commissioner's appointment ceases to have effect when the decision is made.
 - (5) In this paragraph "non-mayoral members", in relation to a CCA, means the members of the CCA other than the mayor.

Powers of appointment and termination exercisable on behalf of the CCA

- 10
- (1) The powers to make and terminate the appointment of a person as a commissioner are (by virtue of section 30(1A)) powers of the CCA exercisable only by the mayor on behalf of the CCA.
 - (2) Accordingly, if a person is appointed as a commissioner—
 - (a) under a worker's contract, the CCA is the employer;
 - (b) under a contract other than a worker's contract, the contract is between the CCA and the commissioner;
 - (c) otherwise than under a contract, the commissioner holds office under the CCA.
 - (3) In this paragraph "worker's contract" and "employer" have the same meanings as in the Employment Rights Act 1996 (see section 230 of that Act).

Guidance

- 11
- (1) The Secretary of State may issue guidance about the selection or appointment of commissioners.
 - (2) The mayors for the areas of CCAs must take account of any such guidance.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) The Secretary of State may issue guidance about the exercise of the function under paragraph 6(3) of consenting to arrangements for a function to be exercisable by a commissioner.
- (4) CCAs must take account of any such guidance.
- (5) The Secretary of State may issue guidance about the exercise by CCAs of the powers conferred by paragraph 7 and guidance about compliance with the duty under that paragraph to produce and publish reports.
- (6) CCAs must take account of any such guidance.
- (7) The Secretary of State may issue guidance about the terms of reports produced by relevant remuneration panels for the purposes of paragraph 7.
- (8) Relevant remuneration panels must take account of any such guidance.
- (9) The Secretary of State may issue guidance about the making of recommendations under paragraph 9 to terminate the appointment of a person as commissioner.
- (10) The members of overview and scrutiny committees must take account of any such guidance.”

Commencement Information

I180 Sch. 3 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

2

In section 252 of LURA 2023 (regulations), in subsection (8), after paragraph (k) insert—
“(l) under Schedule 2A.”

Commencement Information

I181 Sch. 3 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Schedule 5BA to LDEDCA 2009

3

After Schedule 5B to LDEDCA 2009 insert—

“SCHEDULE 5BA

Section 107CA

COMMISSIONERS

Application of Schedule

1

This Schedule applies to commissioners appointed by the mayor for the area of a combined authority (see section 107CA).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Persons ineligible for appointment

- 2
- (1) The appointment of an ineligible person as a commissioner is of no effect.
 - (2) The appointment of a person ceases to have effect if a person becomes ineligible after appointment as a commissioner.
 - (3) For the purposes of this paragraph a person is “ineligible” if the person—
 - (a) is disqualified for being elected or holding office as the mayor for the area of a combined authority under paragraph 9, 9A or 9B of Schedule 5B, or
 - (b) is the mayor or deputy mayor for the area of the combined authority to which the appointment relates.
 - (4) But being a commissioner does not make a person ineligible by virtue of paragraph 8(1)(a) of Schedule 2 (as applied by sub-paragraph (3)(a)) — instead see paragraph 4(3).
 - (5) Any defect in the appointment of a person as a commissioner, or in the qualifications of a person appointed as a commissioner, does not affect the validity of anything done by the person as commissioner.

Terms and conditions of appointment

- 3
- (1) The mayor must determine the terms and conditions of a person’s appointment as a commissioner.
 - (2) But that is subject to the provisions of this Schedule.

Commissioner to work in only one area of competence

- 4
- (1) The terms and conditions must provide for the person’s work as commissioner to relate to one of the areas of competence (the commissioner’s “special” area of competence)., whether by relating to—
 - (a) one or more aspects of that area of competence, or
 - (b) that area of competence generally.
 - (2) This paragraph does not prevent a person’s work as a commissioner from relating incidentally—
 - (a) to any area of competence other than the commissioner’s special area, or
 - (b) to matters outside any of the areas of competence.
 - (3) The appointment of a person as a commissioner (the “invalid appointment”) is of no effect if (in the absence of this paragraph) the person would, at any particular time, be serving—
 - (a) as commissioner under the invalid appointment, and
 - (b) as commissioner under another appointment made before, or at the same time as, the invalid appointment—
 - (i) under section 107CA (whether or not in relation to the same combined authority as the invalid appointment), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) under section 29A of the Levelling-up and Regeneration Act 2023 (appointments by mayors of CCAs).

Duration of appointment

- 5 (1) The terms and conditions must provide for a person's appointment as a commissioner to end on or before the last day of the relevant term of office of the mayor making the appointment.
- (2) If the mayor who made the appointment ceases to hold office before the last day of the relevant term of office—
- (a) any arrangements under section 107D(3)(ba) for the commissioner to exercise functions cease to have effect;
 - (b) the commissioner must not carry out any work as commissioner, except work in preparation for the ending of the appointment in accordance with paragraph (c); and
 - (c) the appointment as commissioner ends with the earlier of the following days—
 - (i) the day on which a person next becomes mayor for the area of the combined authority;
 - (ii) the last day of the period of three months beginning with the day on which the mayor ceases to hold office.
- (3) In this paragraph “relevant term of office”, in relation to an appointment of a person as a commissioner made by a mayor, means the term of office of the mayor during which, or in relation to which, the appointment is made.

Limitation on delegation of functions

- 6 (1) The power of the mayor to arrange under section 107D(3)(ba) for a commissioner to exercise a function is subject to this paragraph.
- (2) The mayor may not arrange for a commissioner to exercise—
- (a) any function of approving—
 - (i) a local growth plan under section 107L,
 - (ii) a local transport plan under Part 2 of the Transport Act 2000,
 - (iii) a spatial development strategy under Part 2 of the Planning and Compulsory Purchase Act 2004, or
 - (iv) any other document that is specified for the purposes of this paragraph in an order made by the Secretary of State;
 - (b) any function of making or terminating the appointment of a person as a member of staff or holder of any office or role (whether as an employee or otherwise);
 - (c) any function of a police and crime commissioner that is exercisable by the mayor or the deputy mayor for policing and crime;
 - (d) excepted fire and rescue functions.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) The mayor must obtain the consent of the combined authority to any arrangement for a commissioner to exercise a function; but this does not apply to a function that is exercisable only by the mayor on behalf of the combined authority.
- (4) The mayor may not arrange for a commissioner to exercise a function except in relation to the commissioner's special area of competence.
- (5) That does not prevent the mayor from arranging for the commissioner to exercise the function incidentally in relation—
 - (a) to any area of competence other than the commissioner's special area, or
 - (b) to matters outside any of the areas of competence.
- (6) In this paragraph “excepted fire and rescue functions” means—
 - (a) functions under the following provisions of the FRSA 2004—
 - (i) section 13 (reinforcement schemes);
 - (ii) section 15 (arrangements with other employers of fire-fighters);
 - (iii) section 16 (arrangements for discharge of functions by others);
 - (b) the functions of—
 - (i) appointing, suspending or dismissing the chief fire officer;
 - (ii) approving the terms of appointment of the chief fire officer;
 - (iii) holding the chief fire officer to account for managing the fire and rescue service;
 - (c) approving—
 - (i) the community risk management plan;
 - (ii) the fire and rescue declaration;
 - (d) approving plans, modifications to plans and additions to plans for the purpose of ensuring that—
 - (i) as far as reasonably practicable, the combined authority is able to perform its fire and rescue functions if an emergency occurs, and
 - (ii) the combined authority is able to perform its functions so far as is necessary or desirable for the purpose of preventing an emergency or reducing, controlling or mitigating the effects of an emergency, or taking other action in connection with it;
 - (e) approving any arrangements for the co-operation of the combined authority in relation to its fire and rescue functions with other Category 1 responders and Category 2 responders in respect of—
 - (i) the performance of the combined authority's duty as a fire and rescue authority under section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) any duties under subordinate legislation made in exercise of powers under that Act.

(7) In sub-paragraph (6) and this sub-paragraph—

“Category 1 responder” and “Category 2 responder” have the meanings given in section 3 of the Civil Contingencies Act 2004 (section 2: supplemental);

“chief fire officer” means the person with responsibility for managing the fire and rescue service;

“community risk management plan” means a plan which—

- (a) is prepared and published by the combined authority in accordance with the Fire and Rescue National Framework, and
- (b) sets out for the period covered by the document in accordance with the requirements of the Framework—
 - (i) the combined authority’s priorities and objectives, and
 - (ii) an assessment of all foreseeable fire and rescue related risks that could affect its community, in accordance with the combined authority’s fire and rescue functions;

“emergency” has the meaning given in section 1 of the Civil Contingencies Act 2004 (meaning of “emergency”);

“fire and rescue authority” means a fire and rescue authority under the FRSA 2004;

“fire and rescue declaration” means a document which—

- (a) is prepared and published by the combined authority in accordance with the Fire and Rescue National Framework, and
- (b) contains a statement of the way in which the combined authority has had regard, in the period covered by the document, to the Framework and to any community risk management plan prepared by the combined authority for that period;

“fire and rescue functions” means—

- (a) functions of a fire and rescue authority which the combined authority has by virtue of an order under section 105A, or
- (b) functions which the combined authority has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the FRSA 2004;

“Fire and Rescue National Framework” means the document prepared by the Secretary of State under section 21 of the FRSA 2004;

“fire and rescue service” means the personnel, services and equipment secured for the purposes of carrying out the functions of a fire and rescue authority under—

- (a) section 6 of the FRSA 2004 (fire safety);
- (b) section 7 of the FRSA 2004 (fire-fighting);
- (c) section 8 of the FRSA 2004 (road traffic accidents);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) any applicable order under section 9 of the FRSA 2004 (emergencies);
 - (e) section 2 of the Civil Contingencies Act 2004 (duty to assess, plan and advise) and any applicable subordinate legislation made under that Act;
 - (f) any other provision of, or made under, an enactment which confers functions on a fire and rescue authority;
- “FRSA 2004” means the Fire and Rescue Services Act 2004.

Allowances

- 7
- (1) A combined authority may—
 - (a) make a scheme providing for the payment of allowances to commissioners appointed by the mayor for the area of the combined authority, and
 - (b) pay allowances in accordance with the scheme.
 - (2) A combined authority may only make a scheme if—
 - (a) the combined authority has considered a report published by a relevant remuneration panel which contains recommendations for the allowances provided for in the scheme, and
 - (b) the allowances payable under the scheme do not exceed the amounts specified in the recommendations made by the relevant remuneration panel.
 - (3) A combined authority which has made a scheme under this section must produce and publish reports on the allowances paid under the scheme (including their amounts).
 - (4) In this section “relevant remuneration panel” means a panel that is specified, or of a description specified, in an order made by the Secretary of State for the purposes of this paragraph.

Ending of appointment

- 8
- The appointment of a person as a commissioner ends if—
- (a) the appointment ceases to have effect in accordance with paragraph 2(2) or 4(3),
 - (b) the appointment ends—
 - (i) in accordance with the terms and conditions included by virtue of paragraph 5(1), or
 - (ii) in accordance with paragraph 5(2),
 - (c) the appointment is terminated in accordance with its terms and conditions or otherwise in accordance with contract law—
 - (i) by the mayor for the area of the combined authority (whether that is the person who made the appointment or a successor), or
 - (ii) by the commissioner,
 - (d) the appointment ceases to have effect in accordance with paragraph 9(4), or
 - (e) the commissioner dies.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Role of overview and scrutiny committees

- 9
- (1) The power which the combined authority's overview and scrutiny committee has (or its overview and scrutiny committees have between them) in accordance with paragraph 1(3) of Schedule 5A must include power to recommend that a commissioner's appointment is terminated.
 - (2) If a recommendation is made that a commissioner's appointment is terminated, the combined authority must decide whether or not to accept the recommendation.
 - (3) A decision to accept the recommendation must be made by a two thirds majority of the non-mayoral members, or substitute members acting in their place, of the combined authority present and voting on the question at a meeting of the authority.
 - (4) If a decision is made to accept the recommendation, the commissioner's appointment ceases to have effect when the decision is made.
 - (5) In this paragraph "non-mayoral members", in relation to a combined authority, means the members of the combined authority other than the mayor.

Powers of appointment and termination exercisable on behalf of the combined authority

- 10
- (1) The powers to make and terminate the appointment of a person as a commissioner are (by virtue of section 107D(1A)) powers of the combined authority exercisable only by the mayor on behalf of the combined authority.
 - (2) Accordingly, if a person is appointed as a commissioner—
 - (a) under a worker's contract, the combined authority is the employer;
 - (b) under a contract other than a worker's contract, the contract is between the combined authority and the commissioner;
 - (c) otherwise than under a contract, the commissioner holds office under the combined authority.
 - (3) In this paragraph "worker's contract" and "employer" have the same meanings as in the Employment Rights Act 1996 (see section 230 of that Act).

Guidance

- 11
- (1) The Secretary of State may issue guidance about the selection or appointment of commissioners.
 - (2) The mayors for the areas of combined authorities must take account of any such guidance.
 - (3) The Secretary of State may issue guidance about the exercise of the function under paragraph 6(3) of consenting to arrangements for a function to be exercisable by a commissioner.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) Combined authorities must take account of any such guidance.
- (5) The Secretary of State may issue guidance about the exercise by combined authorities of the powers conferred by paragraph 7 and guidance about compliance with the duty under that paragraph to produce and publish reports.
- (6) Combined authorities must take account of any such guidance.
- (7) The Secretary of State may issue guidance about the terms of reports produced by relevant remuneration panels for the purposes of paragraph 7.
- (8) Relevant remuneration panels must take account of any such guidance.
- (9) The Secretary of State may issue guidance about the making of recommendations under paragraph 9 to terminate the appointment of a person as commissioner.
- (10) The members of overview and scrutiny committees must take account of any such guidance.”

Commencement Information
I182 Sch. 3 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

PROSPECTIVE	
SCHEDULE 4	Section 11
MAYORAL CCAs: OVERVIEW AND SCRUTINY COMMITTEES	
PART 1	
NEW SCRUTINY REGIME FOR CCAs THAT ARE ESTABLISHED MAYORAL STRATEGIC AUTHORITIES	
<i>Introduction</i>	
1	LURA 2023 is amended in accordance with this Part of this Schedule.
Commencement Information I183 Sch. 4 para. 1 not in force at Royal Assent, see s. 108(2)(6)	
<i>The new scrutiny regime</i>	
2	After Schedule 1 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“SCHEDULE 1A

MAYORAL CCAS THAT ARE EMSAS: OVERVIEW AND SCRUTINY COMMITTEES AND AUDIT COMMITTEE

Application of this Schedule

- 1 (1) This Schedule applies to a CCA if it is an established mayoral strategic authority.
- (2) Accordingly, in the following paragraphs of this Schedule—
 - (a) “CCA” means a CCA that is an established mayoral strategic authority;
 - (b) a reference to an overview and scrutiny committee is a reference to such a committee of a CCA that is an established mayoral strategic authority.
- (3) For provision about the scrutiny of other CCAs, see Schedule 1.

Functions of overview and scrutiny committee

- 2 (1) A CCA must arrange for the appointment by the CCA of one or more committees of the authority (referred to in this Schedule as overview and scrutiny committees).
- (2) The arrangements must ensure that the CCA’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to investigate matters of local interest;
 - (b) to make reports or recommendations to the CCA or mayor on matters of local interest.
- (3) The arrangements must (in particular) ensure that the CCA’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to make reports or recommendations to the CCA with respect to the discharge of any functions that are the responsibility of the CCA;
 - (b) to make reports or recommendations to the mayor with respect to the discharge of any general functions.
- (4) The arrangements must (in particular) ensure that the CCA’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to review or scrutinise decisions made, or other action taken, in connection with the discharge of any functions which are the responsibility of the CCA;
 - (b) to review or scrutinise decisions made, or other action taken, in connection with the discharge by the mayor of any general functions;
 - (c) to review—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) the policy outcomes which were intended to result from action taken in connection with the discharge of any functions that are the responsibility of the CCA, and
 - (ii) the effectiveness of that action in achieving those outcomes;
 - (d) to review—
 - (i) the policy outcomes which were intended to result from action taken in connection with the discharge by the mayor of any general functions, and
 - (ii) the effectiveness of that action in achieving those outcomes;
- (5) The arrangements made in accordance with sub-paragraphs (3) and (4) must (in particular) ensure that—
 - (a) where a decision or other action involves expenditure of the CCA, the review or scrutiny of it includes an assessment of value for money;
 - (b) where the discharge of a function involves expenditure of the CCA—
 - (i) any report includes a report on value for money;
 - (ii) where appropriate, recommendations are made in relation to value for money.
- (6) When assessing value for money, an overview and scrutiny committee must have regard to any guidance issued by a public authority.
- (7) The power of an overview and scrutiny committee under sub-paragraph (3)(a) or (3)(b) to make reports or recommendations with respect to the discharge of any functions includes power to make recommendations about the way that a function is, or is proposed to be, discharged.
- (8) The power of an overview and scrutiny committee under sub-paragraph (4)(a) or (4)(b) to review or scrutinise a decision made but not implemented includes—
 - (a) power to direct that a decision is not to be implemented while it is under review or scrutiny by the overview and scrutiny committee, and
 - (b) power—
 - (i) to recommend that the decision be reconsidered, or
 - (ii) to make recommendations about the way that the function is, or is proposed to be, discharged.
- (9) An overview and scrutiny committee of a CCA must publish details of how it proposes to exercise its powers in relation to the review and scrutiny of decisions made but not yet implemented and its arrangements in connection with the exercise of those powers.
- (10) Before complying with sub-paragraph (9) an overview and scrutiny committee must obtain the consent of the CCA to the proposals and arrangements.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(11) If—

- (a) an overview and scrutiny committee makes a recommendation to the CCA or mayor under sub-paragraph (7) or (8)(b), and
- (b) the CCA or mayor does not intend to give effect to the recommendation (at all or in part),

the CCA or mayor must give the committee a written notice of that intention and of the reasons for not giving effect to the recommendation.

- (12) An overview and scrutiny committee may send a copy of any report or recommendations made by it to any public authority (including the Secretary of State or another Minister of the Crown, or any government department).
- (13) An overview and scrutiny committee of a CCA may not discharge any functions other than the functions conferred by or under this Schedule.
- (14) Any reference in this Schedule to the discharge of any functions includes a reference to the doing of anything which is calculated to facilitate, or is conducive or incidental to, the discharge of those functions.

Overview and scrutiny committees: supplementary provision

- 3 (1) An overview and scrutiny committee of a CCA—
 - (a) may appoint one or more sub-committees, and
 - (b) may arrange for the discharge of any of its functions by any such sub-committee.
- (2) A sub-committee of an overview and scrutiny committee may not discharge any functions other than those conferred on it under [sub-paragraph \(1\)\(b\)](#).
- (3) An overview and scrutiny committee of a CCA may not include a member of the CCA (including the mayor for the CCA's area or deputy mayor).
- (4) An overview and scrutiny committee of a CCA is to be treated as a committee or sub-committee of a principal council for the purposes of Part 5A of the Local Government Act 1972 (access to meetings and documents of certain authorities, committees and sub-committees).
- (5) Subsections (2) to (5) of section 102 of the Local Government Act 1972 apply to an overview and scrutiny committee of a CCA as they apply to a committee appointed under that section.
- (6) An overview and scrutiny committee of a CCA—
 - (a) may require a key person to attend before it to answer questions, and
 - (b) may invite other persons to attend meetings of the committee.
- (7) An overview and scrutiny committee of a CCA—
 - (a) may require a key person to provide it with information or documents, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) may invite other persons to provide it with information or documents.
- (8) Regulations under paragraph 4(1) may make provision about—
 - (a) information or documents whose provision may, or may not be, required under sub-paragraph (7)(a);
 - (b) information or documents whose provision may, or may not be, invited under sub-paragraph (7)(b).
- (9) A requirement under sub-paragraph (6)(a) or (7)(a) can only be imposed on a person by written notice given to the person; and the period between the notice being given and the date when the requirement must be complied with must be—
 - (a) 10 working days, or
 - (b) if that period of notice is unreasonably short, such longer period as is reasonable.
- (10) A person on whom a requirement is imposed under sub-paragraph (6)(a) or (7)(a) is required to comply with the requirement.
- (11) If—
 - (a) an overview and scrutiny committee has, in accordance with paragraph 3(6)(a), required a person to attend a meeting of the committee,
 - (b) the person does not attend the meeting in compliance with the requirement, and
 - (c) the person does not have a reasonable excuse for not attending the meeting,the committee must publish notice of the non-attendance in such manner as the committee thinks appropriate and a scrutiny officer of the committee (appointed in accordance with regulations made under 4(2)(d)) must give a copy of the notice to the person who did not attend.
- (12) For provision about the consequences of a failure to comply with a requirement imposed under sub-paragraph (6) or (7), see paragraphs 7 and 8.
- (13) A person is not obliged—
 - (a) by sub-paragraph (6) to answer any question which the person would be entitled to refuse to answer in or for the purposes of proceedings in a court in England and Wales, or
 - (b) by sub-paragraph (7) to provide any information which the person would be entitled to refuse to provide in or for the purposes of proceedings in a court in England and Wales.
- (14) In exercising, or deciding whether to exercise, any of its functions an overview and scrutiny committee of a CCA must have regard to any guidance for the time being issued by the Secretary of State.
- (15) Guidance under sub-paragraph (14) may make different provision for different cases or for different descriptions of committee.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (16) In sub-paragraphs (3) to (14) references to an overview and scrutiny committee of a CCA include references to any sub-committee of such a committee.

Power to make further provision about overview and scrutiny committees

- 4 (1) The Secretary of State may by regulations make further provision about overview and scrutiny committees of a CCA.
- (2) Provision under sub-paragraph (1) may in particular include provision—
- (a) about the membership of an overview and scrutiny committee and the voting rights of such members;
 - (b) about the payment of allowances to the members of an overview and scrutiny committee;
 - (c) about the person who is to be chair of an overview and scrutiny committee;
 - (d) for the appointment of persons to act as scrutiny officers of an overview and scrutiny committee;
 - (e) about how and by whom matters may be referred to an overview and scrutiny committee;
 - (f) requiring persons (whether members of the CCA or other persons) to respond to reports or recommendations made by an overview and scrutiny committee;
 - (g) about the publication of reports, recommendations or responses;
 - (h) about information which must, or must not, be disclosed to an overview and scrutiny committee (whether by members of the CCA or by other persons);
 - (i) as to the minimum or maximum period for which a direction under paragraph 2(8)(a) may have effect.
- (3) Provision of the following kinds must be made under sub-paragraph (1)—
- (a) provision about when and how an overview and scrutiny committee must involve independent experts in its activities;
 - (b) provision about how an overview and scrutiny committee must take account of the work undertaken by the independent experts involved in its activities;
 - (c) provision for the remuneration of independent experts.
- (4) Provision must be made under sub-paragraph (2)(a) so as to ensure that at least 60% of members of an overview and scrutiny committee are members of the CCA's constituent councils.
- (5) Provision must be made under sub-paragraph (2)(b) so as to ensure that all the members of an overview and scrutiny committee are entitled to be paid allowances in respect of activities of the descriptions specified in regulations under this paragraph.
- (6) Provision must be made under sub-paragraph (2)(c) so as to ensure that the chair of an overview and scrutiny committee is—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) an independent person (as defined by the regulations), or
 - (b) an appropriate person who is a member of one of the CCA's constituent councils.
- (7) For the purposes of sub-paragraph (6)(b) “appropriate person” means a person who is not a member of a registered political party of which the mayor is a member.
- (8) In sub-paragraph (2)(d) the reference to a “scrutiny officer” of an overview and scrutiny committee is a reference to a person appointed with the function of—
- (a) promoting the role of the committee, and
 - (b) providing support and guidance—
 - (i) to the committee and its members, and
 - (ii) to members of the CCA (so far as relating to the functions of the committee).
- (9) Provision must be made under sub-paragraph (2)(d) so as to ensure that an overview and scrutiny committee has at least two scrutiny officers.
- (10) Provision under sub-paragraph (2)(g) may include provision for descriptions of confidential or exempt information to be excluded from the publication of reports, recommendations or responses.
- (11) In this paragraph “registered political party” means a party registered under Part 2 of the Political Parties, Elections and Referendums Act 2000.
- (12) In this paragraph references to an overview and scrutiny committee include references to any sub-committee of such a committee.

Style by which committees to be known

- 5
- (1) The overview and scrutiny committees are to have—
 - (a) the style “local scrutiny committee”, or
 - (b) any other style that is specified in regulations under paragraph 4(1).
 - (2) The specified style may (in particular) be—
 - (a) a variant of “local scrutiny committee”, or
 - (b) “overview and scrutiny committee” or a variant of it.
 - (3) The power under section 252(1) to make different provision for different purposes includes power to specify different styles under this paragraph in relation to overview and scrutiny committees of different descriptions of CCAs.

Petitions

- 6
- (1) A CCA must make arrangements (“petition arrangements”) in relation to its overview and scrutiny committee, or each such committee, under which—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) a local elector is able to start a petition calling upon the committee to exercise its functions in relation to a matter of local interest that is specified in the petition, and
 - (b) other local electors are able to indicate their support for the petition within a period specified in the petition arrangements.
- (2) Petition arrangements must secure that—
 - (a) a local elector is able to start any petition by electronic means or non-electronic means, and
 - (b) other local electors are able to indicate support for any petition by electronic means or non-electronic means.
- (3) An overview and scrutiny committee must reject a petition in any of the following cases—
 - (a) the petition is explicitly seeking new or increased expenditure of the CCA;
 - (b) the specified matter is not a matter of local interest;
 - (c) the committee could not exercise its functions in relation to the specified matter without prejudicing civil proceedings or criminal proceedings which have been brought or which, in the view of the committee, are likely to be brought reasonably soon (whether in England and Wales or elsewhere);
 - (d) the petition is offensive, abusive or vexatious.
- (4) In a case where the number of local electors who are petitioners is at least 0.1% of the total number of local electors, an overview and scrutiny committee must decide whether or not to exercise its functions in relation to the matter of concern to which the petition relates.
- (5) In any other case, an overview and scrutiny committee may decide whether or not to exercise its functions in relation to the specified matter to which the petition relates.
- (6) In deciding whether or not to exercise its functions in relation to the specified matter to which a petition relates, an overview and scrutiny committee must (in particular) take into account the effective use of the committee's time and resources.
- (7) Within the period of 30 days beginning with the day on which an overview and scrutiny committee makes a relevant decision about a petition, the committee must—
 - (a) publish written notice of the following matters—
 - (i) the relevant decision;
 - (ii) the reasons for making the relevant decision;
 - (iii) how the committee proposes to exercise its functions (in the case of a relevant decision to exercise its functions in relation to the specified matter to which the petition relates); and
 - (b) give written notice of those matters to the person who started the petition.
- (8) Regulations under paragraph 4(1) may make provision about petition arrangements and petitions, including—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) provision about grounds on which an overview and scrutiny committee must or may make a relevant decision about a petition;
- (b) provision about matters which must or may be taken into account in making a relevant decision about a petition;
- (c) provision for an overview and scrutiny committee to be able to combine petitions relating to similar specified matters;
- (d) provision about verifying whether persons are local electors;
- (e) provision about whether the number of local electors who are petitioners is at least 0.1% of the total number of local electors;

(9) In this paragraph—

“local elector”, in relation to a petition, means a person who would be entitled to vote as an elector at an election for the return of a mayor for the area of the CCA concerned;

“petitioner” means a local elector who has—

- (a) started a petition, or
- (b) indicated support for a petition,

in accordance with the petition arrangements;

“relevant decision about a petition” means—

- (a) a decision by an overview and scrutiny committee to reject a petition, or
- (b) a decision by an overview and scrutiny committee whether or not to exercise its functions in relation to the specified matter to which a petition relates;

“specified matter” means the matter that is specified in a petition in accordance with the petition arrangements.

Financial penalties for failure to attend committee meetings, answer questions or provide information etc

- 7 (1) The Secretary of State may, by regulations, give overview and scrutiny committees the power to impose a civil penalty on—
- (a) a person who fails to attend an overview and scrutiny committee meeting;
 - (b) a person who fails to answer a question put at an overview and scrutiny committee meeting;
 - (c) a person who fails to provide an overview and scrutiny committee with information or a document;
 - (d) a person who misleads an overview and scrutiny committee.
- (2) For the purposes of this paragraph, a person fails to attend an overview and scrutiny committee meeting if—
- (a) the committee has, in accordance with paragraph 3(6)(a), required the person to attend the meeting,
 - (b) the person does not attend the meeting, and
 - (c) the person does not have a reasonable excuse for not attending the meeting.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) For the purposes of this paragraph, a person fails to answer a question put at an overview and scrutiny committee meeting if—
 - (a) the committee has, in accordance with paragraph 3(6)(a), required the person to attend the meeting,
 - (b) the question is properly put to the person at the meeting,
 - (c) the person does not answer the question, and
 - (d) the person does not have a reasonable excuse for not answering the question.
- (4) For the purposes of this paragraph, a person fails to provide an overview and scrutiny committee meeting with information or a document if—
 - (a) the committee has, in accordance with paragraph 3(7)(a), required the person to provide the information or document,
 - (b) the person does not provide the information or document, and
 - (c) the person does not have a reasonable excuse for not providing the information or document.
- (5) For the purposes of this paragraph, a person misleads an overview and scrutiny committee meeting if—
 - (a) the committee has, in accordance with paragraph 3(7)(a), required the person to provide information or a document, and
 - (b) the person intentionally alters, suppresses, conceals or destroys the information or document.
- (6) Regulations under this paragraph—
 - (a) must provide for the amount or maximum amount of a civil penalty — and such an amount or maximum must not exceed £5,000;
 - (b) may provide for the power to impose a civil penalty to be exercisable only in relation to persons of a description specified in the regulations; and such a description of person may (in particular) consist of all or any of the following—
 - (i) mayors for the areas of CCAs;
 - (ii) deputy mayors appointed by such mayors;
 - (iii) commissioners appointed by such mayors;
 - (c) must make provision for appeals against the imposition of civil penalties (which may include provision enabling a civil penalty to be confirmed, withdrawn or varied in its amount on an appeal).
- (7) In order to take account of changes in the value of money, the Secretary of State may by regulations substitute another sum for the sum for the time being specified in sub-paragraph (6)(a).

Termination of office for failure to attend committee meetings

- 8 (1) This paragraph applies to a person who holds one of the following offices in relation to a CCA (the “relevant CCA”)—
 - (a) mayor for the area of the relevant CCA;
 - (b) deputy mayor appointed by such a mayor;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) commissioner appointed by such a mayor.
- (2) The person ceases to hold the office if—
 - (a) the person fails to attend six overview and scrutiny committee meetings (the “six missed meetings”), and
 - (b) there is the required link between the six missed meetings.
- (3) The person who holds the office fails to attend an overview and scrutiny committee meeting if—
 - (a) the committee is a committee of the relevant CCA,
 - (b) the meeting is a compulsory meeting for the person as holder of that office,
 - (c) the person does not attend the meeting, and
 - (d) the person does not have a reasonable excuse for not attending the meeting.
- (4) There is the required link between the six missed meetings if—
 - (a) the six missed meetings are consecutive overview and scrutiny committee meetings that are compulsory meetings for the person as holder of the office, or
 - (b) the period between the first and last of those six missed meetings is 12 months or shorter.
- (5) In determining whether there is the required link by virtue of sub-paragraph (4)(a) or (b)—
 - (a) it does not matter if the six missed meetings are meetings of the same committee, or different committees, of the CCA;
 - (b) it does not matter if there are any meetings of an overview and scrutiny committee that—
 - (i) fall between the first and last of the six missed meetings, and
 - (ii) are not compulsory meetings for the person as holder of the office.
- (6) If a person ceases to hold office by virtue of this section—
 - (a) the CCA’s monitoring officer (within the meaning of section 5 of the Local Government and Housing Act 1989) must—
 - (i) publish notice that the person has ceased to hold office in such manner as the monitoring officer thinks appropriate, and
 - (ii) give a copy of the notice to the person who has ceased to hold office;
 - (b) the person ceases to hold office at the end of the day of the last of the six missed meetings.
- (7) If a notice given under paragraph 3(11) of a person’s non-attendance at a meeting of an overview and scrutiny committee relates to the last of the six missed meetings that result in the person’s loss of office by virtue of this paragraph, the notice must include a statement of that fact.
- (8) If a person ceases to hold an office by virtue of this section, that loss of office does not prevent that person from subsequently—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) taking that office again, or
- (b) taking any other office referred to in sub-paragraph (1).

(9) An overview and scrutiny committee meeting is a “compulsory meeting” for a person if the committee has, in accordance with paragraph 3(6)(a), required that person to attend the meeting.

(10) This paragraph applies to a commissioner whether appointed—

- (a) under a worker’s contract,
- (b) under a contract other than a worker’s contract, or
- (c) otherwise than under a contract;

and references to the office of commissioner (including holding office) are to be read accordingly in the case of a commissioner appointed under a contract.

Audit committees

9 (1) A CCA must arrange for the appointment by the CCA of an audit committee.

(2) The functions of the audit committee are to include—

- (a) reviewing and scrutinising the CCA’s financial affairs,
- (b) reviewing and assessing the CCA’s risk management, internal control and corporate governance arrangements,
- (c) reviewing and assessing the economy, efficiency and effectiveness with which resources have been used in discharging the CCA’s functions, and
- (d) making reports and recommendations to the CCA in relation to reviews conducted under paragraphs (a), (b) and (c).

(3) The Secretary of State may by regulations make provision about—

- (a) the membership of a CCA’s audit committee;
- (b) the appointment of the members;
- (c) the payment of allowances to members of the committee who are members of a constituent council.

(4) Provision must be made under sub-paragraph (3) so as to ensure that at least one member of an audit committee is an independent person (as defined by the regulations).

Interpretation

10 In this Schedule—

“commissioner” means a commissioner appointed under section 29A;

“key person”, in relation to an overview and scrutiny committee of a CCA, means—

- (a) the mayor for the area of the CCA;
- (b) the deputy mayor for that area;
- (c) a commissioner appointed by the mayor for that area;
- (d) the officers of the CCA;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(e) a member of the CCA who has responsibilities in relation to a particular area of policy;

(f) a person of any other description that is specified in regulations;

“matter of local interest”, in relation to an overview and scrutiny committee of a CCA, means a matter which both—

(a) relates to the area of the CCA, and

(b) relates—

(i) to functions that are the responsibility of the CCA (whether exercisable by the CCA or the mayor), or

(ii) otherwise to any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026;

but it does not include any matters which relate to the functions of police and crime commissioners;

“value for money” means the economy, efficiency and effectiveness of the expenditure of the CCA.”

Commencement Information

I184 Sch. 4 para. 2 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PART 2

AMENDMENTS CONSEQUENTIAL ON PART 1 OF THIS SCHEDULE

Introduction

3 LURA 2023 is amended in accordance with this Part of this Schedule.

Commencement Information

I185 Sch. 4 para. 3 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Section 15: overview and scrutiny committees

4 (1) Section 15 is amended in accordance with this paragraph.

(2) In subsection (1), after “CCAs” insert “that are not established mayoral strategic authorities”.

(3) After subsection (1) insert—

“(1A) Schedule 1A makes provision for CCAs that are established mayoral strategic authorities to have overview and scrutiny committees and audit committees.”

(4) In subsection (2), for “that Schedule” substitute “those Schedules”.

(5) After subsection (2) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(3) In this section and Schedules 1 and 1A “established mayoral strategic authority” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 1(6)(b) of that Act).”

Commencement Information

I186 Sch. 4 para. 4 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Section 29: deputy mayors

5 In section 29(3)—

- (a) in paragraph (b), omit “or”;
- (b) in paragraph (c), at the end insert “, or
- (d) the person ceases to be deputy mayor by virtue of paragraph 8 of Schedule 1A.”

Commencement Information

I187 Sch. 4 para. 5 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 1: overview and scrutiny committees

- 6 (1) Schedule 1 is amended in accordance with this paragraph.
- (2) In the heading, after “Authorities” insert “except EMSAs”.
- (3) Before paragraph 1 (and the italic heading preceding it) insert—

“Application of this Schedule

A1 (1) This Schedule applies to a CCA if it is not an established mayoral strategic authority.

(2) Accordingly, in the following provisions of this Schedule—

- (a) “CCA” means a CCA that is not an established mayoral strategic authority;
- (b) a reference to an overview and scrutiny committee is a reference to such a committee of a CCA that is not an established mayoral strategic authority.

(3) For provision about the scrutiny of CCAs that are established mayoral strategic authorities, see Schedule 1A.”

(4) After paragraph 3 insert—

“3A Style by which committees to be known

- (1) Regulations under paragraph 3(1) may (in particular) specify the style which the overview and scrutiny committees of CCAs are to have.
- (2) The specified style may (in particular) be a variant of “overview and scrutiny committee”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) The power under section 252(1) to make different provision for different purposes includes power to specify different styles under this paragraph in relation to different descriptions of CCAs.”

Commencement Information

I188 Sch. 4 para. 6 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 2: election of Mayors of CCAs etc

- 7 In Schedule 2, after paragraph 11 insert—

“Failure to attend meetings of overview and scrutiny committee: loss of office

- 11A Paragraph 8 of Schedule 1A makes provision for a person’s term of office as mayor to end because of repeated failure to attend meetings of an overview and scrutiny committee.”

Commencement Information

I189 Sch. 4 para. 7 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 2A: commissioners

- 8 In Schedule 2A (inserted by Schedule 3 to this Act), in paragraph 9—
- (a) in paragraph (d), omit “or”;
 - (b) after paragraph (d) insert “, or
 - (da) the person ceases to be a commissioner by virtue of paragraph 8 of Schedule 1A, or”

Commencement Information

I190 Sch. 4 para. 8 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PART 3

EXTENSION OF NEW SCRUTINY REGIME TO ALL MAYORAL CCAs

Introduction

- 9 LURA 2023 is amended in accordance with this Part of this Schedule.

Commencement Information

I191 Sch. 4 para. 9 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Amendment of section 15

- 10 (1) Section 15 (as amended by paragraph 4 of this Schedule) is amended in accordance with this paragraph.
- (2) In subsection (1), for “CCAs that are not established mayoral strategic authorities” substitute “non-mayoral CCAs”.
- (3) In subsection (1A), for “CCAs that are established mayoral strategic authorities” substitute “mayoral CCAs”.
- (4) Omit subsection (3).

Commencement Information

I192 Sch. 4 para. 10 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Exclusion of all mayoral CCAs from scrutiny regime in Schedule 1 LURA 2023

- 11 (1) Schedule 1 (as amended by paragraph 6 of this Schedule) is amended in accordance with this paragraph.
- (2) In the heading, for “Combined County Authorities except EMSAs” substitute “Non-mayoral Combined County Authorities”.
- (3) For paragraph A1 substitute—
- “A1 (1) This Schedule applies to a non-mayoral CCA.
- (2) Accordingly, in this Schedule “CCA” means only a non-mayoral CCA.
- (3) For provision about the scrutiny of mayoral CCAs, see Schedule 1A.”
- (4) In paragraph 1 (functions of overview and scrutiny committees)—
- (a) omit sub-paragraph (3);
- (b) in sub-paragraph (4), omit “and (3)(a)”.
- (5) In paragraph 2 (overview and scrutiny committees: supplementary provision)—
- (a) in sub-paragraph (3), omit “(including, in the case of a mayoral CCA, the mayor for the CCA's area or deputy mayor)”;
- (b) in sub-paragraph (6)(a), omit “(including, in the case of a mayoral CCA, the mayor for the CCA's area and deputy mayor)”.
- (6) In paragraph 3 (power to make further provision about overview and scrutiny committees), for sub-paragraph (5) substitute—
- “(5) For the purposes of sub-paragraph (4)(b) “appropriate person” means a person who is not a member of the registered political party which has the most representatives among the members of the constituent councils (or, if there is no such party because two or more parties have the same number of representatives, is not a member of any of those parties).”

Commencement Information

I193 Sch. 4 para. 11 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Inclusion of all mayoral CCAs in the new scrutiny regime

- 12 (1) Schedule 1A (as inserted by paragraph 2 of this Schedule) is amended in accordance with this paragraph.
- (2) In the heading, for “CCAs that are established mayoral strategic authorities” substitute “Mayoral CCAs”.
- (3) For paragraph A1 substitute—
- “A1 (1) This Schedule applies to a mayoral CCA.
- (2) Accordingly, in the following provisions of this Schedule—
- (a) “CCA” means a mayoral CCA;
- (b) a reference to an overview and scrutiny committee is a reference to such a committee of a mayoral CCA.
- (3) For provision about the scrutiny of non-mayoral CCAs, see Schedule 1.”

Commencement Information

1194 Sch. 4 para. 12 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PROSPECTIVE

SCHEDULE 5

Section 11

MAYORAL COMBINED AUTHORITIES: OVERVIEW AND SCRUTINY COMMITTEES

PART 1

NEW SCRUTINY REGIME FOR COMBINED AUTHORITIES THAT ARE ESTABLISHED MAYORAL STRATEGIC AUTHORITIES

Introduction

- 1 LDEDCA 2009 is amended in accordance with this Part of this Schedule.

Commencement Information

1195 Sch. 5 para. 1 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

The new scrutiny regime

- 2 After Schedule 5A insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

*Changes to legislation: There are currently no known outstanding effects for the English
 Devolution and Community Empowerment Act 2026. (See end of Document for details)*

“SCHEDULE 5AA

MAYORAL COMBINED AUTHORITIES THAT ARE EMSAS: OVERVIEW AND SCRUTINY COMMITTEES AND AUDIT COMMITTEE

Application of this Schedule

- 1 (1) This Schedule applies to a combined authority if it is an established mayoral strategic authority.
- (2) Accordingly, in the following paragraphs of this Schedule—
 - (a) “combined authority” means a combined authority that is an established mayoral strategic authority;
 - (b) a reference to an overview and scrutiny committee is a reference to such a committee of a combined authority that is an established mayoral strategic authority.
- (3) For provision about the scrutiny of other combined authorities, see Schedule 5A.

Functions of overview and scrutiny committee

- 2 (1) A combined authority must arrange for the appointment by the combined authority of one or more committees of the authority (referred to in this Schedule as overview and scrutiny committees).
- (2) The arrangements must ensure that the combined authority’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to investigate matters of local interest;
 - (b) to make reports or recommendations to the combined authority or mayor on matters of local interest.
- (3) The arrangements must (in particular) ensure that the combined authority’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to make reports or recommendations to the combined authority with respect to the discharge of any functions that are the responsibility of the combined authority;
 - (b) to make reports or recommendations to the mayor with respect to the discharge of any general functions.
- (4) The arrangements must (in particular) ensure that the combined authority’s overview and scrutiny committee has power (or its overview and scrutiny committees have power between them)—
 - (a) to review or scrutinise decisions made, or other action taken, in connection with the discharge of any functions which are the responsibility of the combined authority;
 - (b) to review or scrutinise decisions made, or other action taken, in connection with the discharge by the mayor of any general functions;
 - (c) to review—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) the policy outcomes which were intended to result from action taken in connection with the discharge of any functions that are the responsibility of the combined authority, and
 - (ii) the effectiveness of that action in achieving those outcomes;
 - (d) to review—
 - (i) the policy outcomes which were intended to result from action taken in connection with the discharge by the mayor of any general functions, and
 - (ii) the effectiveness of that action in achieving those outcomes.
- (5) The arrangements made in accordance with sub-paragraphs (3) and (4) must (in particular) ensure that—
 - (a) where a decision or other action involves expenditure of the combined authority, the review or scrutiny of it includes an assessment of value for money;
 - (b) where the discharge of a function involves expenditure of the combined authority—
 - (i) any report includes a report on value for money;
 - (ii) where appropriate, recommendations are made in relation to value for money.
- (6) When assessing value for money, an overview and scrutiny committee must have regard to any guidance issued by a public authority.
- (7) The power of an overview and scrutiny committee under sub-paragraph (3)(a) or (3)(b) to make reports or recommendations with respect to the discharge of any functions includes power to make recommendations about the way that a function is, or is proposed to be, discharged.
- (8) The power of an overview and scrutiny committee under sub-paragraph (4)(a) or (4)(b) to review or scrutinise a decision made but not implemented includes—
 - (a) power to direct that a decision is not to be implemented while it is under review or scrutiny by the overview and scrutiny committee, and
 - (b) power—
 - (i) to recommend that the decision be reconsidered, or
 - (ii) to make recommendations about the way that the function is, or is proposed to be, discharged.
- (9) An overview and scrutiny committee of a combined authority must publish details of how it proposes to exercise its powers in relation to the review and scrutiny of decisions made but not yet implemented and its arrangements in connection with the exercise of those powers.
- (10) Before complying with sub-paragraph (9) an overview and scrutiny committee must obtain the consent of the combined authority to the proposals and arrangements.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(11) If—

- (a) an overview and scrutiny committee makes a recommendation to the combined authority or mayor under sub-paragraph (7) or (8)(b), and
- (b) the combined authority or mayor does not intend to give effect to the recommendation (at all or in part),

the combined authority or mayor must give the committee a written notice of that intention and of the reasons for not giving effect to the recommendation.

- (12) An overview and scrutiny committee may send a copy of any report or recommendations made by it to any public authority (including the Secretary of State or another Minister of the Crown, or any government department).
- (13) An overview and scrutiny committee of a combined authority may not discharge any functions other than the functions conferred by or under this Schedule.
- (14) Any reference in this Schedule to the discharge of any functions includes a reference to the doing of anything which is calculated to facilitate, or is conducive or incidental to, the discharge of those functions.

Overview and scrutiny committees: supplementary provision

- 3 (1) An overview and scrutiny committee of a combined authority—
 - (a) may appoint one or more sub-committees, and
 - (b) may arrange for the discharge of any of its functions by any such sub-committee.
- (2) A sub-committee of an overview and scrutiny committee may not discharge any functions other than those conferred on it under sub-paragraph (1)(b).
- (3) An overview and scrutiny committee of a combined authority may not include a member of the combined authority (including the mayor for the combined authority's area or deputy mayor).
- (4) An overview and scrutiny committee of a combined authority is to be treated as a committee or sub-committee of a principal council for the purposes of Part 5A of the Local Government Act 1972 (access to meetings and documents of certain authorities, committees and sub-committees).
- (5) Subsections (2) to (5) of section 102 of the Local Government Act 1972 apply to an overview and scrutiny committee of a combined authority as they apply to a committee appointed under that section.
- (6) An overview and scrutiny committee of a combined authority—
 - (a) may require a key person to attend before it to answer questions, and
 - (b) may invite other persons to attend meetings of the committee.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (7) An overview and scrutiny committee of a combined authority—
 - (a) may require a key person to provide it with information or documents, and
 - (b) may invite other persons to provide it with information or documents.
- (8) Regulations under paragraph 4(1) may make provision about—
 - (a) information or documents whose provision may, or may not be, required under sub-paragraph (7)(a);
 - (b) information or documents whose provision may, or may not be, invited under sub-paragraph (7)(b).
- (9) A requirement under sub-paragraph (6)(a) or (7)(a) can only be imposed on a person by written notice given to the person; and the period between the notice being given and the date when the requirement must be complied with must be—
 - (a) 10 working days, or
 - (b) if that period of notice is unreasonably short, such longer period as is reasonable.
- (10) A person on whom a requirement is imposed under sub-paragraph (6)(a) or (7)(a) is required to comply with the requirement.
- (11) If—
 - (a) an overview and scrutiny committee has, in accordance with paragraph 3(6)(a), required a person to attend a meeting of the committee,
 - (b) the person does not attend the meeting in compliance with the requirement, and
 - (c) the person does not have a reasonable excuse for not attending the meeting,the committee must publish notice of the non-attendance in such manner as the committee thinks appropriate and a scrutiny officer of the committee (appointed in accordance with regulations made under paragraph 4(2)(d)) must give a copy of the notice to the person who did not attend.
- (12) For provision about the consequences of a failure to comply with a requirement imposed under sub-paragraph (6) or (7), see paragraphs 7 and 8.
- (13) A person is not obliged—
 - (a) by sub-paragraph (6) to answer any question which the person would be entitled to refuse to answer in or for the purposes of proceedings in a court in England and Wales, or
 - (b) by sub-paragraph (7) to provide any information which the person would be entitled to refuse to provide in or for the purposes of proceedings in a court in England and Wales.
- (14) In exercising, or deciding whether to exercise, any of its functions an overview and scrutiny committee of a combined authority must have

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

regard to any guidance for the time being issued by the Secretary of State.

- (15) Guidance under sub-paragraph (14) may make different provision for different cases or for different descriptions of committee.
- (16) In sub-paragraphs (3) to (14) references to an overview and scrutiny committee of a combined authority include references to any sub-committee of such a committee.

Power to make further provision about overview and scrutiny committees

- 4 (1) The Secretary of State may by regulations make further provision about overview and scrutiny committees of a combined authority.
- (2) Provision under sub-paragraph (1) may in particular include provision—
 - (a) about the membership of an overview and scrutiny committee and the voting rights of such members;
 - (b) about the payment of allowances to the members of an overview and scrutiny committee;
 - (c) about the person who is to be chair of an overview and scrutiny committee;
 - (d) for the appointment of persons to act as scrutiny officers of an overview and scrutiny committee;
 - (e) about how and by whom matters may be referred to an overview and scrutiny committee;
 - (f) requiring persons (whether members of the combined authority or other persons) to respond to reports or recommendations made by an overview and scrutiny committee;
 - (g) about the publication of reports, recommendations or responses;
 - (h) about information which must, or must not, be disclosed to an overview and scrutiny committee (whether by members of the combined authority or by other persons);
 - (i) as to the minimum or maximum period for which a direction under paragraph 2(8)(a) may have effect.
- (3) Provision of the following kinds must be made under sub-paragraph (1)—
 - (a) provision about when and how an overview and scrutiny committee must involve independent experts in its activities;
 - (b) provision about how an overview and scrutiny committee must take account of the work undertaken by the independent experts involved in its activities;
 - (c) provision for the remuneration of independent experts.
- (4) Provision must be made under sub-paragraph (2)(a) so as to ensure that at least 60% of members of an overview and scrutiny committee are members of the combined authority's constituent councils.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) Provision must be made under sub-paragraph (2)(b) so as to ensure that all the members of an overview and scrutiny committee are entitled to be paid allowances in respect of activities of the descriptions specified in regulations under this paragraph.
- (6) Provision must be made under sub-paragraph (2)(c) so as to ensure that the chair of an overview and scrutiny committee is—
 - (a) an independent person (as defined by the regulations), or
 - (b) an appropriate person who is a member of one of the combined authority’s constituent councils.
- (7) For the purposes of sub-paragraph (6)(b) “appropriate person” means a person who is not a member of a registered political party of which the mayor is a member.
- (8) In sub-paragraph (2)(d) the reference to a “scrutiny officer” of an overview and scrutiny committee is a reference to a person appointed with the function of—
 - (a) promoting the role of the committee, and
 - (b) providing support and guidance—
 - (i) to the committee and its members, and
 - (ii) to members of the combined authority (so far as relating to the functions of the committee).
- (9) Provision must be made under sub-paragraph (2)(d) so as to ensure that an overview and scrutiny committee has at least two scrutiny officers.
- (10) Provision under sub-paragraph (2)(g) may include provision for descriptions of confidential or exempt information to be excluded from the publication of reports, recommendations or responses.
- (11) In this paragraph “registered political party” means a party registered under Part 2 of the Political Parties, Elections and Referendums Act 2000.
- (12) In this paragraph references to an overview and scrutiny committee include references to any sub-committee of such a committee.

Style by which committees to be known

- 5 (1) The overview and scrutiny committees are to have—
 - (a) the style “local scrutiny committee”, or
 - (b) any other style that is specified in regulations under paragraph 4(1).
- (2) The specified style may (in particular) be—
 - (a) a variant of “local scrutiny committee”, or
 - (b) “overview and scrutiny committee” or a variant of it.
- (3) The power under section 117(1A) to make different provision for different purposes includes power to specify different styles under this paragraph in relation to overview and scrutiny committees of different descriptions of combined authorities.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Petitions

- 6 (1) A combined authority must make arrangements (“petition arrangements”) in relation to its overview and scrutiny committee, or each such committee, under which—
 - (a) a local elector is able to start a petition calling upon the committee to exercise its functions in relation to a matter of local interest that is specified in the petition, and
 - (b) other local electors are able to indicate their support for the petition within a period specified in the petition arrangements.
- (2) Petition arrangements must secure that—
 - (a) a local elector is able to start any petition by electronic means or non-electronic means, and
 - (b) other local electors are able to indicate support for any petition by electronic means or non-electronic means.
- (3) An overview and scrutiny committee must reject a petition in any of the following cases—
 - (a) the petition is explicitly seeking new or increased expenditure of the combined authority;
 - (b) the specified matter is not a matter of local interest;
 - (c) the committee could not exercise its functions in relation to the specified matter without prejudicing civil proceedings or criminal proceedings which have been brought or which, in the view of the committee, are likely to be brought reasonably soon (whether in England and Wales or elsewhere);
 - (d) the petition is offensive, abusive or vexatious.
- (4) In a case where the number of local electors who are petitioners is at least 0.1% of the total number of local electors, an overview and scrutiny committee must decide whether or not to exercise its functions in relation to the matter of concern to which the petition relates.
- (5) In any other case, an overview and scrutiny committee may decide whether or not to exercise its functions in relation to the specified matter to which the petition relates.
- (6) In deciding whether or not to exercise its functions in relation to the specified matter to which a petition relates, an overview and scrutiny committee must (in particular) take into account the effective use of the committee’s time and resources.
- (7) Within the period of 30 days beginning with the day on which an overview and scrutiny committee makes a relevant decision about a petition, the committee must—
 - (a) publish written notice of the following matters—
 - (i) the relevant decision;
 - (ii) the reasons for making the relevant decision;
 - (iii) how the committee proposes to exercise its functions (in the case of a relevant decision to exercise its

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- functions in relation to the specified matter to which the petition relates); and
- (b) give written notice of those matters to the person who started the petition.
- (8) Regulations under paragraph 4(1) may make provision about petition arrangements and petitions, including—
- (a) provision about grounds on which an overview and scrutiny committee must or may make a relevant decision about a petition;
- (b) provision about matters which must or may be taken into account in making a relevant decision about a petition;
- (c) provision for an overview and scrutiny committee to be able to combine petitions relating to similar specified matters;
- (d) provision about verifying whether persons are local electors;
- (e) provision about whether the number of local electors who are petitioners is at least 0.1% of the total number of local electors.
- (9) In this paragraph—
- “local elector”, in relation to a petition, means a person who would be entitled to vote as an elector at an election for the return of a mayor for the area of the combined authority concerned;
- “petitioner” means a local elector who has—
- (a) started a petition, or
- (b) indicated support for a petition,
- in accordance with the petition arrangements;
- “relevant decision about a petition” means—
- (a) a decision by an overview and scrutiny committee to reject a petition, or
- (b) a decision by an overview and scrutiny committee whether or not to exercise its functions in relation to the specified matter to which a petition relates;
- “specific matter” means the matter that is specified in a petition in accordance with the petition arrangements.

Financial penalties for failure to attend committee meetings, answer questions or provide information etc

- 7 (1) The Secretary of State may, by regulations, give overview and scrutiny committees the power to impose a civil penalty on—
- (a) a person who fails to attend an overview and scrutiny committee meeting;
- (b) a person who fails to answer a question put at an overview and scrutiny committee meeting;
- (c) a person who fails to provide an overview and scrutiny committee with information or a document;
- (d) a person who misleads an overview and scrutiny committee.
- (2) For the purposes of this paragraph, a person fails to attend an overview and scrutiny committee meeting if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) the committee has, in accordance with paragraph 3(6)(a), required the person to attend the meeting,
 - (b) the person does not attend the meeting, and
 - (c) the person does not have a reasonable excuse for not attending the meeting.
- (3) For the purposes of this paragraph, a person fails to answer a question put at an overview and scrutiny committee meeting if—
 - (a) the committee has, in accordance with paragraph 3(6)(a), required the person to attend the meeting,
 - (b) the question is properly put to the person at the meeting,
 - (c) the person does not answer the question, and
 - (d) the person does not have a reasonable excuse for not answering the question.
- (4) For the purposes of this paragraph, a person fails to provide an overview and scrutiny committee meeting with information or a document if—
 - (a) the committee has, in accordance with paragraph 3(7)(a), required the person to provide the information or document,
 - (b) the person does not provide the information or document, and
 - (c) the person does not have a reasonable excuse for not providing the information or document.
- (5) For the purposes of this paragraph, a person misleads an overview and scrutiny committee meeting if—
 - (a) the committee has, in accordance with paragraph 3(7)(a), required the person to provide information or a document, and
 - (b) the person intentionally alters, suppresses, conceals or destroys the information or document.
- (6) Regulations under this paragraph—
 - (a) must provide for the amount or maximum amount of a civil penalty — and such an amount or maximum must not exceed £5,000;
 - (b) may provide for the power to impose a civil penalty to be exercisable only in relation to persons of a description specified in the regulations; and such a description of person may (in particular) consist of all or any of the following—
 - (i) mayors for the areas of combined authorities;
 - (ii) deputy mayors appointed by such mayors;
 - (iii) commissioners appointed by such mayors;
 - (c) must make provision for appeals against the imposition of civil penalties (which may include provision enabling a civil penalty to be confirmed, withdrawn or varied in its amount on an appeal).
- (7) In order to take account of changes in the value of money, the Secretary of State may by regulations substitute another sum for the sum for the time being specified in sub-paragraph (6)(a).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Termination of office for failure to attend committee meetings

- 8 (1) This paragraph applies to a person who holds one of the following offices in relation to a combined authority (the “relevant combined authority”)—
- (a) mayor for the area of the relevant combined authority;
 - (b) deputy mayor appointed by such a mayor;
 - (c) commissioner appointed by such a mayor.
- (2) The person ceases to hold the office if—
- (a) the person fails to attend six overview and scrutiny committee meetings (the “six missed meetings”), and
 - (b) there is the required link between the six missed meetings.
- (3) The person who holds the office fails to attend an overview and scrutiny committee meeting if—
- (a) the committee is a committee of the relevant combined authority,
 - (b) the meeting is a compulsory meeting for the person as holder of that office,
 - (c) the person does not attend the meeting, and
 - (d) the person does not have a reasonable excuse for not attending the meeting.
- (4) There is the required link between the six missed meetings if—
- (a) the six missed meetings are consecutive overview and scrutiny committee meetings that are compulsory meetings for the person as holder of the office, or
 - (b) the period between the first and last of those six missed meetings is 12 months or shorter.
- (5) In determining whether there is the required link by virtue of sub-paragraph (4)(a) or (b)—
- (a) it does not matter if the six missed meetings are meetings of the same committee, or different committees, of the combined authority;
 - (b) it does not matter if there are any meetings of an overview and scrutiny committee that—
 - (i) fall between the first and last of the six missed meetings, and
 - (ii) are not compulsory meetings for the person as holder of the office.
- (6) If a person ceases to hold office by virtue of this section—
- (a) the combined authority’s monitoring officer (within the meaning of section 5 of the Local Government and Housing Act 1989) must—
 - (i) publish notice that the person has ceased to hold office in such manner as the monitoring officer thinks appropriate, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) give a copy of the notice to the person who has ceased to hold office;
- (b) the person ceases to hold office at the end of the day of the last of the six missed meetings.
- (7) If a notice given under paragraph 3(11) of a person's non-attendance at a meeting of an overview and scrutiny committee relates to the last of the six missed meetings that result in the person's loss of office by virtue of this paragraph, the notice must include a statement of that fact.
- (8) If a person ceases to hold an office by virtue of this section, that loss of office does not prevent that person from subsequently—
 - (a) taking that office again, or
 - (b) taking any other office referred to in sub-paragraph (1).
- (9) An overview and scrutiny committee meeting is a “compulsory meeting” for a person if the committee has, in accordance with paragraph 3(6)(a), required that person to attend the meeting.
- (10) This paragraph applies to a commissioner whether appointed—
 - (a) under a worker's contract,
 - (b) under a contract other than a worker's contract, or
 - (c) otherwise than under a contract;
 and references to the office of commissioner (including holding office) are to be read accordingly in the case of a commissioner appointed under a contract.

Audit committees

- 9 (1) A combined authority must arrange for the appointment by the combined authority of an audit committee.
- (2) The functions of the audit committee are to include—
 - (a) reviewing and scrutinising the combined authority's financial affairs,
 - (b) reviewing and assessing the combined authority's risk management, internal control and corporate governance arrangements,
 - (c) reviewing and assessing the economy, efficiency and effectiveness with which resources have been used in discharging the combined authority's functions, and
 - (d) making reports and recommendations to the combined authority in relation to reviews conducted under paragraphs (a), (b) and (c).
- (3) The Secretary of State may by regulations make provision about—
 - (a) the membership of a combined authority's audit committee;
 - (b) the appointment of the members;
 - (c) the payment of allowances to members of the committee who are members of a constituent council.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) Provision must be made under [sub-paragraph \(3\)](#) so as to ensure that at least one member of an audit committee is an independent person (as defined by the regulations).

Interpretation

10 In this Schedule—

“commissioner” means a commissioner appointed under section 107CA;

“key person”, in relation to an overview and scrutiny committee of a combined authority, means—

- (a) the mayor for the area of the combined authority;
- (b) the deputy mayor for that area;
- (c) a commissioner appointed by the mayor for that area;
- (d) the officers of the combined authority;
- (e) a member of the combined authority who has responsibilities in relation to a particular area of policy;
- (f) a person of any other description that is specified in regulations.

“matter of local interest”, in relation to an overview and scrutiny committee of a combined authority, means a matter which both—

- (a) relates to the area of the combined authority, and
- (b) relates—
 - (i) to functions that are the responsibility of the combined authority (whether exercisable by the combined authority or the mayor), or
 - (ii) otherwise to any aspect of any area of competence set out in section 2 of the English Devolution and Community Empowerment Act 2026;

but it does not include any matters which relate to the functions of police and crime commissioners;

“value for money” means the economy, efficiency and effectiveness of the expenditure of the combined authority.”

Commencement Information

I196 Sch. 5 para. 2 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PART 2

AMENDMENTS CONSEQUENTIAL ON [PART 1](#) OF THIS SCHEDULE

Introduction

3 LDEDCA 2009 is amended in accordance with this Part of this Schedule.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I197 Sch. 5 para. 3 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Section 104: overview and scrutiny committees

- 4 (1) Section 104 is amended in accordance with this paragraph.
- (2) In subsection (9), after “combined authorities” insert “that are not established mayoral strategic authorities”.
- (3) After subsection (9) insert—
- “(9A) Schedule 5AA makes provision for combined authorities that are established mayoral strategic authorities to have overview and scrutiny committees and audit committees; and provision made in an order under subsection (1) is subject to that Schedule.”
- (4) After subsection (9A) insert—
- “(9B) In this section and Schedules 5A and 5AA “established mayoral strategic authority” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 1(6)(a) of that Act).”

Commencement Information

I198 Sch. 5 para. 4 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Section 107C: deputy mayors

- 5 In section 107C(3), after paragraph (c) insert—
- “(d) the person ceases to be deputy mayor by virtue of [paragraph 8](#) of Schedule 5AA.”

Commencement Information

I199 Sch. 5 para. 5 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 5A: overview and scrutiny committees

- 6 (1) Schedule 5A is amended in accordance with this paragraph.
- (2) In the heading, after “Authorities” insert “except EMSAs”.
- (3) Before paragraph 1 (and the italic heading preceding it) insert—

“Application of this Schedule

- A1 (1) This Schedule applies to a combined authority if it is not an established mayoral strategic authority.
- (2) Accordingly, in the following provisions of this Schedule—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) “combined authority” means a combined authority that is not an established mayoral strategic authority;
- (b) a reference to an overview and scrutiny committee is a reference to such a committee of a combined authority that is not an established mayoral strategic authority.

(3) For provision about the scrutiny of combined authorities that are established mayoral strategic authorities, see Schedule 5AA.”

(4) After paragraph 3 insert—

“Style by which committees to be known

- 3A
- (1) An order under paragraph 3(1) may (in particular) specify the style which the overview and scrutiny committees of combined authorities are to have.
 - (2) The specified style may (in particular) be a variant of “overview and scrutiny committee”.
 - (3) The power under section 117(1A) to make different provision for different purposes includes power to specify different styles under this paragraph in relation to different descriptions of combined authorities.”

Commencement Information

I200 Sch. 5 para. 6 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 5B: election of Mayors of combined authorities etc

7 In Schedule 5B, after paragraph 11 insert—

“Failure to attend meetings of overview and scrutiny committee: loss of office

- 11A
- [Paragraph 8](#) of Schedule 5AA makes provision for a person’s term of office as mayor to end because of repeated failure to attend meetings of an overview and scrutiny committee.”

Commencement Information

I201 Sch. 5 para. 7 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Schedule 5BA: commissioners

8 In Schedule 5BA (inserted by Schedule 3 to this Act), in paragraph 9—

- (a) in paragraph (d), omit “or”;
- (b) after paragraph (d) insert “, or
- (da) the person ceases to be a commissioner by virtue of [paragraph 8](#) of Schedule 5AA, or”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I202 Sch. 5 para. 8 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

PART 3

EXTENSION OF NEW SCRUTINY REGIME TO ALL MAYORAL COMBINED AUTHORITIES

Introduction

9 LDECA 2009 is amended in accordance with this Part of this Schedule.

Commencement Information

I203 Sch. 5 para. 9 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Amendment of section 104

- 10 (1) Section 104 (as amended by [paragraph 4](#) of this Schedule) is amended in accordance with this paragraph.
- (2) In subsection (9), for “combined authorities that are not established mayoral strategic authorities” substitute “non-mayoral combined authorities”.
- (3) In subsection (9A), for “combined authorities that are established mayoral strategic authorities” substitute “mayoral combined authorities”.
- (4) Omit subsection (9B).

Commencement Information

I204 Sch. 5 para. 10 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Exclusion of all mayoral combined authorities from scrutiny regime in Schedule 5A LDECA 2009

- 11 (1) Schedule 5A (as amended by [paragraph 6](#) of this Schedule) is amended in accordance with this paragraph.
- (2) In the heading, for “Combined Authorities except EMSAs” substitute “Non-mayoral Combined Authorities”.
- (3) For paragraph A1 substitute—
- “A1 (1) This Schedule applies to a non-mayoral combined authority.
- (2) Accordingly, in this Schedule “combined authority” means only a non-mayoral combined authority.
- (3) For provision about the scrutiny of mayoral combined authorities, see Schedule 5AA.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) In paragraph 1 (functions of overview and scrutiny committees)—
 - (a) omit sub-paragraph (3);
 - (b) in sub-paragraph (4), omit “and (3)(a)”.
- (5) In paragraph 2 (overview and scrutiny committees: supplementary provision)—
 - (a) in sub-paragraph (3), omit “(including, in the case of a mayoral combined authority, the mayor for the combined authority's area or deputy mayor)”;
 - (b) in sub-paragraph (6)(a), omit “(including, in the case of a mayoral combined authority, the mayor for the combined authority's area and deputy mayor)”.
- (6) In paragraph 3 (power to make further provision about overview and scrutiny committees), for sub-paragraph (5) substitute—

“(5) For the purposes of sub-paragraph (4)(b) “appropriate person” means a person who is not a member of the registered political party which has the most representatives among the members of the constituent councils (or, if there is no such party because two or more parties have the same number of representatives, is not a member of any of those parties).”

Commencement Information

I205 Sch. 5 para. 11 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Inclusion of all mayoral combined authorities in the new scrutiny regime

- 12 (1) Schedule 5AA (as inserted by [paragraph 2](#) of this Schedule) is amended in accordance with this paragraph.
- (2) In the heading, for “combined authorities that are established mayoral strategic authorities” substitute “Mayoral combined authorities”.
- (3) For paragraph A1 substitute—
- “A1 (1) This Schedule applies to a mayoral combined authority.
- (2) Accordingly, in the following provisions of this Schedule—
- (a) “combined authority” means a mayoral combined authority;
 - (b) a reference to an overview and scrutiny committee is a reference to such a committee of a mayoral combined authority.
- (3) For provision about the scrutiny of non-mayoral combined authorities, see Schedule 5A.”

Commencement Information

I206 Sch. 5 para. 12 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 6

Section 21

EXTENSION OF GENERAL POWER OF COMPETENCE TO STRATEGIC AUTHORITIES

Introduction

- 1 The Localism Act 2011 is amended in accordance with paragraphs 2 to 7 of this Schedule.

Commencement Information

I207 Sch. 6 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I208 [Sch. 6 para. 1](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of section 1

- 2 (1) Section 1 (local authority's general power of competence) is amended in accordance with this paragraph.
- (2) For the heading substitute "General power of competence".
- (3) In subsection (1), after "local authority" insert ", combined authority, CCA".
- (4) After subsection (1) insert—
- “(1A) The general power which a mayoral combined authority or mayoral CCA has under this Chapter may be exercised by the mayor on behalf of that authority (concurrently with the authority).”

Commencement Information

I209 Sch. 6 para. 2 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I210 [Sch. 6 para. 2](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of section 2

- 3 (1) Section 2 (boundaries of the general power) is amended as follows.
- (2) After subsection (2) insert—
- “(2A) If exercise of a pre-commencement power of a combined authority or CCA is subject to restrictions, those restrictions apply also to exercise of the general power so far as it is overlapped by the pre-commencement power.
- (2B) The general power does not enable a combined authority or CCA to do—
- (a) anything which the authority is unable to do by virtue of a pre-commencement limitation, or
 - (b) anything which the authority is unable to do by virtue of a post-commencement limitation which is expressed to apply—
 - (i) to the general power,
 - (ii) to all of the authority's powers, or
 - (iii) to all of the authority's powers but with exceptions that do not include the general power.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) In subsection (4), in the words before the definitions, after “section” insert “, in relation to a local authority”.

(4) After subsection (4) insert—

“(5) In this section, in relation to a combined authority or CCA—

“post-commencement limitation” means a prohibition, restriction or other limitation expressly imposed by a statutory provision that—

(a) is contained in an Act passed after the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or

(b) is contained in an instrument made under an Act and comes into force on or after the commencement of section 21 of the English Devolution and Community Empowerment Act 2026;

“pre-commencement limitation” means a prohibition, restriction or other limitation expressly imposed by a statutory provision that—

(a) is contained in this Act, or in any other Act passed no later than the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or

(b) is contained in an instrument made under an Act and comes into force before the commencement of section 21 of the English Devolution and Community Empowerment Act 2026;

“pre-commencement power” means power conferred by a statutory provision that—

(a) is contained in this Act, or in any other Act passed no later than the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or

(b) is contained in an instrument made under an Act and comes into force before the commencement of section 21 of the English Devolution and Community Empowerment Act 2026.”

Commencement Information

I211 Sch. 6 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I212 [Sch. 6 para. 3](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of section 3

4 In section 3 (limits on charging in exercise of general power), in subsection (1)(a), after “local authority” insert “, combined authority, CCA”.

Commencement Information

I213 Sch. 6 para. 4 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I214 [Sch. 6 para. 4](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Amendment of section 4

- 5 (1) Section 4 (limits on doing things for commercial purpose in exercise of general power) is amended in accordance with this paragraph.
- (2) In subsections (1), (2) and (3), after “local authority” insert “, combined authority, CCA”.

Commencement Information

I215 Sch. 6 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I216 [Sch. 6 para. 5](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of section 5

- 6 (1) Section 5 (powers to make supplemental provision) is amended in accordance with this paragraph.
- (2) In subsections (1), (3), (4), (5)(a) and (b), and (7)(a) after “local authorities” insert “, combined authorities, CCAs”.
- (3) In subsection (5)(c), after “local authority” insert “, combined authority, CCA”.

Commencement Information

I217 Sch. 6 para. 6 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I218 [Sch. 6 para. 6](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of section 8

- 7 (1) Section 8 (interpretation) is amended in accordance with this paragraph.
- (2) Before the definition of “the general power” insert—
 ““CCA” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;
 “combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;”.
- (3) After the definition of “local authority” insert—
 ““mayor”, in relation to a mayoral combined authority or mayoral CCA, means the mayor for the area of that authority;
 “mayoral CCA” has the same meaning as in Chapter 1 of Part 1 of the Levelling-up and Regeneration Act 2023 — see section 57 of that Act;
 “mayoral combined authority” has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 120 of that Act;”.

Commencement Information

I219 Sch. 6 para. 7 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I220 [Sch. 6 para. 7](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Consequential amendments

- 8 (1) In LDEDCA 2009—
- (a) in section 113A (general power of combined authority), omit subsection (4);
 - (b) omit section 113D (general power of competence).
- (2) In LURA 2023—
- (a) in section 49 (general power of CCA), omit subsection (4);
 - (b) omit section 52 (general power of competence).

Commencement Information

I221 Sch. 6 para. 8 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(3\)](#)

I222 Sch. 6 para. 8 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

SCHEDULE 7

Section 24

PROVIDERS OF MICROMOBILITY VEHICLES

- 1 (1) The [Road Traffic Regulation Act 1984](#) is amended in accordance with [this paragraph](#).
- (2) After Part 2 insert—

“PART 2A

LICENSING OF PROVIDERS OF MICROMOBILITY VEHICLES IN ENGLAND

22E Provision of micromobility vehicles must be licensed

- (1) A person (P) is guilty of an offence if—
- (a) P provides a passenger micromobility vehicle on a road or in a public place,
 - (b) the purpose of providing the vehicle there is that persons may take possession of it there for use (whether the use is on the road or in the public place or at any other place), and
 - (c) P does not have a licence from the relevant licensing authority under which P is authorised to provide the vehicle for that purpose.
- (2) A person (P) is guilty of an offence if—
- (a) P provides a non-passenger micromobility vehicle (whether on a road or in a public place or at any other place),
 - (b) the purpose of providing the vehicle is that persons may make use of it—
 - (i) on a road or in a public place, or
 - (ii) at a place to which the vehicle will or may need to travel using a road or public place, and
 - (c) P does not have a licence from the relevant licensing authority under which P is authorised to provide the vehicle for that purpose.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) In subsection (1) or (2) “relevant licensing authority” means the licensing authority for the licensing area in which the micromobility vehicle is located when it is provided.

22F Micromobility vehicles

- (1) In this Part “passenger micromobility vehicle” means—
- (a) a pedal cycle,
 - (b) an electrically assisted pedal cycle, or
 - (c) a micromobility vehicle that—
 - (i) is designed or adapted to carry one or more individuals, and
 - (ii) is of a description prescribed by regulations made by the Secretary of State.
- (2) In this Part “non-passenger micromobility vehicle” means a micromobility vehicle that—
- (a) is not designed or adapted to carry one or more individuals, and
 - (b) is of a description prescribed by regulations made by the Secretary of State.
- (3) For the purposes of subsections (1)(c) and (2), the following are not micromobility vehicles—
- (a) motor vehicles (within the meaning of the Road Traffic Act 1988, including section 189 of that Act);
 - (b) invalid carriages (within the meaning of the Road Traffic Act 1988);
 - (c) pedicabs (within the meaning of the Pedicabs (London) Act 2024).

22G Exemptions

- (1) The prohibitions in section 22E(1) and (2) do not apply to the provision of micromobility vehicles by a licensing authority in its own licensing area (including where the micromobility vehicles are provided on behalf of the licensing authority by another person under arrangements between the licensing authority and that person).
- (2) The Secretary of State may make regulations which provide for other exemptions from the prohibition in section 22E(1) or the prohibition in section 22E(2).
- (3) The regulations may (in particular) relate to—
- (a) the vehicles which may be provided;
 - (b) the duration for which vehicles may be provided;
 - (c) the locations or areas where vehicles may be parked or locked before or after use;
 - (d) the areas where vehicles may be used during use;
 - (e) the purpose for which vehicles may be provided (including provision for use in guided tours);
 - (f) the persons who are providing the vehicles;
 - (g) the number of vehicles provided (whether generally, at locations where use may begin, or in particular areas).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

22H Regulations about licences under this Part

- (1) The Secretary of State may make regulations about the licences required for persons providing passenger micromobility vehicles or non-passenger micromobility vehicles.
- (2) Schedule 3A makes further provision about regulations under this section (including provision for the imposition of financial penalties and fees, and for the creation of criminal offences).

22I Licensing authorities

- (1) The Secretary of State may make regulations about the powers and duties of a licensing authority, such as provision—
 - (a) imposing a duty to monitor the provision of micromobility vehicles,
 - (b) about the publication of information on the provision of micromobility vehicles,
 - (c) about the provision of reports or other information to the Secretary of State, and
 - (d) requiring licensing authorities to work collaboratively with others.
- (2) The Secretary of State—
 - (a) may issue guidance to licensing authorities about their functions under this Part, and
 - (b) must publish, or arrange the publication of, any guidance issued under this paragraph.
- (3) Licensing authorities must have regard to guidance issued under this paragraph.
- (4) A licensing authority is not liable on any basis (whether in tort or otherwise) for taking, or failing to take, any action in relation to a person providing micromobility vehicles, unless the liability is in respect of wilful misconduct or gross negligence.
- (5) For the purposes of [subsection \(4\)](#), there is “gross negligence” on the part of a licensing authority if—
 - (a) it is in breach of a duty of care owed under the law of negligence, and
 - (b) the conduct constituting that breach falls far below what can reasonably be expected of the licensing authority in the circumstances.
- (6) Traffic authorities in England and licensing authorities must co-operate with each other on matters relating to the parking or docking of micromobility vehicles.

22J Information

- (1) The Secretary of State may make regulations authorising or requiring the disclosure of relevant information by any of the following—
 - (a) persons providing micromobility vehicles;
 - (b) licensing authorities;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) the Secretary of State.
- (2) The regulations may, in particular—
 - (a) authorise licensing authorities or the Secretary of State to require the disclosure of information;
 - (b) provide that a person is guilty of an offence if they knowingly or recklessly provide false information to a licensing authority or the Secretary of State.
- (3) In this section “relevant information” means information relating to the provision of micromobility vehicles including, in the case of a person who has or had a licence required by section 22E, all information relating to the licensed provision of micromobility vehicles.

22K Proceedings in respect of offences by bodies corporate and partnerships etc

- (1) If a micromobility licensing offence committed by a body corporate is proved—
 - (a) to have been committed with the consent or connivance of an officer or a responsible individual, or
 - (b) to be attributable to neglect on the part of an officer or responsible individual,
 that officer or responsible individual (as well as the body corporate) is guilty of the offence and is liable to be proceeded against and punished accordingly.
- (2) If a micromobility licensing offence committed by a partnership is proved—
 - (a) to have been committed with the consent or connivance of a partner or a responsible individual, or
 - (b) to be attributable to neglect on the part of a partner or responsible individual,
 that partner or responsible individual (as well as the partnership) is guilty of the offence and is liable to be proceeded against and dealt with accordingly.
- (3) If an offence committed by an unincorporated association (other than a partnership) is proved—
 - (a) to have been committed with the consent or connivance of an officer of the association or a member of its governing body or a responsible individual, or
 - (b) to be attributable to neglect on the part of such an officer or member or responsible individual,
 that officer or member or responsible individual (as well as the association) is guilty of the offence and liable to be proceeded against and punished accordingly.
- (4) In this section—
 - “micromobility licensing offence” means an offence under this Part (including an offence under regulations made under this Part);
 - “officer”, in relation to a body corporate, means—
 - (a) a director, manager, secretary or other similar officer, or
 - (b) any person purporting to act in any such capacity;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

and for this purpose “director”, in relation to a body corporate whose affairs are managed by its members, means a member of the body corporate;

“partner” includes a person purporting to act as a partner;

“responsible individual”, in relation to a body corporate, partnership or unincorporated association which has or had a licence under this Part, means a person who has or had a role in relation to the licence that is specified in regulations made by the Secretary of State for the purposes of this section.

22L Regulations

Regulations under this Part—

- (a) may make different provision for different purposes, including different provision for different types of micromobility vehicle or different types of provision of micromobility vehicles;
- (b) may make consequential, supplementary, incidental, transitional and saving provision.

22M Interpretation

(1) For the purposes of this Part—

- (a) a combined authority or CCA is the licensing authority for its area;
- (b) a relevant local council is the licensing authority for its area if that area does not comprise, or form part of, the area of a combined authority or CCA;
- (c) Transport for London is the licensing authority for Greater London.

(2) In this Part—

“CCA” means a combined county authority established under section 9(1) of LURA 2023;

“combined authority” means a combined authority established under section 103 of LDEDCA 2009;

“licensing area” means—

- (a) the area of a combined authority or CCA;
- (b) the area of a relevant local council that is a licensing authority;
- (c) Greater London;

“licensing authority” has the meaning given in subsection (1);

“public place” means any place to which the public, or any section of the public, has access (on payment or otherwise) as of right or by virtue of an express or implied permission;

“relevant local council” means—

- (a) a county council in England,
- (b) a district council whose area does not form part of the area of a county council in England,
- (c) a metropolitan district council, or
- (d) the Council of the Isles of Scilly.”

(3) Before Schedule 4 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“SCHEDULE 3A

Section 22H

LICENSING OF PROVISION OF MICROMOBILITY VEHICLES

Introduction

- 1 This Schedule is about the provision that may (or must) be made by regulations under [section 22H](#).

Licence conditions

- 2 (1) The regulations may make provision about conditions that must be included, or must not be included, in a licence.
(2) The regulations may enable a licensing authority to include other conditions in a licence.

Duration, renewal, suspension and revocation of licence

- 3 (1) The regulations may make provision about the duration, renewal, suspension or revocation of a licence.
(2) That includes provision which gives the Secretary of State the power to direct a licensing authority not to renew, or to suspend or revoke, a licence.
(3) But any such regulations must provide that the power of direction may only be exercised for purposes specified or described in the regulations which relate to the protection of public safety.

Variation and transfer of licence

- 4 (1) The regulations may make provision about the variation of a licence.
(2) The regulations may make provision about the transfer of a licence to a different licensee.

Licence applications etc: process

- 5 (1) Regulations may make provision about the process for applying for a licence, and for renewing, varying or transferring a licence.
(2) The regulations may—
 - (a) require a licensing authority to be satisfied as to a matter specified in the regulations before granting, renewing, varying or transferring a licence;
 - (b) require a licensing authority to have regard to a matter specified in the regulations, in deciding whether to grant, renew, vary or transfer a licence.
- (3) The regulations may enable the licensing authority—
 - (a) to specify the form and content of an application;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) to specify information to be provided in connection with an application;
 - (c) to specify the procedure for rectifying procedural irregularities;
 - (d) to specify the time limits for doing anything required to be done in connection with an application and any procedure for extending any such limits;
 - (e) to inspect sites, facilities, equipment or vehicles for the purposes of deciding an application, but may not give the licensing authority any power of entry.
- 6 (1) Regulations may make provision about the process for suspending or revoking a licence.
- (2) The regulations may—
 - (a) require a licensing authority to be satisfied as to a matter specified in the regulations before suspending or revoking a licence;
 - (b) require a licensing authority to have regard to a matter specified in the regulations, in deciding whether to suspend or revoke a licence.

Monitoring

- 7 (1) The regulations may make provision about the issue by a licensing authority to a provider of micromobility vehicles of—
 - (a) a contravention notice, in a case where the authority knows or suspects that the provider—
 - (i) is in breach of its licence conditions, or
 - (ii) is doing anything that is likely to put the provider in breach;
 - (b) a warning notice, setting out the authority's powers to vary, suspend or revoke a licence, in a case where a provider has failed to comply with a contravention notice;
 - (c) a prohibition notice, prohibiting the provider from carrying on activities specified in the notice.
- (2) The regulations may provide that a notice mentioned in [sub-paragraph \(1\)](#) may include directions to the provider of micromobility vehicles, and may make provision about the consequences of failure to comply with a direction.
- (3) The regulations—
 - (a) may enable the licensing authority to inspect sites, facilities, equipment or vehicles for the purposes of monitoring compliance with the terms of a licence;
 - (b) but may not give the licensing authority any power of entry.

Financial penalties

- 8 (1) The regulations may enable a licensing authority to impose a financial penalty in relation to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) the breach of the prohibition in section 22E(1) or the prohibition in section 22E(2) (providing a micromobility vehicle without a licence);
 - (b) the breach of a condition included in a licence.
- (2) The amount of the financial penalty is to be specified in, or determined in accordance with, the regulations.
- (3) If the regulations confer power to impose a financial penalty in relation to the breach of the prohibition in section 22E(1) or the prohibition in section 22E(2) they must provide that a person is not liable to such a penalty in respect of conduct for which the person has been convicted of the offence under that section.
- (4) If the regulations confer power to impose a financial penalty, they must include provision—
 - (a) requiring the licensing authority, before imposing a financial penalty on a person, to give the person written notice (a “notice of intent”) of the proposed financial penalty;
 - (b) ensuring that the person is given an opportunity to make representations about the proposed financial penalty;
 - (c) requiring the licensing authority, after the period for making representations, to decide whether to impose the financial penalty;
 - (d) requiring the licensing authority, if it decides to impose the financial penalty, to give the person notice in writing (a “final notice”) imposing the penalty;
 - (e) enabling a person on whom a financial penalty is imposed to appeal to a court or tribunal in accordance with the regulations;
 - (f) as to the powers of the court or tribunal on such an appeal.
- (5) The provision that may be made by the regulations by virtue of subparagraph (1) includes provision—
 - (a) enabling a notice of intent or final notice to be withdrawn or amended;
 - (b) requiring the licensing authority to withdraw a final notice in circumstances specified in the regulations;
 - (c) for a financial penalty to be increased by an amount specified in or determined in accordance with the regulations in the event of late payment;
 - (d) as to how financial penalties are recoverable.

Decisions: reconsideration and appeals

- 9 (1) The regulations must make provision about—
 - (a) reconsideration by a licensing authority of its decisions, and
 - (b) appeals to the First-tier Tribunal against decisions of a licensing authority that have been reconsidered.
- (2) The regulations may (in particular) make provision about—
 - (a) the decisions of the licensing authority which may be reconsidered or appealed;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the grounds for requesting reconsideration of a decision or bringing an appeal;
 - (c) the person or persons by whom, and manner in which, a decision is to be reconsidered;
 - (d) the powers of the First-tier Tribunal on an appeal.
- (3) The regulations must make provision about the procedure, and time limits, for—
- (a) requesting the reconsideration of a decision, and
 - (b) bringing an appeal against a decision.

Fees

- 10
- (1) The regulations may enable a licensing authority to create a charging scheme under which the authority may charge fees to a person providing micromobility vehicles in connection with the exercise of its functions under this Part.
 - (2) The regulations may require a licensing authority—
 - (a) before making a charging scheme, to consult persons who may be affected by the scheme;
 - (b) to publish its charging scheme.

Offences

- 11
- The regulations may provide that a person is guilty of an offence if they—
- (a) knowingly or recklessly provide false information to a licensing authority in connection with an application for a licence or for a renewal, variation or transfer of a licence;
 - (b) knowingly or recklessly provide false information in connection with reconsideration of, or an appeal against, a decision of a licensing authority.”
- (4) In section 134 (provisions as to regulations), after subsection (5) insert—
- “(5A) Subsections (2) to (5) do not apply to regulations under Part 2A; instead—
- (a) a statutory instrument by which the power conferred by section 22I is exercised is subject to annulment in pursuance of a resolution of either House of Parliament;
 - (b) no regulations may be made under any other provision of Part 2A unless a draft has been laid before Parliament and has been approved by a resolution of each House of Parliament;
 - (c) but a statutory instrument by which the power conferred by section 22I is exercised may, where the power conferred by any other provision of Part 2A is exercised by the same instrument, be made under the procedure described in paragraph (b) instead of the procedure mentioned in paragraph (a).”

Commencement Information

I223 Sch. 7 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

- 2
- (1) The Road Traffic Offenders Act 1988 is amended in accordance with this paragraph.

(2) In section 91 (penalty for breach of regulations), in paragraph (b), after “section” insert “22I,”.

(3) In Schedule 2 (prosecution and punishment of offences), in the table in Part 1, after the entry for “RTRA section 20(5)” insert—

“RTRA section 22E(1) or (2)	Providing mobility vehicles without a licence	Summarily	A fine”.
-----------------------------	---	-----------	----------

- (4) In that table, after the entry for “RTRA section 22E” (inserted by sub-paragraph (3)), insert—

“Regulations under RTRA section 22H made by virtue of paragraph 11(a) or (b) of Schedule 3A	Providing false information in connection with a licence application or on an appeal against a licensing decision	Summarily	A fine
Regulations under RTRA section 22J(2)(b)	Providing false information about provision of micromobility vehicles to the Secretary of State or a licensing authority	Summarily	A fine”.

Commencement Information
I224 Sch. 7 para. 2 in force at Royal Assent for specified purposes, see s. 108(1)(6)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) In subsection (1)—

- (a) after “may by agreement with” insert “a combined authority, a combined county authority,”;
- (b) after “delegate to that” insert “authority or”.

(3) After subsection (1) insert—

“(1ZA) A combined authority or combined county authority may not enter into an agreement under subsection (1) unless the authority has obtained the consent of any upper-tier constituent council or councils in whose area the authority would discharge functions under the agreement.”

(4) In subsection (2)—

- (a) in the words before paragraph (a), for “A council” substitute “An authority or council”;
- (b) in paragraphs (a) and (b), for “the council” substitute “the authority or council”.

(5) In subsection (3), for “the council” substitute “the authority or council”.

(6) In subsection (4)—

- (a) for “a council” substitute “an authority or council”;
- (b) for “the council” (in both places) substitute “the authority or council”.

(7) In subsection (5)—

- (a) in the words before paragraph (a), after “agreement with” insert “a combined authority, a combined county authority,”;
- (b) in paragraph (b), for “the council” substitute “the authority or council”;
- (c) in the words after paragraph (b)—
 - (i) for “a council” substitute “an authority or council”;
 - (ii) for “such council” substitute “such authority or council”.

(8) After subsection (5) insert—

“(5A) A combined authority or combined county authority may not enter into any arrangements under subsection (5) unless the authority has obtained the consent of any constituent council or councils in whose area the authority would discharge functions under the agreement.”

(9) After subsection (6) insert—

“(6ZA) Where—

- (a) any functions have been delegated by the Minister or a strategic highways company to a combined authority or combined county authority under subsection (1) above, or
- (b) the Minister or a strategic highways company has entered into an agreement with a combined authority or combined county authority under subsection (5) above,

the combined authority or combined county authority may, with the consent of the Minister or a strategic highways company, enter into arrangements with a county council, district council or Welsh council (the “contracting council”) for the carrying out by the contracting council, in accordance with the arrangements, of such of the delegated functions or, as the case may be,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

of the functions to which the agreement relates as may be specified in the arrangements.

(6ZB) A combined authority or combined county authority may not enter into arrangements under subsection (6ZA) unless the authority has obtained the consent of any constituent council or councils in whose area functions would be discharged under the arrangements.”

(10) In subsection (6A), in the words before paragraph (a), after “subsection (6)” insert “or (6ZA)”.

(11) In subsection (7), for “a council” substitute “an authority or council”.

(12) After subsection (8) insert—

“(9) In this section—

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“constituent council” means—

(a) in relation to a combined authority—

(i) a county council the whole or any part of whose area is within the area of the authority, or

(ii) a district council whose area is within the area of the authority;

(b) in relation to a combined county authority—

(i) a county council for an area within the area of the authority, or

(ii) a unitary district council for an area within the area of the authority;

“unitary district council” means the council for a district for which there is no county council;

“upper-tier constituent council” means a constituent council that is—

(a) a county council, or

(b) a unitary district council.”

Commencement Information

I225 Sch. 8 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Highways Act 1980: agreements for doing certain works

2 (1) Section 8 of the Highways Act 1980 (agreements between local highway authorities and strategic highways companies for doing of certain works) is amended in accordance with this paragraph.

(2) In subsection (1), after “local highways authorities” insert “, combined authorities, combined county authorities”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) After subsection (1) insert—

“(1A) If a combined authority or combined county authority is a party to an agreement under subsection (1), the agreement may make or include provision for or in relation to the construction, reconstruction, alteration, improvement or maintenance of a highway for which a constituent council of that authority are the highway authority even if that constituent council is not a party to the agreement (a “relevant constituent council”) (whether that is instead of, or in addition to, such provision about any highway for which a party to the agreement are the highway authority).

(1B) A combined authority or combined county authority may not enter into an agreement under this section unless the authority has obtained the consent of any upper-tier constituent council or councils in whose area the authority would exercise functions under the agreement.”

(4) In subsection (2), after “parties to the agreement” insert “, or a relevant constituent council,”.

(5) In subsection (3)—

- (a) after “another highway authority” insert “or a combined authority or combined county authority”;
- (b) for “other highway authority” substitute “other authority”.

(6) After subsection (4) insert—

“(4A) A combined authority or combined county authority may not enter into an agreement under this section with a council unless their areas adjoin each other.”

(7) After subsection (5) insert—

“(6) In this section—

“combined authority”, “combined county authority” and “constituent council” have the same meanings as in section 6;

“relevant constituent council” has the meaning given in subsection (1A);

“upper-tier constituent council” has the same meaning as in section 6.”

Commencement Information

I226 Sch. 8 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

SCHEDULE 9

Section 26

CHARGES PAYABLE BY UNDERTAKERS EXECUTING WORKS IN MAINTAINABLE HIGHWAYS

Introduction

- 1 The New Roads and Street Works Act 1991 is amended in accordance with this Schedule.

Commencement Information

I227 Sch. 9 para. 1 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Approval of local highway authorities to make charges

- 2 (1) In section 74A (charge determined by reference to duration of works), in subsection (2), for the words from “unless” to the end substitute “unless it has been approved for the purposes of the regulations by an order made by the appropriate person (see section 74B(2) to (6)).”
- (2) In section 74B (regulations under section 74 and 74A)—
- (a) for the heading substitute “Regulations under section 74 and regulations and orders under section 74B”;
 - (b) the existing text of the section becomes subsection (1);
 - (c) after that subsection insert—

“(2) The Secretary of State is the “appropriate person” in relation to an approval order which approves—

 - (a) a strategic highways company, or
 - (b) a local highway authority, unless a mayor is the appropriate person in relation to the order under any of subsections (3) to (5).

(3) The Mayor of London is the “appropriate person” in relation to an approval order which approves—

 - (a) Transport for London, or
 - (b) a local highway authority whose area is within Greater London.

(4) The mayor for the area of a mayoral combined authority is the “appropriate person” in relation to an approval order which approves a local highway authority whose area is within, or the same as, the area of the combined authority (including the combined authority).

(5) The mayor for the area of mayoral CCA is the “appropriate person” in relation to an approval order which approves a local highway

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

authority whose area is the same as, or is within, the area of the CCA (including the CCA).

(6) But the mayor for the area of a mayoral combined authority or a mayoral CCA is not the appropriate authority in relation to an approval order if the application for that approval order is made on or before the day on which the first mayor for that area takes office; and accordingly—

- (a) the Secretary of State is (by virtue of subsection (2)(b)) the appropriate authority in relation to that approval order (and continues to be the appropriate authority in relation to that approval order after the first mayor takes office);
- (b) the application for that approval order must be made to the Secretary of State.

(7) The Secretary of State may issue guidance about the approval of local highway authorities by the Mayor of London and the mayors for the areas of mayoral combined and mayoral CCAs; and—

- (a) local highway authorities must have regard to the guidance when seeking approval from the mayors;
- (b) the mayors must have regard to the guidance when considering whether to approve local highway authorities.

(8) An approval order made by the Secretary of State is to be made by statutory instrument.

(9) If a mayor makes an approval order, the mayor must publish the order in the manner which the mayor thinks is appropriate.

The power of a mayor to make an approval order includes the power to revoke, amend or re-enact any approval order made by the mayor or a predecessor.

(10) The validity of an approval order approving a local highway authority (the “relevant authority”) which has been made by the Secretary of State (whether before or after the 2026 Act commencement) is not affected by the transfer of the power to approve the relevant authority.

(11) The Secretary of State has the power, exercisable by order made by statutory instrument, to revoke such an order or to revoke it to the extent that it relates to the relevant authority.

(12) In this section—

“approval order” means an order under section 74A(2);

“mayoral CCA” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 101 of that Act);

“mayoral combined authority” has the same meaning as in the English Devolution and Community Empowerment Act 2026 (see section 101 of that Act);

“transfer of the power to approve” means the power to make an order approving a local highway authority becoming exercisable by a mayor by virtue of this section, whether—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) on the 2026 Act commencement (in relation to the Mayor of London or a mayoral combined authority or mayoral CCA existing at that commencement), or
- (b) subsequently (in relation to a mayoral combined authority or mayoral CCA that is established, or that becomes a mayoral combined authority or mayoral CCA, after the 2026 Act commencement);

“2026 Act commencement” means the coming into force of paragraph 2 of [Schedule 9](#) to the English Devolution and Community Empowerment Act 2026.”

Commencement Information

I228 Sch. 9 para. 2 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Power to charge: extension to charge for road works

- 3 In the heading of Part 3, after “street works” insert “etc”.

Commencement Information

I229 Sch. 9 para. 3 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

- 4 In section 74A (charge determined by reference to duration of works), in subsection (1), for “requiring an undertaker executing street works in a maintainable highway to pay” substitute “requiring—
- (a) an undertaker executing street works in a maintainable highway, or
 - (b) a person executing works for road purposes in a maintainable highway,
- to pay”.

Commencement Information

I230 Sch. 9 para. 4 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Commencement Information

I229 Sch. 9 para. 3 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)
I230 Sch. 9 para. 4 not in force at Royal Assent, see [s. 108\(2\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 10

Section 27

CIVIL ENFORCEMENT OF TRAFFIC CONTRAVENTIONS

- 1 (1) Paragraph 9 of Schedule 8 to the Traffic Management Act 2004 (civil enforcement areas and enforcement authorities outside Greater London: bus lane contraventions) is amended in accordance with this paragraph.
- (2) In sub-paragraph (4), for “are to the local authority in whose area the contravention is committed” substitute “—
- (a) are references to the local authority in whose area the contravention is committed;
 - (b) if there is a qualifying CCA or combined authority for the area of that local authority, are also references to that authority or CCA (in addition to references that local authority).”
- (3) After sub-paragraph (4) insert—
- “(5) There is a qualifying CCA or combined authority for the area of a local authority if—
- (a) the local authority is a constituent council of a CCA or combined authority, and
 - (b) the CCA or combined authority has the written consent of the local authority to act as an enforcement authority in relation to bus lane contraventions in the local authority’s area.
- (6) In this paragraph—
- “CCA” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;
- “combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;
- “constituent council” means—
- (a) in relation to a combined authority—
 - (i) a county council the whole or any part of whose area is within the area of the authority, or
 - (ii) a district council whose area is within the area of the authority;
 - (b) in relation to a CCA—
 - (i) a county council for an area within the area of the CCA, or
 - (ii) a unitary district council for an area within the area of the CCA;
- and here “unitary district council” means the council for a district for which there is no county council.”

Commencement Information

I231 Sch. 10 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 2 (1) Paragraph 10 of Schedule 8 to the Traffic Management Act 2004 (civil enforcement areas and enforcement authorities outside Greater London: moving traffic contraventions) is amended in accordance with this paragraph.
- (2) For sub-paragraph (5) substitute—
- “(5) In relation to a civil enforcement area designated by order under this paragraph on an application that was not a joint application, references in this Part of this Act to the enforcement authority—
- (a) are references to the applicant authority;
 - (b) if there is a qualifying CCA or combined authority for the area of the applicant authority, are also references to that authority or CCA (in addition to references the applicant authority).
- (6) In relation to a civil enforcement area designated by order under this paragraph on a joint application, references in this Part of this Act to the enforcement authority—
- (a) are references to each applicant authority;
 - (b) as respects the area of any applicant authority for which there is a qualifying CCA or combined authority, are also references to that authority or CCA (in addition to references that applicant authority).
- (7) There is a qualifying CCA or combined authority for the area of an applicant authority if—
- (a) the applicant authority is a constituent council of a CCA or combined authority, and
 - (b) the CCA or combined authority has the written consent of the applicant authority to act as an enforcement authority in relation to moving traffic contraventions in the applicant authority’s area.
- (8) In this paragraph—
- “applicant authority ” means the authority, or in the case of a joint application an authority, on whose application an order under this paragraph was made;
- “CCA”, “combined authority” and “constituent council” have the same meanings as in paragraph 9.”

Commencement Information

I232 Sch. 10 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 11

Section 29

KEY ROUTE NETWORK ROADS

PART 1

DESIGNATION AND DIRECTIONS

Designation of key route network roads: CCAs

- 1 (1) Section 24 of LURA 2023 (designation of key route network roads) is amended in accordance with this paragraph.
- (2) For subsection (1) substitute—
 - “(1) A CCA has the power to—
 - (a) designate a highway or proposed highway in its area as a key route network road, or
 - (b) remove its designation as a key route network road.
 - (1A) In the case of a mayoral CCA—
 - (a) that power is a power of the CCA exercisable only by the mayor on behalf of the CCA;
 - (b) the mayor may not designate a highway or proposed highway unless—
 - (i) the mayor has prepared a proposal to designate it (a “proposed designation”), and
 - (ii) the CCA has passed a resolution approving the proposed designation;
 - (c) if there is no highway or proposed highway in the CCA’s area that is designated as a key route network road, the mayor must prepare a proposed designation in relation to at least one highway or proposed highway.
 - (1B) In the case of a non-mayoral CCA, the CCA may only exercise that power with the consent of each constituent council in whose area the highway or proposed highway is.”
- (3) In subsection (2), for paragraphs (a) to (c) substitute—
 - “(d) the mayor of a CCA, in the case of a mayoral CCA;
 - (e) the CCA or a constituent council, in the case of a non-mayoral CCA.”
- (4) For subsection (5) substitute—
 - “(5) A CCA must maintain, and publish on its website, a record of the roads in its area which are key route network roads.”

Commencement Information

I233 Sch. 11 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Designation of key route network roads: combined authorities

- 2 (1) Section 107ZA of LDEDCA 2009 (designation of key route network roads) is amended in accordance with this paragraph.
- (2) For subsection (1) substitute—
- “(1) A combined authority has the power to—
- (a) designate a highway or proposed highway in its area as a key route network road, or
 - (b) remove its designation as a key route network road.
- (1A) In the case of a mayoral combined authority—
- (a) that power is a power of the combined authority exercisable only by the mayor on behalf of the combined authority;
 - (b) the mayor may not designate a highway or proposed highway unless—
 - (i) the mayor has prepared a proposal to designate it (a “proposed designation”), and
 - (ii) the combined authority has passed a resolution approving the proposed designation;
 - (c) if there is no highway or proposed highway in the combined authority’s area that is designated as a key route network road, the mayor must prepare a proposed designation in relation to at least one highway or proposed highway.
- (1B) In the case of a non-mayoral combined authority, the combined authority may only exercise that power with the consent of each constituent council in whose area the highway or proposed highway is.”
- (3) In subsection (2), for paragraphs (a) to (c) substitute—
- “(d) the mayor of a combined authority, in the case of a mayoral combined authority;
 - (e) the combined authority or a constituent council, in the case of a non-mayoral combined authority.”
- (4) For subsection (5) substitute—
- “(5) A combined authority must maintain, and publish on its website, a record of the roads in its area which are key route network roads.”

Commencement Information

I234 Sch. 11 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Power of direction: CCAs

- 3 (1) Section 22 of LURA 2023 (directions relating to highways and traffic functions) is amended in accordance with this paragraph.
- (2) For the heading substitute “Highways and traffic functions: regulations conferring power to give directions”.
- (3) For subsection (1) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(1) The Secretary of State may by regulations—

- (a) confer on a non-mayoral CCA a power to give a direction about the exercise of an eligible power;
- (b) confer on a mayoral CCA a power to give a direction about the exercise of an eligible power in relation to roads that are not key route network roads (see section 24).”

(4) For subsection (6) substitute—

“(6) In subsection (5) “road”—

- (a) in the case of a power of direction under subsection (1)(a), has the meaning given by section 142(1) of the Road Traffic Regulation Act 1984;
- (b) in the case of a power of direction under subsection (1)(b), means a road that is not a key route network road;
- (c) in either case, does not include any road which is the subject of a concession agreement under Part 1 of the New Roads and Street Works Act 1991.”

(5) After subsection (9) insert—

“(9A) Before giving a direction under this section, a mayor or CCA must have regard to the following—

- (a) the network management duty imposed by section 16 of the Traffic Management Act 2004;
- (b) the duty imposed by section 17 of that Act (duty to make arrangements for planning and carrying out action to be taken in performing the network management duty);
- (c) any guidance issued under section 18 of that Act;
- (d) any guidance issued under section 55 of this Act.

(9B) On the day on which a mayor or CCA gives a direction under this section, the mayor or CCA must publish a copy of the direction in such manner as the mayor or CCA considers appropriate.

(9C) If a mayor of a CCA gives a direction under this section, the mayor must reimburse any costs incurred by a council in complying with the direction (including administrative costs incurred in dealing with the direction).

In a case where works are carried out in complying with the direction, the costs are those incurred to carry out those works or during the period that ends 12 months after completion of those works.”

(6) In subsection (11), omit “Except as provided for by section 24(7),”.

Commencement Information

I235 Sch. 11 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“23A Highways and traffic functions: directions by mayors

- (1) A mayoral CCA may give a direction about the exercise of—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power,
 in respect of a particular key route network road or a description of roads which are all key route network roads.
- (2) The power under this section to give a direction is exercisable only by the mayor for the area of a CCA on behalf of the CCA.
- (3) A direction under this section must relate only to the exercise of a relevant power—
 - (a) by a constituent council of the CCA, and
 - (b) in—
 - (i) the area of the CCA, and
 - (ii) the area of the constituent council.
- (4) Any direction given by virtue of this section—
 - (a) must be given in writing and may be varied or revoked by a further direction in writing, and
 - (b) may make different provision for different cases and different provision for different areas.
- (5) Before giving a direction under this section, a mayor must have regard to the following—
 - (a) the network management duty imposed by section 16 of the Traffic Management Act 2004;
 - (b) the duty imposed by section 17 of that Act (duty to make arrangements for planning and carrying out action to be taken in performing the network management duty);
 - (c) any guidance issued under section 18 of that Act;
 - (d) any guidance issued under section 55 of this Act.
- (6) On the day on which a mayor gives a direction under this section, the mayor must publish a copy of the direction in such manner as the mayor considers appropriate.
- (7) A mayor who gives a direction under this section must reimburse any costs incurred by a council in complying with the direction (including administrative costs incurred in dealing with the direction).
- (8) In a case where works are carried out in complying with the direction, the costs of the works are those incurred—
 - (a) before or while carrying out the works, or
 - (b) during the period that ends 12 months after completion of the works.
- (9) In this section—

“eligible power” means a power of a county council or a unitary district council which the council has—

 - (a) as highway authority by virtue of section 1 of the Highways Act 1980, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) as traffic authority by virtue of section 121A of the Road Traffic Regulation Act 1984;
- “power”, in the definition of “eligible power” or street authority or permit authority power, does not include a duty;
- “relevant power” means—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power;
- “street authority or permit authority power” means a power of a county council or a unitary district council which the council has—
 - (a) as a street authority by virtue of section 49 of the New Roads and Street Works Act 1991, or
 - (b) under section 33 or 33A of the Traffic Management Act 2004 or under a permit scheme prepared under section 33 of that Act.

23B Contraventions of section 23A

- (1) If an authority exercises any power in contravention of a direction under section 23A, the CCA may take such steps as it considers appropriate to reverse or modify the effect of the exercise of the power.
- (2) For the purposes of subsection (1), the CCA has power to exercise any power of the authority subject to the direction on behalf of that authority.
- (3) Any reasonable expenses incurred by the CCA in taking any steps under subsection (1) are recoverable from the authority subject to the direction as a civil debt.”

Commencement Information

I236 Sch. 11 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Power of direction: combined authorities

- 5 (1) Section 104 of LDEDCA 2009 (constitution and functions: transport) is amended in accordance with this paragraph.
- (2) After subsection (3) insert—
 - “(3A) In its application by virtue of this section, the Local Transport Act 2008 has effect with the modifications set out in subsections (3B) and (3C).
 - (3B) Section 88 (conferral of a power to direct) has effect as if—
 - (a) for subsection (1) there were substituted—
 - “(1) The Secretary of State may by regulations—
 - (a) confer on a non-mayoral combined authority a power to give a direction about the exercise of an eligible power;
 - (b) confer on a mayoral combined authority a power to give a direction about the exercise of an eligible power in relation to roads that are not key route network roads (see section 107ZA).”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) for subsection (7) there were substituted—

“(7) In subsection (6) “road” —

- (a) in the case of a power of direction under subsection (1)(a), has the meaning given by section 142(1) of the Road Traffic Regulation Act 1984;
- (b) in the case of a power of direction under subsection (1)(b), means a road that is not a key route network road;
- (c) in either case, does not include any road which is the subject of a concession agreement under Part 1 of the New Roads and Street Works Act 1991.”

(3C) The Act has effect as if the following were inserted after section 89—

“89ZA Highways and traffic functions: directions by mayors

- (1) A mayoral combined authority may give a direction about the exercise of—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power,
 in respect of a particular key route network road or a description of roads which are all key route network roads.
- (2) The power under this section to give a direction is exercisable only by the mayor for the area of a combined authority on behalf of the combined authority.
- (3) A direction under this section must relate only to the exercise of a relevant power—
 - (a) by a constituent council of the combined authority;
 - (b) in—
 - (i) the area of the combined authority, and
 - (ii) the area of the constituent council.
- (4) Any direction given under this section—
 - (a) must be given in writing and may be varied or revoked by a further direction in writing, and
 - (b) may make different provision for different cases and different provision for different areas.
- (5) Before giving a direction under this section, a mayor must have regard to the following—
 - (a) the network management duty imposed by section 16 of the Traffic Management Act 2004;
 - (b) the duty imposed by section 17 of that Act (duty to make arrangements for planning and carrying out action to be taken in performing the network management duty);
 - (c) any guidance issued under section 18 of that Act;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) any guidance issued under section 118 of the Local Democracy, Economic Development and Construction Act 2009.
- (6) On the day on which a mayor gives a direction under this section, the mayor must publish a copy of the direction in such manner as the mayor considers appropriate.
- (7) A mayor who gives a direction under this section must reimburse any costs incurred by a council in complying with the direction (including administrative costs incurred in dealing with the direction).
- (8) In a case where works are carried out in complying with the direction, the costs of the works are those incurred—
 - (a) before or while carrying out the works, or
 - (b) during the period that ends 12 months after completion of the works.
- (9) The following provisions of this Act apply in relation to a combined authority as they apply in relation to an ITA on whom functions of a kind described in section 88 are conferred—
 - (a) section 88(10) (provisions about directions);
 - (b) section 89(2) and (3) (power to remedy contravention of direction).
- (10) In this section—
 - “eligible power” means a power of a county council or a unitary district council which the council has—
 - (a) as highway authority by virtue of section 1 of the Highways Act 1980, or
 - (b) as traffic authority by virtue of section 121A of the Road Traffic Regulation Act 1984;
 - “power”, in the definition of “eligible power” or street authority or permit authority power, does not include a duty;
 - “relevant power” means—
 - (a) an eligible power, or
 - (b) a street authority or permit authority power;
 - “street authority or permit authority power” means a power of a county council or a unitary district council which the council has—
 - (a) as a street authority by virtue of section 49 of the New Roads and Street Works Act 1991, or
 - (b) under section 33 or 33A of the Traffic Management Act 2004 or under a permit scheme prepared under section 33 of that Act.

89ZB Contraventions of section 89ZA

- (1) If an authority (the “defaulting authority”) exercises any power in contravention of a direction under section 89ZA given by a combined authority (the “CA”), the CA may take such steps as it

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

considers appropriate to reverse or modify the effect of the exercise of the power.

(2) For the purposes of subsection (1), the CA has power to exercise any power of the defaulting authority on behalf of that authority.

(3) Any reasonable expenses incurred by the CA in taking any steps under subsection (1) are recoverable from the defaulting authority as a civil debt.””

(3) In subsection (10), omit “Except as provided for by section 107ZA(7),”.

Commencement Information

I237 Sch. 11 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Consequential amendments

6 (1) In section 107ZA LDEDCA 2009—

- (a) omit subsections (7) and (8);
- (b) in subsection (9), omit the definition of “eligible power”.

(2) In section 107D(9), omit “Except as provided for by section 107ZA(7),”.

Commencement Information

I238 Sch. 11 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

7 (1) In section 24 LURA 2023—

- (a) omit subsections (7) and (8);
- (b) in subsection (9), omit the definition of “eligible power”.

(2) In section 30(11), omit “Except as provided for by section 24(7),”.

Commencement Information

I239 Sch. 11 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

PART 2

TRANSFER OF DUTY OF PRINCIPAL COUNCILS TO MAKE REPORTS ON KEY ROUTE NETWORK ROADS

Introduction

8 The Road Traffic Reduction Act 1997 is amended in accordance with this Part of this Schedule.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I240 Sch. 11 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

New duty of mayoral combined authorities and CCAs

9 After section 2 insert—

“2A Duty of mayoral combined authorities and CCAs to make reports

- (1) It is the duty of every mayoral combined authority and every mayoral CCA to prepare, at such time or times as the Secretary of State may direct, a report containing—
 - (a) an assessment of the levels of local road traffic using key route network roads in the area, and
 - (b) a forecast of the growth in those levels.
- (2) Subject to subsection (5), the report must also specify targets for—
 - (a) a reduction in the levels of local road traffic using key route network roads in the area, or
 - (b) a reduction in the rate of growth in the levels of such traffic.
- (3) The report must also contain any other information or proposals which—
 - (a) relate to levels of local road traffic using key route network roads in the area, and
 - (b) are required by guidance under subsection (6).
- (4) The report—
 - (a) may specify different targets for different parts of the area or for different classes of local road traffic using key route network roads, and
 - (b) may specify targets—
 - (i) under subsection (2)(a) in relation to certain classes of local road traffic using key route network roads, or in relation to part of the area, and
 - (ii) under subsection (2)(b) in relation to other classes of local road traffic using key route network roads or in relation to another part of the area.
- (5) A mayoral combined authority or mayoral CCA is not obliged to specify targets under subsection (2)(a) or (b) in relation to the area, or in relation to any part of the area, if they consider it inappropriate to do so, but in that case the report must state—
 - (a) that the authority considers it inappropriate to do so, and
 - (b) the authority’s reasons for so considering.
- (6) The Secretary of State may issue guidance to mayoral combined authorities and mayoral CCAs in relation to—
 - (a) the preparation and content of reports under this section, and
 - (b) consultation in connection with the preparation of such reports;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

and a mayoral combined authority or mayoral CCA must have regard to any guidance when preparing a report.

- (7) Where a mayoral combined authority or mayoral CCA has prepared a report under this section the authority must—
 - (a) send the report to the Secretary of State, and
 - (b) publish a copy of the report in such manner as the authority considers appropriate.
- (8) The Secretary of State must lay a copy of every report received under subsection (7)(a) before each House of Parliament.
- (9) In this section “the area”, in relation to a mayoral combined authority or mayoral CCA, means that authority’s area.”

Commencement Information

I241 Sch. 11 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Consequential amendments

- 10 In section 1 (interpretation)—
 - (a) before the definition of “local implementation plan” insert—
 - ““constituent council” means—
 - (a) in relation to a mayoral combined authority—
 - (i) a county council the whole or any part of whose area is within the area of the authority, or
 - (ii) a district council whose area is within the area of the authority;
 - (b) in relation to a mayoral CCA—
 - (i) a county council for an area within the area of the authority, or
 - (ii) a unitary district council for an area within the area of the authority;
 - and here “unitary district council” means the council for a district for which there is no county council;
 - “key route network road” means a highway or proposed highway designated for the time being as a key route network road—
 - (a) by a mayoral combined authority under section 107ZA of the Local Democracy, Economic Development and Construction Act 2009, or
 - (b) by a mayoral CCA under section 24 of the Levelling-up and Regeneration Act 2023;”;
- (b) after the definition of “London council” insert—
 - ““mayoral CCA” has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 — see section 57 of that Act);
 - “mayoral combined authority” has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 120 of that Act;”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I242 Sch. 11 para. 10 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

11 In section 2 (duty of principal councils to make reports), after subsection (4) insert—

“(4ZA) If a principal council is a constituent council of a mayoral combined authority or mayoral CCA, the duty imposed on the council by subsection (1) does not apply to the levels of local road traffic using key route network roads in the council’s area.”

Commencement Information

I243 Sch. 11 para. 11 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

SCHEDULE 12

Section 31

LOCAL TRANSPORT AUTHORITIES AND OTHER TRANSPORT FUNCTIONS

Transport Act 2000

1 The Transport Act 2000 is amended in accordance with paragraphs 2 to 15.

Commencement Information

I244 Sch. 12 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

2 In section 108 (local transport plans)—

- (a) in subsection (4)(cb), omit “established under section 9(1) of the Levelling-up and Regeneration Act 2023”;
- (b) after subsection (4) insert—

“(4A) A county council or a council of a non-metropolitan district is not a local transport authority where—

- (a) the council is a constituent council of a combined authority or a combined county authority (and here “constituent council” has the meaning given by section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 in relation to a combined authority and section 10(11) of the Levelling-Up and Regeneration Act 2023 in relation to a combined county authority), and
- (b) the combined authority or combined county authority has completed its first full financial year.

(4B) Where a local transport authority is a mayoral combined authority, the functions of the combined authority under this section are exercisable only by the mayor acting on behalf of the combined authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(4C) Where a local transport authority is a mayoral CCA, the functions of the combined county authority under this section are exercisable only by the mayor acting on behalf of the combined county authority.”

Commencement Information

I245 Sch. 12 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

3 In section 109 (further provision about plans: England), after subsection (4) insert—

“(4A) Where a local transport authority is a mayoral combined authority, the functions of the combined authority under this section are exercisable only by the mayor acting on behalf of the combined authority.

(4B) Where a local transport authority is a mayoral CCA, the functions of the combined county authority under this section are exercisable only by the mayor acting on behalf of the combined county authority.”

Commencement Information

I246 Sch. 12 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

4 After section 109 insert—

“109ZA Combined authorities and combined county authorities: adoption of local transport plans

- (1) This section applies where a local transport authority is a combined authority or a combined county authority.
- (2) The local transport plan prepared by the authority in accordance with section 108, and any review or alteration to the plan, only becomes operative once it is adopted by the authority.
- (3) In the case of a non-mayoral combined authority or non-mayoral CCA, a resolution to adopt the strategy is to be made by a simple majority of the constituent members present and voting on that resolution at a meeting of the authority.
- (4) In the case of a mayoral combined authority or mayoral CCA, a resolution to adopt the strategy is to be made by a simple majority—
 - (a) of the relevant members present and voting on that resolution at a meeting of the authority,
 - (b) which includes the mayor, or the deputy mayor acting in place of the mayor.
- (5) But if—
 - (a) the office of mayor is vacant, and
 - (b) there is no deputy mayor, or the deputy mayor is unable to act in place of the mayor,
 the decision is to be made by a simple majority of the other relevant members present and voting on that question at a meeting of the authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (6) In the case of a resolution by a non-mayoral combined authority or non-mayoral CCA—
- (a) each constituent member has one vote;
 - (b) in the case of a tied vote—
 - (i) no person has a casting vote; and
 - (ii) the authority must be regarded as having disagreed to the question that the decision should be made.
- (7) In the case of a resolution by a mayoral combined authority or mayoral CCA—
- (a) each relevant member has one vote;
 - (b) in the event of a tied vote then (unless it is a case where subsection (5) applies), the mayor, or the deputy mayor acting in place of the mayor, has a casting vote (in addition to any other vote the mayor or deputy mayor may have).
- (8) In the case of a non-mayoral combined authority or non-mayoral CCA, the adoption of a local transport plan requires the consent of all constituent councils.
- (9) In this section—
- “constituent member”, in relation to a combined authority or combined county authority—
- (a) means a person appointed by a constituent council to be a member of the authority; and
 - (b) also includes a person acting as a member of the authority in the absence of such a member;
- and here “constituent council” has the meaning given in section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 (in relation to a combined authority) or section 10(11) of the Levelling-up and Regeneration Act 2023 (in relation to a combined county authority);
- “relevant member” in relation to a mayoral combined authority or mayoral CCA means—
- (a) a constituent member or
 - (b) the mayor,
- and also includes the deputy mayor acting in place of the mayor.”

Commencement Information

1247 Sch. 12 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

5 In section 112 (plans and strategies: supplementary), after subsection (2) insert—

- “(3) Where a local transport authority is a mayoral combined authority, references in this section to the local transport authority are to the mayor acting on behalf of the combined authority.
- (4) Where a local transport authority is a mayoral combined county authority, references in this section to the local transport authority are to the mayor acting on behalf of the combined county authority.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I248 Sch. 12 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 6 In section 113F (advanced quality partnership schemes: traffic regulation orders)—
- (a) in subsection (1)(b), for “metropolitan district council” substitute “local highway authority”;
 - (b) in subsection (3)—
 - (i) in the opening words, for “metropolitan district council” substitute “local highway authority”;
 - (ii) in paragraph (a), for “metropolitan district council” substitute “local highway authority”.

Commencement Information

I249 Sch. 12 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 7 In section 113M (variation: supplementary), in subsection (7)(a), for “metropolitan district council” substitute “local highway authority”.

Commencement Information

I250 Sch. 12 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 8 In section 113O (guidance about schemes), in subsection (1), for “metropolitan district councils” substitute “local highway authorities”.

Commencement Information

I251 Sch. 12 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 9 In section 114 (quality partnership schemes), in subsection (7)(b), for “metropolitan district council for the district” substitute “local highway authority for the local authority area”.

Commencement Information

I252 Sch. 12 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 10 In section 121 (variation: supplementary), in subsection (7)(a), for “metropolitan district council” substitute “local highway authority”.

Commencement Information

I253 Sch. 12 para. 10 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 11 In section 123 (guidance about schemes), in subsection (1), for “metropolitan district councils” substitute “local highway authorities”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I254 Sch. 12 para. 11 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 12 In section 138B (further parties to a scheme)—
- (a) in subsection (2)(b), for “metropolitan district council for the district” substitute “local highway authority for the local authority area”;
 - (b) in subsection (5), for “metropolitan district council” substitute “local highway authority”.

Commencement Information

I255 Sch. 12 para. 12 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 13 In section 138N (variation: supplementary), in subsection (7)(a), for “metropolitan district council” substitute “local highway authority”.

Commencement Information

I256 Sch. 12 para. 13 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 14 In section 146 (mandatory concessions: supplementary)—
- (a) the existing text becomes subsection (1);
 - (b) in that subsection, in the definition of “travel concession authority”, after paragraph (c) insert—
 - “(cza) a combined authority,
 - (czb) a combined county authority,”;
 - (c) after that subsection insert—
 - “(2) A county council or a council of a non-metropolitan district is not a travel concession authority for the purposes of this Part where—
 - (a) the council is a constituent council of a combined authority or a combined county authority (and here “constituent council” has the meaning given by section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 in relation to a combined authority and section 10(11) of the Levelling-Up and Regeneration Act 2023 in relation to a combined county authority), and
 - (b) the combined authority or combined county authority has completed its first full financial year.”

Commencement Information

I257 Sch. 12 para. 14 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 15 In section 162 (interpretation of Part 2), in subsection (1), in the appropriate places insert the following definitions—
- ““local highway authority” has the meaning given in section 329(1) of the Highways Act 1980,”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

““non-mayoral CCA” means a combined county authority that is not a mayoral CCA,”;

““non-mayoral combined authority” means a combined authority that is not a mayoral combined authority,”.

Commencement Information

I258 Sch. 12 para. 15 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Transport Act 1985

16 The [Transport Act 1985](#) is amended in accordance with paragraphs 17 to 21.

Commencement Information

I259 Sch. 12 para. 16 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

17 In [section 63](#) (functions of local councils with respect to passenger transport in areas other than integrated transport areas and passenger transport areas)—

(a) in subsection (4), for “non-metropolitan district council in England” substitute “district council in England or a relevant county council”;

(b) after subsection (8) insert—

“(8B) Where the whole or any part of the area of a county council in England falls within the area of a combined authority or a combined county authority, references in this section to the council are—

(a) where the combined authority or combined county authority has completed its first full financial year, references to the combined authority or combined county authority (instead of to the council), and

(b) until that time, references to the combined authority or combined county authority as well as to the council.

(8C) Subsection (8B) does not apply to any such references in subsection (4) or (9A).”;

(c) after subsection (9) insert—

“(9A) A “relevant county council” for the purposes of subsection (4) is a county council in England the whole or any part of whose area falls within the area of a combined authority or a combined county authority.”

Commencement Information

I260 Sch. 12 para. 17 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

18 In [section 65](#) (co-operation between certain councils and London regional transport), after [subsection \(3\)](#) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(3A) Where the whole or any part of the area of a county council in England falls within the area of a combined authority or a combined county authority, references in this section to the council are—

- (a) where the combined authority or combined county authority has completed its first full financial year, references to the combined authority or combined county authority (instead of to the council), and
- (b) until that time, references to the combined authority or combined county authority as well as to the council.”

Commencement Information

I261 Sch. 12 para. 18 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

19 In [section 88](#) (expenditure on public passenger transport services), in [subsection \(8\)](#)—

- (a) omit the “and” at the end of [paragraph \(b\)](#),
- (b) after [that paragraph](#) insert—
 - “(ba) combined authorities,
 - (bb) combined county authorities, and”.

Commencement Information

I262 Sch. 12 para. 19 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

20 In section 93 (travel concession schemes), after subsection (8) insert—

“(8A) A county council or a council of a non-metropolitan district is not a local authority for the purposes of this section where—

- (a) the council is a constituent council of a combined authority or a combined county authority (and here “constituent council” has the meaning given by section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 in relation to a combined authority and section 10(11) of the Levelling-Up and Regeneration Act 2023 in relation to a combined county authority), and
- (b) the combined authority or combined county authority has completed its first full financial year.”

Commencement Information

I263 Sch. 12 para. 20 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

21 In [section 105](#) (travel concessions on services provided by local authorities)—

- (a) in [subsection \(1\)](#), after “Scotland” insert “, or a combined authority or a combined county authority”;
- (b) in subsection (2), after “such council” insert “or authority”;
- (c) in subsection (3), after “council” insert “or authority”;
- (d) after subsection (3) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- “(4) The power under subsection (1) does not apply to a county or district council where—
- (a) the council is a constituent council of a combined authority or a combined county authority (and here “constituent council” has the meaning given by section 104(11) of the Local Democracy, Economic Development and Construction Act 2009 in relation to a combined authority and section 10(11) of the Levelling-Up and Regeneration Act 2023 in relation to a combined county authority), and
 - (b) the combined authority or combined county authority has completed its first full financial year.”

Commencement Information

I264 Sch. 12 para. 21 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

SCHEDULE 13

Section 32

EDUCATION

PART 1

ADULT EDUCATION

- 1 The Apprenticeships, Skills, Children and Learning Act 2009 is amended in accordance with this Part of this Schedule.

Commencement Information

I265 Sch. 13 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 2 (1) Section 86 (education and training for persons aged 19 or over and others subject to adult detention) is amended in accordance with this paragraph.
- (2) After subsection (1) insert—
- “(1A) The Mayor of London, each combined authority and CCA, and each district council or county council that is a strategic authority, must secure the provision in relation to the relevant area of such facilities as it considers appropriate for—
- (a) education suitable to the requirements of persons who are aged 19 or over, other than persons aged under 25 for whom an EHC plan is maintained, and
 - (b) training, other than apprenticeship training, suitable to the requirements of such persons.
- (1B) Subsection (1) does not apply to the provision of facilities to the extent that subsection [\(1A\)](#) applies to the provision of those facilities.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) In subsection (6), after the definition of “education” insert—
- ““relevant area” means—
- (a) in relation to the Mayor of London, Greater London;
 - (b) in relation to a combined authority or CCA, its area;
 - (c) in relation to a district council or county council that is a strategic authority, the council’s area;”
- (4) In subsection (7), after “subsection (1)(a) or (b)” insert “or [\(1A\)\(a\)](#)”.

Commencement Information

I266 Sch. 13 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 3 (1) Section 87 (learning aims for persons aged 19 or over: provision of facilities) is amended in accordance with this paragraph.
- (2) After subsection (1) insert—
- “(1A) The Mayor of London, each combined authority and CCA, and each district council or county council that is a strategic authority, must secure the provision in relation to the relevant area of such facilities as it considers appropriate for relevant education or training for persons falling within subsection (3) which is suitable to their requirements.
- (1B) Subsection (1) does not apply to the provision of facilities to the extent that subsection [\(1A\)](#) applies to the provision of those facilities.”
- (3) In subsection (3)(b), for “Secretary of State” substitute “person, authority or council exercising the function under subsection (1) or (1A)”.
- (4) In subsection (6), after the definition of “education” insert—
- ““relevant area” means—
- (a) in relation to the Mayor of London, Greater London;
 - (b) in relation to a combined authority or CCA, its area;
 - (c) in relation to a district council or county council that is a strategic authority, the council’s area;”

Commencement Information

I267 Sch. 13 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 4 (1) Section 88 (learning aims for persons aged 19 or over: payment of tuition fees) is amended in accordance with this paragraph.
- (2) In subsection (1), for “Secretary of State” substitute “relevant authority”.
- (3) In subsection (2)(b), for “Secretary of State” substitute “person, authority or council exercising the function under this Part”.
- (4) In subsections (2A) and (3), for “Secretary of State” substitute “relevant authority”.
- (5) In subsection (4)(b), for “Secretary of State” substitute “relevant authority securing the provision of the facilities under section 86”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(6) In subsection (6)(a), for “Secretary of State” substitute “relevant authority”.

(7) After subsection (7) insert—

“(8) In this section “relevant authority” means—

- (a) the Secretary of State,
- (b) the Mayor of London,
- (c) a combined authority or CCA, or
- (d) a district council or county council that is a strategic authority.”

Commencement Information

I268 Sch. 13 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

5 (1) Section 90 (encouragement of education and training for persons aged 19 or over and others subject to adult detention) is amended in accordance with this paragraph.

(2) After subsection (1) insert—

“(1A) The Greater London Authority, each combined authority and CCA, and each district council or county council that is a strategic authority, must—

- (a) encourage participation by persons within section 86(1A)(a) in education and training within strategic authorities’ remit under this Part;
- (b) encourage employers to participate in the provision of education and training within strategic authorities’ remit under this Part for persons within section 86(1A)(a);
- (c) encourage employers to contribute to the costs of education and training within strategic authorities’ remit under this Part for such persons.”

(3) In subsection (2), after “subsection (1)(b)” insert “or (1A)(b)”.

Commencement Information

I269 Sch. 13 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

6 (1) Section 100 (provision of financial resources) is amended in accordance with this paragraph.

(2) In subsection (1)—

- (a) in the words before paragraph (a), for “The Secretary of State” substitute “A relevant authority”;
- (b) in paragraph (a), for “the Secretary of State's remit” substitute “the relevant authority’s remit”.

(3) In subsection (1AA) omit the words after “combined authority”.

(4) In subsection (1AB), for the words from “combined county authority” to the end substitute “CCA”.

(5) In subsection (1B), for “The Secretary of State” substitute “A relevant authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(6) After subsection (1B) insert—

“(1C) The Greater London Authority, a combined authority or CCA, or a district council or county council that is a strategic authority, may not exercise—

- (a) a function conferred by subsection (1) in relation to persons subject to adult detention;
- (b) a function conferred by subsection (1) or (1B) in relation to any person who, at the time of starting a course of study for an approved technical education qualification or starting to take approved steps towards occupational competence, is—
 - (i) aged under 19, or
 - (ii) aged under under 25 and for whom an EHC plan is maintained.”

(7) In subsection (3)—

- (a) in the words before paragraph (a), for “The Secretary of State” substitute “A relevant authority”;
- (b) in paragraph (c), for “the Secretary of State” substitute “the relevant authority”.

(8) In subsection (4), for “The Secretary of State” substitute “A relevant authority”.

(9) In subsection (5)—

- (a) omit the definitions of “combined authority” and “combined county authority”;
- (b) after the definition of “English statutory apprenticeship” insert—
 - ““relevant authority” means—
 - (a) the Secretary of State,
 - (b) the Greater London Authority,
 - (c) a combined authority or CCA, or
 - (d) a district council or county council that is a strategic authority;
 - “relevant authority’s remit under this Part” means—
 - (a) in relation to financial resources whose provision is secured by the Secretary of State, the Secretary of State’s remit under this Part;
 - (b) in relation to financial resources whose provision is secured by the Mayor of London, a combined authority or CCA, or a district council or county council that is a strategic authority, strategic authorities’ remit under this Part.”

Commencement Information

1270 Sch. 13 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

7 (1) Section 101 (financial resources: conditions) is amended in accordance with this paragraph.

(2) In subsection (1), for “the Secretary of State” substitute “a relevant authority”.

(3) In the following provisions, for “the Secretary of State” substitute “the relevant authority”—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) subsection (3)(a) (in both places);
- (b) subsection (3)(b) (in both places);
- (c) subsection (6)(a) (in both places);
- (d) subsection (6)(b).

Commencement Information

I271 Sch. 13 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

8 In section 103 (means tests), after subsection (1) insert—

“(1A) For the purpose of the exercise of the powers under section 100(1)(c), (d) or (e), the Greater London Authority, a combined authority or CCA, or a district council or county council that is a strategic authority, may—

- (a) carry out means tests;
- (b) arrange for other persons to carry out means tests.”

Commencement Information

I272 Sch. 13 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

9 After section 114 insert—

“Directions and guidance

114A Directions and guidance to strategic authorities

- (1) Where the Greater London Authority, a combined authority or CCA, or a district council or county council that is a strategic authority, adopts rules of eligibility for awards by an institution to which it makes grants, loans or other payments under section 100, it must adopt such rules in accordance with any direction given by the Secretary of State.
- (2) In exercising a function under section 86, 87, 88, 90 or 100, the Mayor of London or Greater London Authority, a combined authority or CCA, or a district council or county council that is a strategic authority, must have regard to guidance issued by the Secretary of State for the purpose of this subsection.”

Commencement Information

I273 Sch. 13 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

10 In section 115 (persons with special educational needs), for subsections (1) and (2) substitute—

“(1) The Secretary of State must, in performing functions under this Part, have regard to the needs of persons with special educational needs who are of a kind specified in subsection [\(2B\)\(a\)](#) or [\(b\)](#).

(2A) The Mayor of London or Greater London Authority, a combined authority or CCA, or a district council or county council that is a strategic authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

must, in performing functions under this Part, have regard to the needs of persons with special educational needs who are of a kind specified in subsection (2B)(a).

(2B) The persons referred to above are—

- (a) persons who are aged 19 or over, other than persons aged under 25 for whom an EHC plan is maintained;
- (b) persons who are subject to adult detention.”

Commencement Information

I274 Sch. 13 para. 10 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

11 After section 120A insert—

“120B When functions become exercisable by strategic authorities

The Mayor of London

- (1) The functions conferred on the Mayor of London by this Part are exercisable by the Mayor in relation to—
 - (a) the academic year beginning with 1 August 2025, and
 - (b) each subsequent academic year.

Combined authority or CCA already exercising the functions

- (2) Subsection (3) applies to a combined authority or CCA if functions conferred on it by this Part are also pre-commencement functions.
- (3) The functions continue to be exercisable by the combined authority or CCA on and after the commencement day (but as functions conferred by this Part).

Other combined authority or CCA

- (4) Subsection (5) applies to a combined authority or CCA—
 - (a) if functions conferred on it by this Part are not pre-commencement functions;
 - (b) whether the combined authority or CCA was established before, or is established on or after, the commencement day.
- (5) The functions conferred on the combined authority or CCA by this Part are exercisable by it in relation to—
 - (a) the second academic year to begin after the academic year during which it was, or is, established, and
 - (b) each subsequent academic year.

District or county council already exercising the functions

- (6) Subsection (7) applies to a district council or county council that is a strategic authority if functions conferred on it by this Part are also pre-designation functions.
- (7) The functions continue to be exercisable by the district council or county council on and after its designation (but as functions conferred by this Part).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Other district or county council

- (8) Subsection (9) applies to a district council or county council that is a strategic authority if functions conferred on it by this Part are not pre-designation functions.
- (9) The functions conferred on the district council or county council by this Part are exercisable by it in relation to—
- (a) the second academic year to begin after the academic year during which its designation takes effect, and
 - (b) each subsequent academic year.

Interpretation

- (10) In this section—
- “academic year” means each period—
- (a) beginning with 1 August, and
 - (b) ending with the next 31 July;
- “commencement day” means the day on which the English Devolution and Community Empowerment Act 2026 is passed;
- “designation”, in relation to a district council or county council that is a strategic authority, means its designation as a single foundation strategic authority;
- “pre-commencement functions” means functions which were exercisable by a combined authority or CCA immediately before the commencement day by virtue of—
- (a) an order under Part 6 of the Local Democracy, Economic Development and Construction Act 2009, or
 - (b) regulations under Chapter 2 of Part 1 of the Levelling-up and Regeneration Act 2023;
- “pre-designation functions” means functions which are exercisable by a district council or county council immediately before its designation, by virtue of regulations under section 16 of the Cities and Local Government Devolution Act 2016.”

Commencement Information

I275 Sch. 13 para. 11 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 12 (1) Section 121 (interpretation) is amended in accordance with this paragraph.
- (2) In subsection (1), at the appropriate place insert—
- ““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023;
- “combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009;
- “district council or county council that is a strategic authority” means a district council or county council that is designated as a single foundation

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

strategic authority under section 3 of the English Devolution and Community Empowerment Act 2026;”.

(3) After subsection (3) insert—

“(3A) In this Part a reference to education within strategic authorities’ remit under this Part is a reference to—

- (a) education falling within section 86(1A)(a), and
- (b) organised leisure-time occupation in connection with such education.

(3B) In this Part a reference to training within strategic authorities’ remit under this Part is a reference to—

- (a) training falling within section 86(1A)(b)), and
- (b) organised leisure-time occupation in connection with such training.”

Commencement Information

I276 Sch. 13 para. 12 in force at Royal Assent, see s. 108(1)(3)

13 (1) Section 122 (sharing of information for education and training purposes) is amended in accordance with this paragraph.

(2) In subsection (3)—

(a) after paragraph (fd) insert—

- “(fe) the Mayor of London;
- (ff) a person providing services to the Mayor of London;
- (fg) the Greater London Authority;
- (fh) a person providing services to the Greater London Authority;”.

(3) In subsection (5), for paragraphs (d) and (e) substitute—

- “(d) any function of a combined authority under Part 4,
- (e) any function of a combined county authority under Part 4,
- (f) any function of the Mayor of London under Part 4,
- (g) any function of the Greater London Authority under Part 4, or”.

Commencement Information

I277 Sch. 13 para. 13 in force at Royal Assent, see s. 108(1)(3)

PART 2

EDUCATION FOR 16-19 YEAR OLDS ETC

14 The Education Act 1996 is amended in accordance with this Part of this Schedule.

Commencement Information

I278 Sch. 13 para. 14 in force at Royal Assent, see s. 108(1)(3)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 15 (1) Section 15ZA (duty in respect of education and training for persons over compulsory school age: England) is amended in accordance with this paragraph.
- (2) In subsection (1), for “local authority in England” substitute “relevant authority”.
- (3) In the following provisions, for “local authority” substitute “relevant authority”—
- (a) subsection (2);
 - (b) subsection (3), in the words before paragraph (a);
 - (c) in subsection (4), in the words before paragraph (a);
 - (d) in subsection (5), in the words before paragraph (a);
 - (e) in subsection (9).

Commencement Information

I279 Sch. 13 para. 15 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 16 In section 15ZB (co-operation in performance of section 15ZA duty), for “Local authorities in England” substitute “Relevant authorities”.

Commencement Information

I280 Sch. 13 para. 16 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 17 In section 15ZC (encouragement of education and training for persons over compulsory school age: England), in subsection (1), in the words before paragraph (a), for “local authority in England” substitute “relevant authority”.

Commencement Information

I281 Sch. 13 para. 17 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 18 In section 579 (general interpretation), in subsection (1), after the definition of “regulations” insert—
- ““relevant authority” means—
- (a) the Greater London Authority,
 - (b) a local authority in England,
 - (c) a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009, or
 - (d) a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023.”

Commencement Information

I282 Sch. 13 para. 18 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

SCHEDULE 14

Section 33

PLANNING APPLICATIONS OF POTENTIAL STRATEGIC IMPORTANCE

- 1 (1) The Town and Country Planning Act 1990 is amended as follows.
- (2) In section 2A (the Mayor of London: applications of potential strategic importance)
 - (a) in the heading, after “London” insert “, mayors of combined authorities and mayors of combined county authorities”;
 - (b) in subsection (1), in the closing words, for “Mayor of London” substitute “relevant mayor”;
 - (c) omit subsection (1A);
 - (d) in subsection (1B)—
 - (i) in the opening words, for “Mayor of London” substitute “relevant mayor”;
 - (ii) in paragraph (b), for “Mayor of London” substitute “relevant mayor”;
 - (e) in subsection (2) for “Mayor” substitute “relevant mayor”;
 - (f) in subsection (3)(a)—
 - (i) the words from “in Greater” to the end of that paragraph become sub-paragraph (i);
 - (ii) after that sub-paragraph insert—
 - “(ii) in an area of a mayoral combined authority,
or
 - (iii) in an area of a mayoral combined county
authority.”;
 - (g) in subsection (5), for “Mayor of London” substitute “relevant mayor”;
 - (h) after subsection (5) insert—

“(5A) For the purposes of this section and sections 2B to 2F the “relevant mayor”—

 - (a) in relation to an application relating to land in Greater London, is the Mayor of London;
 - (b) in relation to an application relating to land in the area of a mayoral combined authority, is the mayor for that combined authority;
 - (c) in relation to an application relating to land in the area of a mayoral combined county authority, is the mayor for that combined county authority.”;
 - (i) in subsection (6), for “the spatial development strategy” substitute “a spatial development strategy”.
- (3) In section 2B (section 2A: supplementary provision)—
 - (a) in subsection (1), for “Mayor of London” substitute “relevant mayor”;
 - (b) in subsection (2), for “Mayor of London’s” substitute “relevant mayor’s”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) in subsection (3), for “Mayor of London” substitute “relevant mayor”;
- (d) in subsection (4), for “Mayor of London” substitute “relevant mayor”;
- (e) in subsection (5), for “Mayor of London” substitute “relevant mayor”;
- (f) in subsection (6), omit paragraph (b).

(4) In section 2C (matters reserved for subsequent approval)—

- (a) in subsection (1), for “Mayor of London” substitute “relevant mayor”;
- (b) in subsection (3), for “Mayor of London” substitute “relevant mayor”.

(5) In section 2D (further provision about orders under section 2A)—

- (a) in subsection (2), for “Mayor of London” substitute “relevant mayor”;
- (b) in subsection (3), for “Mayor of London” substitute “relevant mayor”.

(6) In section 2E (section 2A and planning obligations under section 106)—

- (a) in subsection (1), for “Mayor of London” substitute “relevant mayor”;
- (b) in subsection (2), for “Mayor of London” substitute “relevant mayor”;
- (c) in subsection (4), for “Mayor of London” substitute “relevant mayor”;
- (d) in subsection (5), in paragraph (a), for “Mayor of London” substitute “relevant mayor”.

(7) In section 2F (representation hearings)—

- (a) for the heading substitute “Oral and written representations”;
- (b) after subsection (1) insert—

“(1A) Before determining an application to which this section applies which also falls within subsection (1B), the relevant mayor must give—

- (a) the applicant, and
- (b) the local planning authority to whom the application was made,

an opportunity to make either oral representations at a hearing (“a representation hearing”) or written representations on the application.

(1B) The following applications fall within this subsection—

- (a) an application of a description specified in regulations;
- (b) an application made under section 73 or 73B;
- (c) an application which is a connected application for the purposes of section 2B in relation to an application under paragraph (a) or (b).”;

(c) in subsection (2)—

- (i) for the opening words, substitute “Before determining any other application to which this section applies, the relevant mayor must give”;
- (ii) in the closing words, for “hearing (“a representation hearing”)” substitute “a representation hearing”;

(d) after subsection (2) insert—

“(2A) The relevant mayor must prepare and publish a document setting out—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) the persons, in addition to the applicant and the local planning authority, who may make written representations;
- (b) the procedure for making written representations;
- (c) the form in which, and the period within which, written representations must be made.”;
- (e) in subsection (3), for “Mayor of London” substitute “relevant mayor”;
- (f) after subsection (4) insert—
 - “(4A) A document under subsection (2A) and (3) may be combined in one document.”;
- (g) in subsection (5), in paragraph (b), for “Mayor of London” substitute “relevant mayor”.

Commencement Information

I283 Sch. 14 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

SCHEDULE 15

Section 34

DEVELOPMENT ORDERS

- 1 (1) The Town and Country Planning Act 1990 is amended as follows.
- (2) In section 61DA (mayoral development orders)—
 - (a) in subsection (1), for “The Mayor of London” substitute “A relevant mayor”;
 - (b) after subsection (1) insert—
 - “(1A) For the purposes of this section and sections 61DB to 61DE a “relevant mayor” is—
 - (a) the Mayor of London,
 - (b) the mayor of a mayoral combined authority, or
 - (c) the mayor of a mayoral combined county authority.”;
 - (c) In subsection (2), for paragraphs (a) and (b) substitute—
 - “(a) if the relevant mayor is the Mayor of London—
 - (i) the area of a local planning authority in Greater London, or
 - (ii) the areas of two or more local planning authorities in Greater London;
 - (b) if the relevant mayor is the mayor of a mayoral combined authority, the area of that authority;
 - (c) if the relevant mayor is the mayor of a mayoral combined county authority, the area of that authority.”
- (3) In section 61DB (permission granted by mayoral development order)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in subsection (3) for “Mayor of London” substitute “the mayor who made the order”;
 - (b) omit subsections (6) and (7);
 - (c) in subsection (8)—
 - (i) in paragraph (a), for “the Mayor of London” substitute “a relevant mayor”;
 - (ii) in the closing words, for “Mayor” substitute “relevant mayor”;
 - (d) in subsection (9)—
 - (i) the words from “a site” to the end become paragraph (a);
 - (ii) after that paragraph insert—
 - “, and
 - (b) the authority has the function of determining applications for planning permission in relation to that area.”
- (4) In section 61DC (preparation and making of mayoral development order)—
- (a) omit subsection (3);
 - (b) omit subsection (4);
 - (c) omit subsection (5);
 - (d) in subsection (6)—
 - (i) for “the Mayor of London” substitute “a relevant mayor”;
 - (ii) for “Mayor”, in the second place it occurs, substitute “mayor”.
- (5) In section 61DD (revision or revocation of mayoral development order)—
- (a) in subsection (1)—
 - (i) for “The Mayor of London” substitute “A relevant mayor”;
 - (ii) omit “with the approval of each relevant local planning authority”;
 - (b) in subsection (2)—
 - (i) for “The Mayor of London” substitute “A relevant mayor”;
 - (ii) for “Mayor”, in the second place it occurs, substitute “relevant mayor”;
 - (iii) leave out from “(and” to “circumstances)”.
- (6) In section 61DE (effect of revision or revocation on incomplete development)—
- (a) in subsection (4)—
 - (i) for “the Mayor of London” substitute “a relevant mayor”;
 - (ii) for “Mayor”, in the second place it occurs, substitute “mayor”;
 - (b) in subsection (5), for “the Mayor of London” substitute “the relevant mayor”.
- (7) In section 74 (directions etc as to method of dealing with applications)—
- (a) in subsection (1B)—
 - (i) after paragraph (a) insert—
 - “(aa) for enabling the mayor of a relevant authority in prescribed circumstances, and subject to such conditions as may be prescribed, to direct the local planning authority for an area which falls within the area of the authority—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) to consult with the mayor before granting or refusing an application for planning permission, or permission in principle, that is an application of a prescribed description, or
 - (ii) to refuse an application for planning permission, or permission in principle, of a prescribed description in any particular case;”;
 - (ii) in paragraph (b), for “such direction” substitute “direction under paragraph (a) or (aa)”;
 - (iii) in paragraph (c), after “(a)(ii)” insert “or (aa)(ii)”;
 - (b) in subsection (1BA), in paragraph (b), for “or the Mayor of London” substitute “, the Mayor of London or the mayor of a relevant authority”;
 - (c) in subsection (1BB), for “the spatial development strategy” substitute “a spatial development strategy”;
 - (d) after subsection (1C) insert—
 - “(1D) In determining whether to exercise any power under subsection (1B) to direct a local planning authority to refuse an application, the mayor of a relevant authority shall have regard to—
 - (a) the development plan,
 - (b) any national development management policies, and
 - (c) the spatial development strategy relating to the area of the relevant authority as prepared and adopted under Part 1A of the Planning and Compulsory Purchase Act 2004,
 so far as material to the application.”
 - (e) after subsection (2) insert—
 - “(3) In this section, “relevant authority” means a mayoral combined authority or a mayoral combined county authority.”
- (8) In section 336 (interpretation)—
- (a) in the appropriate place, insert each of the following definitions—
 - ““combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;”;
 - ““combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;”;
 - ““mayoral combined authority” means a combined authority for an area for which provision is made in an order under section 107A of the Local Democracy, Economic Development and Construction Act 2009 for there to be a mayor;”;
 - ““mayoral combined county authority” means a combined county authority for an area for which provision is made in regulations under section 27(1) of the Levelling-up and Regeneration Act 2023 for there to be a mayor;”;
 - (b) for the definition of “spatial development strategy” substitute “—
 - (a) in relation to the Mayor of London, has the meaning given by section 334 of the Greater London Authority Act 1999;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) in relation to a combined authority or combined county authority, has the meaning given by section 12A of the Planning and Compulsory Purchase Act 2004;”.

Commencement Information

I284 Sch. 15 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

SCHEDULE 16Section 34

AMENDMENTS RELATING TO CHANGES TO MAYORAL PLANNING POWERS

PROSPECTIVE

Planning (Hazardous Substances) Act 1990

1In section 1 of the Planning (Hazardous Substances) Act 1990—

(a) the existing words become subsection (1);
(b) in that subsection, for the words from “But” to the end, substitute “But in the case of a London Borough, or where the land is situated in the area of a mayoral combined authority or a mayoral combined county authority, see also section 2B(5) of the principal Act (relevant mayor to be the hazardous substances authority in certain circumstances);
(c) after subsection (1) insert—

“(2) In this section, “mayoral combined authority” and “mayoral combined county authority” have the same meaning as in the Town and Country Planning Act 1990 (see section 336 of that Act).”

Commencement Information

I285 Sch. 16 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

Town and Country Planning Act 1990

2The Town and Country Planning Act 1990 is amended as follows.

Commencement Information

I286 Sch. 16 para. 2 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

- 3 In section 58B (duty of regard to certain heritage assets in granting permission), as inserted by section 102(1) of the Levelling-Up and Regeneration Act 2023, in subsection (4), after “London” insert “or the mayor of a mayoral combined authority or mayoral combined county authority”.

Commencement Information

I287 Sch. 16 para. 3 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 4 In section 70 (determination of applications: general considerations), in subsection (4), in the definition of “relevant authority”, after paragraph (b) insert—
- “(ba) the mayor of a mayoral combined authority;
 - (bb) the mayor of a mayoral combined county authority;”.

Commencement Information

I288 Sch. 16 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

- 5 In section 106 (planning obligations)—
- (a) in subsection (1)(d), after “Authority” insert “or, as the case may be, the mayoral combined authority or mayoral combined county authority”;
 - (b) in subsection (9)(d), after “London” insert “or, as the case may be, the mayor of a specified mayoral combined authority or specified mayoral combined county authority”;
 - (c) in subsection (10), after “London” insert “or, as the case may be, the mayor of a specified mayoral combined authority or specified mayoral combined county authority”;
 - (d) in subsection (12)(b), for “or the Mayor of London” substitute “, the Mayor of London or the mayor of a combined authority or combined county authority”.

Commencement Information

I289 Sch. 16 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

- 6 In section 106A (modification and discharge of planning obligations)—
- (a) in subsection (11)(a), after “London” insert “or the mayor of a combined authority or combined county authority”;
 - (b) in subsection (12), after “London” insert “or the mayor of a combined authority or combined county authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I290 Sch. 16 para. 6 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

- 7 In section 106B (appeals in relation to applications under section 106A), in subsection (8)—
- (a) after “London”, in the first place it occurs, insert “or the mayor of a combined authority or combined county authority”;
 - (b) after “London, in the second place it occurs, insert “or, as the case may be, the mayor of the combined authority or combined county authority”.

Commencement Information

I291 Sch. 16 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 8 In section 108 (compensation for refusal or conditional grant of planning permission etc), in subsection (1A), as inserted by paragraph 15(4) of Schedule 4 to the Infrastructure Act 2015—
- (a) in paragraph (a), after “London” insert “or the mayor of the combined authority or combined county authority who made the order”;
 - (b) in paragraph (b)—
 - (i) after “London”, in the first place it occurs, insert “or a mayor of a combined authority or combined county authority”;
 - (ii) after “London”, in the second place it occurs, insert “or, as the case may be, the mayor of the combined authority or combined county authority”.

Commencement Information

I292 Sch. 16 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)

- 9 In section 303 (fees for planning applications etc)—
- (a) in subsection (1ZA)(a), after “London” insert “or the mayor of a combined authority or combined county authority”;
 - (b) in subsection (10A), as inserted by paragraph 19(3) of Schedule 4 to the Infrastructure Act 2015—
 - (i) after “London”, in the first place it occurs, insert “, the mayor of a combined authority or combined county authority,”;
 - (ii) after “Mayor of London”, in the second place it occurs, insert “, the mayor,”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I293 Sch. 16 para. 9 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

- 10 In section 305 (contributions by Ministers towards compensation paid by local authorities), in subsection (1)(a) as amended by paragraph 20 of Schedule 4 to the Infrastructure Act 2015, after “London” insert “, the mayor of a combined authority or combined county authority”.

Commencement Information

I294 Sch. 16 para. 10 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 11 In section 322B (local inquiries in London: special provision as to costs in certain cases)—
- (a) in the heading, omit “in London”;
 - (b) in subsection (1)(a), for “London borough” substitute “relevant area”;
 - (c) in subsection (1)(b), for “Mayor of London” substitute “relevant mayor”;
 - (d) in subsection (5), in the substituted subsection—
 - (i) in paragraph (a), for “Mayor of London” substitute “relevant mayor”;
 - (ii) in paragraph (a), for “Mayor”, the second time it occurs, substitute “relevant mayor”;
 - (iii) in paragraph (b), for “Mayor” substitute “relevant mayor”;
 - (iv) in the closing words, for each reference to “Mayor” substitute “relevant mayor”;
 - (e) in subsection (6), in paragraph (a) of the substituted subsection—
 - (i) for “Mayor of London” substitute “relevant mayor”;
 - (ii) for “Mayor”, the second time it occurs, substitute “relevant mayor”;
 - (f) After subsection (6) insert—

“(6A) In this section—

“relevant area” means a London borough or the area (or part of the area) of a mayoral combined authority or mayoral combined county authority;

“relevant mayor” means—

 - (a) where planning permission or permission in principle is refused by the local planning authority for a London borough, the Mayor of London,
 - (b) where planning permission or permission in principle is refused by the local planning authority

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- for the area, or part of the area, of a mayoral combined authority, the mayor of that authority, or
- (c) where planning permission or permission in principle is refused by the local planning authority for the area, or part of the area, of a mayoral combined county authority, the mayor of that authority.”

Commencement Information

I295 Sch. 16 para. 11 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 12 In section 324 (rights of entry)—
- (a) in subsection (1B), as inserted by paragraph 21 of Schedule 4 to the Infrastructure Act 2015—
- (i) in the opening words, for “Mayor of London” substitute “relevant mayor”;
- (ii) in paragraph (a), for “Mayor of London” substitute “relevant mayor”;
- (iii) in paragraph (a), for “for the Mayor” substitute “the mayor”;
- (iv) in paragraph (b) for “Mayor of London” substitute “the relevant mayor”;
- (b) after subsection (1B), as inserted by paragraph 21 of Schedule 4 to the Infrastructure Act 2015, insert—
- “(1BZA) For the purposes of subsection (1B), the “relevant mayor”—
- (a) where the proposal is for a Mayoral development order to be made by the Mayor of London, the Mayor of London,
- (b) where the proposal is for a Mayoral development order to be made by the mayor of a mayoral combined authority, that mayor, or
- (c) where the proposal is for a Mayoral development order to be made by the mayor of a mayoral combined county authority, that mayor.”

Commencement Information

I296 Sch. 16 para. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 13 (1) Schedule 7A (biodiversity gain in England) is amended as follows.
- (2) In paragraph 12D—
- (a) in sub-paragraph (1), after “London” insert “or the mayor of a mayoral combined authority or mayoral combined county authority”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) in sub-paragraph (2)(a), after “London” insert “or the mayor of the mayoral combined authority or mayoral combined county authority”;
 - (c) in sub-paragraph (2)(b), after “London” insert “or, as the case may be, the mayor of the mayoral combined authority or mayoral combined county authority”.
- (3) In paragraph 12E—
- (a) in sub-paragraph (1)(a), after “London” insert “or the mayor of a mayoral combined authority or mayoral combined county authority”;
 - (b) in sub-paragraph (2)(a), after “London” insert “or, as the case may be, the mayor of the mayoral combined authority or mayoral combined county authority”.
- (4) in paragraph 12F—
- (a) in sub-paragraph (1)(a), after “London” insert “or the mayor of a mayoral combined authority or mayoral combined county authority”;
 - (b) in sub-paragraph (2)(a), after “London” insert “or, as the case may be, the mayor of the mayoral combined authority or mayoral combined county authority”.

Commencement Information

I297 Sch. 16 para. 13 not in force at Royal Assent, see [s. 108\(6\)](#)

Self-build and Custom Housebuilding Act 2015

- 14 In section 2A of the Self-build and Custom Housebuilding Act 2015 (duty to grant planning permission etc)—
- (a) in subsection (6)(b)(ii), for “or the Mayor of London” substitute “, the Mayor of London or the mayor of a mayoral combined authority or mayoral combined county authority”;
 - (b) after subsection (9) insert—

“(10) In this section—

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“mayoral combined authority” means a combined authority for an area for which provision is made in an order under section 107A of the Local Democracy, Economic Development and Construction Act 2009 for there to be a mayor;

“mayoral combined county authority” means a combined county authority for an area for which provision is made in regulations under section 27(1) of the Levelling-up and Regeneration Act 2023 for there to be a mayor.”

Commencement Information I298 Sch. 16 para. 14 in force at Royal Assent for specified purposes, see s. 108(1)(6)
--

Housing and Planning Act 2016

- 15
- In section 162 of the Housing and Planning Act 2016 (regulations under section 161: general)—
- (a)

in subsection (5), after “London” insert “, a mayor of a mayoral combined authorities or a mayoral combined county authority”;
- (b)

after subsection (5) insert—

“(6) In this section, “mayoral combined authority” and “mayoral combined county authority” have the same meaning as in the Town and Country Planning Act 1990 (see section 336 of that Act).”

Commencement Information I299 Sch. 16 para. 15 in force at Royal Assent for specified purposes, see s. 108(1)(6)
--

PROSPECTIVE	
<i>Levelling-Up and Regeneration Act 2023</i>	
16	In section 91 (interpretation of chapter), in the definition of “relevant planning authority”, after paragraph (e) insert— “(ea) the mayor (if any) of a combined authority, “(eb) the mayor (if any) of a combined county authority,”.

Commencement Information I300 Sch. 16 para. 16 not in force at Royal Assent, see s. 108(6)
--

PROSPECTIVE	
SCHEDULE 17	
Section 35	
COMMUNITY INFRASTRUCTURE LEVY	
1	(1) The Planning Act 2008 is amended as follows. (2) In section 206 (the charge), before its amendment by section 139 of LURA 2023— (a) in subsection (3), before paragraph (a) insert— “(aa) the mayor (if any) for the area of a combined authority is the charging authority for that area (in addition to the local planning authorities),

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ab) the mayor (if any) for the area of a combined county authority is the charging authority for that area (in addition to the local planning authorities),”;
 - (b) after subsection (3) insert—
 - “(3A) A mayor may only be a charging authority under subsection (3)(aa) or (ab) if—
 - (a) the mayor satisfies such conditions or requirements (if any) as may be specified in CIL regulations, or
 - (b) the authority in relation to whose area that person is the mayor satisfies any such conditions or requirements.”;
 - (c) in subsection (4), after “case” insert “of the area of a combined authority, the area of a combined county authority or”;
 - (d) after subsection (6) insert—
 - “(7) A mayor who is the charging authority under subsection (3)(aa) or (ab) may not make arrangements for any other person to exercise the mayor’s functions as a charging authority.
 - (8) In this section—
 - “combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;
 - “combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”
- (3) In section 213 (charging schedule: approval)—
- (a) in subsection (2), after “London” insert “or a relevant mayor”;
 - (b) in subsection (3), after “London” insert “or a relevant mayor”;
 - (c) after subsection (3) insert—
 - “(3ZA) If the charging authority is a relevant mayor, the mayor may approve the charging schedule only if the relevant authority has by a resolution approved the charging schedule.
 - (3ZB) The following requirements must be met in relation to the resolution mentioned in subsection (3ZA)—
 - (a) the resolution must be considered at a meeting of the relevant authority that is convened only for that purpose,
 - (b) particulars of the resolution must be included in the notice of the meeting,
 - (c) the resolution must be passed at the meeting by a simple majority of the members of the relevant authority who vote on it,
 - (d) in the event of a tied vote on whether to approve the charging schedule, the relevant mayor has a casting vote (in addition to any other vote the mayor may have).”;
 - (d) in subsection (5), after the definition of “examiner” insert—
 - ““relevant authority”, in relation to a relevant mayor, means the combined authority or combined county authority in relation to whose area that person is the mayor;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“relevant mayor” means—

- (a) the mayor for the area of a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009, or
- (b) the mayor for the area of a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023.”

(4) In section 214 (charging schedule: effect)—

- (a) in subsection (5), after “London” insert “or a relevant mayor”;
- (b) in subsection (6), after “London” insert “or a relevant mayor”;
- (c) after subsection (6) insert—

“(6A) If the charging authority is a relevant mayor, the mayor may make a determination under subsection (3) only if the relevant authority has by a resolution approved the proposed determination.

(6B) The following requirements must be met in relation to the resolution mentioned in subsection (6A)—

- (a) the resolution must be considered at a meeting of the relevant authority that is convened only for that purpose,
- (b) particulars of the resolution must be included in the notice of the meeting,
- (c) the resolution must be passed at the meeting by a simple majority of the members of the relevant authority who vote on it,
- (d) in the event of a tied vote on whether to approve the proposed determination, the relevant mayor has a casting vote (in addition to any other vote the mayor may have).

(6C) In this section, “relevant authority” and “relevant mayor” have the meaning given by section 213(5).”

Commencement Information

I301 Sch. 17 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 18

Section 36

ACQUISITION AND DEVELOPMENT OF LAND

PART 1

FUNCTIONS OF THE HOMES AND COMMUNITIES AGENCY (KNOWN AS HOMES ENGLAND)

Introduction

- 1 The Housing and Regeneration Act 2008 is amended in accordance with this Part of this Schedule.

Commencement Information

I302 Sch. 18 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Exercise of functions by strategic authorities outside London

- 2 In Chapter 2 of Part 1, before the italic cross-heading before section 5, insert—

“Exercise of functions by strategic authorities

4A Purpose of exercise of functions

- (1) A strategic authority outside London or mayor for the area of a strategic authority outside London may only exercise the functions conferred by this Chapter for the purposes of, or for purposes incidental to the objectives of—
- (a) improving the supply and quality of housing in the area of the strategic authority;
 - (b) securing the regeneration or development of land or infrastructure in that area;
 - (c) supporting in other ways the creation, regeneration or development of communities in that area or their continued well-being;
 - (d) contributing to the achievement of sustainable development and good design in that area,
- with a view to meeting the needs of people living in that area.
- (2) In this section—
- (a) “good design” and “needs” have the same meanings as in section 2 (see section 2(2));
 - (b) the reference to improving the supply of housing includes a reference to improving the supply of particular kinds of housing.”

Commencement Information

I303 Sch. 18 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Various powers

- 3 In the following provisions, after “HCA” insert “or a strategic authority outside London”—
- (a) section 5(1) and (2) (powers to provide housing or other land);
 - (b) section 6(1), (2) and (3) (powers for regeneration, development or effective use of land);
 - (c) section 7(1) and (2) (powers in relation to infrastructure);
 - (d) section 8 (powers to deal with land etc).

Commencement Information

I304 Sch. 18 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Acquisition of land

- 4 In section 9—
- (a) in subsection (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in subsection (2), after “HCA” insert “or a strategic authority outside London”;
 - (c) after subsection (5) insert—

“(5A) Section 9A makes provision about the exercise of the function conferred by subsection (2) on strategic authorities outside London.”;
 - (d) in subsection (6), after “HCA” insert “or a strategic authority”.

Commencement Information

I305 Sch. 18 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 5 After section 9 insert—

“9A Compulsory acquisition of land by strategic authorities outside London

- (1) This section applies to the compulsory acquisition function of strategic authorities.
- (2) In the case of a mayoral combined authority or mayoral CCA, the compulsory acquisition function is a function of the combined authority or CCA that is exercisable only by the mayor on behalf of the combined authority or CCA.
- (3) In the case of a mayoral combined authority, before exercising the compulsory acquisition function the mayor must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) In the case of a mayoral CCA, before exercising the compulsory acquisition function the mayor must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) the constituent councils;
 - (b) any district council within the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority.
- (5) In the case of a non-mayoral combined authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority;
- and consent of a constituent council must be given at a meeting of the combined authority.
- (6) In the case of a non-mayoral CCA, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) the constituent councils;
 - (b) any district council within the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority;
- and consent of a constituent council must be given at a meeting of the CCA.
- (7) In the case of a county council that is a strategic authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) any district council within the area of the county council;
 - (b) any National Park authority;
 - (c) the Broads Authority.
- (8) In the case of a district council that is a strategic authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) any National Park authority;
 - (b) the Broads Authority.
- (9) In this section “compulsory acquisition function” means the function conferred by section 9(2).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I306 Sch. 18 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Restrictions on disposal of land

- 6 In section 10, in subsections (1), (3) and (4), after “HCA” insert “or a strategic authority outside London”.

Commencement Information

I307 Sch. 18 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Main powers in relation to acquired land

- 7 In section 11, omit “by the HCA”.

Commencement Information

I308 Sch. 18 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Financial assistance

- 8 (1) Section 19 is amended in accordance with this paragraph.
- (2) In subsections (1), (1A) and (4), after “HCA” insert “or a strategic authority outside London”.
- (3) After subsection (5) insert—
- “(5A) A strategic authority outside London may only exercise the functions conferred by this section for the purposes of, or for purposes incidental to the objectives of—
- (a) improving the supply and quality of housing in the area of the strategic authority;
 - (b) securing the regeneration or development of land or infrastructure in that area;
 - (c) supporting in other ways the creation, regeneration or development of communities in that area or their continued well-being;
 - (d) contributing to the achievement of sustainable development and good design in that area,
- with a view to meeting the needs of people living in that area.
- (5B) In subsection (5A)—
- (a) “good design” and “needs” have the same meanings as in section 2 (see section 2(2));
 - (b) the reference to improving the supply of housing includes a reference to improving the supply of particular kinds of housing.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I309 Sch. 18 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Interpretation

9 In section 57, in subsection (1)—

(a) at the appropriate place insert—

““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023; “combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009;

“constituent council” means—

(a) in relation to a combined authority—

(i) a county council the whole or any part of whose area is within the area of the authority, or

(ii) a district council whose area is within the area of the authority;

(b) in relation to a CCA—

(i) a county council for an area within the area of the authority, or

(ii) a unitary district council for an area within the area of the authority;

and here “unitary district council” means the council for a district for which there is no county council;”;

(b) at the appropriate place insert—

““mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);

“mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”;

(c) at the appropriate place insert—

““non-mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);

“non-mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”;

(d) at the appropriate place insert—

““strategic authority” means—

(a) a district council or county council that is designated as a single foundation strategic authority under section 3 of the English Devolution and Community Empowerment Act 2026,

(b) a combined authority,

(c) a CCA, or

(d) the Greater London Authority;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“strategic authority outside London” means a strategic authority other than the Greater London Authority.”

Commencement Information

I310 Sch. 18 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Acquisition of land

- 10 (1) Schedule 2 is amended in accordance with this paragraph.
- (2) In paragraphs 1(2) and 2(2) (application of Acquisition of Land Act 1981), after “HCA” insert “and a strategic authority outside London (whether the power of compulsory acquisition is being exercised by the strategic authority or a mayor for its area)”.
- (3) In paragraph 3 (extinguishment of private rights of way etc)—
 - (a) in sub-paragraph (1), after “HCA” insert “, a strategic authority outside London, or the mayor for the area of a strategic authority outside London”;
 - (b) in sub-paragraph (2)(c), after “HCA” insert “or in the strategic authority outside London (whether the power of compulsory acquisition is being exercised by the strategic authority or a mayor for its area)”.
- (4) In paragraphs 4 and 5(a), after “HCA” insert “, strategic authority outside London, or mayor”.
- (5) In paragraph 7, in sub-paragraph (1), after “HCA” insert “(where it completes the compulsory acquisition) or the strategic authority outside London (where it, or the mayor for its area, completes the compulsory acquisition).”
- (6) In paragraph 17 (acquisition by agreement), in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”.

Commencement Information

I311 Sch. 18 para. 10 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Main powers in relation to land acquired

- 11 (1) Schedule 3 is amended in accordance with this paragraph.
- (2) In the heading, omit “by the HCA”.
- (3) In paragraph 3 (powers of Secretary of State to extinguish public rights of way by order), after “HCA” insert “or a strategic authority outside London”.
- (4) In paragraph 7 (duty to give opportunity to appear), in sub-paragraph (3)(a), after “HCA” insert “or strategic authority outside London”.
- (5) In paragraphs 12(2), 13(1), 14(1) and 15(a) (orders relating to electronic communications apparatus: removal or abandonment of apparatus), after “HCA” insert “or strategic authority outside London”.
- (6) In paragraph 19 (burial grounds)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (7) In paragraph 20 (consecrated land other than burial grounds)—
- (a) in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (8) In paragraph 21 (other land connected to religious worship), in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”.

Commencement Information

I312 Sch. 18 para. 11 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Powers in relation to, and for, statutory undertakers

- 12 (1) Schedule 4 is amended in accordance with this paragraph.
- (2) In paragraph 1 (notice for extinguishment of rights of undertakers or for removal of their apparatus)—
- (a) in sub-paragraph (1)(a) and (b), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (3) In paragraph 2 (counter-notices)—
- (a) in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (4) In paragraph 3 (effect of unopposed notice), in sub-paragraph (3), after “HCA” insert “or strategic authority outside London”.
- (5) In paragraph 4 (opposed notices and Ministerial orders), in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (6) In paragraph 5 (opposed notices and Ministerial orders), in sub-paragraph (2)(b)(ii), after “HCA” insert “or strategic authority outside London”.
- (7) In paragraph 6 (opposed notices and Ministerial orders), in sub-paragraph (3), after “HCA” insert “or strategic authority outside London”.
- (8) In paragraph 7 (compensation), in sub-paragraph (1)—
- (a) in the words before paragraph (a), after “HCA” insert “or strategic authority outside London”;
 - (b) in the words after paragraph (b), after “by virtue of” insert “a notice served by that agency or authority under”.
- (9) In paragraph 9 (notices by undertakers to carry out works)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in sub-paragraph (1)(a), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or strategic authority outside London”.
- (10) In paragraph 10 (counter-notices)—
 - (a) in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraphs (2) and (3), after “HCA” insert “or strategic authority outside London”;
 - (c) in sub-paragraph (4), for “HCA’s objection” substitute “objection by the HCA or strategic authority outside London”.
- (11) In paragraph 13 (power to arrange for works to be done by the HCA)—
 - (a) in the heading, omit “by the HCA”;
 - (b) in sub-paragraph (2), for “arrange with the HCA for the works to be carried out by the HCA” substitute “arrange with the HCA or strategic authority outside London for the works to be carried out that agency or authority”.
- (12) In paragraph 14 (compensation), in sub-paragraph (1)—
 - (a) after “HCA” insert “or strategic authority outside London”;
 - (b) after “by virtue of” insert “a notice served on that agency or authority under”.
- (13) In paragraph 16 (ministerial order following representations by statutory undertakers)—
 - (a) in sub-paragraph (4)(a), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (5), after “HCA” insert “or a strategic authority outside London”.
- (14) In paragraph 17 (ministerial order following representations by the HCA)—
 - (a) in the heading, after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (2), after “HCA” insert “or a strategic authority outside London”.
- (15) In paragraph 18 (examples of contents of orders), in sub-paragraph (2)(a), after “HCA” insert “or a strategic authority outside London”.
- (16) In paragraph 20 (notification of proposal to make order)—
 - (a) in sub-paragraph (1), after “HCA” insert “or a strategic authority outside London”;
 - (b) in sub-paragraph (3), after “HCA” insert “or strategic authority outside London”.
- (17) In paragraph 23 (duty to give opportunity to appear), in sub-paragraph (2)(a), after “HCA” insert “or strategic authority outside London”.
- (18) In paragraph 28 (orders to relieve obligations), in sub-paragraph (4)(a), after “HCA” insert “or a strategic authority outside London”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I313 Sch. 18 para. 12 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

PART 2

FUNCTIONS OF LOCAL AUTHORITIES

Introduction

- 13 The Town and Country Planning Act 1990 is amended in accordance with this Part of this Schedule.

Commencement Information

I314 Sch. 18 para. 13 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Compulsory acquisition of land for development and other planning purposes

- 14 (1) Section 226 is amended in accordance with this paragraph.
- (2) In subsections (1) and (1A), after “local authority” insert “or strategic authority”.
- (3) After subsection (1B) insert—
- “(1C) Section 226A makes provision about the exercise of the function conferred by subsection (1) on combined authorities and CCAs.”
- (4) In subsections (3) and (4) (in both places), after “local authority” insert “or strategic authority”.
- (5) In subsection (5)—
- (a) after the first “local authority” insert “or strategic authority”;
- (b) after “Act” insert “or strategic authority to whom this section applies”.
- (6) In subsection (6)—
- (a) in paragraph (bb), omit “and”;
- (b) after paragraph (c) insert—
- “(d) if the land is in the area of a strategic authority to whom this section applies, consult with that strategic authority (in addition to any other consultation required by this subsection).”
- (7) After subsection (8) insert—
- “(8A) In this section “strategic authority to whom this section applies” means a combined authority or CCA.”

Commencement Information

I315 Sch. 18 para. 14 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

15 After section 226 insert—

“226A Compulsory acquisition of land by combined authorities and CCAs

- (1) In the case of a mayoral combined authority, before exercising the compulsory acquisition function the combined authority must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority.
- (2) In the case of a mayoral CCA, before exercising the compulsory acquisition function the CCA must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any district council within the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority.
- (3) In the case of a non-mayoral combined authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority;

and consent of a constituent council must be given at a meeting of the combined authority.
- (4) In the case of a non-mayoral CCA, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any district council within the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority;

and consent of a constituent council must be given at a meeting of the CCA.
- (5) In this section “compulsory acquisition function” means the function conferred by section 226(1).”

Commencement Information

I316 Sch. 18 para. 15 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Acquisition of land by agreement

16 In section 227—

- (a) after “London borough” insert “or any combined authority or CCA”;
- (b) after “local authority” insert “or combined authority or CCA”.

Commencement Information

I317 Sch. 18 para. 16 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Appropriation of land forming part of common, etc

17 (1) Section 229 is amended in accordance with this paragraph.

(2) In subsection (1), after “local authority” insert “or non-mayoral combined authority or non-mayoral CCA”.

(3) In subsection (5), in the words before paragraph (a), after “local authority” insert “or non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I318 Sch. 18 para. 17 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Acquisition of land for purposes of exchange

18 In section 230, after subsection (1) insert—

“(1A) Without prejudice to the generality of the powers conferred by sections 226 and 227, any power of a combined authority or CCA to acquire land under those sections, whether compulsorily or by agreement, shall include power to acquire land required for giving in exchange for land appropriated under section 229.”

Commencement Information

I319 Sch. 18 para. 18 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Power of Secretary of State to require acquisition or development of land

19 (1) Section 231 is amended in accordance with this paragraph.

(2) In subsection (1)—

- (a) after “borough” insert “, or a combined authority or CCA,”;
- (b) after the second “council” insert “or combined authority or CCA”.

(3) In subsection (2), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I320 Sch. 18 para. 19 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Appropriation of land held for planning purposes

- 20 In section 232, in subsections (1), (2) and (4), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I321 Sch. 18 para. 20 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Disposal by local authorities of land held for planning purposes

- 21 (1) Section 233 is amended in accordance with this paragraph.
- (2) In the heading, after “local” insert “or strategic”.
- (3) In subsections (1) and (2), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.
- (4) In subsection (3A)—
- (a) in paragraph (b), omit “and”;
 - (b) after paragraph (b) insert—

“(ba) in relation to combined authorities or CCAs generally, or combined authorities or CCAs of a particular class, or to any particular combined authority or authorities or CCA or CCAs, and”.
- (5) In subsections (4) and (5), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.
- (6) In subsection (9), after “England” insert “or by a non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I322 Sch. 18 para. 21 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Development of land held for planning purposes

- 22 (1) Section 235 is amended in accordance with this paragraph.
- (2) In subsection (1)—
- (a) in the words before paragraph (a), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”;
 - (b) in paragraph (a), for “that local authority” substitute “that authority”.
- (3) In subsections (2)(a) and (3), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(4) In subsection (4)—

- (a) after “A local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”;
- (b) for “the local authority” substitute “the authority”.

(5) In subsection (5)(a), after “local authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I323 Sch. 18 para. 22 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Use and development of consecrated land and burial grounds

23 In section 240 (provisions supplemental to sections 238 and 239 (which provide for the use and development of consecrated land and burial grounds)), after subsection (3) insert—

“(4) In sections 238 and 239 “relevant acquisition or appropriation” also includes an acquisition made by a combined authority or CCA under this Part or compulsorily under any other enactment, or an appropriation by a combined authority or CCA for planning purposes.”

Commencement Information

I324 Sch. 18 para. 23 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Use and development of open spaces

24 In section 241, in subsection (1)—

- (a) after the first “local authority” insert “, a combined authority or CCA”;
- (b) after the second “local authority” insert “or a combined authority or CCA”.

Commencement Information

I325 Sch. 18 para. 24 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Overriding of rights of possession

25 In section 242, in paragraph (a), after “authority” insert “or a non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I326 Sch. 18 para. 25 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Constitution of joint body to hold land for planning purposes

26 In section 243, in subsection (1)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) for “local authorities concerned” substitute “authorities concerned”;
- (b) for “local authority for planning purposes” substitute “local authority, or non-mayoral combined authority or non-mayoral CCA, for planning purposes”;
- (c) for “any other local authority” substitute “any other local authority, non-mayoral combined authority or non-mayoral CCA”.

Commencement Information

I327 Sch. 18 para. 26 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Interpretation of Part 9

- 27 In section 246, in subsection (2), after “local authority” insert “, a combined authority or CCA”.

Commencement Information

I328 Sch. 18 para. 27 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Extinguishment of rights of statutory undertakers: preliminary notices

- 28 (1) Section 271 is amended in accordance with this paragraph.
- (2) In the following provisions, for “local authority” substitute “relevant authority”—
- (a) subsection (1) (in both places);
 - (b) subsection (5) (in the words before paragraph (a)).
- (3) After subsection (8) insert—
- “(9) In this section “relevant authority” means—
- (a) a local authority, or
 - (b) a non-mayoral combined authority or non-mayoral CCA.”

Commencement Information

I329 Sch. 18 para. 28 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Extinguishment of rights of electronic communications code network operators: preliminary notices

- 29 (1) Section 272 is amended in accordance with this paragraph.
- (2) In the following provisions, for “local authority” substitute “relevant authority”—
- (a) subsection (1) (in both places);
 - (b) subsection (5) (in the words before paragraph (a)).
- (3) After subsection (8) insert—
- “(9) In this section “relevant authority” means—
- (a) a local authority, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) a non-mayoral combined authority or non-mayoral CCA.”

Commencement Information

I330 Sch. 18 para. 29 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Orders under sections 271 and 272

30 In section 274, in subsection (3), for “local authority” substitute “relevant authority”.

Commencement Information

I331 Sch. 18 para. 30 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Extension or modification of functions of statutory undertakers

31 (1) Section 275 is amended in accordance with this paragraph.

(2) In the following provisions, for “local authority” substitute “relevant authority”—

- (a) subsection (1)(a);
- (b) subsection (3) (in all three places);
- (c) subsection (5)(c).

(3) After subsection (5) insert—

“(6) In this section “relevant authority” means—

- (a) a local authority, or
- (b) a non-mayoral combined authority or non-mayoral CCA.”

Commencement Information

I332 Sch. 18 para. 31 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Procedure in relation to orders under section 275

32 In section 276, in subsection (1), in the words before paragraph (a), for “local authority” substitute “relevant authority”.

Commencement Information

I333 Sch. 18 para. 32 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Objections to orders under sections 275 and 277

33 In section 278, in subsection (7), for “local authority” substitute “relevant authority”.

Commencement Information

I334 Sch. 18 para. 33 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Contributions by local authorities and statutory undertakers

- 34 (1) Section 306 is amended in accordance with this paragraph.
- (2) In the following provisions, for “local authority” substitute “relevant authority”—
- (a) the heading;
 - (b) subsection (1) (in the words before paragraph (a) and in paragraph (c));
 - (c) subsection (2) (in the words before paragraph (a));
 - (d) subsection (3) (in both places);
 - (e) subsection (4).
- (3) After subsection (6) insert—
- “(7) In this section “relevant authority” means—
- (a) a local authority, or
 - (b) a non-mayoral combined authority or non-mayoral CCA.”

Commencement Information

I335 Sch. 18 para. 34 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Interpretation

- 35 In section 336, in subsection (1)—
- (a) at the appropriate place insert—

““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023;”;
 - (b) at the appropriate place insert—

““combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009;”;
 - (c) at the appropriate place insert—

““constituent council” means—

 - (a) in relation to a combined authority—
 - (i) a county council the whole or any part of whose area is within the area of the authority, or
 - (ii) a district council whose area is within the area of the authority;
 - (b) in relation to a CCA—
 - (i) a county council for an area within the area of the authority, or
 - (ii) a unitary district council for an area within the area of the authority;

and here “unitary district council” means the council for a district for which there is no county council;”;
 - (d) at the appropriate place insert—

““mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”;

(e) at the appropriate place insert—

““non-mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);

“non-mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”.

Commencement Information

I336 Sch. 18 para. 35 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

PART 3

THE GREATER LONDON AUTHORITY

Acquisition of land by agreement

36 After section 333ZA of the GLAA 1999 insert—

“333ZAA Acquisition of land by agreement

The Authority may acquire land in Greater London by agreement for the purposes of housing or regeneration.”

Commencement Information

I337 Sch. 18 para. 36 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

SCHEDULE 19

Section 37

HOUSING ACCOMMODATION

Introduction

1 The Housing Act 1985 is amended in accordance with this Schedule.

Commencement Information

I338 Sch. 19 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Periodical review of housing needs

2 (1) Section 8 is amended in accordance with this paragraph.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) After subsection (1) insert—

“(1A) Every—

- (a) combined authority,
- (b) CCA, and
- (c) two-tier county council that is a strategic authority,

must consider housing conditions in its area and the needs of its area with respect to the provision of further housing accommodation.

(1B) But if a local housing authority has complied with the duty imposed by subsection (1) in relation to a part of the area of a combined authority, CCA or two-tier county council, that strategic authority—

- (a) does not need to comply with the duty imposed by subsection (1A) in relation to that part of its area; and
- (b) may rely on the local housing authority’s consideration of the matters referred to in subsection (1) as if it were the strategic authority’s own consideration of those matters.”

(3) In subsection (2) for “that purpose the authority” substitute “the purpose of subsection (1) or (1A), a local housing authority or combined authority, CCA or county council”.

(4) In subsection (3)—

- (a) after “England,” insert “or a combined authority, CCA or county council,”;
- (b) after “district” insert “, or area,”.

Commencement Information

I339 Sch. 19 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Provision of housing accommodation

3 (1) Section 9 is amended in accordance with this paragraph.

(2) In subsection (1), in the words before paragraph (a), after “local housing authority” insert “, combined authority or CCA, or two-tier county council that is a strategic authority”.

(3) In subsection (4), for “A local housing authority” substitute “An authority”.

(4) In subsection (5), for “a local housing authority” substitute “an authority”.

Commencement Information

I340 Sch. 19 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Provision of board and laundry facilities

4 (1) Section 11 is amended in accordance with this paragraph.

(2) In subsection (1), for the words before paragraph (a) substitute—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(1) A local housing authority, combined authority or CCA, or two-tier county council that is a strategic authority may provide in connection with the provision of housing accommodation under this Part (whether it is provided by that authority or another authority)—”

(3) In subsection (4), for “A local housing authority” substitute “An authority”.

Commencement Information

I341 Sch. 19 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Provision of shops, recreation grounds, etc

5 (1) Section 12 is amended in accordance with this paragraph.

(2) In subsection (1), for the words before paragraph (a) substitute—

“(1) A local housing authority, combined authority or CCA, or two-tier county council that is a strategic authority may, with the consent of the Secretary of State, provide and maintain in connection with housing accommodation provided under this Part (whether it is provided by that authority or another authority)—”.

(3) In subsection (3), for “the local housing authority” substitute “the authority”.

Commencement Information

I342 Sch. 19 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Acquisition of land for housing purposes

6 (1) Section 17 is amended in accordance with this paragraph.

(2) In subsection (1), after “local housing authority” insert “, a combined authority or CCA, or a two-tier county council that is a strategic authority”.

(3) In subsection (3), after “local housing authority” insert “, combined authority or CCA, or two-tier county council that is a strategic authority”.

(4) In subsection (4)—

- (a) after “local housing authority” insert “, combined authority or CCA, or two-tier county council that is a strategic authority”;
- (b) for “an authority” substitute “a local housing authority, combined authority or CCA, or two-tier county council that is a strategic authority”.

(5) After subsection (4) insert—

“(5) Section 17A makes provision about the exercise of the function of acquiring land compulsorily under an authorisation under section 17(3) conferred on a combined authority or CCA or two-tier county council that is a strategic authority.”

(6) After section 17 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“17A Compulsory acquisition of land by strategic authorities

- (1) This section applies to the exercise of the compulsory acquisition function of combined authorities, CCAs and two-tier county councils that are strategic authorities.
- (2) In the case of a mayoral combined authority or mayoral CCA, the compulsory acquisition function is a function of the combined authority or CCA that is exercisable only by the mayor on behalf of the combined authority or CCA.
- (3) In the case of a mayoral combined authority, before exercising the compulsory acquisition function the mayor must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority.
- (4) In the case of a mayoral CCA, before exercising the compulsory acquisition function the mayor must consult any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any district council with the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority.
- (5) In the case of a non-mayoral combined authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any National Park authority;
 - (c) the Broads Authority;
 and consent of a constituent council must be given at a meeting of the combined authority.
- (6) In the case of a non-mayoral CCA, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
 - (a) the constituent councils;
 - (b) any district council within the area of the CCA that is not a constituent council;
 - (c) any National Park authority;
 - (d) the Broads Authority;
 and consent of a constituent council must be given at a meeting of the CCA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (7) In the case of a two-tier county council that is a strategic authority, the exercise of the compulsory acquisition function requires the consent of any of the following bodies whose area contains any part of the land subject to the proposed compulsory acquisition—
- (a) any district council within the area of the county council;
 - (b) any National Park authority;
 - (c) the Broads Authority.
- (8) In this section “compulsory acquisition function” means the function of acquiring land compulsorily under an authorisation under section 17(3).”

Commencement Information

I343 Sch. 19 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Duties with respect to buildings acquired for housing purposes

- 7 (1) Section 18 is amended in accordance with this paragraph.
- (2) In subsection (1), after “local housing authority” insert “, a combined authority or CCA, or a two-tier county council that is a strategic authority”.
- (3) In subsection (2), after “local housing authority” insert “, a combined authority or CCA, or a two-tier county council that is a strategic authority”.

Commencement Information

I344 Sch. 19 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Interpretation

- 8 In section 56 (minor definitions), in subsection (1)—
- (a) at the appropriate place insert—
- ““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023; “combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009; “constituent council” means—
- (a) in relation to a combined authority—
 - (i) a county council the whole or any part of whose area is within the area of the authority, or
 - (ii) a district council whose area is within the area of the authority;
 - (b) in relation to a CCA—
 - (i) a county council for an area within the area of the authority, or
 - (ii) a unitary district council for an area within the area of the authority;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- and here “unitary district council” means the council for a district for which there is no county council;”;
- (b) at the appropriate place insert—
““mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);
“mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”;
- (c) at the appropriate place insert—
““non-mayoral CCA” has the same meaning as in the Levelling-up and Regeneration Act 2023 (see section 57 of that Act);
“non-mayoral combined authority” has the same meaning as in the Local Democracy, Economic Development and Construction Act 2009 (see section 120 of that Act);”;
- (d) at the appropriate place insert—
““two-tier county council that is a strategic authority” means a county council whose area includes the areas of district councils that is designated as a single foundation strategic authority under section 3 of the English Devolution and Community Empowerment Act 2026.”.

Commencement Information

I345 Sch. 19 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

9 In section 57 (index of defined expressions)—

- (a) at the appropriate place insert—
- | | |
|--------------------|--------------|
| “CCA | section 56 |
| combined authority | section 56”; |
- (b) at the appropriate place insert—
- | | |
|----------------------|--------------|
| “constituent council | section 56”; |
|----------------------|--------------|
- (c) at the appropriate place insert—
- | | |
|----------------------------|--------------|
| “mayoral CCA | section 56 |
| mayoral combined authority | section 56”; |
- (d) at the appropriate place insert—
- | | |
|--------------------------------|--------------|
| “non-mayoral CCA | section 56 |
| non-mayoral combined authority | section 56”; |
- (e) at the appropriate place insert—
- | | |
|--|--------------|
| ““two-tier county council that is a strategic authority” | section 56”. |
|--|--------------|

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I346 Sch. 19 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

SCHEDULE 20

Section 38

MAYORAL DEVELOPMENT CORPORATIONS

PART 1

AMENDMENT OF THE LOCALISM ACT 2011

Introduction

1 The Localism Act 2011 is amended in accordance with this Part of this Schedule.

Commencement Information

I347 Sch. 20 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Part 8

2 In the heading of Part 8, after “London” insert “and areas of other mayoral strategic authorities”.

Commencement Information

I348 Sch. 20 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Interpretation

3 In section 196—

(a) before the definition of “the Mayor” insert—

““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023;

“combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009;

“constituent council” means—

(a) in relation to a combined authority—

(i) a county council the whole or any part of whose area is within the area of the authority, or

(ii) a district council whose area is within the area of the authority;

(b) in relation to a CCA—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) a county council for an area within the area of the authority, or
 - (ii) a unitary district council for an area within the area of the authority;

and here “unitary district council” means the council for a district for which there is no county council;”;
- (b) for the definition of “the Mayor” substitute—
 - ““the Mayor” means—
 - (a) the Mayor of London,
 - (b) the mayor for the area of a combined authority, or
 - (c) the mayor for the area of a CCA;”;
- (c) after the definition of “MDC” insert—
 - ““strategic authority area” means—
 - (a) in relation to the Mayor of London or a mayoral development area designated by that Mayor, Greater London;
 - (b) in relation to the mayor for the area of a combined authority or a mayoral development area designated by the mayor for such an area, the area of the combined authority, or
 - (c) in relation to the mayor for the area of a CCA or a mayoral development area designated by the mayor for such an area, the area of the CCA;”.

Commencement Information

I349 Sch. 20 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Designation of Mayoral development areas

- 4 (1) Section 197 is amended in accordance with this paragraph.
- (2) In subsection (1), for “Greater London” substitute “a strategic authority area”.
- (3) In subsection (3), in the words before paragraph (a), for “the Mayor” substitute “the Mayor of London”.
- (4) After subsection (5) insert—
 - “(5A) The mayor for the area of a combined authority or CCA may designate a Mayoral development area only if—
 - (a) the Mayor considers that designation of the area is expedient for furthering economic development and regeneration in the strategic authority area,
 - (b) the Mayor has consulted the persons specified by subsection (5B) and, if applicable, subsection (5C),
 - (c) the Mayor has had regard to any comments made in response by the consultees,
 - (d) in the event that those comments include comments made by a constituent council or a district council consulted under subsection (5C) that are comments that the Mayor does not accept,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

the Mayor has published a statement giving the reasons for the non-acceptance,

- (e) the Mayor has laid before the combined authority or CCA, in accordance with its standing orders, a document stating that the Mayor is proposing to designate the area, and
- (f) the combined authority or CCA approves the proposal.

(5B) The persons who have to be consulted before an area may be designated are—

- (a) the constituent councils,
- (b) each Member of Parliament whose parliamentary constituency contains any part of the area, and
- (c) any other person whom the Mayor considers it appropriate to consult.

(5C) In the case of a combined county authority, any district council whose local authority area contains any part of the area also has to be consulted before the area may be designated.

(5D) For the purposes of subsection (5A)(f) the combined authority or CCA approves a proposal if it resolves to do so on a motion considered at a meeting of the combined authority or CCA throughout which members of the public are entitled to be present.”

Commencement Information

I350 Sch. 20 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Exclusion of land from Mayoral development areas

5 (1) Section 199 is amended in accordance with this paragraph.

(2) In subsection (2), for “the Mayor” substitute “the Mayor of London”.

(3) After subsection (2) insert—

“(2A) Before making an alteration, the mayor for the area of a combined authority or CCA must consult—

- (a) the constituent councils, and
- (b) any other person whom the Mayor considers it appropriate to consult.”

Commencement Information

I351 Sch. 20 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Transfers of property etc to a Mayoral development corporation

6 (1) Section 200 is amended in accordance with this paragraph.

(2) In subsection (1), for “a person within subsection (3)” substitute “an eligible transferor”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) After subsection (1) insert—

“(1A) In the case of an MDC for an area in Greater London, “eligible transferor” means—

- (a) a London borough council,
- (b) the Common Council of the City of London in its capacity as a local authority,
- (c) any company whose members—
 - (i) include the Mayor of London and a Minister of the Crown, and
 - (ii) do not include anyone who is neither the Mayor or London nor a Minister of the Crown, or
- (d) a person within subsection (3).

(1B) In the case of an MDC for an area in the area of a combined authority, “eligible transferor” means a person within subsection (3).

(1C) In the case of an MDC for an area in the area of a CCA, “eligible transferor” means—

- (a) any district council whose local authority area is within the area of the CCA, or
- (b) a person within subsection (3).”.

(4) In subsection (3)—

- (a) omit paragraphs (a) and (b);
- (b) in paragraphs (d) and (e), for “Greater London” substitute “the strategic authority area”;
- (c) omit paragraph (k).

(5) In subsection (4), for “liabilities of—” substitute “liabilities of an eligible transferee.

“(4A) In the case of an MDC for an area in Greater London, “eligible transferee” means—”.

(6) Before subsection (5) insert—

“(4A) In the case of an MDC for an area in the area of a combined authority or CCA, “eligible transferee” means—

- (a) the combined authority or CCA, or
- (b) a company that is a subsidiary of the combined authority or CCA.”

(7) In subsection (9), after “(4)(c)” insert “or (4A)(b)”.

Commencement Information

I352 Sch. 20 para. 6 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Functions in relation to Town and Country Planning

7 (1) Section 202 is amended in accordance with this paragraph.

(2) In subsection (7), for “the Mayor” substitute “the Mayor of London”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) After subsection (7) insert—

“(7A) The mayor for the area of a combined authority or CCA may make a decision under any of subsections (2) to (6) only if—

- (a) the Mayor has consulted the persons specified by section 197(5B) and, if applicable, section 197(5C), in relation to the area,
- (b) the Mayor has had regard to any comments made in response by the consultees, and
- (c) in the event that those comments include comments made by the constituent council or a district council specified by section 197(5C) that are comments that the Mayor does not accept, the Mayor has published a statement giving the reasons for the non-acceptance.”

Commencement Information

I353 Sch. 20 para. 7 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Arrangements for discharge of, or assistance with, planning functions

8 In section 203, in subsections (1) and (4), after “City of London” insert “, or a county council or district council”.

Commencement Information

I354 Sch. 20 para. 8 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Acquisition of land

9 (1) Section 207 is amended in accordance with this paragraph.

(2) In subsection (2), for “Greater London” substitute “the strategic authority area”.

(3) For subsection (3) substitute—

“(3) Before submitting a compulsory purchase order authorising an acquisition under subsection (2) to the Secretary of State for confirmation—

- (a) an MDC for an area in Greater London must obtain the consent of the Mayor of London;
- (b) an MDC for an area in the area of a combined authority or CCA must obtain the consent of the mayor for that area.”

Commencement Information

I355 Sch. 20 para. 9 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Powers in relation to discretionary relief from non-domestic rates

10 (1) Section 214 is amended in accordance with this paragraph.

(2) In subsection (4), for “the Mayor” substitute “the Mayor of London”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) After subsection (4) insert—

“(4A) The mayor for the area of a combined authority or CCA may make a decision under any of subsection (2) or (3) only if—

- (a) the Mayor has consulted the persons specified by section 197(5B) and, if applicable, section 197(5C), in relation to the area,
- (b) the Mayor has had regard to any comments made in response by the consultees, and
- (c) in the event that those comments include comments made by the constituent council or a district council specified by section 197(5C) that are comments that the Mayor does not accept, the Mayor has published a statement giving the reasons for the non-acceptance.”

Commencement Information

I356 Sch. 20 para. 10 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Transfers of property, rights and liabilities

11 (1) Section 216 is amended in accordance with this paragraph.

(2) For subsection (2) substitute—

“(2) A transfer scheme may provide for a transfer to a person only if the person consents; but this does not apply to a transfer to any of the following—

- (a) the Greater London Authority;
- (b) a functional body other than the MDC concerned;
- (c) a company that is a subsidiary of the Greater London Authority;
- (d) a combined authority;
- (e) a company that is a subsidiary of a combined authority;
- (f) a CCA;
- (g) a company that is a subsidiary of a CCA.”

(3) In subsection (4), in the definition of “permitted recipient”—

- (a) after ““permitted recipient”” insert “, in relation to an MDC for an area in Greater London,”;
- (b) after paragraph (f) insert—

“in relation to an MDC for an area in the area of a combined authority, means—

- (a) the combined authority,
- (b) a company that is a subsidiary of the combined authority, or
- (c) any other person;

in relation to an MDC for an area in the area of a CCA, means—

- (a) the CCA,
- (b) a company that is a subsidiary of the CCA,
- (c) any district council whose local authority area is within the area of the CCA or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(d) any other person;”.

Commencement Information

I357 Sch. 20 para. 11 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Miscellaneous provisions

12 After section 217 insert—

“MDCs outside London

217A Political activities of officers and staff etc

- (1) Section 1 of the LGHA 1989 (disqualification and political restriction of certain officers and staff), and sections 2 and 3A of that Act so far as they have effect for the purposes of section 1, apply in relation to an MDC outside London as if it were a local authority.
- (2) Section 5 of the LGHA 1989 (designation and reports of monitoring officer) applies in relation to a combined authority or CCA as if an MDC for an area in the area of the combined authority or CCA were a committee of the combined authority or CCA.
- (3) In this section—

“LGHA 1989” means the Local Government and Housing Act 1989;

“MDC outside London” means an MDC for an area in the area of a combined authority or CCA.”

Commencement Information

I358 Sch. 20 para. 12 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Schedule 21

13 Schedule 21 is amended in accordance with paragraphs 14 to 18.

Commencement Information

I359 Sch. 20 para. 13 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 14 (1) Paragraph 1 (membership) is amended in accordance with this paragraph.
- (2) In sub-paragraph (1)—
 - (a) for “A Mayoral development corporation (“MDC”)” substitute “An MDC for an area in Greater London”;
 - (b) omit “(“the Mayor”)”.
- (3) In sub-paragraph (2), for “The Mayor” substitute “The Mayor of London”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(4) After sub-paragraph (3) insert—

“(3A) An MDC for an area in the area of a combined authority or CCA is to consist of such number of members (being not less than six) as the mayor for the area of the combined authority or CCA may from time to time appoint.

(3B) The mayor for the area of a combined authority or CCA must, subject to sub-paragraph (5), exercise the mayor's power under sub-paragraph (3A) so as to secure that the members of an MDC include at least one elected member of each relevant council.

(3C) For the purposes of this Schedule a council is “relevant” in relation to an MDC if—

- (a) any part of the MDC's area is within the council's area, and
- (b) the council is—
 - (i) the council for a county in which there are no district councils, or
 - (ii) a district council.”

Commencement Information

I360 Sch. 20 para. 14 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

15 In paragraph 2 (terms of appointment of members), in sub-paragraph (5)(d), after “relevant London council” insert “or relevant council”.

Commencement Information

I361 Sch. 20 para. 15 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

16 In paragraph 4 (remuneration etc: members and staff), in sub-paragraph (4), after “London Assembly” insert “, or the combined authority or CCA,”.

Commencement Information

I362 Sch. 20 para. 16 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

17 In paragraph 9 (proceedings), in paragraph (c), after “each relevant London council” insert “or each relevant council”.

Commencement Information

I363 Sch. 20 para. 17 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

18 In paragraph 10 (annual report), in sub-paragraph (1)(c), after “and” insert “, in the case of an MDC for an area in London,”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I364 Sch. 20 para. 18 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

PART 2

AMENDMENT OF OTHER LEGISLATION

Channel Tunnel Rail Link Act 1996

- 19 In Schedule 2 to the Channel Tunnel Rail Link Act 1996 (works: further and supplementary provisions), in paragraph 9(8)(a), after “Mayoral development corporation” insert “for an area in Greater London”.

Commencement Information

I365 Sch. 20 para. 19 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

GLAA 1999

- 20 (1) The GLAA 1999 is amended in accordance with this paragraph.
- (2) In section 31 (limits of the general power), in subsection (1A), after “Mayoral development corporation” insert “for an area in Greater London”.
- (3) In section 38 (delegation), in subsection (2)(da), after “Mayoral development corporation” insert “for an area in Greater London”.
- (4) In section 60A (confirmation hearings etc for certain appointments by the Mayor), in subsection (3), after “Mayoral development corporation” insert “for an area in Greater London”.
- (5) In section 68 (disqualification and political restriction), in subsection (6)(aa), after “Mayoral development corporation” insert “for an area in Greater London”.
- (6) In section 403B (acquisition of land by MDC and TfL for shared purposes), after subsection (9) insert—
- “(10) In this section “Mayoral development corporation” means a Mayoral development corporation for an area in Greater London.”
- (7) In section 424 (interpretation), in subsection (1), in the definition of “functional body”, in paragraph (aa), after “Mayoral development corporation” insert “for an area in Greater London”.

Commencement Information

I366 Sch. 20 para. 20 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Local Government Act 2003

- 21 In the Local Government Act 2003, after section 32A (inserted by section 42 of this Act) insert—

“32B Application to Mayoral development corporations outside London

- (1) For the purposes of section 31, expenditure of a Mayoral development corporation for an area in the area of a combined authority or CCA shall be treated as expenditure of the combined authority or CCA.
- (2) The conditions on which grant under section 31 may be paid include, in the case of a grant to a combined authority or CCA, a condition requiring the combined authority or CCA to transfer the grant to the Mayoral development corporation.
- (3) A decision to pay a grant under section 31 subject to such a condition as is mentioned in subsection (2) above shall be notified to the Mayoral development corporation as well as to the combined authority or CCA.
- (4) Where a grant paid under section 31 to a combined authority or CCA is paid subject to such a condition as is mentioned in subsection (2) above, the combined authority or CCA must transfer the grant to the Mayoral development corporation forthwith.
- (5) Where a grant paid under section 31 to a combined authority or CCA is not paid subject to such a condition as is mentioned in subsection (2) above, the Mayor may transfer the grant to a Mayoral development corporation.
- (6) Where grant under section 31 is transferred under this section to a Mayoral development corporation, any conditions to which the grant is subject shall apply to the transferee instead of the transferor.
- (7) In this section—

“CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023;

“combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009.”

Commencement Information

I367 Sch. 20 para. 21 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Planning and Compulsory Purchase Act 2004

- 22 In section 24 of the Planning and Compulsory Purchase Act 2004 (conformity with regional strategy), in subsection (1)(b) and subsection (4), after “Mayoral development corporation” insert “for an area in Greater London”.

Commencement Information

I368 Sch. 20 para. 22 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Crossrail Act 2008

- 23 In Schedule 2 to the Channel Tunnel Rail Link Act 1996 (works: further and supplementary provisions), in paragraph 8(8)(a), after “Mayoral development corporation” insert “for an area in Greater London”.

Commencement Information

I369 Sch. 20 para. 23 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

SCHEDULE 21

Section 40

ASSESSMENT OF ECONOMIC CONDITIONS

- 1 (1) Part 4 of LDEDCA 2009 (local authority economic assessments) is amended in accordance with this Schedule.
- (2) In the heading of Part 4, after “local authority” insert “and strategic authority”.
- (3) Section 69 (local authority economic assessments) is amended as follows.
- (4) In the heading, after “local authority” insert “and strategic authority”.
- (5) In subsections (1) and (2), for “principal local authority” substitute “relevant authority”.
- (6) In subsection (3)—
- (a) in the words before paragraph (a), for “principal local authority” substitute “relevant authority”;
 - (b) after paragraph (e) insert—
 - “(f) a combined authority;
 - (g) a combined county authority.”.
- (7) In subsections (4) and (5), for “principal local authority” substitute “relevant authority”.
- (8) After subsection (5) insert—
- “(5A) Where a relevant authority is a combined authority or combined county authority, the following duties also apply in relation to the discharge by the authority of its functions under this section—
- (a) the combined authority or combined county authority must consult and seek the participation of the constituent councils and any other local district council;
 - (b) the combined authority or combined county authority must have regard to any material produced by a constituent council or any other local district council in the discharge of the council's functions under section 13 of the Planning and Compulsory Purchase Act 2004;
 - (c) the constituent councils and any other local district council must co-operate with the combined authority or combined county authority.”
- (9) In subsection (6), for “principal local authority” substitute “relevant authority”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(10) In subsection (7)(a), after “local government” insert “(including combined authorities and combined county authorities)”.

(11) After subsection (7) insert—

“(7A) Where a relevant authority is a constituent council of a combined authority or combined county authority, any requirement in any legislation for the relevant authority to exercise a function under this section may be fulfilled by the exercise of that function by the combined authority or combined county authority.”

(12) For subsection (8), substitute—

“(8) In this section—

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“constituent council” means—

(a) in relation to a combined authority—

(i) a county council the whole or any part of whose area is within the area of the authority, or

(ii) a district council whose area is within the area of the authority;

(b) in relation to a combined county authority—

(i) a county council for an area within the area of the authority, or

(ii) a unitary district council for an area within the area of the authority;

“other local district council” means a district council—

(a) whose area is within the area of a combined authority or combined county authority, but

(b) which is not a constituent council;

“unitary district council” means a district council whose area is not part of the area of a county council.”

Commencement Information

I370 Sch. 21 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 22

Section 41

LOCAL GROWTH PLANS

Local growth plans

- 1 (1) After section 107K of LDEDCA 2009 insert—

“Mayoral combined authorities: local growth plans

107L Local growth plans

- (1) A mayoral combined authority must prepare and publish a local growth plan for its area.
- (2) A local growth plan must—
 - (a) include an overview of the economic conditions of the area (including the main economic characteristics which are likely to influence current and future economic growth),
 - (b) identify priorities for the economic growth of the area that are agreed with the Secretary of State (“shared local growth priorities”), and
 - (c) identify key projects for achieving economic growth in the area through private or public investment.
- (3) A mayoral combined authority may revise or replace a local growth plan published under this section.
- (4) The authority must arrange for any local growth plan that is revised or replaced to be published.
- (5) The requirement under [subsection \(1\)](#) may be met by the publication of a local growth plan before this section comes into force.

107M Secretary of State guidance on local growth plans

- (1) The Secretary of State may issue guidance to mayoral combined authorities in relation to local growth plans under [section 107L](#).
- (2) A mayoral combined authority must have regard to any such guidance in exercising their functions.
- (3) The guidance may include (but is not limited to) guidance about—
 - (a) who the authority might consult when preparing or revising the plan;
 - (b) information to be included in the plan under [section 107L\(2\)](#) or the plan as revised;
 - (c) the process for agreeing priorities for the economic growth of the area with the Secretary of State for the purposes of [section 107L\(2\)\(b\)](#);
 - (d) the circumstances in which the authority may revise or replace the plan;
 - (e) the ways in which the authority may have regard to the plan when exercising its other functions.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) After section 107M of LDEDCA 2009 (as inserted by [sub-paragraph \(1\)](#)) insert—

“107N Public authorities: duty to have regard to shared local growth priorities

- (1) A relevant public authority must have regard to a shared local growth priority of a mayoral combined authority when—
 - (a) exercising, at the request of the mayoral combined authority, a function which could reasonably be expected to have an effect on that priority;
 - (b) preparing a bid for public funding for an activity the objectives of which align with that priority;
 - (c) preparing a statutory plan or strategy which relates to that priority.
- (2) Where a relevant public authority carries out activities in England and anywhere else in the United Kingdom, the duty under subsection (1) only applies in relation to activities that the authority carries out in England.
- (3) A “relevant public authority” means a public authority specified in regulations made by the Secretary of State.
- (4) In this section—

“enactment” includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978;

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“public authority” means any public authority other than—

 - (a) the Welsh Ministers;
 - (b) a devolved Welsh authority within the meaning of section 157A of the Government of Wales Act 2006;

“public funding” means funding from a Minister of the Crown or government department;

“shared local growth priorities” has the meaning given by [section 107L\(2\)\(b\)](#);

“statutory plan or strategy” means a plan or strategy that a public authority is required by an enactment to issue or publish.
- (5) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.”

(3) After section 32 of LURA 2023 insert—

“Mayoral CCAs: local growth plans

32A Local growth plans

- (1) A mayoral CCA must prepare and publish a local growth plan for its area.
- (2) A local growth plan must—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) include an overview of the economic conditions of the area (including the main economic characteristics which are likely to influence current and future economic growth),
 - (b) identify priorities for the economic growth of the area that are agreed with the Secretary of State (“shared local growth priorities”), and
 - (c) identify key projects for achieving economic growth in the area through private or public investment.
- (3) A mayoral CCA may revise or replace a local growth plan published under this section.
- (4) The CCA must arrange for any local growth plan that is revised or replaced to be published.
- (5) The requirement under [subsection \(1\)](#) may be met by the publication of a local growth plan before this section comes into force.

32B Secretary of State guidance on local growth plans

- (1) The Secretary of State may issue guidance to mayoral CCAs in relation to local growth plans under [section 32A](#).
- (2) A mayoral CCA must have regard to any such guidance in exercising their functions.
- (3) The guidance may include (but is not limited to) guidance about—
 - (a) who the CCA might consult when preparing or revising the plan;
 - (b) information to be included in the plan under [section 32A\(2\)](#) or the plan as revised;
 - (c) the process for agreeing priorities for the economic growth of the area with the Secretary of State for the purposes of [section 32A\(2\)\(b\)](#);
 - (d) the circumstances in which the CCA may revise or replace the plan;
 - (e) the ways in which the CCA may have regard to the plan when exercising its other functions.”
- (4) After section 32B of LURA 2023 (as inserted by [sub-paragraph \(3\)](#)) insert—

“32C Public authorities: duty to have regard to shared local growth priorities

- (1) A relevant public authority must have regard to a shared local growth priority of a mayoral CCA when—
 - (a) exercising, at the request of the CCA, a function which could reasonably be expected to have an effect on that priority;
 - (b) preparing a bid for public funding for an activity the objectives of which align with that priority;
 - (c) preparing a statutory plan or strategy which relates to the priority.
- (2) Where a relevant public authority carries out activities in England and anywhere else in the United Kingdom, the duty under subsection (1) only applies in relation to activities that the authority carries out in England.
- (3) A “relevant public authority” means a public authority specified in regulations made by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(4) In this section—

“enactment” includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978;

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“public authority” means any public authority other than—

(a) the Welsh Ministers;

(b) a devolved Welsh authority within the meaning of section 157A of the Government of Wales Act 2006;

“public funding” means funding from a Minister of the Crown or government department;

“shared local growth priorities” has the meaning given by [section 32A\(2\)\(b\)](#);

“statutory plan or strategy” means a plan or strategy that a public authority is required by an enactment to issue or publish.

(5) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.”

(5) In section 252 of LURA 2023 (regulations)—

(a) in subsection (5)(a), after “subsection” insert “(8)(ab) or”;

(b) in subsection (8), before paragraph (a) insert—

“(ab) under section 32C(2);”.

(6) After section 333F of the GLAA 1999 insert—

“333G Public authorities: duty to have regard to shared local growth priorities for London

(1) A relevant public authority must have regard to a shared local growth priority for Greater London when—

(a) exercising, at the request of the Mayor, a function which could reasonably be expected to have an effect on that priority;

(b) preparing a bid for public funding for an activity the objectives of which align with that priority;

(c) preparing a statutory plan or strategy which relates to the priority.

(2) Where a relevant public authority carries out activities in England and anywhere else in the United Kingdom, the duty under subsection (1) only applies in relation to activities that the authority carries out in England.

(3) A “shared local growth priority for Greater London” is a priority for the economic growth of Greater London that is—

(a) agreed between the Mayor and the Secretary of State, and

(b) published by the Mayor.

(4) A “relevant public authority” means a public authority specified in regulations made by the Secretary of State.

(5) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“enactment” includes an enactment comprised in subordinate legislation within the meaning of the Interpretation Act 1978;

“Minister of the Crown” has the same meaning as in the Ministers of the Crown Act 1975;

“public authority” means any public authority other than—

(a) the Welsh Ministers;

(b) a devolved Welsh authority within the meaning of section 157A of the Government of Wales Act 2006;

“public funding” means funding from a Minister of the Crown or government department;

“statutory plan or strategy” means a plan or strategy that a public authority is required by an enactment to issue or publish.

(6) References in this section to an enactment or to provision made under an enactment are to an enactment whenever passed or (as the case may be) to provision whenever the instrument containing it is made.”

(7) In section 420 of the GLAA 1999 (regulations and orders), in subsection (7), in the appropriate place, insert “section 333G;”.

Commencement Information

I371 Sch. 22 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I372 Sch. 22 para. 1 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

SCHEDULE 23

Section 44

MISCELLANEOUS LOCAL AUTHORITY FUNCTIONS

Placing of staff of local authorities at disposal of other local authorities

1 In section 113 of LGA 1972, after subsection (4) insert—

“(5) In this section “local authority” includes the Greater London Authority.”

Commencement Information

I373 Sch. 23 para. 1 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Provision of information, etc, relating to matters affecting local government

2 In section 142 of LGA 1972, in subsection (2), in the words before paragraph (a), after “local authority” insert “or a combined authority or combined county authority”.

Commencement Information

I374 Sch. 23 para. 2 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Power of local authorities to prosecute or defend legal proceedings

- 3 In section 222 of LGA 1972, in subsection (1), in the words before paragraph (a), after “local authority” insert “or a combined authority or combined county authority”.

Commencement Information
I375 Sch. 23 para. 3 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Research and collection of information

- 4 (1) Section 88 of LGA 1985 is amended in accordance with this paragraph.
- (2) After subsection (13A) insert—
- “(13B) Whether or not a scheme is made under this section, a combined authority or CCA have power to exercise any of the functions described in subsection (1) (a) and (b).
- (13C) In the application of subsection (13B) in relation to a combined authority or CCA, paragraphs (a) and (b) of subsection (1) have effect with the substitution of “the area of the combined authority or CCA” for “that area”.
- (3) In subsection (14), after “subsection (13) above” insert “, or a combined authority or CCA,”.

Commencement Information
I376 Sch. 23 para. 4 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

- 5 In section 105 of LGA 1985 (interpretation), in subsection (1), at the appropriate place insert—
- ““CCA” means a combined county authority established under Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023;
- “combined authority” means a combined authority established under Part 6 of the Local Democracy, Economic Development and Construction Act 2009;”.

Commencement Information
I377 Sch. 23 para. 5 in force at Royal Assent, see [s. 108\(1\)\(3\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“SCHEDULE 10A

Section 76A

EXERCISE OF PCC FUNCTIONS BY ELECTED MAYORS

PART 1

INTERPRETATION

1 In this Schedule—

“the Area”, in relation to the Mayor, means the police area in relation to which the Mayor is to exercise functions of a police and crime commissioner; and, in a case where a combined authority or combined county authority meets the eligibility condition in relation to two or more police areas (see section 107FA(4) of the Local Democracy, Economic Development and Construction Act 2009 or section 33A(4) of the Levelling-up and Regeneration Act 2023), this Schedule applies separately in relation to each of those police areas and “the Area” is to be read accordingly;

“combined authority” means a combined authority established under section 103 of the Local Democracy, Economic Development and Construction Act 2009;

“combined county authority” means a combined county authority established under section 9(1) of the Levelling-up and Regeneration Act 2023;

“constituent council” means—

(a) in relation to a combined authority—

(i) a county council the whole or any part of whose area is within the area of the authority, or

(ii) a district council whose area is within the area of the authority;

(b) in relation to a combined county authority—

(i) a county council for an area within the area of the authority, or

(ii) a unitary district council for an area within the area of the authority;

“the Mayor” means a mayor for the area of a combined authority or combined county authority who is to exercise functions of a police and crime commissioner in relation to an area by virtue of—

(a) section 107F(1A) of the Local Democracy, Economic Development and Construction Act 2009, or

(b) section 33(1A) of the Levelling-up and Regeneration Act 2023;

“the PCC functions” means the functions of a police and crime commissioner which the Mayor is to exercise by virtue of this Schedule;

“police and crime commissioner enactment” means any of the following enactments (whenever passed or made)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(a) any enactment that is contained in, or is made under, Part 1 of this Act;

(b) any other enactment that has effect in relation to police and crime commissioners;

“the Strategic Authority” means the combined authority or combined county authority for whose area the Mayor is the mayor;

“the transfer time” means the time specified in—

(a) the order under section 107F(5)(a) of the Local Democracy, Economic Development and Construction Act 2009, or

(b) the regulations under section 33(5)(a) of the Levelling-up and Regeneration Act 2023,

at which the Mayor is to begin exercising functions of a police and crime commissioner in relation to the Area.

PART 2

THE AREA’S PCC

- 2 (1) There is to be no police and crime commissioner for the Area from the transfer time.
- (2) The term of office of the police and crime commissioner for the Area is to continue until the transfer time.
- (3) Any election of a police and crime commissioner for the Area that would otherwise take place by virtue of section 50(1)(b)—
 - (a) during the period of six months ending with the transfer day, or
 - (b) after the transfer day,
 is not to take place.
- (4) Any election to fill a vacancy in the office of police and crime commissioner for the Area which would otherwise take place under section 51 is not to take place if the vacancy occurs within the period of six months ending with the transfer day.
- (5) In this paragraph “transfer day” means the day on which the transfer time falls.

PART 3

THE MAYOR’S PCC FUNCTIONS

- 3 (1) The Mayor—
 - (a) is to exercise functions of a police and crime commissioner in relation to the Area, and
 - (b) is to be treated, in relation to the Mayor's PCC functions, as a police and crime commissioner for the purposes of all police and crime commissioner enactments.
- (2) That is subject to the following provisions of this paragraph.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) In their application to the Mayor, a police and crime commissioner enactment set out in Part 4 or 5 of this Schedule applies with the modifications set out in that Part.
- (4) Sub-paragraph (1) does not apply to the enactments set out in Part 6 of this Schedule.
- (5) Sub-paragraph (1) is subject to regulations made under Part 7 of the Schedule (which enables regulations to modify or disapply police and crime commissioner enactments not contained in Acts).
- (6) Any PCC function exercisable by the Mayor is to be taken to be a function of the Strategic Authority exercisable—
 - (a) by the Mayor acting individually, or
 - (b) by a person acting under arrangements with the mayor made in accordance with this Act as it has effect in accordance with this Schedule.

PART 4

MODIFICATIONS OF ENACTMENTS IN THIS ACT

- 4 The following police and crime commissioner enactments contained in this Act have effect subject to the following modifications.
- 5 Section 5 (police and crime commissioners to issue police and crime plans) has effect as if—
 - (a) in subsection (1), for “ordinary election” there were substituted “election for the return of a Mayor”;
 - (b) in subsection (13)—
 - (i) in the definition of “financial year”, for “the police and crime commissioner” there were substituted “the Strategic Authority”;
 - (ii) the definition of “ordinary election” were omitted.
- 6 Section 7(7) (police and crime plans) has effect as if—
 - (a) in the definition of “financial year”, for “the elected local policing body” there were substituted “the Strategic Authority”;
 - (b) the definition of “ordinary election” were omitted;
 - (c) in the definitions of “planning period” and “qualifying day”, for “ordinary election” there were substituted “election for the return of a Mayor”.
- 7 Section 16 (appointment of persons not employed by elected local policing bodies) has effect as if—
 - (a) for subsection (1) there were substituted—

“(1) This section applies where the Mayor, in connection with the exercise of the Mayor’s PCC functions, is required or authorised by any Act—

 - (a) to appoint a person to a specified post in the Strategic Authority; or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) to designate a person as having specified duties or responsibilities.”;
 - (b) in subsection (2), for “the body” there were substituted “the Strategic Authority”.
- 8 Section 18 (delegation of functions by police and crime commissioners) has effect as if—
 - (a) for each reference to “deputy police and crime commissioner” there were substituted “deputy mayor for policing and crime”;
 - (b) for subsection (1) there were substituted—
 - “(1) The Mayor must—
 - (a) appoint a person as the deputy mayor for policing and crime for the Area, and
 - (b) arrange for the deputy mayor for policing and crime to exercise one or more of the Mayor’s PCC functions.”
 - (c) in subsection (6)—
 - (i) after paragraph (d) there were inserted—
 - “(da) a deputy mayor under section 107C of the Local Democracy, Economic Development and Construction Act 2009 or section 29 of the Levelling-up and Regeneration Act 2023;”;
 - (ii) after paragraph (h), there were inserted—
 - “(i) the Strategic Authority;
 - (j) a person who is the deputy mayor for policing and crime for a different police area.”;
 - (d) in subsection (7)—
 - (i) for paragraph (f) there were substituted—
 - “(f) calculating the PCC component council tax requirement.”;
 - (ii) paragraphs (g) and (h) were omitted;
 - (e) for subsection (10) there were substituted—
 - “(10) The deputy mayor for policing and crime is a member of staff of the Strategic Authority, unless they are a member of the Strategic Authority.”.
- 9 Section 21 (police fund) has effect as if after subsection (3) there were inserted—
 - “(3A) Expenditure may be paid out of the police fund only if, and to the extent that, it is incurred in or otherwise relates to the exercise of the Mayor’s PCC functions.
 - (3B) Where—
 - (a) the Mayor—
 - (i) has PCC functions in relation to the Area, and
 - (ii) also has functions of a police and crime commissioner in relation to another police area, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the police force for the Area (“police force A”) is provided with assistance by the police force for the other police area (“police force B”),
- the Mayor must ensure that such amount in respect of the assistance as the mayor thinks appropriate is paid from the police fund of police force A to the police fund of police force B.”.
- 10 Section 28 (police and crime panels outside London) has effect as if—
- (a) subsections (1A) and (1B) were omitted;
- (b) in subsection (6)(a), after “police and crime commissioner” there were inserted “, the deputy mayor for policing and crime and any other person who exercises any function of the Mayor pursuant to arrangements made under section 18”.
- 11 Section 29 (power to require attendance and information) has effect as if—
- (a) for subsection (1) there were substituted—
- “(1) A police and crime panel may require—
- (a) the Mayor,
- (b) the deputy mayor for policing and crime,
- (c) members of staff of the Strategic Authority deployed wholly or partly in relation to the Mayor’s PCC functions, and
- (d) any members of the Strategic Authority who exercise any function of the Mayor pursuant to arrangements made under section 18,
- to attend before the panel (at reasonable notice) to answer any question which appears to the panel to be necessary in order for it to carry out its functions.”;
- (b) for subsection (2) there were substituted—
- “(2) Nothing in subsection (1) requires a person to give any evidence, or produce any document, which discloses advice given by that person to—
- (a) the Mayor in relation to the Mayor’s PCC functions,
- (b) the deputy mayor for policing and crime, or
- (c) a member of the Strategic Authority who exercises any function of the Mayor pursuant to arrangements made under section 18.”;
- (c) for subsection (5) there were substituted—
- “(5) Any person referred to in subsection (1)(b), (c) or (d) must comply with any requirement imposed on them under that subsection.”;
- (d) in subsection (6), after “commissioner” there were inserted “or the deputy mayor for policing and crime”.
- 12 Section 30 (suspension of police and crime commissioner) has effect as if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in subsection (1), for “relevant police and crime commissioner” there were substituted “Mayor so far as acting in the exercise of PCC functions”;
 - (b) for subsection (3) there were substituted—
 - “(3) For the purposes of salary, pensions and allowances in respect of times during a period of suspension, the Mayor is to be treated as holding that office during that suspension.”.
- 13 Section 31(3) (conduct) has effect as if for paragraphs (b) to (d) there were substituted—
 - “(b) deputy mayor for policing and crime.”.
- 14 Section 62 (appointment of acting commissioner) has effect as if—
 - (a) for subsection (1) there were substituted—
 - “(1) The police and crime panel must appoint a person to exercise the Mayor’s PCC functions (the “acting commissioner”) if the Mayor is suspended from the exercise of PCC functions in accordance with section 30.”;
 - (b) in subsection (2), for “member of the police and crime commissioner’s staff” there were substituted “member of staff of the Strategic Authority deployed wholly or partly in relation to the Mayor’s PCC functions or the deputy mayor for policing and crime”;
 - (c) after subsection (2), there were inserted—
 - “(2A) The police and crime panel may not appoint as acting commissioner any person appointed as a deputy mayor under section 107C of the Local Democracy, Economic Development and Construction Act 2009 or section 29 of the Levelling-up and Regeneration Act 2023.”;
 - (d) subsection (3) were omitted;
 - (e) for subsection (5) there were substituted—
 - “(5) Any property or rights vested in the Strategic Authority in relation to the Mayor’s PCC functions can be dealt with by the acting commissioner.”;
 - (f) subsection (6)(c) were omitted;
 - (g) in subsection (7) the following were omitted—
 - (i) “incapacitated or”;
 - (ii) “(c) or”;
 - (h) subsection (8) were omitted.
- 15 This Act has effect as if for section 63 (vacancy where acting commissioner acts for 6 months) there were substituted—

“63 Vacancy where deputy mayor acts for 6 months

- (1) This section applies where—
 - (a) the deputy mayor is appointed under section 107C of the Local Democracy, Economic Development and Construction Act 2009 or section 29 of the Levelling-up

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

and Regeneration Act 2023 to act for the Mayor because the Mayor is unable to act; and

- (b) the Mayor does not cease to be unable to act during the period of 6 months beginning with the day on which the acting mayor was appointed.

(2) At the end of that 6 month period—

- (a) the Mayor ceases to be the Mayor, and
- (b) accordingly, the office of Mayor becomes vacant.”

16 Section 64 has effect as if—

- (a) after subsection (1) there were inserted—

“(1ZA) If a combined authority or combined county authority meets the eligibility condition in relation to two or more police areas (see section 107FA(4) of the Local Democracy, Economic Development and Construction Act 2009 or section 33A(4) of the Levelling-up and Regeneration Act 2023)—

- (a) subsection (1)(b) does not apply; but
- (b) a person is disqualified from being elected to the office of police and crime commissioner for any of those police areas at any election unless, on each relevant day, the person is a local government elector in at least one of those police areas;

and for that purpose a person is “a local government elector in” a police area if the person is registered in the register of local government electors for an electoral area in respect of an address in that police area.”;

- (b) for subsections (3) to (4A) (disqualification from election as police and crime commissioner) there were substituted—

“(3) A person is disqualified from being elected as the Mayor if—

- (a) the person has been nominated as a candidate for election as police and crime commissioner for any other police area at an ordinary election, and
- (b) the ordinary election is held on the same day as the election to return the Mayor.

(4) A person is disqualified from being elected as the Mayor at an election held to fill a casual vacancy if—

- (a) the person is the police and crime commissioner for any other police area; or
- (b) the person has been nominated as a candidate for election as police and crime commissioner for any other police area for which an election is held on the same day.”.

17 Section 65 (disqualification from election or holding office as police and crime commissioner: police grounds) has effect as if—

- (a) in subsection (1)(e), there were inserted after paragraph (ii)—
“(iii) the Strategic Authority;”;
- (b) for subsection (1A) there were substituted—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(1A) Subsection (1)(e)(i) does not prevent a deputy mayor for policing and crime from being elected as mayor of the strategic authority—

- (a) at an election other than an election to fill a casual vacancy;
- (b) at an election to fill a casual vacancy if, on the day on which the person is nominated as a candidate at the election and at all times between that day and the declaration of the result of the election, the deputy is acting as acting commissioner under section 62.”.

18 Section 70 (declaration of acceptance of office of police and crime commissioner) has effect as if—

(a) for subsection (1), there were substituted—

“(1) A person elected to the office of Mayor may not exercise police and crime commissioner functions unless that person has made a declaration in a form specified in an order made by the Secretary of State to the appropriate officer.”;

- (b) subsection (2) were omitted;
- (c) in subsection (5), for the first reference to “office” there were substituted “the duty of exercising police and crime commissioner functions as Mayor”;
- (d) subsections (6) and (7) were omitted;
- (e) at the end there were inserted—

“(8) In this section “appropriate officer” means the person designated as the head of paid service by the Strategic Authority under section 4(1)(a) of the Local Government and Housing Act 1989.”

19 Schedule 1 (police and crime commissioners) has effect as if—

(a) for paragraph 1 there were substituted—

“1 This Schedule applies in relation to the Mayor in the exercise of PCC functions.”;

(b) for paragraph 4 there were substituted—

“4 (1) The Mayor must make authorised pension payments.

(2) In this paragraph “authorised pension payments” means—

- (a) pensions to, or in respect of, persons who have been the police and crime commissioner for the Area, and
- (b) amounts for or towards provision of pensions to, or in respect of, persons who have been the police and crime commissioner for the Area,

which are of the kinds and amounts determined by the Secretary of State as payable in accordance with this paragraph.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) in paragraph 5(2), for “any of paragraphs 2 to” there were substituted “paragraph”;
- (d) in paragraph 8—
 - (i) for each reference to “deputy police and crime commissioner” there were substituted “deputy mayor for policing and crime”;
 - (ii) for sub-paragraphs (3) and (3A) there were substituted—

“(3) The terms and conditions of a person appointed as the deputy mayor for policing and crime must ensure that the person’s term of office ends no later than the third day after the day of the poll at an election for the return of a Mayor.
 - (4) The terms and conditions must also provide for the deputy mayor for policing and crime’s appointment to end when, following an election held to fill a vacancy in the office of the appointing Mayor, the person elected makes and delivers a declaration under section 70.”;
- (e) for paragraph 9(1) there were substituted—

“(1) The Mayor must notify the police and crime panel of each proposed appointment by the Mayor of a deputy mayor for policing and crime.”;
- (f) in paragraph 10(9)(a), for “ordinary election of a police and crime commissioner under section 50” there were substituted “election for the return of a Mayor”;
- (g) for paragraph 13 there were substituted—

“13 (1) The Mayor may pay—

 - (a) remuneration, allowances and gratuities to members of the Strategic Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions; and
 - (b) allowances and gratuities to the deputy mayor for policing and crime where that person is not a member of staff of the Strategic Authority.

(2) The Mayor may pay—

 - (a) pensions to, or in respect of, persons who have been members of the Strategic Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions; and
 - (b) amounts for or towards provision of pensions to, or in respect of, persons who have been members of the Strategic Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(3) In this paragraph “allowances”—

- (a) in relation to a member of the Strategic Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions, means allowances in respect of expenses incurred by the member of staff in the course of employment as such a member of staff in relation to such functions; and
- (b) in relation to a deputy mayor for policing and crime who is not a member of the Strategic Authority’s staff, means allowances in respect of expenses incurred by the deputy mayor for policing and crime in the course of that person’s duties as deputy mayor for policing and crime.”

(h) for paragraph 15(2) there were substituted—

“(2) A person who is—

- (a) a member of staff of the Strategic Authority deployed wholly or partly in relation to the Mayor’s PCC functions, or
- (b) a member of the Strategic Authority exercising the Mayor’s PCC functions,

has no personal liability for an act or omission done by the person, in the carrying out of duties relating to the Mayor’s PCC functions as a member of staff or as a member of the Strategic Authority, unless it is shown to have been done otherwise than in good faith.”;

(i) for paragraph 16 there were substituted—

“**16** References to the financial year of the Mayor are to be read as if they were references to the financial year of the Strategic Authority.”.

20 Schedule 5 (issuing precepts) has effect as if—

(a) in paragraph 1—

(i) for sub-paragraph (1) there were substituted—

“(1) The Mayor may not determine the final amount of the PCC component for a financial year until the end of the scrutiny process is reached.”;

(ii) for sub-paragraph (3) there were substituted—

“(3) References in this Schedule to the determining of the final amount of the PCC component include references to the determining of the amount of the PCC component of a substitute precept.”;

(b) in paragraph 2, for “the precept which the commissioner is proposing to issue” there were substituted “the proposed amount of the PCC component”;

(c) in paragraph 3(3), for “the precept that should be issued” there were substituted “the amount of the PCC component”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) in paragraph 4(3), for “precept for the financial year” there were substituted “PCC component for the financial year”;
- (e) in paragraph 5(3)—
 - (i) in paragraph (a), for “issue the proposed precept as the precept” there were substituted “determine that the proposed amount of the PCC component is the final amount of the PCC component”;
 - (ii) in paragraph (b), for “issue a different precept” there were substituted “determine a different PCC component”;
- (f) in paragraph 6(2), for “issue the proposed precept as the precept” there were substituted “determine that the proposed PCC component is to be the PCC component”;
- (g) in paragraph 8—
 - (i) in sub-paragraph (1), for “the issuing of precepts” there were substituted “determining the amount of the PCC component”;
 - (ii) in sub-paragraph (4), for “precept that may be issued” there were substituted “amount of the PCC component”.

21 Schedule 6 (police and crime panels) has effect as if—

- (a) for paragraph 21 there were substituted—

“21 The Mayor, a member of the Strategic Authority appointed by the constituent councils, or a substitute member acting in place of such a member may not be a member of the police and crime panel for the area.”;
- (b) in paragraph 22(1)(a), for the words “police and crime commissioner for that police area” there were substituted “Strategic Authority”;
- (c) in paragraph 33, after sub-paragraph (1) there were inserted—

“(1A) But this paragraph does not apply if the elected Mayor of that executive is a member of the Strategic Authority appointed by the constituent councils.”;
- (d) in paragraph 34, after sub-paragraph (1) there were inserted—

“(1A) But this paragraph does not apply if the current Mayor of that executive is a member of the Strategic Authority appointed by the constituent councils.”.

22 Schedule 7 (regulations about complaints and conduct matters) has effect as if—

- (a) in paragraph 3(1)(a)(ii), for “deputy police and crime commissioner” there were substituted “deputy mayor for policing and crime (unless the holder of that office is a member of the Strategic Authority)”;
- (b) for paragraph 4 there were substituted—

“4 (1) This paragraph applies in relation to qualifying complaints which—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) relate to a holder of the office of—
 - (i) Mayor; or
 - (ii) deputy mayor for policing and crime, if the holder of that office is a member of the Strategic Authority, and
 - (b) are not, or cease to be, investigated by the Director General of the Independent Office for Police Conduct or a police force.
 - (2) Regulations must secure that such complaints are dealt with in accordance with the Strategic Authority’s code of conduct adopted under section 27(2) of the Localism Act 2011.”
- 23 Schedule 8 (appointment, suspension and removal of senior police officers) has effect as if—
 - (a) for paragraph 4(10) there were substituted—

“(10) For that purpose, “relevant post-election period” means the period that—

 - (a) begins with the day of the poll at an election for the return of the Mayor; and
 - (b) ends with the day on which the person elected as Mayor delivers a declaration under section 70.”;
 - (b) for paragraph 15(8) there were substituted—

“(8) For that purpose, “relevant post-election period” means the period that—

 - (a) begins with the day of the poll at an election for the return of the Mayor; and
 - (b) ends with the day on which the person elected as Mayor delivers a declaration under section 70.”.

PART 5

MODIFICATIONS OF ENACTMENTS IN OTHER ACTS

Police (Property) Act 1897

- 24 (1) The Police (Property) Act 1897 is modified as follows.
- (2) Section 2(2A) (regulations with respect to unclaimed property in possession of police), has effect as if for the last reference to “relevant body” there were substituted “Combined Authority”.

Trustee Investments Act 1961

- 25 (1) The Trustee Investments Act 1961 is modified as follows.
- (2) Paragraph 9 of Part 2 of the First Schedule (manner of investment), has effect as if for “similar officer of the authority” there were substituted

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“similar officer of the Combined Authority deployed wholly or partly in relation to the PCC functions of the Mayor”.

Pensions (Increase) Act 1971

- 26 (1) The Pensions (Increase) Act 1971 is modified as follows.
- (2) Paragraph 51(aa) of Schedule 2 (official pensions: court and police staff), has effect as if for “a police and crime commissioner” there were substituted “the police and crime commissioner for South Yorkshire or of the Combined Authority deployed wholly or partly in relation to the PCC functions of the Mayor”.

Local Government (Miscellaneous Provisions) Act 1976

- 27 (1) The Local Government (Miscellaneous Provisions) Act 1976 is modified as follows.
- (2) Section 29(1) (repayment of unclaimed compensation etc. paid into court), has effect as if for “or transferred to the authority” there were substituted “to the Mayor, or transferred to the Combined Authority in relation to the Mayor’s PCC functions”.
- (3) Section 30(3)(a) (power to forgo repayment of advances of remuneration paid to deceased employees), has effect as if for “maintained by a local authority” there were substituted “maintained by the Mayor of the Combined Authority”.
- (4) Section 44(1) (interpretation etc. of Part I), has effect as if in paragraph (a) of the definition of “local authority”, for “13 to 16, 29, 30, 38, 39 and 41” there were substituted “13, 14, 16, 29 and 38”.

Local Government, Planning and Land Act 1980

- 28 (1) The Local Government, Planning and Land Act 1980 is modified as follows.
- (2) Section 99 (directions to dispose of land – supplementary) has effect as if—
- (a) after subsection (2) there were inserted—
- “(2A) Where a notice under subsection (1) is received by the Combined Authority which relates to land used wholly or partly in relation to the Mayor’s PCC functions, the Mayor is to make any representations under subsection (2) on behalf of the Combined Authority to the Secretary of State.”;
- (b) in subsection (4)—
- (i) in paragraph (dbzb) at the end there were inserted “or, as the case may be, the Mayor”;
- (ii) paragraph (dc) were omitted.

Dartford-Thurrock Crossing Act 1988

- 29 (1) The Dartford-Thurrock Crossing Act 1988 is modified as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) Section 19(a)(i) (exemption from tolls) has effect as if for “a local policing body” there were substituted “the Combined Authority for use in relation to the exercise of the Mayor’s PCC functions”.

Local Government Finance Act 1988

- 30 (1) The Local Government Finance Act 1988 is modified as follows.
- (2) Section 114 (functions of responsible officer as regards reports) has effect as if—
- (a) for subsection (4)(b)(i) there were substituted—
- “(i) the Mayor exercising PCC functions, each member of the Combined Authority, including the Mayor, and each member of the police and crime panel for the Mayor’s area;”;
- (b) in subsection (8A)(b), for “relevant authority” there were substituted “Mayor”.
- (3) Section 115 (authority’s duties as regards reports) has effect as if—
- (a) for subsection (1B) there were substituted—
- “(1B) In the case of a report made by the chief finance officer of the Combined Authority in relation to the Mayor’s PCC functions, the Mayor must consider the report and decide whether the Mayor agrees or disagrees with the views contained in the report and what action (if any) the Mayor proposes to take in consequence of it.”;
- (b) in subsection (1E)—
- (i) for “the elected local policing body” there were substituted “the Mayor”;
- (ii) for “that body”, in each place it occurs, there were substituted “the Mayor”;
- (c) in subsection (1F)(b), for “elected local policing body’s” there were substituted “Combined Authority’s”;
- (d) in subsection (2), for “an elected local policing body” there were substituted “a Combined Authority in relation to a Mayor exercising PCC functions”.
- (4) Section 116 has effect as if for subsection (2B) (information about consideration of reports etc.) there were substituted—
- “(2B) In the case of the Mayor, the chief finance officer of the Combined Authority must notify the auditor of the Combined Authority of any decision taken by the Mayor in accordance with section 115.”.

Road Traffic Act 1988

- 31 (1) The Road Traffic Act 1988 is modified as follows.
- (2) Section 144(2)(b) (exceptions from requirement of third-party insurance) has effect as if—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) for “a local policing body” there were substituted “the Combined Authority for use in relation to the Mayor’s PCC functions”;
- (b) for “a police and crime commissioner’s staff (within the meaning of Part 1 of the Police Reform and Social Responsibility Act 2011)” there were substituted “the Combined Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions”.

Local Government and Housing Act 1989

- 32 (1) The Local Government and Housing Act 1989 is modified as follows.
- (2) Section 1 (disqualification and political restriction of certain officers and staff) has effect as if—
- (a) in subsection (9), for “an elected local policing body” there were substituted “the Combined Authority deployed predominantly in relation to the Mayor’s PCC functions”;
 - (b) in subsection (10), for “an elected local policing body does not include a deputy police and crime commissioner” there were substituted “the Combined Authority deployed predominantly in relation to the Mayor’s PCC functions does not include the deputy mayor for policing and crime”.
- (3) Section 4 (designations and reports of head of paid service) has effect as if—
- (a) subsections (1) and (1A) were omitted;
 - (b) for subsection (4) there were substituted—
“(4) It shall be the duty of the head of the Combined Authority’s paid service, as soon as practicable after he has prepared a report relating to the Mayor’s PCC functions under this section, to arrange for a copy of it to be sent to the members of the Combined Authority, including the Mayor, and to the police and crime panel.”;
 - (c) in subsection (5), “(other than an elected local policing body)” were omitted;
 - (d) in subsection (5A), for “by the head of the body’s paid service” there were substituted “that relates to the Mayor’s PCC functions”.
- (4) Section 5 (designation and reports of monitoring officer) has effect as if—
- (a) subsection (1C) were omitted;
 - (b) for subsection (3)(b)(a) there were substituted—
“(a) in the case of a report relating to the Mayor’s PCC functions, to the members of the Combined Authority, including the Mayor, and to the police and crime panel; and”;
 - (c) in subsection (5)—
 - (i) for “a relevant authority” there were substituted “the Mayor”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) in paragraph (a) in sub-paragraph (i), “in the case of an elected local policing body” were omitted;
 - (iii) sub-paragraph (ii) were omitted;
 - (d) in subsection (8), in the definition of “relevant authority”, “an elected local policing body” were omitted.
- (5) Omit section 7(1)(aa) (all staff to be appointed on merit).
- (6) Omit section 13(5ZA) (voting rights of members of certain committees: England and Wales).

Police Act 1996

- 33 (1) The Police Act 1996 is modified as follows.
- (2) Section 22A(9)(a) (collaboration agreements) has effect as if for “that body” there were substituted “the Combined Authority deployed wholly or partly in relation to the Mayor’s PCC functions”.
- (3) Section 41 (directions as to minimum budget) has effect as if—
- (a) in subsection (1), for “commissioner’s council tax requirement (under section 42A of the Local Government Finance Act 1992) or budget requirement (under section 43 of that Act)” there were substituted “PCC component council tax requirement”;
 - (b) in subsection (4), for “precept issued or calculation made by the commissioner under Part 1 of the Local Government Finance Act 1992” there were substituted “determination by the Mayor of the final amount of the PCC component”.
- (4) Section 53E (guidance about civilian staff employed by local policing bodies and chief officers) has effect as if—
- (a) in subsection (1)(a), for “a local policing body” there were substituted “the Combined Authority and are deployed wholly or partly in relation to the Mayor’s PCC functions”;
 - (b) in subsection (1)(b), for “the body” there were substituted “the Combined Authority”.
- (5) Section 88 (liability for wrongful acts of constables) has effect as if—
- (a) in subsection (5A), for the first reference to “local policing body” there were substituted “Combined Authority deployed wholly or partly in relation to the Mayor’s PCC functions”;
 - (b) in subsection (6)(a), for “local policing body” there were substituted “Combined Authority deployed wholly or partly in relation to the Mayor’s PCC functions”.
- (6) Section 92(1) (grants by local authorities) has effect as if for “parish or community” there were substituted “parish, community or Combined Authority”.
- (7) Section 96(1B) (arrangements for obtaining the views of the community on policing), has effect as if for “precept for a financial year is issued by the police and crime commissioner under section 40 of the Local Government Finance Act 1992” there were substituted “PCC component is determined by the Mayor”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Proceeds of Crime Act 2002

- 34 (1) The Proceeds of Crime Act 2002 is modified as follows.
- (2) Section 55(8) has effect as if for paragraph (aa) (sums received by designated officer) there were substituted—
- “(aa) a member of the Combined Authority’s staff deployed wholly or partly in relation to the Mayor’s PCC functions,”.

Police Reform Act 2002

- 35 (1) The Police Reform Act 2002 is modified as follows.
- (2) Section 40(7)(d) (community safety accreditation schemes) has effect as if for “local policing body” there were substituted “Combined Authority and who are deployed wholly or partly in relation to the Mayor’s PCC functions”.
- (3) Section 42(7) (supplementary provisions relating to designations and accreditations) has effect as if—
- (a) for the first reference to “local policing body” there were substituted “Combined Authority deployed wholly or partly in relation to the Mayor’s PCC functions”;
- (b) for the second reference to “local policing body” there were substituted “Combined Authority”;
- (c) for “or body” there were substituted “or Combined Authority”.

Local Government Act 2003

- 36 (1) The Local Government Act 2003 is modified as follows.
- (2) Section 7 (credit arrangements) has effect as if—
- (a) in subsection (1)(a), for “its part” there were substituted “the part of the Combined Authority”;
- (b) in subsection (2), for “on the part of the authority” there were substituted “on the part of the Combined Authority”.

Railways and Transport Safety Act 2003

- 37 (1) The Railways and Transport Safety Act 2003 is modified as follows.
- (2) Paragraph 7(2) of Schedule 4 (British Transport Police Authority) has effect as if for paragraph (c) there were substituted—
- “(c) a member of staff of the Combined Authority deployed wholly or partly in relation to the Mayor’s PCC functions,”.

Local Government and Public Involvement in Health Act 2007

- 38 (1) The Local Government and Public Involvement in Health Act 2007 is modified as follows.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(2) Section 15(1) (incidental etc provision in orders or regulations) has effect as if for paragraph (a) there were substituted—

“(a) for the transfer of functions, property, rights or liabilities from a local authority, Combined Authority in relation to the Mayor’s PCC functions, or local policing body for any area to another local authority, Combined Authority in relation to the Mayor’s PCC functions, or local policing body whose area consists of or includes the whole or part of that area;”.

Local Democracy, Economic Development and Construction Act 2009

39 (1) The Local Democracy, Economic Development and Construction Act 2009 is modified as follows.

(2) Paragraph 9(1)(a) of Schedule 5B (mayors for combined authority areas: further provision about elections) has effect as if for “or deputy mayor” there were substituted “, deputy mayor or deputy mayor for policing and crime”.

Local Audit and Accountability Act 2014

40 (1) The Local Audit and Accountability Act 2014 is modified as follows.

(2) Schedule 4 (further provisions about auditor panels) has effect as if—

(a) for paragraph 2(4)(a) there were substituted—

“(a) cases where the relevant authority referred to in the opening words of sub-paragraph (2) (“the relevant authority concerned”) is a Combined Authority where the Mayor exercises PCC functions;”;

(b) for paragraph 2(5) there were substituted—

“(5) Where the relevant authority concerned is a Combined Authority where the Mayor exercises PCC functions, references to “the authority” include the chief constable for the area.”.

PART 6

ENACTMENTS WHICH DO NOT APPLY

41 Section 28 of the Leasehold Reform Act 1967 (retention or resumption of land required for public purposes).

42 The following provisions of the Local Government Act 1972—

- (a) section 102(6) to (11) (appointment of committees);
- (b) section 223(2) (appearance of local authorities in legal proceedings);
- (c) paragraph 6ZA of Part 1 of Schedule 12 (meetings and proceedings of local authorities).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 43 Section 5(3)(baa) of the Rent (Agriculture) Act 1976 (no statutory tenancy where landlord's interest belongs to Crown or to local authority etc.).
- 44 Section 14(1)(caa) of the Rent Act 1977 (landlord's interest belonging to local authority, etc.).
- 45 Sections 95, 96A, 97 and 98 of the Local Government, Planning and Land Act 1980 (land held by public bodies).
- 46 Sections 33 (enforceability by local authorities of certain covenants relating to land) and 41 (lost and uncollected property) of the Local Government (Miscellaneous Provisions) Act 1982.
- 47 Sections 13AB(8)(f) and 13B(4)(g) of the Representation of the People Act 1983 (alteration of registers).
- 48 Section 60 of the County Courts Act 1984 (right of audience).
- 49 The following provisions of the Housing Act 1985—
 - (a) section 80(1) (the landlord condition);
 - (b) section 157(1) (restriction on disposal of dwelling-houses in National Parks);
 - (c) section 171(2) (power to extend right to buy);
 - (d) section 573(1) (meaning of public sector authority);
 - (e) paragraph 2(1) of Schedule 1 (tenancies which are not secure tenancies);
 - (f) grounds 7 and 12 in Schedule 2 (grounds for possession of dwelling-houses let under secure tenancies);
 - (g) ground 5 in Schedule 3 (grounds for withholding consent to assignment by way of exchange);
 - (h) paragraph 7(1) of Schedule 4 (qualifying period for right to buy and discount);
 - (i) paragraph 5(1)(b) of Schedule 5 (exceptions to the right to buy).
- 50 Section 38 of the Landlord and Tenant Act 1985 (minor definitions).
- 51 Section 7 of the Local Government Act 1986 (transfer requires mortgagor's consent).
- 52 Section 58 of the Landlord and Tenant Act 1987 (exempt landlords and resident landlords).
- 53 Sections 111, 113, 114 and 114A of the Local Government Finance Act 1988 (financial administration).
- 54 Paragraph 12(2)(g) of Schedule 1 to the Housing Act 1988 (tenancies which cannot be assured tenancies).
- 55 Section 39 of the Local Government Finance Act 1992 (precepting and precepted authorities).
- 56 Section 33 of the Value Added Tax Act 1994 (refunds of VAT in certain cases).
- 57 Section 94 of the Police Act 1996 (financing of new police and crime commissioners).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 58 Paragraph 57 of Schedule 1 to the Freedom of Information Act 2000 (public authorities).
- 59 Sections 21 and 22 of the Local Government Act 2003 (accounts).
- 60 The following provisions of the Fire and Rescue Services Act 2004—
 - (a) section 3(7) and (9) (creation of combined fire and rescue authorities: supplementary);
 - (b) section 4A (power to provide for police and crime commissioner to be fire and rescue authority);
 - (c) Schedule A1 (procedure for orders under section 4A);
 - (d) Schedule A2 (application of legislation relating to police and crime commissioners).
- 61 The following provisions of this Act—
 - (a) section 1(1) to (4) (police and crime commissioners);
 - (b) sections 50 to 61 (elections and vacancies);
 - (c) section 69 (validity of acts);
 - (d) sections 71 to 75 (elections: further provision);
 - (e) section 102(3) (interpretation: police and crime commissioner’s staff);
 - (f) Schedule 1, paragraphs 2, 3, 5(1), 6(1), (2), and (4), and 7 (police and crime commissioners);
 - (g) Schedule 6, paragraphs 33 to 35 (duty to nominate elected mayor to be a member of police and crime panel);
 - (h) Schedule 10 (elections: consequential amendments).
- 62 Paragraph 19 of Schedule 2 to the Local Audit and Accountability Act 2014 (relevant authorities).
- 63 The following provisions of the Policing and Crime Act 2017—
 - (a) section 5(7)(a) and (9)(a) (collaboration agreements: definitions);
 - (b) paragraph 92 of Schedule 1 (amendments to Schedule 6 to the Police Reform and Social Responsibility Act 2011).

PART 7

ENACTMENTS NOT CONTAINED IN ACTS

Power to modify or disapply enactments

- 64 (1) This section applies to any police and crime commissioner enactment that is not contained in an Act of Parliament.
- (2) The Secretary of State may, by regulations—
 - (a) modify the enactment in its application in relation to the mayors of combined authorities and combined county authorities exercising functions of a police and crime commissioner;
 - (b) provide that the enactment does not apply in relation to the mayors of combined authorities and combined county

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

authorities exercising functions of a police and crime commissioner.

PART 8

APPLICATION AND MODIFICATION OF ENACTMENTS OTHER THAN POLICE AND CRIME COMMISSIONER ENACTMENTS

Local Government Act 1972

- 65 Section 86 of the Local Government Act 1972 (declaration by local authority of vacancy in office in certain cases) applies in relation to the Mayor as if, after section 86(1)(c), there were inserted “or
- (d) ceases to be the Mayor by virtue of section 63 (vacancy where acting commissioner acts for 6 months) of the Police Reform and Social Responsibility Act 2011.””

Commencement Information

I378 Sch. 24 para. 1 in force at 29.6.2026, see s. 108(5)

SCHEDULE 25

Section 48

FIRE AND RESCUE AUTHORITIES

PART 1

AMENDMENT OF FRSA 2004

Introduction

- 1 FRSA 2004 is amended in accordance with this Part of this Schedule.

Commencement Information

I379 Sch. 25 para. 1 in force at 29.6.2026, see s. 108(5)

Power to create combined fire and rescue authorities

- 2 (1) Section 2 is amended in accordance with this paragraph.
- (2) In subsection (2) for “only if it appears” substitute “only if condition A or B is met.
- “(2A) *Condition A*: it appears”.
- (3) After subsection (2A) (created by sub-paragraph (2) above) insert—
- “(2B) *Condition B*: the scheme—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) is made in consequence of an order under section 1A, and
- (b) provides for a combined area that is wholly in England and is outside Greater London.

(2C) Subsections (3) to (5), (8)(a), (9)(a), (c) and (d) do not apply to a scheme made where condition B is met.”

(4) After subsection (11) insert—

“(11A) This section is subject to section 1(2A).”

Commencement Information

I380 Sch. 25 para. 2 in force at 29.6.2026, see s. 108(5)

Combined authorities under the Fire Services Act 1947

3 In section 4, after subsection (7) insert—

“(7A) This section is subject to section 1(2A).”

Commencement Information

I381 Sch. 25 para. 3 in force at 29.6.2026, see s. 108(5)

Provision about mayoral combined authorities or CCAs that are fire and rescue authorities

4 (1) In section 1 (fire and rescue authorities), after subsection (2B) (inserted by section 48 of this Act) insert—

“(2C) Schedule ZA1 makes provision about mayoral combined authorities or CCAs that are fire and rescue authorities.”

(2) Before Schedule A1 insert—

“SCHEDULE
ZA1

Section 1

MAYORAL COMBINED AUTHORITIES OR CCAs AS FIRE AND RESCUE AUTHORITIES

Interpretation

1 (1) In this Schedule—

“community risk management plan” means a document issued by an FRA’s mayor which—

- (a) is prepared and published in accordance with the Fire and Rescue National Framework, and
- (b) sets out for the period covered by the document—
 - (i) the mayoral FRA’s priorities and objectives in connection with the discharge of its functions as a fire and rescue authority, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) an assessment of all foreseeable fire and rescue related risks that could affect the mayoral FRA's area;

“FRA's mayor” means the mayor for the area of a mayoral FRA;

“mayoral FRA” means a mayoral combined authority or mayoral CCA which is a fire and rescue authority by virtue of section 1(2)(f) or (g);

“priorities and objectives” means a mayoral FRA's priorities and objectives in connection with the discharge of its functions as a fire and rescue authority which it is required to set out in the community risk management plan;

“relevant scrutiny body”, in relation to a mayoral FRA, has the meaning determined in accordance with sub-paragraphs (2) to (5).

- (2) The “relevant scrutiny body” is the overview and scrutiny committee of the mayoral combined authority or mayoral CCA which is the fire and rescue authority.
- (3) Where the authority or CCA has more than one overview and scrutiny committee, the authority or CCA must decide which of the committees is to exercise the functions of the relevant scrutiny body.
- (4) But sub-paragraphs (2) and (3) do not apply in a case where—
 - (a) the FRA's mayor also exercises functions of police and crime commissioner in relation to the area for which the mayoral FRA is the fire and rescue authority, and
 - (b) immediately before the mayoral FRA became the fire and rescue authority for that area, an authority created by an order under section 4A was the fire and rescue authority for that area.
- (5) In that case, the “relevant scrutiny body” is the police and crime panel for that area (see, in particular, section 28 of the Police Reform and Social Responsibility Act 2011 as it has effect in accordance with paragraph 10 of Schedule 10A to that Act).

Oversight of the community risk management plan

- 2 (1) This paragraph applies to—
 - (a) the issuing of a community risk management plan, and
 - (b) the variation of priorities and objectives set out in a community risk management plan.
- (2) The FRA's mayor must—
 - (a) consult the chief fire officer in preparing a draft of the plan or variation;
 - (b) send the priorities and objectives in the draft plan or draft variation to the relevant scrutiny body;
 - (c) have regard to any report or recommendations made by the relevant scrutiny body in relation to those priorities and objectives; and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) as soon as reasonably practicable—
 - (i) give the relevant scrutiny body a response to any such report or recommendations, and
 - (ii) publish the response in such manner as the FRA's mayor considers appropriate.
- (3) The FRA's mayor must ensure that the relevant scrutiny body has a reasonable amount of time to—
 - (a) consider the priorities and objectives sent to it in accordance with sub-paragraph (2)(b), and
 - (b) produce a report or recommendations.
- (4) The FRA's mayor must consult the chief fire officer before issuing or varying a community risk management plan if, and to the extent that, the priorities and objectives in the plan or variation are different from those in the draft on which the chief fire officer was consulted in accordance with sub-paragraph (2)(a).
- (5) If the FRA's mayor issues or varies a community risk management plan, the mayor must—
 - (a) send a copy of the plan or variation to the chief fire officer; and
 - (b) publish a copy of the plan or variation in such manner as the mayor considers appropriate.
- (6) The duty under sub-paragraph (5) to send or publish a copy of a variation may instead be satisfied by sending or publishing a copy of the plan as varied.

Duty to keep community risk management plan under review

- 3 The FRA's mayor must—
 - (a) keep the priorities and objectives in the community risk management plan under review, and
 - (b) in particular, review them in the light of any report or recommendations made to the mayor by the relevant scrutiny body.

Notification of proposed allocation of budget for fire and rescue functions

- 4 (1) In each financial year, an FRA's mayor must notify the relevant scrutiny body of the mayor's proposed allocation of the draft budget for fire and rescue functions in relation to the following financial year.
- (2) The notification must include the proposed allocation of the element of the general precept that is attributable to fire and rescue functions.
- (3) The notification must be given—
 - (a) before the date on which the mayoral combined authority or mayoral CCA determines whether to approve the mayor's annual budget in relation to the following financial year; and
 - (b) at a time which permits the relevant scrutiny body a reasonable amount of time to review the proposed allocation of budget before that determination is made.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Review of proposed budget

- 5 (1) The relevant scrutiny body must review any proposed allocation of budget notified to it under paragraph 4.
- (2) The relevant scrutiny body must make a report to the FRA's mayor in relation to the proposed allocation of budget.
- (3) The FRA's mayor must—
- (a) have regard to any report made under sub-paragraph (2) and to any recommendations made in it;
 - (b) provide the relevant scrutiny body with a response to the report and any recommendations made in it;
 - (c) notify the relevant scrutiny body of any material changes to the budget for fire and rescue functions after it has been finalised; and
 - (d) publish the response given under paragraph (b), and any notification given under paragraph (c)—
 - (i) in such manner as is required by the relevant scrutiny body; and
 - (ii) in any event, in a prominent place on the website of the mayoral combined authority or mayoral CCA.”

Commencement Information

I382 Sch. 25 para. 4 in force at 29.6.2026, see s. 108(5)

Matters outside the scope of inspections

- 5 In section 28 (inspectors), after subsection (A8) insert—
- “(A8A) When carrying out an inspection under subsection (A3) of a mayoral combined authority, or mayoral CCA, in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g), an English inspector must not review or scrutinise decisions made, or other action taken, in connection with the discharge of an excluded mayoral FRA function.
- (A8B) For the purposes of subsection (A8A), the following are excluded mayoral FRA functions in relation to a mayoral combined authority, or mayoral CCA, in its capacity as a fire and rescue authority—
- (a) the issuing of a community risk management plan;
 - (b) the variation of priorities and objectives set out in a community risk management plan;
 - (c) the allocation of the draft or actual budget for fire and rescue functions in relation to any financial year;
 - (d) the function of appointing, suspending or dismissing the chief fire officer;
 - (e) the function of holding the chief fire officer to account for the exercise of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) the functions which are delegated to the chief fire officer; and
 - (ii) the functions of persons under the direction and control of the chief fire officer;
- (f) the function of approving a pay policy statement prepared for the purposes of section 38 of the Localism Act 2011;
- (g) the function of approving arrangements to enter into a reinforcement scheme under section 13;
- (h) the function of approving arrangements with other employers of firefighters under section 15;
- (i) the function of approving arrangements under section 16;
- (j) the function of approving plans, modifications to plans and additions to plans for the purpose of ensuring that—
 - (i) so far as is reasonably practicable, the mayoral combined authority, or mayoral CCA, is able to continue to perform its fire and rescue functions if an emergency occurs; and
 - (ii) the mayoral combined authority, or mayoral CCA, is able to perform its functions so far as necessary or desirable for the purpose of preventing an emergency, or reducing, controlling or mitigating the effects of an emergency, or taking other action in connection with it;
- (k) the function of approving any arrangements for the co-operation of the mayoral combined authority, or mayoral CCA in relation to its fire and rescue functions with other general Category 1 responders and general Category 2 responders in respect of—
 - (i) the performance of the mayoral combined authority's, or mayoral CCA's, duty as a fire and rescue authority under section 2 of the Civil Contingencies Act 2004; and
 - (ii) any duties under subordinate legislation made in exercise of powers under that Act.

(A8C) In subsection (A8B)—

“community risk management plan” has the same meaning as in Schedule ZA1;

“emergency” has the meaning given in section 1 of the Civil Contingencies Act 2004 for Part 1 of that Act;

“general Category 1 responder” means a person who falls within Part 1 of Schedule 1 to the Civil Contingencies Act 2004;

“general Category 2 responder” means a person who falls within Part 3 of Schedule 1 to the Civil Contingencies Act 2004;

“priorities and objectives” has the same meaning as in Schedule ZA1.”

Commencement Information

I383 Sch. 25 para. 5 in force at 29.6.2026, see s. 108(5)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PART 2

AMENDMENTS OF OTHER LEGISLATION

Local Government Act 1972

- 6 In section 138 LGA 1972 (powers of principal councils with respect to emergencies or disaster)—
- (a) in subsection (5), after “London Fire Commissioner” insert “and a mayoral fire and rescue authority”;
 - (b) after subsection (5) insert—

“(5A) For that purpose “mayoral fire and rescue authority” means—

 - (a) a mayoral combined authority (which has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 107A(8) of that Act), or
 - (b) a mayoral CCA (which has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 — see section 27(8) of that Act),

in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.”

Commencement Information

I384 Sch. 25 para. 6 in force at 29.6.2026, see s. 108(5)

Local Government Finance Act 1988

- 7 (1) LGFA 1988 is amended in accordance with this paragraph.
- (2) In section 114 (functions of responsible officer as regards reports), in subsection (4) (b)—
- (a) in sub-paragraph (iiic), omit the final “and”;
 - (b) after sub-paragraph (iiic) insert—

“(iiid) a mayoral FRA, the relevant scrutiny body (and here “mayoral FRA” and “relevant scrutiny body” have the same meanings as in Schedule ZA1 to the Fire and Rescue Services Act 2004), and”.
- (3) In section 115 (authority’s duties as regards reports)—
- (a) after subsection (1BA) insert—

“(1BB) In the case of a report made by the chief finance officer of a mayoral FRA (which in this section has the same meaning as in Schedule ZA1 to the Fire and Rescue Services Act 2004), that mayoral FRA must consider the report and decide whether the mayoral FRA agrees or disagrees with the views contained in the report and what action (if any) the mayoral FRA proposes to take in consequence of it.”;
 - (b) in subsection (1E), after “section 4A fire and rescue authority” insert “, the mayoral FRA”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(c) after subsection (1FA) insert—

“(1FB) As soon as practicable after the mayoral FRA has prepared a report under subsection (1E), the mayoral FRA must arrange for a copy of the report to be sent to—

- (a) the chief finance officer;
 - (b) the person who at the time the report is made has the duty to audit the authority’s accounts; and
 - (c) each member of the relevant scrutiny body (which has the same meaning as in Schedule ZA1 to the Fire and Rescue Services Act 2004).”;
- (d) in subsection (2), after “section 4A fire and rescue authority” insert “, a mayoral FRA”.

Commencement Information

I385 Sch. 25 para. 7 in force at 29.6.2026, see s. 108(5)

Local Government and Housing Act 1989

8 (1) The Local Government and Housing Act 1989 is amended in accordance with this paragraph.

(2) In section 67(3) (meaning of “local authority” in Part 5), after paragraph (h) insert—

- “(ha) a mayoral combined authority (which has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 107A(8) of that Act) in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004;
- (hb) a mayoral CCA (which has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 — see section 27(8) of that Act) in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.”.

(3) In section 155(4) (local authorities that can receive emergency financial assistance), after paragraph (ha) insert—

- “(hb) a mayoral combined authority (which has the same meaning as in Part 6 of the Local Democracy, Economic Development and Construction Act 2009 — see section 107A(8) of that Act) in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004;
- (hc) a mayoral CCA (which has the same meaning as in Chapter 1 of Part 2 of the Levelling-up and Regeneration Act 2023 — see section 27(8) of that Act) in its capacity as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.”.

Commencement Information

I386 Sch. 25 para. 8 in force at 29.6.2026, see s. 108(5)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

LDEDCA 2009

- 9 (1) LDEDCA 2009 is amended in accordance with this paragraph.
- (2) In section 107D (delegation of functions by the mayor), after subsection (3) insert—
- “(3A) Subsection (3) is subject to section [107DZA](#).”
- (3) After section 107D insert—

“107DZA Limitation on delegation of mayoral functions

- (1) The mayor may not make an arrangement under section 107D(3)(a) or (b) for the exercise of any fire and rescue functions of the combined authority.
- (2) The power to make an arrangement under section 107D(3)(ba) is subject to paragraph 6 of Schedule [5BA](#).
- (3) In this section “fire and rescue functions of the combined authority” means—
- (a) functions of a fire and rescue authority which the combined authority has by virtue of an order under section 105A (and here “fire and rescue authority” means a fire and rescue authority under the Fire and Rescue Services Act 2004), or
 - (b) functions which the combined authority has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.”

Commencement Information

I387 [Sch. 25 para. 9](#) in force at 29.6.2026, see [s. 108\(5\)](#)

LURA 2023

- 10 (1) LURA 2023 is amended in accordance with this paragraph.
- (2) In section 30 (functions of mayors: general), after subsection (3) insert—
- “(3A) Subsection (3) is subject to section [30A](#).”
- (3) After section 30 insert—

“30A Limitation on delegation of mayoral functions

- (1) The mayor may not make an arrangement under section 30(3)(a) or (b) for the exercise of any fire and rescue functions of the CCA.
- (2) The power to make an arrangement under section 30(3)(ba) is subject to paragraph 6 of Schedule [2A](#).
- (3) In this section “fire and rescue functions of the CCA” means—
- (a) functions of a fire and rescue authority which the CCA has by virtue of regulations under section 19 (and here “fire and rescue authority” means a fire and rescue authority under the Fire and Rescue Services Act 2004), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) functions which the CCA has as a fire and rescue authority by virtue of section 1(2)(f) or (g) of the Fire and Rescue Services Act 2004.”

Commencement Information

I388 Sch. 25 para. 10 in force at 29.6.2026, see s. 108(5)

SCHEDULE 26

Section 51

LICENSING FUNCTIONS OF THE GLA AND THE MAYOR OF LONDON

- 1 The Licensing Act 2003 is amended in accordance with paragraphs 2 to 20.

Commencement Information

I389 Sch. 26 para. 1 in force at 29.6.2026, see s. 108(5)

- 2 In section 3 (licensing authorities), after subsection (1) insert—
- “(1A) In this Act, “London licensing authority” means each of the following licensing authorities—
- (a) the council of a London borough,
 - (b) the Common Council of the City of London,
 - (c) the Sub-Treasurer of the Inner Temple, or
 - (d) the Under-Treasurer of the Middle Temple.”

Commencement Information

I390 Sch. 26 para. 2 in force at 29.6.2026, see s. 108(5)

- 3 In section 4 (general duties of licensing authorities), after subsection (3) insert—
- “(4) In carrying out its licensing functions, a London licensing authority must also have regard to the licensing policy statement published by the Mayor of London under section 8A.”

Commencement Information

I391 Sch. 26 para. 3 in force at 29.6.2026, see s. 108(5)

- 4 In section 5 (statement of licensing policy), after subsection (3) insert—
- “(3A) Before determining or revising its policy for a five year period, a London licensing authority must also consult the Mayor of London.”

Commencement Information

I392 Sch. 26 para. 4 in force at 29.6.2026, see s. 108(5)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

5 After section 8 insert—

“8A Greater London strategic licensing policy

- (1) The Mayor of London must in respect of each five year period—
 - (a) determine a policy in relation to the carrying out of relevant licensable activities in Greater London, and
 - (b) publish a statement of that policy before the beginning of the period.
- (2) The Mayor may replace a policy under subsection (1) in respect of a period, with effect from any date during that period, by—
 - (a) determining a policy in relation to the carrying out of relevant licensable activities in Greater London in respect of a period of five years beginning with that date, and
 - (b) publishing a statement of that policy before that date.
- (3) Before determining a policy under this section, the Mayor must consult—
 - (a) the chief officer of police for the area of each London licensing authority,
 - (b) each Local Health Board for an area any part of which is in the area of a London licensing authority,
 - (c) such persons as the Mayor considers to be representative of holders of premises licences issued by each London licensing authority,
 - (d) such other persons as the Mayor considers to be representative of businesses and residents in the area of each London licensing authority,
 - (e) the Secretary of State,
 - (f) each London licensing authority.
- (4) During each five year period, the Mayor must keep its policy in respect of that period under review and make such revisions to the policy, at such times, as the Mayor considers appropriate.
- (5) Subsection (3) applies in relation to any revision of a policy under this section as it applies in relation to the original determination of a policy.
- (6) Where revisions are made, the Mayor must publish a statement of the revisions or the revised policy.
- (7) In determining a policy under this section, or making revisions to such a policy, the Mayor must have regard to—
 - (a) the primary importance of promoting the licensing objectives, and
 - (b) any requirements imposed on licensing authorities when carrying out their licensing functions.
- (8) In determining or revising a policy under this section, the Mayor must have regard to any cumulative impact assessments published by a London licensing authority in accordance with section 5A.
- (9) A statement of a policy under this section must specify the five year period to which it relates.

- (10) Regulations may make provision about the determination and revision of policies, and the preparation and publication of policy statements, under this section.
- (11) The requirement to consult in subsection (3) in relation to a policy for the first five year period may be met by consultation carried out before this section comes into force.
- (12) In this section, references to “relevant licensable activities” are to—

(a) the sale by retail of alcohol,

(b) the provision of regulated entertainment, and

(c) the provision of late night refreshment.
- (13) In this section, “five year period” means—

(a) if paragraph (b) does not apply, the period of five years beginning 6 months after this section comes into force or with such earlier date as the Mayor may determine, and each subsequent period of five years, or

(b) if the Mayor has published a statement of policy under subsection (2), the period of five years to which the most recently published such statement relates, and each subsequent period of five years.”
- Commencement Information**
I393 Sch. 26 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)
I394 Sch. 26 para. 5 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)
- 6

In section 13 (authorised persons and responsible authorities), in subsection (4), after paragraph (ha), insert—

“(hb) where the premises are situated in Greater London, the Greater London Authority,”.
- Commencement Information**
I395 Sch. 26 para. 6 in force at 29.6.2026, see [s. 108\(5\)](#)
- 7

After section 17 insert—
- “17A Licence applications of potential strategic importance: Greater London

(1) A London licensing authority must as soon as possible give notice to the Greater London Authority of any application made to it under section 17 that is a relevant licence application.

(2) A “relevant licence application” is an application for a premises licence in Greater London which would authorise the premises to be used for one or more of the following activities—

(a) the sale by retail of alcohol;

(b) the provision of regulated entertainment;

(c) the provision of late night refreshment.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) The Greater London Authority must give notice to each interested party if the Authority considers that the relevant licence application is an application of potential strategic importance to Greater London.
- (4) On receipt of a notice under subsection (3), the London licensing authority must as soon as reasonably practicable advertise the determination of the Greater London Authority.
- (5) The Secretary of State must by regulations specify the form and manner in which an advertisement under subsection (4) is to be made.
- (6) For the purposes of subsection (3), “application of potential strategic importance to Greater London” is to be interpreted in accordance with regulations made by the Secretary of State.
- (7) In this section, an “interested party” in relation to an application means—
 - (a) the London licensing authority that the application was made to;
 - (b) the applicant;
 - (c) each responsible authority in relation to the premises to which the application relates.”

Commencement Information

I396 Sch. 26 para. 7 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I397 Sch. 26 para. 7 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

8 In section 18 (determination of application for premises licence), after subsection (9) insert—

“(9A) Where a London licensing authority is to hold a hearing in accordance with subsection (3) in relation to an application of potential strategic importance to Greater London, the authority must give to the Greater London Authority—

- (a) in advance of the hearing, specified information relating to the hearing within the specified period;
- (b) following the hearing, specified information relating to the hearing within the specified period.

(9B) In subsection (9A)—

“application of potential strategic importance to Greater London” means a licence application that has been notified to the London licensing authority by the Greater London Authority under section 17A(3) as being of potential strategic importance to Greater London;

“specified” means specified in regulations made by the Secretary of State.”

Commencement Information

I398 Sch. 26 para. 8 in force at Royal Assent, see [s. 108\(1\)](#)

I399 Sch. 26 para. 8 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 9 In section 22 (prohibited conditions: plays), in subsection (2)—
- (a) the words from “a licensing authority” to the end become paragraph (a);
 - (b) after that paragraph, insert “or,
 - (b) the Mayor of London directing a London licensing authority under section 25C(1)(a)(i) or (b)(i), or section 41ZB(1)(a) or (c) to impose conditions which the Mayor considers appropriate on the grounds of public safety.”

Commencement Information

I400 Sch. 26 para. 9 in force at 29.6.2026, see s. 108(5)

- 10 In section 23 (grant or rejection of application)—
- (a) after subsection (2) insert—
 - “(2A) Where an application of potential strategic importance to Greater London is granted with no steps taken under section 18(4)(a) to (c) in relation to the licence, the relevant licensing authority must as soon as possible give notice to that effect to the Greater London Authority.
 - (2B) Subsection (2A) does not apply if the Greater London Authority made relevant representations in respect of the application.”;
 - (b) in subsection (4), after “this section” insert—
 - ““application of potential strategic importance to Greater London” means a licence application that has been notified to a London licensing authority by the Greater London Authority under section 17A(3) as being of potential strategic importance to Greater London;”.

Commencement Information

I401 Sch. 26 para. 10 in force at 29.6.2026, see s. 108(5)

- 11 In section 24 (form of licence and summary), after subsection (2)(f), insert—
- “(g) if it is issued on a direction from the Mayor of London, specify this.”

Commencement Information

I402 Sch. 26 para. 11 in force at 29.6.2026, see s. 108(5)

- 12 After section 25A insert—

“Power of Mayor of London to determine licence applications

25B Power of the Mayor of London to determine applications

- (1) This section applies where on an application of potential strategic importance to Greater London a London licensing authority—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) grants a premises licence having taken one or more of the steps under section 18(4)(a) to (c) in relation to the licence, or
 - (b) rejects the application to grant a premises licence under section 18(4)(d).
- (2) The London licensing authority must as soon as possible give notice to the applicant and the Greater London Authority of—
 - (a) its decision to grant the premises licence and the steps, and reasons for the steps, taken under section 18(4)(a) to (c) in relation to the licence (including the detail of any modifications made to conditions under section 18(4)(a)), or
 - (b) its decision to reject the application under section 18(4)(d) and the reasons for doing so.
- (3) But the decision of the London licensing authority in relation to the application does not otherwise have effect unless and until the Mayor of London gives notice under subsection (6) of a decision under subsection (5)(b).
- (4) Accordingly, the London licensing authority must not take any steps under this Act in relation to the decision (including giving notice under section 23) unless and until such a notice is given.
- (5) The Mayor of London must by the end of the specified period decide—
 - (a) to give a direction to the London licensing authority in relation to the application (see section 25C), or
 - (b) that the decision of the London licensing authority in relation to the application is to have effect for the purposes of this Act (and, accordingly, any requirements in relation to that decision now apply).
- (6) The Mayor of London must give notice of the Mayor’s decision under subsection (5) to—
 - (a) each interested party;
 - (b) any person who made relevant representations in relation to the application under section 18.
- (7) On receipt of a notice under subsection (6), the London licensing authority must as soon as reasonably practicable advertise the decision of the Mayor.
- (8) The Secretary of State must by regulations specify the form and manner in which an advertisement under subsection (7) is to be made.
- (9) In this section—
 - “application of potential strategic importance to Greater London” means an application that has been notified to a London licensing authority by the Greater London Authority under section 17A(3) as being of potential strategic importance to Greater London;
 - “interested party” has the same meaning as in section 17A (see subsection (7) of that section);
 - “specified” means specified in regulations made by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

25C Directions by the Mayor of London

- (1) Where section 25B(5)(a) applies the Mayor of London must direct the London licensing authority—
 - (a) to grant the licence in accordance with the application subject only to—
 - (i) such conditions specified in the direction as are consistent with the operating schedule accompanying the application, and
 - (ii) any conditions which must under section 19, 20 or 21 be included in the licence,
 - (b) to grant the licence subject to—
 - (i) the conditions mentioned in subsection (1)(a)(i) with such permitted modifications as may be specified in the direction, and
 - (ii) any condition which must under section 19, 20 or 21 be included in the licence,
 - (c) to grant the licence in accordance with paragraph (a) or (b), but to also do one or both of the following—
 - (i) exclude from the scope of the licence any of the licensable activities which were excluded by the decision of the London licensing authority in relation to the application under section 18(4)(b);
 - (ii) refuse to specify a person in the licence as the premises supervisor where the London licensing authority refused to specify that person in their decision in relation to the application under section 18(4)(c), or
 - (d) to reject the application.
- (2) The Mayor may only give a direction to the London licensing authority under subsection (1)(d) to reject the application if the application was rejected by the authority under section 18(4)(d).
- (3) The London licensing authority must grant the licence or reject the application in accordance with the direction given under subsection (1).
- (4) When giving a direction under this section the Mayor must have regard to—
 - (a) the licensing policy statement published by the Mayor under section 8A, and
 - (b) the importance of promoting the licensing objectives.
- (5) Directions given under subsection (1)(a) or (b) may have the effect of requiring a premises licence to be granted subject to different conditions in respect of—
 - (a) different parts of the premises concerned;
 - (b) different licensable activities.
- (6) A direction under this section must state the Mayor's reasons for giving the direction.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (7) For the purposes of subsection (1)(b)(i) the conditions mentioned in subsection (1)(a)(i) are modified if any of them is altered or omitted or any new condition is added.
- (8) For the purposes of subsection (1)(b)(i), a modification to a condition is “permitted” if—
 - (a) the condition was modified by the London licensing authority when granting the licence under section 18(4)(a), and the modification is—
 - (i) the same as that modification, or
 - (ii) in the Mayor’s opinion less restrictive than that modification (but see subsection (9)), or
 - (b) the condition relates to an application that was rejected by the London licensing authority under section 18(4)(d).
- (9) The Mayor may not make a modification to a condition under subsection (8) (a)(ii) if the effect of the modification would be that the condition would apply to a different part of the premises, or to different licensable activities, than that it applied to as modified by the London licensing authority under section 18(4)(a).

25D Issue of licence etc by licensing authority

- (1) A London licensing authority that grants a licence on a direction under section 25C(1)(a) to (c) must as soon as possible—
 - (a) give notice that the licence is granted to—
 - (i) the applicant,
 - (ii) each responsible authority in relation to the premises to which the application relates,
 - (iii) any person who made relevant representations under section 18 in respect of the application, and
 - (iv) the chief officer of police for the police area (or each police area) in which the premises are situated, and
 - (b) issue the applicant with the licence and a summary of it.
- (2) A London licensing authority that rejects an application on a direction under section 25C(1)(d) must as soon as possible give notice that the application is rejected to—
 - (a) the applicant,
 - (b) each responsible authority in relation to the premises to which the application relates,
 - (c) any person who made relevant representations under section 18 in respect of the application, and
 - (d) the chief officer of police for the police area (or each police area) in which the premises are situated.
- (3) A notice under subsection (1) or (2) must state the Mayor’s reasons for giving the direction as notified to the London licensing authority under section 25C(6).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I403 Sch. 26 para. 12 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I404 [Sch. 26 para. 12](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

13 After section 34 insert—

“34A Applications to vary of potential strategic importance: Greater London

- (1) A London licensing authority must as soon as possible give notice to the Greater London Authority of any application made to it under section 34 that is a relevant application.
- (2) A “relevant application” is an application to vary a premises licence in Greater London where the premises are, or would after the variation be, used for one or more of the following activities—
 - (a) the sale by retail of alcohol;
 - (b) the provision of regulated entertainment;
 - (c) the provision of late night refreshment.
- (3) The Greater London Authority must give notice to each interested party if the Authority considers that the relevant application is an application to vary of potential strategic importance to Greater London.
- (4) On receipt of a notice under subsection (3), the London licensing authority must as soon as reasonably practicable advertise the determination of the Greater London Authority.
- (5) The Secretary of State must by regulations specify the form and manner in which an advertisement under subsection (4) must be made.
- (6) For the purposes of subsection (3) “application to vary of potential strategic importance to Greater London” is to be interpreted in accordance with regulations made by the Secretary of State.
- (7) In this section, an “interested party” in relation to an application means—
 - (a) the London licensing authority that the application was made to;
 - (b) the applicant;
 - (c) each responsible authority in relation to the premises to which the application relates.”

Commencement Information

I405 Sch. 26 para. 13 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I406 [Sch. 26 para. 13](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

14 In section 35 (determination of application under section 34), after subsection (7) insert—

- “(8) Where a London licensing authority is to hold a hearing in accordance with subsection (3) in relation to an application to vary of potential strategic importance to Greater London, the authority must give to the Greater London Authority—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in advance of the hearing, specified information relating to the hearing within the specified period;
- (b) following the hearing, specified information relating to the hearing within the specified period.

(9) In this section—

“application to vary of potential strategic importance to Greater London” means an application to vary a premises licence that has been notified to the London licensing authority by the Greater London Authority under section 34A(3);

“specified” means specified in regulations made by the Secretary of State.”

Commencement Information

I407 Sch. 26 para. 14 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I408 Sch. 26 para. 14 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

15 After section 41 insert—

“Power of Mayor of London to determine applications to vary

41ZA Power of the Mayor of London to determine applications to vary

- (1) This section applies where, on an application to vary of potential strategic importance to Greater London, a London licensing authority—
 - (a) grants an application to vary a premises licence in whole under section 35 and modifies the conditions of the licence under subsection (4)(a) of that section,
 - (b) rejects an application to vary a premises licence in whole under section 35(4)(b), or
 - (c) rejects an application to vary a premises licence in part under section 35(4)(b) and grants the other part (whether with or without modifying the conditions of the licence).
- (2) The London licensing authority must as soon as possible give notice to the applicant and the Greater London Authority of—
 - (a) its decision to grant the application in whole and modify the conditions of the licence and the reasons for doing so (including the detail of the modifications made),
 - (b) its decision to reject the application in whole and the reasons for doing so, or
 - (c) its decision to reject part of the application and to grant the other part with or without modifying the conditions of the licence, and the reasons for doing so (including the detail of any modifications made).
- (3) But the decision of the London licensing authority in relation to the application does not otherwise have effect unless and until—
 - (a) the Mayor of London gives notice under subsection (8) of a decision under subsection (7)(b), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the obligations on the Mayor of London under subsection (7) of this section or section 41ZB cease to apply (see section 41ZC).
- (4) Accordingly, the London licensing authority must not take any steps under this Act in relation to the decision (including taking steps under section 56) unless and until the circumstances in subsection (3)(a) or (b) apply.
- (5) Where the decision of the London licensing authority has effect by virtue of subsection (3)(b), that decision is to take effect as subject to the intervening decision made by the authority in relation to the licence (see section 41ZC(2)(a)).
- (6) For the purpose of supplementing subsection (5), the Secretary of State may by regulations make provision modifying any provision of this Act as it applies to a decision of the London licensing authority that has effect by virtue of subsection (3)(b).
- (7) The Mayor of London must by the end of the specified period decide—
 - (a) to give a direction to the London licensing authority in relation to the application (see section 41ZB), or
 - (b) that the decision of the London licensing authority in relation to the application has effect for the purposes of this Act (and, accordingly, any requirements in relation to that decision now apply).
- (8) The Mayor of London must give notice of the Mayor’s decision under subsection (7) to—
 - (a) each interested party;
 - (b) any person who made relevant representations in relation to the application under section 35.
- (9) On receipt of a notice under subsection (8), the London licensing authority must as soon as reasonably practicable advertise the decision of the Mayor.
- (10) The Secretary of State must by regulations specify the form and manner in which an advertisement under subsection (9) must be made.
- (11) In this section—
 - “application to vary of potential strategic importance to Greater London” means an application to vary a premises licence that has been notified to the London licensing authority by the Greater London Authority under section 34A(3) as being of potential strategic importance to Greater London;
 - “interested party” has the same meaning as in section 34A;
 - “specified” means specified in regulations made by the Secretary of State.

41ZB Directions by the Mayor of London

- (1) Where section 41ZA(7)(a) applies the Mayor of London must direct the London licensing authority—
 - (a) to grant the application in whole with or without such permitted modifications to the conditions of the licence as may be specified in the direction,
 - (b) to reject the application in whole, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) to grant part of the application with or without such permitted modifications to the conditions of the licence as may be specified in the direction (and to reject the other part of the application).
- (2) The Mayor may only give a direction to the London licensing authority under subsection (1)(b) or (c) to reject the application in whole or in part if the application, or that part of the application, was rejected by the authority under section 35(4)(b).
- (3) The London licensing authority must grant or reject the application in accordance with the direction given under subsection (1).
- (4) Subsection (1)(a) and (c) are subject to sections 19 to 21 (which require certain conditions to be included in premises licences).
- (5) A direction under this section may not require a licence to be varied so as—
 - (a) to extend the period for which the licence has effect, or
 - (b) to vary substantially the premises to which it relates.
- (6) Directions given under subsection (1)(a) or (c) may have the effect of requiring a premises licence to be varied so as to have effect subject to different conditions in respect of—
 - (a) different parts of the premises concerned;
 - (b) different licensable activities.
- (7) When giving a direction under this section the Mayor must have regard to—
 - (a) the licensing policy statement published by the Mayor under section 8A, and
 - (b) the importance of promoting the licensing objectives.
- (8) A direction under this section must state the Mayor’s reasons for giving that direction.
- (9) For the purposes of subsection (1)(a) and (c), the conditions are modified if any of them is altered or omitted or any new condition is added.
- (10) For the purposes of subsection (1)(a) or (c), a modification to a condition is “permitted” if—
 - (a) the condition was modified by the London licensing authority when granting the application in whole or in part under section 35(4)(a), and the modification is—
 - (i) the same as that modification, or
 - (ii) in the Mayor’s opinion less restrictive than that modification (but see subsection (11)), or
 - (b) the condition relates to an application, or part of an application, that was rejected by the London licensing authority under subsection 35(4)(b).
- (11) The Mayor may not make a modification to a condition under subsection (10)
 - (a)(ii) if the effect of the modification would be that the condition would apply to a different part of the premises, or to different licensable activities, than that it applied to as modified by the London licensing authority under section 35(4)(a).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

41ZC Intervening decision by a London licensing authority

- (1) The obligations on the Mayor of London under section 41ZA(7) or 41ZB in relation to an application to vary of potential strategic importance to Greater London cease to apply if the conditions in subsection (2) are met in relation to the obligation in question.
- (2) The conditions in this subsection are met if—
 - (a) the London licensing authority that made the decision under section 35 in relation to the application to vary the premises licence has, before the relevant time, made an intervening decision in relation to the licence, and
 - (b) the authority has given notice of that decision to the Mayor of London.
- (3) In this section, an “intervening decision” means a decision—
 - (a) to take any of the steps under section 52(4) on an application for review of the licence;
 - (b) to take any of the steps under section 53C(3) on an application by a senior police officer for review of the licence;
 - (c) to take any of the steps under section 167(6) on a review of the licence following a closure order.
- (4) The “relevant time” for the purposes of subsection (2)(a)—
 - (a) in relation to the obligation to make a decision under section 41ZA(7), is the time at which the Mayor makes the decision,
 - (b) in relation to an obligation to give a direction under section 41ZB, is the time at which the direction is given.

41ZD Notification by the London licensing authority

- (1) A London licensing authority that grants an application (or any part of an application) on a direction under section 41ZB must as soon as possible give notice to that effect to—
 - (a) the applicant,
 - (b) each responsible authority in relation to the premises to which the application relates,
 - (c) any person who made relevant representations under section 35 in respect of the application, and
 - (d) the chief officer of police for the police area (or each police area) in which the premises are situated.
- (2) The notice under subsection (1) must—
 - (a) specify the time when any variation takes effect, and
 - (b) specify any modifications to conditions of the licence.
- (3) The time for the purposes of subsection (2) is the time specified in the application or, if that time is before the applicant is given notice under this section, such later time as the London licensing authority specifies in the notice.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) A London licensing authority that rejects an application (or any part of an application) on a direction under section 41ZB must as soon as possible give notice to that effect to—
- (a) the applicant,
 - (b) each responsible authority in relation to the premises to which the application relates,
 - (c) any person who made relevant representations under section 35 in respect of the application, and
 - (d) the chief officer of police for the police area (or each police area) in which the premises are situated.
- (5) A notice under subsection (1) or (4) must state the Mayor’s reasons for giving the direction as notified to the London licensing authority under section 41ZB(8).”

Commencement Information

I409 Sch. 26 para. 15 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I410 [Sch. 26 para. 15](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

- 16 In section 54 (form of applications and notices)—
- (a) in paragraph (a), after “form” insert “or content”;
 - (b) after paragraph (b) insert—
 - “(ba) the period within which it is to be made or given;”.

Commencement Information

I411 [Sch. 26 para. 16](#) in force at 29.6.2026, see [s. 108\(5\)](#)

- 17 In section 56 (licensing authority’s duty to update licence document), in subsection (1), after paragraph (a) insert—
- “(aa) a London licensing authority, in relation to a premises licence, is subject to a direction under section 41ZB (directions by Mayor of London).”.

Commencement Information

I412 [Sch. 26 para. 17](#) in force at 29.6.2026, see [s. 108\(5\)](#)

- 18 In section 181 (appeals against decisions of licensing authorities)—
- (a) in the heading, after “licensing authorities” insert “or the Mayor of London”;
 - (b) in subsection (1), after “licensing authorities” insert “or the Mayor of London”;
 - (c) in subsection (2), in the opening words, after “licensing authority” insert “or the Mayor of London”;
 - (d) in subsection (2)(b), after “authority” insert “or (as the case may be) the Mayor”;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (e) in subsection (2)(c), after “authority” insert “or (as the case may be) the Mayor”.

Commencement Information

I413 Sch. 26 para. 18 in force at 29.6.2026, see s. 108(5)

- 19 In section 185 (provision of information)—
- (a) in subsection (1)—
- (i) the words from “information which” to the end become paragraph (a);
- (ii) after that paragraph insert “, and
- (b) information which is held by or on behalf of the Mayor of London in connection with the Mayor’s functions under this Act.”;
- (b) in subsection (2)—
- (i) at the end of paragraph (a) omit “or”;
- (ii) at the end of paragraph (b) insert “or
- (c) to the Mayor of London.”;
- (iii) in the closing words, after “functions” insert “or the Mayor’s functions”;
- (c) in subsection (3), for “or responsible authority” substitute “, responsible authority or the Mayor of London”.

Commencement Information

I414 Sch. 26 para. 19 in force at 29.6.2026, see s. 108(5)

- 20 In Schedule 5 (appeals)—
- (a) after paragraph 1 insert—
- “1A Where the Mayor of London gives a direction to a London licensing authority—
- (a) to reject an application for a premises licence under section 25C, or
- (b) to reject (in whole or in part) an application to vary a premises licence under section 41ZB,
- the applicant may appeal against the direction.”;
- (b) after paragraph 2 insert—
- “2A (1) This paragraph applies where the Mayor of London gives a direction to a London licensing authority under section 25C to grant a premises licence.
- (2) The holder of the licence may appeal against the following aspects of any such direction—
- (a) to impose conditions on the licence under subsection (1)(a)(i) of that section;
- (b) to impose conditions on the licence under subsection (1)(b)(i) of that section;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) to exclude licensable activities from the scope of the licence under subsection (1)(c)(i) of that section;
 - (d) to refuse to specify a person in the licence as the premises supervisor under subsection (1)(c)(ii) of that section.
- (3) A person who made relevant representations in relation to the application under section 18 may appeal against the Mayor's direction to grant the licence on the following basis—
 - (a) that the licence ought not to have been granted, or
 - (b) that the direction ought to have imposed different or additional conditions under section 25C(1)(a)(i) or (b)(i), or to have taken a step mentioned in section 25C(1)(c)(i) or (ii).”;
- (c) in the heading of paragraph 4, after “35” insert “or 41ZB”;
- (d) after paragraph 4 insert—

“4A (1) This paragraph applies where the Mayor of London gives a direction to a London licensing authority under section 41ZB to grant an application to vary a premises licence (in whole or in part).

(2) The applicant may appeal against any direction under that section to make permitted modifications to the conditions of the licence.

(3) A person who made relevant representations in relation to the application under section 35 may appeal against the Mayor's direction to grant the application on the following basis—

 - (a) that any variation made ought not to have been made, or
 - (b) that, when directing the licence to be varied, the Mayor ought not to have directed that permitted modifications be made to the conditions of the licence, or ought to have directed that different permitted modifications be made to the conditions.

(4) In sub-paragraph (3), “permitted modifications” has the meaning given in section 41ZB(10).”;
- (e) in paragraph 9—
 - (i) in sub-paragraph (2), for the words from “the day” to the end substitute—

“(a) on an appeal under paragraph 1A, 2A or 4A, the day on which the appellant was notified by the London licensing authority of the outcome of the direction appealed against, and

(b) on any other appeal under this Part, the day on which the appellant was notified by the licensing authority of the decision appealed against.”;
 - (ii) after sub-paragraph (3) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“(3A) On an appeal under paragraph 2A(3) or 4A(3), the holder of the premises licence is to be the respondent in addition to the Mayor of London.”

Commencement Information

I415 Sch. 26 para. 20 in force at 29.6.2026, see [s. 108\(5\)](#)

- 21 (1) The Secretary of State may by regulations repeal the provisions of the Licensing Act 2003 as inserted by paragraphs 2 to 20 of this Schedule and as amended from time to time.
- (2) The power under sub-paragraph (1) expires at the end of the period of five years beginning with the day on which this Schedule comes into force.
- (3) Regulations under this paragraph may make consequential, supplementary or incidental provision under section 105(2) which amends, repeals or revokes any legislation (whenever passed or made).
- (4) Regulations under this paragraph are subject to affirmative resolution procedure.

Commencement Information

I416 Sch. 26 para. 21 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I417 Sch. 26 para. 21 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

SCHEDULE 27

Section 54

POWERS TO MAKE REGULATIONS IN RELATION TO FUNCTIONS OF STRATEGIC AUTHORITIES AND MAYORS

PART 1

CONFERRAL AND MODIFICATION OF FUNCTIONS

Strategic authorities outside London

- 1 (1) Regulations may make provision conferring an eligible function on the strategic authorities within a class specified in sub-paragraph (3).
- (2) Regulations may make provision modifying a function as it is exercisable by the strategic authorities within a class specified in sub-paragraph (3).
- (3) These are the classes referred to in sub-paragraphs (1) and (2)—
- (a) the single foundation strategic authorities;
 - (b) the single foundation strategic authorities that are district councils;
 - (c) the single foundation strategic authorities that are county councils;
 - (d) the combined foundation strategic authorities;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (e) the mayoral strategic authorities other than the established mayoral strategic authorities;
 - (f) the established mayoral strategic authorities other than the GLA.
- (4) Regulations may not be made under this section unless the Secretary of State is satisfied that it is appropriate to do so having regard to the need to secure the effective exercise of the function concerned.
- (5) See also section 18 of the Cities and Local Government Devolution Act 2016 (devolving health service functions) which contains further limitations.
- (6) Before making regulations under this paragraph the Secretary of State must consult the following—
 - (a) the affected strategic authorities;
 - (b) the mayors of any of the affected strategic authorities that are mayoral strategic authorities;
 - (c) the constituent councils of any affected strategic authorities that are combined authorities or CCAs;
 - (d) any other person who exercises the function to which the regulations relate;
 - (e) any other persons that the Secretary of State considers it appropriate to consult.
- (7) In this paragraph “affected strategic authorities” means the strategic authorities—
 - (a) on which a function would be conferred by regulations under sub-paragraph (1), or
 - (b) whose exercise of a function would be affected by regulations under sub-paragraph (2).

Commencement Information

I418 Sch. 27 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I419 [Sch. 27 para. 1](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Mayors outside London

- 2
- (1) Regulations may make provision conferring an eligible function on the mayors within a class specified sub-paragraph (3).
 - (2) Regulations may make provisions modifying a function as it is exercisable by the mayors within a class specified in sub-paragraph (3).
 - (3) These are the classes referred to in sub-paragraphs (1) and (2)—
 - (a) mayors for the areas of mayoral strategic authorities other than the established mayoral strategic authorities;
 - (b) mayors for the areas of established mayoral strategic authorities other than the Mayor of London.
 - (4) Regulations may not be made under this section unless the Secretary of State is satisfied that it is appropriate to do so having regard to the need to secure the effective exercise of the function concerned.
 - (5) See also section 18 of the Cities and Local Government Devolution Act 2016 (devolving health service functions) which contains further limitations.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (6) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the affected mayors;
 - (b) the strategic authorities for whose areas the affected mayors are the mayor;
 - (c) the constituent councils of those strategic authorities;
 - (d) any other person who exercises the function to which the regulations relate;
 - (e) any other persons that the Secretary of State considers it appropriate to consult.
- (7) In this paragraph “affected mayors” means the mayors—
- (a) on which a function would be conferred by regulations under sub-paragraph (1), or
 - (b) whose exercise of a function would be affected by regulations under sub-paragraph (2).

Commencement Information

I420 Sch. 27 para. 2 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I421 Sch. 27 para. 2 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

GLA

- 3 (1) Regulations may make provision conferring an eligible function on the GLA, the Mayor of London or a GLA functional body.
- (2) Regulations may make provision modifying a function as it is exercisable by the GLA, the Mayor of London or a GLA functional body.
- (3) Regulations may not be made under this section unless the Secretary of State is satisfied that it is appropriate to do so having regard to the need to secure the effective exercise of the function concerned.
- (4) See also section 18 of the Cities and Local Government Devolution Act 2016 (devolving health service functions) which contains further limitations.
- (5) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the Mayor of London,
 - (b) the London Assembly,
 - (c) in the case of regulations conferring a function on, or modifying a function of, a GLA functional body, that functional body;
 - (d) the London Borough councils;
 - (e) the Common Council of the City of London;
 - (f) any other person who exercises the function to which the regulations relate;
 - (g) any other persons that the Secretary of State considers it appropriate to consult.

Commencement Information

I422 Sch. 27 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

I423 Sch. 27 para. 3 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Interpretation

- 4 In this Part of this Schedule—
- “eligible function” means a function which—
 - (a) is a function of a public authority, and
 - (b) relates to any aspect of any area of competence;
 - “function”—
 - (a) includes a power to make byelaws;
 - (b) but does not include a power to make any other instruments of a legislative character (including regulations);
 - “public authority” includes a Minister of the Crown or a government department.

Commencement Information

I424 Sch. 27 para. 4 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I425 Sch. 27 para. 4 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

PART 2

MOVEMENT OF FUNCTIONS BETWEEN MAYORS AND STRATEGIC AUTHORITIES

Functions moving from strategic authorities to mayors outside London

- 5 (1) Regulations may provide for a function of—
- (a) the mayoral strategic authorities other than the established mayoral strategic authorities, or
 - (b) the established mayoral strategic authorities other than the GLA,
- to be exercisable by the mayors for the areas of those authorities.
- (2) Regulations under this paragraph may provide for the function to be exercisable by the mayors—
- (a) solely;
 - (b) concurrently or jointly with another person by which the function is already exercisable.
- (3) Regulations under this paragraph which provide for a function to be exercisable jointly with another person may provide for the function to also be exercisable by the other person alone.
- (4) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the affected strategic authorities;
 - (b) the mayors of the affected strategic authorities;
 - (c) the constituent councils of the affected strategic authorities;
 - (d) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (e) any other persons that the Secretary of State considers it appropriate to consult.

- (5) In this paragraph “affected strategic authorities” means the strategic authorities to whose function regulations under this paragraph relate.

Commencement Information

I426 Sch. 27 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I427 [Sch. 27 para. 5](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Functions moving from mayors to strategic authorities outside London

- 6 (1) Regulations may provide for a function of the mayors for the areas of —
 - (a) the mayoral strategic authorities other than the established mayoral strategic authorities, or
 - (b) the established mayoral strategic authorities other than the Mayor of London, to be exercisable by those authorities.
- (2) Regulations under this paragraph may provide for the function to be exercisable by the authorities—
 - (a) solely;
 - (b) concurrently or jointly with another person by which the function is already exercisable.
- (3) Regulations under this paragraph which provide for a function to be exercisable jointly with another person may provide for the function to also be exercisable by the other person alone.
- (4) Before making regulations under this paragraph the Secretary of State must consult the following—
 - (a) the affected mayors;
 - (b) the strategic authorities for whose areas the affected mayors are the mayor;
 - (c) the constituent councils of those strategic authorities;
 - (d) any other person who exercises the function to which the regulations relate;
 - (e) any other persons that the Secretary of State considers it appropriate to consult.
- (5) In this paragraph “affected mayors” means the mayors to whose function regulations under this paragraph relate.

Commencement Information

I428 Sch. 27 para. 6 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I429 [Sch. 27 para. 6](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

GLA functions

- 7 (1) Regulations may provide for a function of any of the following (the “current GLA holder”)—
 - (a) the GLA;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) the Mayor of London;
 - (c) a GLA functional body;to be exercisable by another of them (the “new GLA holder”).
- (2) Regulations under this paragraph may provide for the function to be exercisable by the new GLA holder—
 - (a) solely;
 - (b) concurrently or jointly with another person by which the function is already exercisable.
- (3) Regulations under this paragraph which provide for a function to be exercisable jointly with another person may provide for the function to also be exercisable by the current GLA holder or other person alone.
- (4) Before making regulations under this paragraph the Secretary of State must consult the following—
 - (a) the Mayor of London;
 - (b) the London Assembly;
 - (c) in a case where the current GLA holder or new GLA holder is a GLA functional body, that functional body;
 - (d) the London Borough councils;
 - (e) the Common Council of the City of London;
 - (f) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;
 - (g) any other persons that the Secretary of State considers it appropriate to consult.

Commencement Information

I430 Sch. 27 para. 7 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I431 [Sch. 27 para. 7](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

PART 3

EXERCISE OF FUNCTIONS

Strategic authorities outside London

- 8 (1) Regulations may make provision about the exercise of a function by any of these classes of strategic authorities (except for provision about voting on decisions to exercise the function — see Part 4 of this Schedule)—
- (a) the single foundation strategic authorities;
 - (b) the single foundation strategic authorities that are district councils;
 - (c) the single foundation strategic authorities that are county councils;
 - (d) the combined foundation strategic authorities;
 - (e) the mayoral strategic authorities other than the established mayoral strategic authorities;
 - (f) the established mayoral strategic authorities other than the GLA.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the affected strategic authorities;
 - (b) the constituent councils of any affected strategic authorities that are combined authorities or CCAs;
 - (c) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;
 - (d) any other persons that the Secretary of State considers it appropriate to consult.
- (3) In this paragraph “affected strategic authorities” means the strategic authorities to whose function regulations under this paragraph relate.

Commencement Information

I432 Sch. 27 para. 8 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I433 Sch. 27 para. 8 in force at 29.6.2026 in so far as not already in force, see [s. 108\(1\)](#)

Mayors outside London

- 9 (1) Regulations may make provision about the exercise of a function by the mayors of any of these classes of strategic authorities—
- (a) the mayoral strategic authorities other than the established mayoral strategic authorities;
 - (b) the established mayoral strategic authorities other than the GLA.
- (2) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the affected mayors;
 - (b) the strategic authorities for whose areas the affected mayors are the mayor;
 - (c) the constituent councils of those strategic authorities;
 - (d) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;
 - (e) any other persons that the Secretary of State considers it appropriate to consult.
- (3) In this paragraph “affected mayors” means the mayors to whose function regulations under this paragraph relate.

Commencement Information

I434 Sch. 27 para. 9 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I435 Sch. 27 para. 9 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

London

- 10 (1) Regulations may make provision about the exercise of a function by—
- (a) the GLA,
 - (b) the Mayor of London, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) a GLA functional body,
except for provision about voting on decisions to exercise the function.
- (2) Before making regulations under this paragraph the Secretary of State must consult the following—
 - (a) the Mayor of London;
 - (b) the London Assembly;
 - (c) in the case of a function of a GLA functional body, that functional body;
 - (d) the London Borough councils;
 - (e) the Common Council of the City of London;
 - (f) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;
 - (g) any other persons that the Secretary of State considers it appropriate to consult.

Commencement Information

I436 Sch. 27 para. 10 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I437 Sch. 27 para. 10 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Particular provision

- 11 (1) The provision that may be made under this Part of this Schedule includes provision for—
- (a) consent to be obtained before the function can be exercised;
 - (b) consultation to take place before the function can be exercised;
 - (c) conditions to be met before the function can be exercised;
 - (d) the function to be exercisable subject to conditions or limitations specified in the regulations;
 - (e) a function to be exercisable—
 - (i) solely;
 - (ii) concurrently or jointly with another person by which the function is already exercisable;
 - (f) joint working arrangements in connection with the function (for example, provision for the function to be exercised by a joint committee).
- (2) Regulations under this Part of this Schedule which provide for a function to be exercisable jointly with another person may provide for the function to also be exercisable by that other person alone.

Commencement Information

I438 Sch. 27 para. 11 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I439 Sch. 27 para. 11 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PART 4

VOTING ON DECISIONS

Strategic authorities outside London

- 12 (1) Regulations may make provision about voting, by any of these classes of strategic authorities, on decisions to exercise a particular function—
- (a) the combined foundation strategic authorities;
 - (b) the mayoral strategic authorities other than the established mayoral strategic authorities;
 - (c) the established mayoral strategic authorities other than the GLA.
- (2) The provision that may be made under this paragraph includes provision for—
- (a) a decision to be made by a CCA or CCAs otherwise than in accordance with section 13A of LURA 2023;
 - (b) a decision to be made by a combined authority or combined authorities otherwise than in accordance with section 104CA of LDEDCA 2009;
 - (c) a decision to require a particular kind of majority (including a majority which includes a vote or votes of a particular kind of person).
- (3) Before making regulations under this paragraph the Secretary of State must consult the following—
- (a) the affected strategic authorities;
 - (b) the constituent councils of any affected strategic authorities that are combined authorities or CCAs;
 - (c) any other person who exercises the function to which the regulations relate, if their power to exercise it would be affected by the regulations;
 - (d) any other persons that the Secretary of State considers it appropriate to consult.
- (4) In this paragraph “affected strategic authorities” means the strategic authorities to whose decision-making regulations under this paragraph relate.

Commencement Information

I440 Sch. 27 para. 12 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I441 [Sch. 27 para. 12](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

PART 5

PARTICULAR PROVISION THAT MAY OR MAY NOT BE MADE BY REGULATIONS

Consequential abolition of public body

- 13 Regulations under this Schedule may, in particular, include provision to abolish the public authority in a case where, as a result of the regulations, it will no longer have any functions.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I442 Sch. 27 para. 13 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I443 [Sch. 27 para. 13](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Prohibition of self-regulation

- 14 (1) Regulations under this Schedule may not provide for a regulatory function that is exercisable by a public authority in relation to the whole of England to be exercisable by the recipients if the regulated function is itself exercisable by any or all of the recipients.

- (2) In this paragraph—

“recipient” means an authority, mayor or body on which a function would be or has been conferred by regulations under this Schedule;

“regulated function” means the function of carrying out an activity to which a regulatory function relates;

“regulatory function” has the meaning given by section 32 of the Legislative and Regulatory Reform Act 2006.

Commencement Information

I444 Sch. 27 para. 14 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I445 [Sch. 27 para. 14](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

References to documents

- 15 (1) This paragraph applies where regulations under this Schedule contain a reference to a document specified or described in the regulations (for example, in imposing a condition by virtue of paragraph [11\(1\)\(d\)](#) for recipients to have regard to, or to comply with, a statement of policy or standards set out in the document).

- (2) If it appears to the Secretary of State necessary or expedient for the reference to the document to be construed—

(a) as a reference to that document as amended from time to time, or

(b) as including a reference to a subsequent document that replaces that document,

the regulations may make express provision to that effect.

Commencement Information

I446 Sch. 27 para. 15 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I447 [Sch. 27 para. 15](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Functions which cannot be exercised by all strategic authorities or mayors in a class

- 16 (1) This paragraph applies to a power under this Schedule to make provision in relation to a function and a class of strategic authorities or mayors (the “relevant class”).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) The power must be read as enabling regulations to make the provision in relation to the function and relevant class even if that function is not, or would not be, capable of exercise by some of the strategic authorities or mayors within that class for any reason.
- (3) Those reasons include the function being exercisable in relation to a thing or location which does not exist in the area of a strategic authority.

Commencement Information

I448 Sch. 27 para. 16 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I449 Sch. 27 para. 16 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Exercise of functions may begin at different times etc

- 17 (1) This paragraph applies to a power under this Schedule to confer a function on, or provide for a function to be exercisable by, a class of strategic authorities or mayors (the “relevant class”).
- (2) The power includes—
 - (a) the power to provide for the function to begin to be exercisable by different members of the relevant class at different times or in different circumstances;
 - (b) the power to make further regulations which specify the times at which, or circumstances in which, the function is to begin to be exercisable by different members of the relevant class.
- (3) Regulations under sub-paragraph (2)(b) may be made in relation to different members of the relevant class at different times.
- (4) In this paragraph “different members” of the relevant class includes members of the relevant class that are of different descriptions specified in regulations made under the power.

Commencement Information

I450 Sch. 27 para. 17 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I451 Sch. 27 para. 17 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Amendment of legislation

- 18 Regulations under this Schedule may amend, apply (with or without modifications), disapply, repeal or revoke any legislation whenever passed or made.

Commencement Information

I452 Sch. 27 para. 18 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I453 Sch. 27 para. 18 in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PART 6

PILOT SCHEMES

Power to establish pilot scheme

- 19 (1) Regulations may make permitted provision for a period specified in the regulations (the “piloting period”).
- (2) The piloting period must initially be a period of three years or shorter.
- (3) But—
- (a) the Secretary of State may by regulations provide that the piloting period is to continue after the time when it would otherwise expire for a period not exceeding two years (and may make such regulations more than once);
 - (b) a pilot scheme may be replaced by a further pilot scheme making the same or similar provision.

Commencement Information

I454 Sch. 27 para. 19 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I455 [Sch. 27 para. 19](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Consent to pilot scheme

- 20 A pilot scheme may not make provision which relates to a strategic authority, mayor or GLA functional body unless that authority, mayor or body consents to the provision.

Commencement Information

I456 Sch. 27 para. 20 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I457 [Sch. 27 para. 20](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Pilot scheme for some strategic authorities or mayors in a class

- 21 (1) This paragraph applies to permitted provision that may be made under another Part of this Schedule only in relation to a class of strategic authorities or mayors (the “relevant class”).
- (2) A pilot scheme may make that permitted provision in relation to one or some of the strategic authorities or mayors in that class (despite the fact that such provision could not be made under the other Part of this Schedule).
- (3) For that purpose—
- (a) where the relevant class consists of combined authorities and CCAs, the constituent councils of those authorities are “linked to” those authorities;
 - (b) where the relevant class consists of mayoral strategic authorities, the mayors for the areas of those authorities are “linked to” those authorities;
 - (c) where the relevant class consists of the mayors of combined authorities and CCAs, those authorities are “linked to” those mayors.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I458 Sch. 27 para. 21 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I459 [Sch. 27 para. 21](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Impact report

- 22 (1) A pilot scheme must include provision requiring the or each strategic authority, mayor or GLA functional body to which the pilot scheme relates—
- (a) to produce an impact report, and
 - (b) to provide it to the Secretary of State.
- (2) The pilot scheme must specify when the impact report is to be provided to the Secretary of State.
- (3) An “impact report” produced by a strategic authority, mayor or GLA functional body is a report on whether, in the opinion of that authority, mayor or body, the pilot scheme has been successful.
- (4) An impact report may include a request for the Secretary of State to extend the piloting period by regulations under paragraph [19\(3\)\(a\)](#).

Commencement Information

I460 Sch. 27 para. 22 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I461 [Sch. 27 para. 22](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Response to a pilot scheme

- 23 (1) This paragraph applies if the time for producing the impact report in relation to a pilot scheme has passed.
- (2) The Secretary of State must decide whether the pilot scheme has been successful.
- (3) If the Secretary of State decides that the function pilot scheme has been successful, the Secretary of State must also decide whether or not the changes made by the pilot scheme should be given effect after the end of the piloting period by the making of any of the following (the “resulting secondary legislation”)—
- (a) regulations under any other Part of this Schedule;
 - (b) an order under Chapter 2 of Part 6 of LDEDCA 2009;
 - (c) regulations under Chapter 1 of Part of LURA 2023;
 - (d) regulations under section 16 of the Cities and Local Government Devolution Act 2016.
- (4) In making those decisions, the Secretary of State must—
- (a) take into account any impact report or reports produced in relation to the pilot scheme;
 - (b) consult—
 - (i) the or each strategic authority, mayor or GLA functional body to which the pilot scheme relates,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (ii) each strategic authority, mayor and GLA functional body to which the resulting secondary legislation would relate (if it were made), and
- (iii) any other person which the Secretary of State considers it appropriate to consult.

Commencement Information

I462 Sch. 27 para. 23 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I463 [Sch. 27 para. 23](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Interpretation

- 24 (1) In this Part of this Schedule—
- “permitted provision” means provision that may be made under any other Part of this Schedule;
 - “pilot scheme” means regulations under paragraph 19;
 - “piloting period” has the meaning given in paragraph 19(1);
 - “successful” has the meaning given in sub-paragraph (2).
- (2) For the purposes of this Part of this Schedule, a pilot scheme is “successful” if the changes made by it secured, or contributed to securing, the effective exercise of functions in relation to the areas of competence.

Commencement Information

I464 Sch. 27 para. 24 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I465 [Sch. 27 para. 24](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

PART 7

MAKING OF REGULATIONS

Powers to be exercisable by the Secretary of State

- 25 In this Schedule “regulations” means regulations made by the Secretary of State.

Commencement Information

I466 Sch. 27 para. 25 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I467 [Sch. 27 para. 25](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Parliamentary scrutiny

- 26 (1) Regulations under paragraph 19(3)(a) are subject to negative resolution procedure.
- (2) Any other regulations under this Schedule are subject to affirmative resolution procedure.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I468 Sch. 27 para. 26 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I469 [Sch. 27 para. 26](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Mayoral strategic authorities: period before first mayor takes office

- 27 (1) The fact that a mayoral strategic authority is in the preparatory phase—
- (a) does not prevent regulations under this Schedule from making provision which applies to—
 - (i) the mayor for its area, or
 - (ii) the mayoral strategic authority; and
 - (b) where a provision of this Schedule requires consultation with the members of a class which includes the mayoral strategic authority or the mayor for its area, does not—
 - (i) prevent that requirement from being complied with by a consultation that does not involve the mayor, or
 - (ii) require further consultation with the mayor after the first mayor has taken office.
- (2) Any power under this Schedule to make provision in relation to mayoral strategic authorities or mayors (the “relevant class”) must be read as enabling regulations to make provision in relation to the relevant class which applies only to—
- (a) those of the mayoral strategic authorities in the relevant class which are in the preparatory phase, or
 - (b) those of the mayors in the relevant class that are mayors for the areas of mayoral strategic authorities which are in the preparatory phase.
- (3) Regulations under this Schedule may make provision which applies only to—
- (a) mayoral strategic authorities which are in a preparatory phase that is of a duration specified in the regulations, or
 - (b) mayors for the areas of mayoral strategic authorities which are in a preparatory phase that is of a duration specified in the regulations.
- (4) For the purposes of this paragraph a mayoral strategic authority is in the “preparatory phase”—
- (a) after the authority has been established, but
 - (b) before the first mayor for the authority’s area has taken office.

Commencement Information

I470 Sch. 27 para. 27 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I471 [Sch. 27 para. 27](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 28

Section 59

ARRANGEMENT RELATING TO SINGLE TIERS OF LOCAL GOVERNMENT

Merger of single tiers of local government etc

- 1 (1) LGPIHA 2007 is amended as follows.
- (2) After section 2 insert—

“2A Proposals for merger of single tiers of local government

- (1) The Secretary of State may invite or direct a relevant principal authority to make a proposal that there should be one or more single tiers of local government for an area which currently consists of—
 - (a) the area of that authority, and
 - (b) one or more other eligible areas.
- (2) A principal authority is a “relevant principal authority” for the purposes of [subsection \(1\)](#) if it is the district or county council for an area for which there is currently a single tier of local government.
- (3) An “eligible area” is an area for which there is a single tier of local government.
- (4) An invitation or direction may—
 - (a) be such that the authority may choose which eligible areas (other than the area of that authority) should form the proposed area for the new single tier of local government;
 - (b) specify which eligible areas (other than the area of that authority) should form the proposed area for the new single tier of local government.”
- (3) In section 3 (invitations, directions and proposals: supplementary)—
 - (a) for subsection (1) substitute—

“(1) A direction under section 2 or 2A may be given on or after the day on which this subsection comes into force.

(1A) A direction under section 2 or 2A may only be given where the Secretary of State believes that giving the direction would be in the interests of effective and convenient local government.”;
 - (b) in subsection (2), after “2” insert “or 2A”;
 - (c) in subsection (3), after “2” insert “or 2A”;
 - (d) in subsection (5)—
 - (i) after “2” insert “or 2A”;
 - (ii) for “that section” substitute “either of those sections”;
 - (e) in subsection (6), after “2” insert “or 2A”;
 - (f) in subsection (7), after “2” insert “or 2A”;
 - (g) omit subsection (8).
- (4) In section 4 (request for Local Government Boundary Commission’s advice), in subsection (1), after “2” insert “or 2A”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (5) In section 5 (Local Government Boundary Commission’s powers)—
- (a) in subsection (4), for the words from “the Type” to the end substitute—
 - “(a) in relation to a proposal in response to an invitation or direction under section 2, the Type A, Type B, Type C or combined proposal to which the request for advice related, or
 - (b) in relation to a proposal in response to an invitation or direction under section 2A, the proposal to which the request for advice related.”;
 - (b) in subsection (5), for paragraphs (a) and (b) substitute—
 - “(a) in relation to a proposal in response to an invitation or direction under section 2—
 - (i) a proposal that there should be a single tier of local government for an area that is, or includes, the whole or part of the county concerned, and is specified in the alternative proposal, or
 - (ii) a proposal consisting of two or more proposals that are within paragraph (i) (and are not alternatives to one another);
 - (b) in relation to a proposal in response to an invitation or direction under section 2A, a proposal that there should be one or more single tiers of local government for an area that—
 - (i) includes the relevant area and one or more other areas for which there is a single tier of local government, and
 - (ii) is specified in the alternative proposal.”;
 - (c) in subsection (6)(a), after “(4)” insert “(a)”;
 - (d) after subsection (6) insert—
 - “(6A) In this section the “relevant area” means—
 - (a) the area of the relevant principal authority which made the proposal referred to in subsection (4)(b), or
 - (b) where that proposal was made by more than one relevant principal authority, the area of any of those authorities.”
- (6) In section 7 (implementation of proposals by order)—
- (a) in subsection (1), after “2” insert “or 2A”;
 - (b) in subsection (4), after “a proposal” insert “in response to an invitation or direction under section 2”;
 - (c) after subsection (4) insert—
 - “(4A) For the purposes of this section an authority is “affected by” a proposal in response to an invitation or direction under section 2A if—
 - (a) it is the district or county council for an area for which there is currently a single tier of local government, and
 - (b) that area would fall within the proposed new single tier of local government.”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(7) In section 11 (implementation orders: provision that may be included)—

(a) after subsection (4)(e) insert—

“(ea) where the order makes provision for a single tier of local government for an area that comprises or includes the area of a combined authority or combined county authority, for the abolition of the combined authority or combined county authority;”;

(b) after subsection (7) insert—

“(8) In this section, “combined authority” and “combined county authority” have the same meaning as in section 11A (see subsection (10) of that section).”

(8) After section 11 insert—

“11A Implementation orders: conversion of combined county authorities

(1) This section applies where the implementation of a proposal in response to an invitation or direction under section 2 or 2A means that the area of a combined county authority—

- (a) will no longer meet condition A in [section 9\(2\) of the Levelling-Up and Regeneration Act 2023](#) (area of combined county authority), but
- (b) will meet condition A in [section 103\(2\) of the Local Democracy, Economic Development and Construction Act 2009](#) (area of combined authority).

(2) The Secretary of State may by regulations make provision that the relevant body corporate is to continue in existence but—

- (a) is no longer a combined county authority, and
- (b) is instead a combined authority.

(3) Accordingly, where regulations make provision under [subsection \(2\)](#), the combined authority and the combined county authority are the same person in law.

(4) The Secretary of State may by regulations make provision that the relevant office of mayor (if any) is to continue in existence but—

- (a) is no longer the office of mayor for the area of the combined county authority, and
- (b) is instead the office of mayor for the area of the combined authority.

(5) Accordingly, where regulations make provision under [subsection \(4\)](#)—

- (a) the office of mayor for the area of the combined authority and the office of mayor for the area of the combined county authority is the same office in law;
- (b) the person who holds the relevant office of mayor continues to hold that office.

(6) The power to make regulations under this section includes power to make incidental, consequential, transitional or supplementary provision.

(7) The power to make provision under [subsection \(6\)](#) includes (but is not limited to) provision—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) for the combined authority to be treated for some or all purposes as if it is a combined authority established under [section 103 of the Local Democracy, Economic Development and Construction Act 2009](#);
 - (b) for the office of mayor for the area of the combined county authority to be treated for some or all purposes as if it is provided for under [section 107A of the Local Democracy, Economic Development and Construction Act 2009](#).
- (8) Provision made under this section may—
- (a) modify, disapply or apply (with or without modifications) any enactment;
 - (b) repeal or revoke any enactment with or without savings.
- (9) In this section “enactment” includes—
- (a) this Act (other than a provision of this Part);
 - (b) an enactment comprised in subordinate legislation within the meaning of the [Interpretation Act 1978](#) (whenever passed or made), but it does not include an Act other than this Act.
- (10) In this section—
- “combined authority” means a combined authority established under [section 103 of the Local Democracy, Economic Development and Construction Act 2009](#);
 - “combined county authority” means a combined county authority established under [section 9\(1\) of the Levelling-up and Regeneration Act 2023](#);
 - “modify” includes amend;
 - “relevant body corporate” means the body corporate which the combined county authority was established as;
 - “relevant office of mayor” means the office of mayor for the area of the combined county authority.”
- (9) In section 240 (orders, regulations and guidance), in subsection (6), in the opening words, after “regulations under section” insert “11A,”.

Commencement Information

I472 Sch. 28 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)](#)

I473 [Sch. 28 para. 1](#) in force at 29.6.2026 in so far as not already in force, see [s. 108\(5\)](#)

SCHEDULE 29

Section 61

LOCAL AUTHORITY GOVERNANCE AND EXECUTIVES

Requirements to have and retain leader and cabinet executive

- 1 (1) LGA 2000 is amended in accordance with this paragraph.
- (2) In section 9B (permitted forms of governance for local authorities in England)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(a) after subsection (1) insert—

“(1A) But—

(a) a local authority may operate a committee system only—

(i) if it is operating a committee system immediately before section 61 of the English Devolution and Community Empowerment Act 2026 comes into force, and

(ii) for as long as the operation of a committee system is consistent with the provisions of section 9K; and

(b) a new local authority must operate executive arrangements which provide for a leader and cabinet executive (England).”;

(b) in subsection (4), after the definition of “executive arrangements” insert—

““new local authority” means a local authority established on or after the day on which section 61 of the English Devolution and Community Empowerment Act 2026 comes into force by an order made under section 7 or 10 of the Local Government and Public Involvement in Health Act 2007;”.

(3) In section 9C (local authority executives), after subsection (3) insert—

“(3A) Subsections (1) to (3) are subject to section 9B(1A)(b) (new local authority must have a leader and cabinet executive (England)).”

(4) After section 9KA insert—

“9KAA Duty to retain leader and cabinet executive

(1) A local authority which is operating a leader and cabinet executive (England) must not cease to operate—

(a) executive arrangements, or

(b) a leader and cabinet executive (England).

(2) That duty applies to a local authority whenever it began to operate the leader and cabinet executive (England).”

Commencement Information

I474 Sch. 29 para. 1 in force at 29.6.2026, see s. 108(5)

Duty to move from committee system to leader and cabinet executive (England)

2 (1) The LGA 2000 is amended in accordance with this paragraph.

(2) For section 9K (changing from one form of governance to another) substitute—

“9K Committee system: change to leader and cabinet executive (England)

Introduction

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (1) This section sets out the circumstances in which a local authority that is operating a committee system must or may move to a leader and cabinet executive.

Committee system not protected

- (2) If the local authority's committee system is not protected, it must move to a leader and cabinet executive; and no resolution is needed and no referendum is to be held (despite any other provision of this Chapter which would otherwise require or authorise a resolution or referendum).

The local authority must comply with that duty so that it moves to a leader and cabinet executive before the end of the period of one year beginning with the commencement day (the "standard period") or that period as extended by the Secretary of State in accordance with subsections (3) and (4).

- (3) The Secretary of State may extend that period if the Secretary of State considers that it is likely that a dissolution order will be made in relation to the local authority during the period of one year after the end of the standard period.
- (4) Any extension of that period—
- (a) must be granted, and notified to the local authority in writing, before the end of the standard period;
 - (b) must end no later than one year after the end of the standard period.
- (5) Before moving to a leader and cabinet executive in accordance with subsection (2), the local authority must—
- (a) secure that copies of a document setting out the provisions of the arrangements for its leader and cabinet executive are available at its principal office for inspection by members of the public, and
 - (b) publish in one or more newspapers circulating in its area a notice which—
 - (i) states that the authority will be moving to a leader and cabinet executive,
 - (ii) states the date on which the change is to have effect,
 - (iii) describes the main features of the change,
 - (iv) states that copies of a document setting out the provisions of the arrangements for its leader and cabinet executive are available at the authority's principal office for inspection by members of the public, and
 - (v) specifies the address of the authority's principal office.

Protected committee system

- (6) If the local authority's committee system is protected, it must undertake and publish a review of whether the local authority should move to a leader and cabinet executive.
- (7) The review—
- (a) must be undertaken and published before the end of the 1 year decision period;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) must have regard to the need to secure effective and convenient local government for the area of the local authority;
 - (c) if it concludes that the local authority should not move to a leader and cabinet executive, must include the reasons why the committee system is an appropriate form of governance for the local authority.
- (8) After the review is published, the local authority must act in accordance with subsection (9), (10) or (11).

The local authority must have regard to the review when choosing how to act.

- (9) The local authority may pass a resolution to continue to operate the committee system.

Any such resolution must be passed before the end of the 1 year decision period.

- (10) The local authority may act in accordance with this Chapter to hold a referendum on moving to a leader and cabinet executive (and then, following the referendum, must act in accordance with this Chapter).

Any such action must be taken so that—

- (a) the referendum is held before the end of the 1 year decision period, and
 - (b) if the result of the referendum approves the move, the local authority moves to a leader and cabinet executive before the end of the period of 1 year beginning with the day of the referendum.
- (11) The local authority may act in accordance with this Chapter to move to a leader and cabinet executive without holding a referendum (despite any other provision of this Chapter which would otherwise require a referendum).
- Any such action must be taken so that—
- (a) the resolution to move to a leader and cabinet executive is passed before the end of the 1 year decision period, and
 - (b) the local authority moves to a leader and cabinet executive before the end of the period of one year beginning with the date of the resolution.

- (12) If a local authority's committee system is protected, a petition cannot require a local authority to hold a referendum in accordance with regulations under section 9MC until both—

- (a) the relevant protection period has ended, and
- (b) the local authority has—
 - (i) passed a resolution in accordance with subsection (9),
 - (ii) acted in accordance with subsection (10) by holding a referendum which does not approve the move to a leader and cabinet executive, or
 - (iii) acted in accordance with subsection (10) or (11) by completing the move to a leader and cabinet executive.

Subsequent move to leader and cabinet executive

- (13) If the local authority's committee system is protected, and it retains the committee system after acting in accordance with subsections (6) to (11),

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

it may subsequently move to a leader and cabinet executive in accordance with this Chapter.

Local authority subject to dissolution

(14) This section—

- (a) does not apply to a local authority if a dissolution order has been made in relation to the local authority before the commencement day;
- (b) ceases to apply to a local authority if a dissolution order is made in relation to the local authority on or after the commencement day.

Accordingly the local authority is not to move to a leader and cabinet executive in accordance with any provision of this section after the commencement day or (as the case may be) on or after the day when the dissolution order is made.

Interpretation

(15) For the purposes of this section, a local authority’s committee system is “protected” if the committee system—

- (a) became or remained the local authority’s governance arrangements following a referendum, and the 10 year referendum protection period has not ended on the commencement day, or
- (b) became the local authority’s governance arrangements by virtue of a resolution under this Part (but not following a referendum), and the 5 year resolution protection period has not ended on the commencement day.

(16) In this section—

“commencement day” means the day on which section 61 of the English Devolution and Community Empowerment Act 2026 comes into force;

“dissolution order” means an order under section 7 or 10 of the Local Government and Public Involvement in Health Act 2007 providing for the dissolution of a local authority;

“move to a leader and cabinet executive” means—

- (a) cease to operate the committee system, and
- (b) start to operate a leader and cabinet executive (England);

and related expressions are to be construed accordingly;

“protected” has the meaning given in subsection (15);

“relevant protection period”, in relation to a local authority whose committee system is protected, means whichever of the—

- (a) 5 year resolution protection period, and
- (b) 10 year referendum protection period,

applies to the local authority;

“1 year decision period” means the period of one year beginning with the day immediately after the last day of the relevant protection period;

“5 year resolution protection period”, in relation to a resolution under this Part by virtue of which the committee system became the

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

local authority’s governance arrangements, means the period of 5 years beginning with the day on which the resolution was passed;

“10 year referendum protection period”, in relation to a referendum following which the committee system became or remained the local authority’s governance arrangements, means the period of 10 years beginning with the day on which the referendum was held.”

(3) In section 9KC (resolution of local authority), after subsection (3) insert—

“(3A) Subsection (4) also applies if a local authority passes a resolution to continue to operate the committee system in accordance with section 9K(9); and, in such a case, “Resolution A” means the resolution to continue to operate the committee system.”

(4) In section 9L (implementation: change in form of governance or change in form of executive)—

- (a) in subsection (1)(a), for “(change from one form of governance to another)” substitute “(Committee system: change to leader and cabinet executive (England))”;
- (b) for subsection (4) substitute—

“(4) If the local authority is—

- (a) ceasing to operate the committee system, and
 - (b) starting to operate a leader and cabinet executive (England),
- in compliance with section 9K, a “relevant change time” for the purposes of subsection (2) is a time during the day that is specified in the resolution making the change in governance arrangements as the day on which that change is to take place.”

Commencement Information

I475 Sch. 29 para. 2 in force at 29.6.2026, see s. 108(5)

No new mayor and cabinet executives

3 (1) This paragraph applies to a change to governance arrangements under Chapter 4 of Part 1A LGA 2000 if—

- (a) under the change, the local authority would begin to operate a mayor and cabinet executive, and
- (b) the local authority has not started to operate the mayor and cabinet executive before this section comes into force.

(2) The local authority—

- (a) must not cease operating the old form of governance or (as the case may be) old form of executive, and
 - (b) must not start operating the mayor and cabinet executive,
- in accordance with the change to governance arrangements.

(3) In a case where the old form of governance is the committee system, this paragraph does not limit the duty under section 9K LGA 2000 (as amended by paragraph 2) to—

- (a) cease to operate the committee system, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) start to operate a leader and cabinet executive (England).

Commencement Information

I476 Sch. 29 para. 3 in force at 29.6.2026, see s. 108(5)

- 4 (1) LGA 2000 is amended as follows—
- (2) in section 9KA (executive arrangements: different form of executive)—
- (a) for the heading substitute “Mayor and cabinet executive: adoption of leader and cabinet executive”;
 - (b) for subsection (1) substitute—

“(A1) This section applies to a local authority if it is operating a mayor and cabinet executive.

 - (1) The local authority—
 - (a) may vary its executive arrangements so that they provide for a leader and cabinet executive (England), and
 - (b) may vary its executive arrangements in such other respects (if any) as it considers appropriate.”;
 - (c) omit subsection (2).
- (3) in section 9KC (resolution of local authority), omit subsection (5).
- (4) In section 9L (implementation: change in form of governance or change in form of executive)—
- (a) in subsection (1)(b), for “(change to a different form of executive)” substitute “(mayor and cabinet executive: adoption of leader and cabinet executive)”;
 - (b) omit subsection (5).
- (5) In section 9MC (referendum following petition)—
- (a) in subsection (1), for “relevant type of governance arrangement” substitute “leader and cabinet executive (England)”;
 - (b) omit subsection (5).
- (6) In section 9MD (referendum following direction)—
- (a) in subsection (1), for “relevant type of governance arrangements specified in the direction” substitute “leader and cabinet executive (England)”;
 - (b) omit subsection (4).
- (7) In section 9ME (referendum following order)—
- (a) in subsection (1), for “relevant type of governance arrangements specified in the order” substitute “leader and cabinet executive (England)”;
 - (b) omit subsection (4).
- (8) In section 9MF (further provision with respect to referendums)—
- (a) in subsection (1), omit paragraph (a);
 - (b) omit subsections (2) and (3).
- (9) Omit section 9N (requiring referendum on change to mayor and cabinet executive).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I477 Sch. 29 para. 4 in force at 29.6.2026, see s. 108(5)

Commencement Information

I476 Sch. 29 para. 3 in force at 29.6.2026, see s. 108(5)

I477 Sch. 29 para. 4 in force at 29.6.2026, see s. 108(5)

Abolition of permitted arrangements

- 5 (1) LGA 2000 is amended in accordance with this paragraph.
- (2) In section 9B (permitted forms of governance for local authorities in England)—
 - (a) in subsection (1)(a), after “arrangements” insert “or”;
 - (b) omit subsection (1)(c) (and the word “or” preceding it);
 - (c) in subsection (4), omit the definition of “prescribed arrangements”.
- (3) Omit section 9BA (power of Secretary of State to prescribe additional permitted governance arrangements).
- (4) in section 9OA (interpretation)—
 - (a) omit subsection (3)(d);
 - (b) in subsection (4), omit paragraph (c).
- (5) In section 9R (interpretation of Part 1A), in subsection (1), omit the definition of “prescribed arrangements”.

Commencement Information

I478 Sch. 29 para. 5 in force at 29.6.2026, see s. 108(5)

Other amendments

- 6 (1) LGA 2000 is amended in accordance with this paragraph.
- (2) In section 9KC (resolution of local authority), in subsection (4), in the words before paragraph (a), for “5 years” substitute “4 years”.
- (3) In section 9MF (further provision with respect to referendums)—
 - (a) in subsection (1), in the words before paragraph (a), for “ten years” substitute “4 years”;
 - (b) in subsection (3B), for “10 years” substitute “4 years”;
 - (c) in subsection (3E)(a), for “10 years” substitute “4 years”.

Commencement Information

I479 Sch. 29 para. 6 in force at 29.6.2026, see s. 108(5)

*Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.**Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)*

SCHEDULE 30

Section 63

MAYORS AND PCCs: SUPPLEMENTARY VOTE SYSTEM

PROSPECTIVE

Elections for the Mayor of London

1 The GLAA 1999 is amended as follows.

Commencement Information

I480 Sch. 30 para. 1 not in force at Royal Assent, see s. 108(6)

- 2 (1) In [section 4](#) (voting at ordinary elections)—
- (a) in [subsection \(1\)\(a\)](#), after “vote” insert “(referred to in this Part as a mayoral vote)”;
 - (b) in [subsection \(2\)](#), after “system,” insert “, unless there are three or more candidates”;
 - (c) after [subsection \(2\)](#) insert—

“(3) If there are three or more candidates to be the Mayor—

 - (a) the Mayor is to be returned under the supplementary vote system in accordance with Part 1 of Schedule 2 to this Act, and
 - (b) a voter’s mayoral vote is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.”
- (2) In [section 16](#) (filling a vacancy)—
- (a) in [subsection \(3\)](#), after “one” insert “mayoral”;
 - (b) for [subsection \(4\)](#) substitute—

“(4) Section 4(2) and (3) of Part 1 of Schedule 2 to this Act apply in relation to the election as they apply in relation to the election of the Mayor at an ordinary election.”
- (3) In [section 29](#) (interpretation of Part 1), in the appropriate place insert—
- ““mayoral vote” has the meaning given by section 4(1)(a) (as read with subsection (3) of that section);”.
- (4) In [Schedule 2](#) (voting at elections), before [Part 2](#) insert—

“PART 1

ELECTION OF THE MAYOR

Application

- 1 This Part of this Schedule applies where there are three or more candidates to be the Mayor.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

First preference vote and second preference vote

2 In this Schedule—

“first preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s first preference from among the candidates to be the Mayor;

“second preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s second preference from among the candidates to be the Mayor.

Candidate with overall majority of first preference votes

3 If one of the candidates to be the Mayor receives more than half of all the first preference votes given in the Assembly constituencies that candidate is to be returned as the Mayor.

No candidate with overall majority of first preference votes

4 (1) If none of the candidates to be the Mayor receives more than half of all the first preference votes given in the Assembly constituencies, the following provisions of this paragraph apply.

(2) The two candidates who received the greatest number of first preference votes given in the Assembly constituencies remain in the contest.

(3) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of subparagraph (2), all of them remain in the contest.

(4) The other candidates are eliminated from the contest.

(5) The number of second preference votes given in the Assembly constituencies for each of the candidates remaining in the contest by voters who did not give their first preference vote to any of those candidates must be ascertained.

(6) That number must be added to the number of first preference votes given for that candidate, to give the total number of preference votes for that candidate.

(7) The person who is to be returned as the Mayor is that one of the candidates remaining in the contest who has the greatest total number of preference votes.

(8) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the Greater London returning officer is to decide by lots which of them is to be returned as the Mayor.”

(5) In [section 165](#) of the [Representation of the People Act 1983](#) (avoidance of election for employing corrupt agent), after [subsection \(3\)](#) insert—

“(4) In the case of an election of the Mayor of London, a vote deemed in accordance with subsection (3) above to be thrown away is to be so deemed

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

only to the extent that it is a vote given so as to indicate that the person who was under the incapacity is the voter’s first or second preference from among the candidates.”

Commencement Information

I481 Sch. 30 para. 2 not in force at Royal Assent, see [s. 108\(6\)](#)

Commencement Information

I480 Sch. 30 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

I481 Sch. 30 para. 2 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

Elections for police and crime commissioners

3 PRSRA 2011 is amended as follows.

Commencement Information

I482 Sch. 30 para. 3 not in force at Royal Assent, see [s. 108\(6\)](#)

- 4 In [section 57](#) (voting at elections of police and crime commissioners)—
- (a) in [subsection \(2\)](#), after “system” insert “, unless there are three or more candidates”;
 - (b) after [subsection \(2\)](#) insert—
 - “(3) If there are three or more candidates—
 - (a) the commissioner is to be returned under the supplementary vote system, and
 - (b) any vote in the election is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.
- (4) Schedule 9 (the supplementary vote system) has effect.”

Commencement Information

I483 Sch. 30 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

5 After [Schedule 8](#) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“SCHEDULE

section 57

9

SUPPLEMENTARY VOTE SYSTEM

Application

- 1 This Schedule applies to an election under Chapter 6 of Part 1 of a police and crime commissioner for a police area at which there are three or more candidates.

First preference vote and second preference vote

- 2 In this Schedule—
“first preference vote” means a vote to the extent that it is given so as to indicate a first preference from among the candidates to be the police and crime commissioner;
“second preference vote” means a vote to the extent that it is given so as to indicate a second preference from among the candidates to be the police and crime commissioner.

Candidate with overall majority of first preference votes

- 3 If one of the candidates to be the police and crime commissioner receives more than half of all the first preference votes given in the police area, that candidate is to be returned as the police and crime commissioner.

No candidate with overall majority of first preference votes

- 4 (1) If none of the candidates to be the police and crime commissioner receives more than half of all the first preference votes given in the police area, the following provisions of this paragraph apply.
(2) The two candidates who received the greatest number of first preference votes given in the police area remain in the contest.
(3) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of subparagraph (2), all of them remain in the contest.
(4) The other candidates are eliminated from the contest.
(5) The number of second preference votes given in the police area for each of the candidates remaining in the contest by votes which did not give a first preference vote to any of those candidates must be ascertained.
(6) That number must be added to the number of first preference votes given for that candidate, to give the total number of preference votes for that candidate.
(7) The person who is to be returned as the police and crime commissioner for the police area is that one of the candidates remaining in the contest who has the greatest total number of preference votes.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (8) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the police area returning officer must decide by lots which of them is to be returned as the police and crime commissioner.”

Commencement Information

I484 Sch. 30 para. 5 not in force at Royal Assent, see [s. 108\(6\)](#)

Commencement Information

I482 Sch. 30 para. 3 not in force at Royal Assent, see [s. 108\(6\)](#)

I483 Sch. 30 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

I484 Sch. 30 para. 5 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

Elections for local authority mayors in England

6 The [Local Government Act 2000](#) is amended as follows.

Commencement Information

I485 Sch. 30 para. 6 not in force at Royal Assent, see [s. 108\(6\)](#)

- 7 In [section 9HC](#) (voting at elections of elected mayors)—
- (a) in subsection (1), for “which may be given for a candidate to be the elected mayor” substitute “(a “mayoral vote”)”;
 - (b) in [subsection \(2\)](#), after “system” insert “unless there are three or more candidates”;
 - (c) after [subsection \(2\)](#) insert—
 - “(3) If there are three or more candidates to be the elected mayor—
 - (a) the elected mayor is to be returned under the supplementary vote system in accordance with Schedule 1A, and
 - (b) a voter’s mayoral vote is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.”

Commencement Information

I486 Sch. 30 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)

8 In [section 9HD](#) (entitlement to vote), in subsection (2), after “one” insert “mayoral”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I487 Sch. 30 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)

- 9 In [section 9R](#) (interpretation of Part 1A), in the appropriate place insert—
““mayoral vote” has the meaning given by section 9HC(1) (as read with subsection (3) of that section),”.

Commencement Information

I488 Sch. 30 para. 9 not in force at Royal Assent, see [s. 108\(6\)](#)

- 10 After [Schedule 1](#) insert—

“SCHEDULE 1A section 9HC

ELECTION OF ELECTED MAYOR (ENGLAND)

Application

- 1 This Schedule applies where there are three or more candidates to be an elected mayor of a local authority in England.

First preference vote and second preference vote

- 2 In this Schedule—
“first preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s first preference from among the candidates to be the elected mayor;
“second preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s second preference from among the candidates to be the elected mayor.

Candidate with overall majority of first preference votes

- 3 If one of the candidates to be the elected mayor receives more than half of all the first preference votes given in the election that candidate is to be returned as the elected mayor.

No candidate with overall majority of first preference votes

- 4 (1) If none of the candidates to be the elected mayor receives more than half of all the first preference votes given in the election, the following provisions of this paragraph apply.
(2) The two candidates who received the greatest number of first preference votes given in the election remain in the contest.
(3) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of sub-paragraph (2), all of them remain in the contest.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) The other candidates are eliminated from the contest.
- (5) The number of second preference votes given in the election for each of the candidates remaining in the contest by voters who did not give their first preference vote to any of those candidates must be ascertained.
- (6) That number must be added to the number of first preference votes given for that candidate, to give the total number of preference votes for that candidate.
- (7) The person who is to be returned as the elected mayor is that one of the candidates remaining in the contest who has the greatest total number of preference votes.
- (8) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the returning officer is to decide by lots which of them is to be returned as the elected mayor.”

Commencement Information

I489 Sch. 30 para. 10 not in force at Royal Assent, see [s. 108\(6\)](#)

- 11 In [Schedule 2](#) (Election of elected mayor), in the heading, after “mayor” insert “(Wales)”.

Commencement Information

I490 Sch. 30 para. 11 not in force at Royal Assent, see [s. 108\(6\)](#)

Commencement Information

I485 Sch. 30 para. 6 not in force at Royal Assent, see [s. 108\(6\)](#)

I486 Sch. 30 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)

I487 Sch. 30 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)

I488 Sch. 30 para. 9 not in force at Royal Assent, see [s. 108\(6\)](#)

I489 Sch. 30 para. 10 not in force at Royal Assent, see [s. 108\(6\)](#)

I490 Sch. 30 para. 11 not in force at Royal Assent, see [s. 108\(6\)](#)

Elections for mayors of combined authorities

- 12 Schedule 5B to LDEDCA 2009 (mayors for combined authorities: further provision) is amended as follows.

Commencement Information

I491 Sch. 30 para. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

I492 [Sch. 30 para. 12](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

- 13 In [paragraph 4](#)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in [sub-paragraph \(1\)](#), for “which may be given for a candidate to be the mayor” substitute “(a “mayoral vote”)”;
- (b) in [sub-paragraph \(2\)](#), after “system” insert “unless there are three or more candidates”;
- (c) after [sub-paragraph \(2\)](#) insert—

“(3) If there are three or more candidates to be the mayor—

- (a) the elected mayor is to be returned under the supplementary vote system in accordance with paragraph 5, and
- (b) a voter’s mayoral vote is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.”

Commencement Information

I493 Sch. 30 para. 13 not in force at Royal Assent, see [s. 108\(6\)](#)

I494 [Sch. 30 para. 13](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

14 After [paragraph 4](#) insert—

“5 (1) This paragraph applies where there are three or more candidates to be a mayor.

(2) In this Schedule—

“first preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s first preference from among the candidates to be the mayor;

“second preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s second preference from among the candidates to be the mayor.

(3) If one of the candidates to be the mayor receives more than half of all the first preference votes given in the election that candidate is to be returned as the mayor.

(4) If none of the candidates to be the mayor receives more than half of all the first preference votes given in the election, the following provisions of this paragraph apply.

(5) The two candidates who received the greatest number of first preference votes given in the election remain in the contest.

(6) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of sub-paragraph (5), all of them remain in the contest.

(7) The other candidates are eliminated from the contest.

(8) The number of second preference votes given in the election for each of the candidates remaining in the contest by voters who did not give their first preference vote to any of those candidates must be ascertained.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (9) The person who must be returned as the mayor is that one of the candidates remaining in the contest who has the greatest total number of preference votes.
- (10) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the returning officer is to decide by lots which of them is to be returned as the mayor.
- (11) In this paragraph “mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).”

Commencement Information

I495 Sch. 30 para. 14 not in force at Royal Assent, see [s. 108\(6\)](#)

I496 [Sch. 30 para. 14](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

15 In [paragraph 6](#)—

- (a) in [sub-paragraph \(2\)](#), after “one” insert “mayoral”;
- (b) in [sub-paragraph \(3\)](#), after the definition of “local government elector” insert—
- ““mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).”

Commencement Information

I497 Sch. 30 para. 15 not in force at Royal Assent, see [s. 108\(6\)](#)

I498 [Sch. 30 para. 15](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

Commencement Information

I491 Sch. 30 para. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

I492 [Sch. 30 para. 12](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I493 Sch. 30 para. 13 not in force at Royal Assent, see [s. 108\(6\)](#)

I494 [Sch. 30 para. 13](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I495 Sch. 30 para. 14 not in force at Royal Assent, see [s. 108\(6\)](#)

I496 [Sch. 30 para. 14](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I497 Sch. 30 para. 15 not in force at Royal Assent, see [s. 108\(6\)](#)

I498 [Sch. 30 para. 15](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

Elections for mayors of combined county authorities

16 [Schedule 2](#) to [LURA 2023](#) (mayors for combined county authority areas: further provisions about elections) is amended as follows.

Commencement Information

I499 Sch. 30 para. 16 not in force at Royal Assent, see [s. 108\(6\)](#)

I500 [Sch. 30 para. 16](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- 17 In [paragraph 4](#)—
- (a) in [sub-paragraph \(1\)](#), for “which may be given for a candidate to be the mayor” substitute “(a “mayoral vote”)”;
 - (b) in [sub-paragraph \(2\)](#), after “system” insert “, unless there are three or more candidates”;
 - (c) after [sub-paragraph \(2\)](#) insert—
 - “(3) If there are three or more candidates to be the mayor—
 - (a) the mayor is to be returned under the supplementary vote system in accordance with paragraph 4A, and
 - (b) a voter’s mayoral vote is accordingly a vote capable of being given to indicate the voter’s first and second preference from among the candidates.”

Commencement Information

I501 Sch. 30 para. 17 not in force at Royal Assent, see [s. 108\(6\)](#)

I502 [Sch. 30 para. 17](#) in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

- 18 After [paragraph 4](#) insert—
- “4A (1) This paragraph applies where there are three or more candidates to be a mayor.
- (2) In this Schedule—
- “first preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s first preference from among the candidates to be the mayor;
- “second preference vote” means a mayoral vote to the extent that it is given so as to indicate a voter’s second preference from among the candidates to be the mayor.
- (3) If one of the candidates to be the mayor receives more than half of all the first preference votes given in the election that candidate is to be returned as the mayor.
- (4) If none of the candidates to be the mayor receives more than half of all the first preference votes given in the election, the following provisions of this paragraph apply.
- (5) The two candidates who received the greatest number of first preference votes given in the election remain in the contest.
- (6) If, by reason of an equality of first preference votes, three or more candidates are qualified to remain in the contest by virtue of sub-paragraph (5), all of them remain in the contest.
- (7) The other candidates are eliminated from the contest.
- (8) The number of second preference votes given in the election for each of the candidates remaining in the contest by voters who did not give their first preference vote to any of those candidates must be ascertained.
- ”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (9) The person who must be returned as the mayor is that one of the candidates remaining in the contest who has the greatest total number of preference votes.
- (10) If, by reason of an equality of total number of preference votes, two or more candidates remaining in the contest each have the greatest total number of preference votes, the returning officer is to decide by lots which of them is to be returned as the mayor.
- (11) In this paragraph “mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).”

Commencement Information

I503 Sch. 30 para. 18 not in force at Royal Assent, see [s. 108\(6\)](#)

I504 Sch. 30 para. 18 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

19 In [paragraph 5](#)—

- (a) in [sub-paragraph \(2\)](#), after “one” insert “mayoral”;
- (b) in [sub-paragraph \(3\)](#), after the definition of “local government elector” insert—
- ““mayoral vote” has the meaning given by paragraph 4(1) (as read with sub-paragraph (3) of that paragraph).”

Commencement Information

I505 Sch. 30 para. 19 not in force at Royal Assent, see [s. 108\(6\)](#)

I506 Sch. 30 para. 19 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

Commencement Information

I499 Sch. 30 para. 16 not in force at Royal Assent, see [s. 108\(6\)](#)

I500 Sch. 30 para. 16 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I501 Sch. 30 para. 17 not in force at Royal Assent, see [s. 108\(6\)](#)

I502 Sch. 30 para. 17 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I503 Sch. 30 para. 18 not in force at Royal Assent, see [s. 108\(6\)](#)

I504 Sch. 30 para. 18 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

I505 Sch. 30 para. 19 not in force at Royal Assent, see [s. 108\(6\)](#)

I506 Sch. 30 para. 19 in force at 18.6.2026 by [S.I. 2026/656](#), [reg. 2\(b\)](#) (with [reg. 3](#))

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 31

Section 67

ASSETS OF COMMUNITY VALUE

PART 1

COMMUNITY RIGHT TO BUY AND SPORTING ASSETS OF COMMUNITY VALUE (ENGLAND)

- 1 In Part 5 of the Localism Act 2011 (community empowerment), after Chapter 2 insert—

“CHAPTER 2A

ASSETS OF COMMUNITY VALUE (ENGLAND)

List of assets of community value

86A List of assets of community value

- (1) A local authority must maintain a list of land in its area that is land of community value.
- (2) The list maintained under [subsection \(1\)](#) by a local authority is to be known as its list of assets of community value.
- (3) The list maintained under [subsection \(1\)](#) must set out the following separate categories of the list —
 - (a) any land of community value that is a sporting asset of community value (see [section 86C](#));
 - (b) any land of community value that falls within [section 86B\(3\)](#) (assets supporting sporting assets of community value).
- (4) Where land is included in a local authority’s list of assets of community value and it is not a sporting asset of community value or land falling within [section 86B\(3\)](#), the entry for that land is to be removed from the list with effect from the end of the period of 10 years beginning with the date of that entry.
- (5) The Secretary of State may by regulations amend [subsection \(4\)](#) for the purpose of substituting, for the period specified in that subsection for the time being, some other period.
- (6) Where land is included in a local authority’s list of assets of community value and it is a sporting asset of community value or land falling within [section 86B\(3\)](#), the entry for that land is to remain on the list indefinitely.
- (7) Subsections (4) and (6) do not apply where an entry has been removed with effect from some earlier time in accordance with provision in regulations under [subsection \(8\)](#).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (8) The Secretary of State may by regulations make further provision in relation to a local authority's list of assets of community value, including (in particular) provision about—
- (a) the form in which the list is to be kept;
 - (b) contents of an entry in the list (including matters not to be included in an entry);
 - (c) modification of an entry in the list;
 - (d) removal of an entry from the list;
 - (e) cases where land is to be included in the list and—
 - (i) different parts of the land are in different ownership or occupation, or
 - (ii) there are multiple estates or interests in the land or any part or parts of it;
 - (f) combination of the list with the local authority's list of land nominated by unsuccessful community nominations (see [section 86I](#)).
- (9) Subject to any provision made by or under this Chapter, it is for a local authority to decide the form and contents of its list of assets of community value.

86B Land of community value

- (1) For the purposes of this Chapter but subject to regulations under [subsection \(4\)](#), a building or other land in a local authority's area is land of community value if in the opinion of the authority—
- (a) an actual current use of the building or other land that is not an ancillary use furthers the economic or social wellbeing or economic or social interests of the local community, and
 - (b) it is realistic to think that there can continue to be non-ancillary use of the building or other land which will further (whether or not in the same way) the economic or social wellbeing or economic or social interests of the local community.
- (2) For the purposes of this Chapter but subject to regulations under [subsection \(4\)](#), a building or other land in a local authority's area that is not land of community value as a result of [subsection \(1\)](#) is land of community value if in the opinion of the local authority—
- (a) there was a time in the past when an actual use of the building or other land that was not an ancillary use furthered the economic or social wellbeing or economic or social interests of the local community, and
 - (b) it is realistic to think that there will be a time in the next five years when there could be non-ancillary use of the building or other land that would further (whether or not in the same way as before) the economic or social wellbeing or economic or social interests of the local community.
- (3) For the purposes of this Chapter but subject to regulations under [subsection \(4\)](#), a building or other land in a local authority's area is land of community value if in the opinion of the authority an actual current

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

use of the building or other land provides support for the use of other land as a sporting asset of community value (see [section 86C](#)).

- (4) The Secretary of State may by regulations—
- (a) provide that a building or other land is not land of community value if the building or other land is specified in the regulations or is of a description specified in the regulations;
 - (b) provide that a building or other land in a local authority’s area is not land of community value if the local authority or some other person specified in the regulations considers that the building or other land is of a description specified in the regulations.
- (5) A description specified under [subsection \(4\)](#) may be framed by reference to such matters as the Secretary of State considers appropriate.
- (6) In relation to any land, those matters include (in particular)—
- (a) the owner of any estate or interest in any of the land or in other land;
 - (b) any occupier of any of the land or of other land;
 - (c) the nature of any estate or interest in any of the land or in other land;
 - (d) any use to which any of the land or other land has been, is being or could be put;
 - (e) statutory provisions, or things done under statutory provisions, that have effect (or do not have effect) in relation to—
 - (i) any of the land or other land, or
 - (ii) any of the matters within paragraphs (a) to (d);
 - (f) any price, or value for any purpose, of any of the land or other land.
- (7) In this section—
- “social interests” includes (in particular) each of the following—
- (a) cultural interests;
 - (b) recreational interests;
 - (c) sporting interests;
- “statutory provision” means a provision of—
- (a) an Act, or
 - (b) an instrument made under an Act.

86C Sporting assets of community value

- (1) For the purposes of this Chapter land of community value is a sporting asset of community value if in the opinion of the relevant local authority the land comprises a sports ground within the meaning of the Safety of Sports Grounds Act 1975 (see section 17 of that Act).
- (2) In this Chapter, the “relevant local authority” in relation to land of community value is the local authority on whose list of assets of community value the land is listed.

86D Procedure for including land in list

- (1) Land in a local authority’s area which is of community value may be included by a local authority in its list of assets of community value only—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in response to a community nomination,
 - (b) where permitted by regulations made by the Secretary of State, or
 - (c) where a local authority is required to do so under [section 86G\(4\)\(a\)](#).
- (2) For the purposes of this Chapter “community nomination”, in relation to a local authority, means a nomination which—
 - (a) nominates land in the local authority’s area for inclusion in the local authority’s list of assets of community value, and
 - (b) is made—
 - (i) by a parish council in respect of land in the parish council’s area, or
 - (ii) a person that is a voluntary or community body with a local connection.
- (3) Regulations under [subsection \(1\)\(b\)](#) may (in particular) permit land to be included in a local authority’s list of assets of community value in response to a nomination other than a community nomination.
- (4) The Secretary of State may by regulations make provision as to—
 - (a) the meaning in [subsection \(2\)\(b\)\(ii\)](#) of “voluntary or community body”;
 - (b) the conditions that have to be met for a person to have a local connection for the purposes of [subsection \(2\)\(b\)\(ii\)](#);
 - (c) the contents of community nominations;
 - (d) the contents of any other nominations which, as a result of regulations under [subsection \(1\)\(b\)](#), may give rise to land being included in a local authority’s list of assets of community value.
- (5) The Secretary of State may by regulations make provision for, or in connection with, the procedure to be followed where a local authority is considering whether land should be included in its list of assets of community value.

86E Procedure on community nominations

- (1) This section applies if a local authority receives a community nomination.
- (2) The authority must consider the nomination.
- (3) The authority must accept the nomination if the land nominated—
 - (a) is in the authority’s area, and
 - (b) is of community value.
- (4) If the authority is required by [subsection \(3\)](#) to accept the nomination, the authority must cause the land to be included in the authority’s list of assets of community value.
- (5) The nomination is unsuccessful if [subsection \(3\)](#) does not require the authority to accept the nomination.
- (6) If the nomination is unsuccessful, the authority must give, to the person who made the nomination, the authority’s written reasons for its decision that the land could not be included in its list of assets of community value.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

86F Notice of inclusion or removal

- (1) Subsection (2) applies where in accordance with this Chapter land—
 - (a) is included in, or
 - (b) removed from,a local authority's list of assets of community value.
- (2) The authority must if reasonably practicable give written notice of the inclusion or removal to the following persons—
 - (a) the owner of the land,
 - (b) the occupier of the land if the occupier is not also the owner,
 - (c) if the land was included in the list in response to a community nomination, the person who made the nomination, and
 - (d) any person specified, or of a description specified, in regulations made by the Secretary of State.
- (3) A notice under [subsection \(2\)](#) of inclusion of land in the list must describe the provision made by and under this Chapter, drawing particular attention to—
 - (a) the consequences for the land and its owner of the land's inclusion in the list, and
 - (b) the right to ask for review under [section 86H](#).
- (4) A notice under [subsection \(2\)](#) of removal of land from the list must state the reasons for the removal.
- (5) Where land is to be removed from a local authority's list of assets of community value, any notice given under [subsection \(2\)](#) must be given at least six months before the date on which it is to be removed.

86G Requirements of local authorities: sporting assets of community value

- (1) Where a local authority includes land in its list of assets of community value in accordance with [section 86D\(1\)\(a\)](#) or [\(b\)](#), the authority must—
 - (a) consider whether the land is a sporting asset of community value, and
 - (b) if it considers it is, include the land in the category of the list for sporting assets of community value.
- (2) A local authority must—
 - (a) by the end of the initial review period, and
 - (b) as soon as reasonably practicable after each review date,consider whether there is any land in its area (whether or not already in its list of assets of community value) which in the opinion of the authority falls within [subsection \(3\)](#).
- (3) Land falls within this subsection if it is both—
 - (a) land of community value, and
 - (b) a sporting asset of community value.
- (4) Where land falls within [subsection \(3\)](#), the local authority must—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) include the land in its list of assets of community value (if not already so included), and
 - (b) include the land in the category of the list for sporting assets of community value.
- (5) A local authority must if reasonably practicable notify each interested person in writing where land is included in the category of the list of assets of community value for sporting assets of community value.
- (6) A notice under [subsection \(5\)](#) must draw attention to—
 - (a) the consequences for the land and its owner of the land’s inclusion in that category of the list for sporting assets of community value,
 - (b) the right to ask for a review under [section 86H](#) of the inclusion of the land in that category of the list, and
 - (c) the ability for land falling within [section 86B\(3\)](#) in relation to a sporting asset of community value to be included in the list of assets of community value.
- (7) In this section—
 - “initial review period” means the period of six months beginning with the day on which this section comes into force;
 - “interested person” in relation to land means—
 - (a) the owner of the land,
 - (b) the occupier of the land if the occupier is not also the owner, and
 - (c) if the land was included in the list of assets of community value in response to a community nomination, the person who made the nomination;
 - “review date” means the end of the period of five years beginning with—
 - (a) for the purposes of calculating the first review date, the end of the initial review period;
 - (b) for the purposes of calculating each subsequent review date, the previous review date.

86H Review of decisions relating to list

- (1) The owner of land included in a local authority’s list of assets of community value may ask the authority to review the authority’s decision to include the land in the list.
- (2) The owner of land included in a local authority’s list of assets of community value as a sporting asset of community value may ask the authority to review the authority’s decision to include the land in that category of the list.
- (3) A voluntary or community body who made a community nomination to a local authority in relation to land may ask the authority to review a decision not to include the land in the list.
- (4) If a request is made—
 - (a) under subsection [\(1\)](#), [\(2\)](#) or [\(3\)](#), and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) in accordance with the time limits (if any) provided for in regulations under [subsection \(9\)](#),
the authority concerned must review its decision.
- (5) Where under [subsection \(4\)](#) an authority reviews a decision, the authority must notify the person who asked for the review—
 - (a) of the decision on the review, and
 - (b) of the reasons for the decision.
- (6) If the decision on a review under [subsection \(4\)](#) is that the land concerned should not have been included in the authority's list of assets of community value—
 - (a) the authority must remove the entry for the land from the list, and
 - (b) where the land was included in the list in response to a community nomination—
 - (i) the nomination becomes unsuccessful, and
 - (ii) the authority must give a written copy of the reasons mentioned in [subsection \(5\)\(b\)](#) to the person who made the nomination.
- (7) If the decision on a review under [subsection \(4\)](#) is that the land concerned should not have been included in the authority's list of assets of community value as a sporting asset of community value the authority must remove the entry for the land from that category of the list.
- (8) If the decision on a review under [subsection \(4\)](#) is that the land concerned should have been included in the authority's list of assets of community value, the authority must cause the land to be included in the list.
- (9) The Secretary of State may by regulations make provision as to the procedure to be followed in connection with a review under this section.
- (10) Regulations under [subsection \(9\)](#) may (in particular) include provision—
 - (a) as to time limits;
 - (b) requiring the decision on the review to be made by a person of appropriate seniority who was not involved in the original decision;
 - (c) as to the circumstances in which the person asking for the review is entitled to an oral hearing, and whether and by whom that person may be represented at the hearing;
 - (d) for appeals against the decision on the review.

List of land nominated by unsuccessful community nominations

86I List of land nominated by unsuccessful community nominations

- (1) A local authority must maintain a list of land in its area that has been nominated by an unsuccessful community nomination (see sections [86E\(5\)](#) and [86H\(6\)\(b\)\(i\)](#)).
- (2) The list maintained under [subsection \(1\)](#) by a local authority is to be known as its list of land nominated by unsuccessful community nominations.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Where land is included in a local authority's list of land nominated by unsuccessful community nominations, the entry in the list for the land—
 - (a) may (but need not) be removed from the list by the authority after it has been in the list for 5 years, and
 - (b) while it is in the list, is to include the reasons given under [section 86E\(6\)](#) or [86H\(5\)\(b\)](#) for not including the land in the authority's list of assets of community value.
- (4) Subject to any provision made by or under this Chapter, it is for a local authority to decide the form and contents of its list of land nominated by unsuccessful community nominations.

Provisions common to both lists

86J Publication and inspection of lists

- (1) A local authority must publish—
 - (a) its list of assets of community value, and
 - (b) its list of land nominated by unsuccessful community nominations.
- (2) A local authority must at a place in its area make available, for free inspection by any person, both—
 - (a) a copy of its list of assets of community value, and
 - (b) a copy of its list of land nominated by unsuccessful community nominations.
- (3) A local authority must provide a free copy of its list of assets of community value to any person who asks it for a copy, but is not required to provide to any particular person more than one free copy of the same version of the list.
- (4) A local authority must provide a free copy of its list of land nominated by unsuccessful community nominations to any person who asks it for a copy, but is not required to provide to any particular person more than one free copy of the same version of the list.
- (5) In this section “free” means free of charge.

Community groups: right to buy

86K Effect of inclusion on the list

- (1) A person who is an owner of land included in a local authority's list of assets of community value (“the owner of land of community value”) must not enter into a relevant disposal of all or part of the land unless the disposal is made in accordance with the provisions of this Chapter.
- (2) Subsection (1) does not apply in relation to a relevant disposal of land—
 - (a) if the disposal is by way of gift (including a gift to trustees of any trusts by way of settlement upon the trusts),
 - (b) if the disposal is by personal representatives of a deceased person in satisfaction of an entitlement under the will, or on the intestacy, of the deceased person,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) if the disposal is by personal representatives of a deceased person in order to raise money to—
 - (i) pay debts of the deceased person,
 - (ii) pay taxes,
 - (iii) pay costs of administering the deceased person’s estate, or
 - (iv) pay pecuniary legacies or satisfy some other entitlement under the will, or on the intestacy, of the deceased person,
 - (d) if the person, or one of the persons, making the disposal is a member of the family of the person, or one of the persons, to whom the disposal is made,
 - (e) if the disposal is a part-listed disposal of a description specified in regulations made by the Secretary of State, and for this purpose “part-listed disposal” means a disposal of an estate in land—
 - (i) part of which is land included in a local authority’s list of assets of community value, and
 - (ii) part of which is land not included in any local authority’s list of assets of community value,
 - (f) if the disposal is of an estate in land on which a business is carried on and is at the same time, and to the same person, as a disposal of that business as a going concern,
 - (g) if the disposal is occasioned by a person ceasing to be, or becoming, a trustee,
 - (h) if the disposal is by trustees of any trusts—
 - (i) in satisfaction of an entitlement under the trusts, or
 - (ii) in exercise of a power conferred by the trusts to re-settle trust property on other trusts,
 - (i) if the disposal is occasioned by a person ceasing to be, or becoming, a partner in a partnership, or
 - (j) in cases of a description specified in regulations made by the Secretary of State.
- (3) For the purposes of [subsection \(2\)\(d\)](#), a person (“M”) is a member of the family of another person if M is—
- (a) that other person’s spouse or civil partner, or
 - (b) a lineal descendant of a grandparent of that other person.
- (4) For the purposes of [subsection \(3\)\(b\)](#) a relationship by marriage or civil partnership is to be treated as a relationship by blood.
- (5) For the meaning of “relevant disposal”, and for when a relevant disposal is entered into, see [section 86L](#).

86L Meaning of “relevant disposal” etc

- (1) This section applies for the purposes of this Chapter.
- (2) A disposal of the freehold estate in land is a relevant disposal of the land if it is a disposal with vacant possession.
- (3) A grant or assignment of a qualifying leasehold estate in land is a relevant disposal of the land if it is a grant or assignment with vacant possession.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (4) If a relevant disposal within [subsection \(2\)](#) or [\(3\)](#) is made in pursuance of a binding agreement to make it, the disposal is entered into when the agreement becomes binding.
- (5) Subject to [subsection \(4\)](#), a relevant disposal within [subsection \(2\)](#) or [\(3\)](#) is entered into when it takes place.
- (6) In this section “qualifying leasehold estate” , in relation to any land, means an estate by virtue of a lease of the land for a term which, when granted, had at least 25 years to run.
- (7) The Secretary of State may by regulations amend this section.

86M Notice of proposed sale: community right to buy

- (1) The owner of land of community value must give the relevant local authority written notice of the owner’s wish to enter into a relevant disposal of the land.
- (2) A notice under [subsection \(1\)](#) must identify the estate or estates in land which is or are to be disposed of or granted or assigned by the relevant disposal (“the relevant estate in land”).
- (3) Where a notice is given under [subsection \(1\)](#), the owner must not enter into a relevant disposal of the land unless the disposal—
 - (a) is of the relevant estate in land, and
 - (b) is to the preferred community buyer.
- (4) Subsection [\(3\)](#) does not apply or ceases to apply if—
 - (a) there is no preferred community buyer (see [section 86N\(2\)](#)),
 - (b) the relevant local authority has determined that the preferred community buyer does not meet the progress requirements after any of the review periods (see [section 86U](#)), or
 - (c) the preferred community buyer—
 - (i) does not offer to buy the relevant estate in land at the price agreed with the owner by the end of the negotiation period (see [section 86S\(4\)](#)), and
 - (ii) does not offer to buy the relevant estate in land at the value price by the end of the offer period (see [section 86T\(8\)](#)).
- (5) Where a case falls within any of subsections [\(4\)\(a\)](#) to [\(c\)](#)—
 - (a) the owner may enter into a relevant disposal of the land to any person within the permitted sale period;
 - (b) if no such disposal is entered into within that period, a new notice must be given in accordance with [subsection \(1\)](#) if the landlord wishes to enter into a relevant disposal of the land after that period.
- (6) In this section, “permitted sale period” in relation to a relevant disposal of land, means the period of 18 months beginning with the date on which the notice of a wish to enter into a relevant disposal was given under [subsection \(1\)](#).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

86N The “preferred community buyer”

- (1) The “preferred community buyer” (if any) for the purposes of this Chapter in relation to land of community value is—
 - (a) the nominating community group where—
 - (i) there is such a group,
 - (ii) the notice requirement is met, and
 - (iii) at the time the notice requirement is met the group is a community interest group, or
 - (b) where there is no group falling within [paragraph \(a\)](#), the alternative community group determined in accordance with [section 86P](#).
- (2) If there is no group falling within [subsection \(1\)\(a\)](#) or [\(b\)](#) in relation to land of community value, there is no preferred community buyer for the purposes of this Chapter in relation to the land.
- (3) The “notice requirement” is met if the nominating community group gives written notice of its intention to buy the land to the relevant local authority within the notification period.
- (4) In this section—

“community interest group” means a person specified, or of a description specified, in regulations made by the Secretary of State;

“nominating community group” means a voluntary or community body or parish council on the basis of whose community nomination the land was included in a local authority’s list of community assets;

“notification period” is the period of six weeks beginning with the date the nominating community group received the notice given under [section 86Q\(3\)](#).

86P The alternative community group

- (1) A community interest group may within the period for expressions of interest relating to land of community value give written notice to the relevant local authority of the group’s intention to buy the land.
- (2) The “period for expressions of interest”, in relation to land of community value, is the period of eight weeks beginning with the date on which the local authority updates the list for the land to include the matters mentioned in [section 86Q\(2\)\(a\) to \(c\)](#).
- (3) A notice under [subsection \(1\)](#) must include the reasons why the group wants to buy the land.
- (4) Where—
 - (a) no community interest group has given notice under [subsection \(1\)](#), there is no alternative community group for the purposes of [section 86N\(1\)\(b\)](#);
 - (b) one community interest group has given notice under [subsection \(1\)](#), that group is the alternative community group for the purposes of [section 86N\(1\)\(b\)](#);

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) more than one community interest group has given notice under [subsection \(1\)](#), the relevant local authority must make a determination as to which group is the alternative community group for the purposes of [section 86N\(1\)\(b\)](#).
- (5) Where [subsection \(4\)\(b\)](#) applies, the relevant local authority must give written notice to the community interest group which has given notice under [subsection \(1\)](#) that it is the alternative community group for the purposes of [section 86N\(1\)\(b\)](#).
- (6) Where [subsection \(4\)\(c\)](#) applies, the relevant local authority must give written notice of the determination to each community interest group which has given notice under [subsection \(1\)](#).
- (7) A notice under [subsection \(5\)](#) or [\(6\)](#) must be given before the end of the period of 14 days beginning with the end of the period for expressions of interest.
- (8) In this section, “community interest group” has the meaning given by [section 86N\(4\)](#).

86Q Publicising receipt of notice under [section 86M](#)86Q (1)

- (1) This section applies if a local authority receives notice under [section 86M\(1\)](#) in respect of land included in the authority’s list of assets of community value.
- (2) The authority must cause the entry in the list for the land to reveal—
 - (a) that notice under [section 86M\(1\)](#) has been received in respect of the land,
 - (b) the date when the authority received the notice, and
 - (c) the end of the permitted sale period and the notification period that apply under [section 86M](#) or [86N](#) as a result of the notice.
- (3) If the land is included in the list in response to a community nomination, the authority must give written notice to the person who made the nomination of the matters mentioned in [subsection \(2\)\(a\)](#), [\(b\)](#) and [\(c\)](#).
- (4) The authority must also give written notice of those matters to—
 - (a) any Member of Parliament whose Parliamentary constituency includes any part of the land;
 - (b) the councillor or councillors for any electoral area or areas in which the land or any part of it is situated.
- (5) The authority must make arrangements for those matters to be publicised in the area where the land is situated.
- (6) Any requirement on a local authority under this section must be met before the end of the period of 14 days beginning with the day of receipt by the local authority of the notice under [section 86M\(1\)](#).
- (7) In this section—
 - “councillor” means a member of—
 - (a) a local authority,

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) a county council for an area for which there are district councils, or

(c) a parish council;

“electoral area” means any electoral division or ward or (in the case of a parish for which there are no wards) the parish.

86R Further notification requirements

(1) This section applies where the owner of land of community value gives notice under [section 86M\(1\)](#).

(2) If there is a nominating community group in relation to the land who has met the notice requirement, the relevant local authority must—

(a) give the owner written notice of this information, and

(b) include this information in the entry in the list for the land.

(3) The notice under [subsection \(2\)\(a\)](#) must be given before the end of the period of 14 days beginning with the end of the notification period.

(4) In any other case, the relevant local authority must give the owner written notice—

(a) if there is an alternative community group, of the name and address of that group, or

(b) that there is no alternative community group.

(5) The notice under [subsection \(4\)](#) must be given before the end of the period of 14 days beginning with the end of the period for expressions of interest.

(6) In this section—

“alternative community group” means the group determined in accordance with [section 86P](#);

“nominating community group” has the meaning given by [section 86N\(4\)](#);

“notice requirement” and “notification period” have the meaning given by [section 86N](#);

“period for expressions of interest” has the meaning given by [section 86P](#).

86S Negotiation of price and agreed offer

(1) This section applies where—

(a) the owner of land of community value gives notice under [section 86M\(1\)](#), and

(b) there is a preferred community buyer in relation to the land.

(2) The relevant local authority must as far as reasonably practicable arrange a joint meeting with the owner of the land and the preferred community buyer.

(3) The Secretary of State may by regulations make further provision about the meeting including provision about—

(a) the circumstances in which the meeting may go ahead without either the owner of the land or the preferred community buyer;

(b) the conduct of the meeting;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) information to be provided at the meeting by the relevant local authority (including information about the process and the periods within which any requirements must be met under this Chapter).
- (4) Section 86T applies if at the end of the negotiation period the preferred community buyer has not offered to buy the relevant estate in land at a price agreed with the owner.
- (5) In this section—
 - “negotiation period” is the period of eight weeks beginning with the date the notice was given under section 86R(2)(a) or 86R(4);
 - “relevant estate in land” has the meaning given by section 86M(2).

86T Valuation and offer

- (1) If this section applies (see section 86S(4)), the relevant local authority must by the end of the appointment period appoint an authorised officer to assess the value of the land (“the valuer”).
- (2) The value to be assessed is the market value of the relevant estate in land on the date the notice was given under section 86M(1).
- (3) The market value is the amount which the relevant estate in land could have been expected to realise if it had been sold on the open market by a willing seller to a willing buyer on that date.
- (4) The Secretary of State may by regulations make further provision about the determination of the market value of an estate in land for the purposes of this section.
- (5) Regulations under subsection (4) may include provision—
 - (a) about the method to be used for determining market value;
 - (b) about any matters which must or must not be taken into account when determining the market value;
 - (c) about the circumstances in which the owner of the land and the preferred community buyer may make written representations to the valuer (and requiring the valuer to take those representations into account).
- (6) The valuer must by the end of the period of eight weeks beginning with the date of the valuer’s appointment determine the market value of the relevant estate in land (“the value price”).
- (7) The valuer must as soon as reasonably practicable give the owner of the land and the preferred community buyer notice in writing of the determination.
- (8) If the preferred community buyer wishes to buy the relevant estate in land in accordance with this Chapter, the buyer must by the end of the offer period offer to buy the relevant estate in land at the value price.
- (9) The expense of a valuation under this section is to be met by the relevant local authority.
- (10) In this section—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“appointment period” is the period of 14 days beginning with the end of the negotiation period;

“authorised officer”, in relation to the valuation of land of community value, means—

- (a) a valuation officer appointed under section 61 of the Local Government Finance Act 1988,
- (b) a district valuer within the meaning of section 622 of the Housing Act 1985, or
- (c) in such circumstances as may be specified in regulations made by the Secretary of State, another person who in the opinion of the relevant local authority is independent of the authority, the owner of the land and the preferred community buyer;

“negotiation period” has the meaning given by [section 86S\(5\)](#);

“offer period” is the period of 12 months beginning with the date notice was given under [section 86M\(1\)](#);

“relevant estate in land” means the estate or estates identified in the notice given under [section 86M\(1\)](#) (see [section 86M\(2\)](#)).

86U Progress requirements

- (1) This section applies where—
 - (a) the owner of land of community value gives notice under [section 86M\(1\)](#), and
 - (b) there is a preferred community buyer in relation to the land.
- (2) Where the land that the notice relates to is a sporting asset of community value which can accommodate over 10,000 people, and the owner makes a request in writing, the relevant local authority must—
 - (a) determine whether at the end of the 16 week review period the preferred community buyer has met the progress requirements, and
 - (b) as soon as reasonably practicable give written notice of the determination to the owner and the buyer.
- (3) Where the owner makes a request in writing, the relevant local authority must—
 - (a) determine whether at the end of the 6 month review period the preferred community buyer has met the progress requirements, and
 - (b) as soon as reasonably practicable give written notice of the determination to the owner and buyer.
- (4) A request under subsection (2) or (3) must be made no less than two weeks before the end of the review period that it relates to.
- (5) The relevant local authority must—
 - (a) determine whether at the end of the 12 month review period the preferred community buyer has met the progress requirements, and
 - (b) as soon as reasonably practicable give written notice of the determination to the owner of the land and the preferred community buyer.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (6) “Progress requirements” means such requirements relating to each review period as are specified in regulations made by the Secretary of State for that purpose.
- (7) Regulations under subsection (6) may make provision about the evidence that a preferred community buyer must provide to a local authority for the purpose of demonstrating that they have met the progress requirements.
- (8) In this section—
 - “the 16 week review period” is the period of 16 weeks beginning with the date on which the notice of a wish to enter into a relevant disposal was given under section 86M(1) (“the notice date”);
 - “the 6 month review period” is the period of 6 months beginning with the notice date;
 - “the 12 month review period” is the period of 12 months beginning with the notice date;
 - “review period” means the 16 week review period, the 6 month review period or the 12 month review period.

86V Validity of acts

The validity of anything done under this Chapter is not affected by any failure by a local authority or a valuer appointed in accordance with [section 86T](#) to comply with a time limit specified by or under this Chapter.

86W Compensation

- (1) The Secretary of State may by regulations make provision for the payment of compensation in connection with the operation of this Chapter.
- (2) Regulations under subsection (1) may (in particular)—
 - (a) provide for any entitlement conferred by the regulations to apply only in cases specified in the regulations;
 - (b) provide for any entitlement conferred by the regulations to be subject to conditions, including conditions as to time limits;
 - (c) make provision about—
 - (i) who is to pay compensation payable under the regulations;
 - (ii) who is to be entitled to compensation under the regulations;
 - (iii) what compensation under the regulations is to be paid in respect of;
 - (iv) the amount, or calculation, of compensation under the regulations;
 - (v) the procedure to be followed in connection with claiming compensation under the regulations;
 - (vi) the review of decisions made under the regulations;
 - (vii) appeals against decisions made under the regulations.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Miscellaneous

86X Guidance

- (1) The Secretary of State may issue guidance to local authorities about the exercise of any functions under this Chapter.
- (2) A local authority must take into account any such guidance in exercising those functions.
- (3) The guidance may include (but is not limited to) guidance about—
 - (a) the types of use that may further the social or economic wellbeing or social or economic interests of a local community;
 - (b) communicating with specified persons in connection with the carrying out of any of the local authority's functions;
 - (c) matters relating to the indefinite listing of land as land of community value under [section 86A\(6\)](#);
 - (d) applying the test under [section 86B\(3\)](#) to identify land supporting sporting assets of community value;
 - (e) meeting the obligations under [section 86G](#) in relation to sporting assets of community value.
- (4) Before issuing guidance under this section, the Secretary of State must consult such persons as the Secretary of State considers appropriate.
- (5) The requirement in [subsection \(4\)](#) may be met by consultation carried out before this section comes into force.
- (6) The Secretary of State may revise any guidance issued under this section.
- (7) The Secretary of State must arrange for any guidance issued under this section to be published.

86Y Local land charge

If land is included in a local authority's list of assets of community value—

- (a) inclusion in the list is a local land charge, and
- (b) that authority is the originating authority for the purposes of the Local Land Charges Act 1975.

86Z Enforcement

- (1) The Secretary of State may by regulations make provision—
 - (a) with a view to preventing, or reducing the likelihood of, contraventions of [section 86K\(1\)](#) (restriction on relevant disposals of land);
 - (b) as to the consequences applicable in the event of contraventions of [section 86K\(1\)](#).
- (2) The provision that may be made under [subsection \(1\)](#) includes (in particular)
—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) provision for transactions entered into in breach of [section 86K\(1\)](#) to be set aside or to be ineffective;
 - (b) provision about entries on registers relating to land.
- (3) The provision that may be made under [subsection \(1\)](#) includes provision amending—
- (a) an Act, or
 - (b) an instrument made under an Act.

86Z1 Co-operation

If different parts of any land are in different local authority areas, the local authorities concerned must co-operate with each other in carrying out functions under this Chapter in relation to the land or any part of it.

86Z2 Advice and assistance in relation to land of community value

- (1) The Secretary of State may do anything that the Secretary of State considers appropriate for the purpose of giving advice or assistance—
- (a) to anyone in relation to doing any of the following—
 - (i) taking steps under or for the purposes of provision contained in, or made under, this Chapter, or
 - (ii) preparing to, or considering or deciding whether to, take steps within sub-paragraph (i), or
 - (b) to a preferred community buyer in relation to doing any of the following—
 - (i) negotiating and offering to buy land that is included in a local authority's list of assets of community value,
 - (ii) preparing to, or considering or deciding whether or how to, bring land within sub-paragraph (i) into effective use.
- (2) The things that the Secretary of State may do under this section include, in particular—
- (a) the provision of financial assistance to any body or other person;
 - (b) the making of arrangements with a body or other person, including arrangements for things that may be done by the Secretary of State under this section to be done by that body or other person.
- (3) In this section—
- (a) the reference to giving advice or assistance includes providing training or education;
 - (b) the reference to the provision of financial assistance is to the provision of financial assistance by any means (including the making of a loan and the giving of a guarantee or indemnity).

86Z3 Crown application

This Chapter binds the Crown.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Interpretation of Chapter

86Z4 Meaning of “local authority”

- (1) In this Chapter “local authority” means—
 - (a) a district council,
 - (b) a county council for an area in England for which there are no district councils,
 - (c) a London borough council,
 - (d) the Common Council of the City of London, or
 - (e) the Council of the Isles of Scilly.
- (2) The Secretary of State may by regulations amend this section for the purpose of changing the meaning in this Chapter of “local authority” in relation to England.

86Z5 Meaning of “owner”

- (1) In this Chapter “owner”, in relation to land, is to be read as follows.
- (2) The owner of any land is the person in whom the freehold estate in the land is vested, but not if there is a qualifying leasehold estate in the land.
- (3) If there is just one qualifying leasehold estate in any land, the owner of the land is the person in whom that estate is vested.
- (4) If there are two or more qualifying leasehold estates in the same land, the owner of the land is the person in whom is vested the qualifying leasehold estate that is more or most distant (in terms of the number of intervening leasehold estates) from the freehold estate.
- (5) In this section “qualifying leasehold estate”, in relation to any land, means an estate by virtue of a lease of the land for a term which, when granted, had at least 25 years to run.
- (6) The Secretary of State may by regulations amend this section—
 - (a) for the purpose of changing the definition of “owner” for the time being given by this section;
 - (b) for the purpose of defining “owner” for the purposes of this Chapter in a case where, for the time being, this section does not define that expression.

86Z6 Interpretation of Chapter: general

- (1) In this Chapter—
 - “building” includes part of a building;
 - “community nomination” has the meaning given by [section 86D\(2\)](#);
 - “land” includes—
 - (a) part of a building,
 - (b) part of any other structure, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(c) mines and minerals, whether or not held with the surface;
 “land of community value” is to be read in accordance with [section 86B](#);
 “local authority” is to be read in accordance with [section 86Z4](#);
 “owner”, in relation to any land, is to be read in accordance with [section 86Z5](#);
 “owner of land of community value” has the meaning given by [section 86K\(1\)](#);
 “preferred community buyer” has the meaning given by [section 86N](#);
 “relevant local authority” has the meaning given by [section 86C](#);
 “unsuccessful”, in relation to a community nomination, has the meaning given by sections [86E\(5\)](#) and [section 86H\(6\)\(b\)\(i\)](#).

(2) For the meaning of “list of assets of community value” see [section 86A\(2\)](#).

(3) For the meaning of “list of land nominated by unsuccessful community nominations” see [section 86I\(2\)](#).”

Commencement Information

I507 Sch. 31 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

- 2 (1) A list of land of community value maintained immediately before the relevant day by a local authority in England under section 87(1) of the Localism Act 2011 (“the original asset list”) is to have effect on and after that day as a list of land of community value maintained by that authority under [section 86A\(1\)](#) of that Act (“the new asset list”).
- (2) Any land that is included in the new asset list by virtue of sub paragraph (1) is to be treated as entered in that list on the date on which the land was entered in the original asset list.
- (3) A list of land nominated by unsuccessful community nominations maintained immediately before the relevant day by a local authority in England under section 93(1) of the Localism Act 2011 (“the original unsuccessful nominations list”) is to have effect on and after that day as a list of land nominated by unsuccessful community nominations maintained by that authority under [section 86I\(1\)](#) of that Act (“the new unsuccessful nominations list”).
- (4) Any land that is included in the new unsuccessful nominations list by virtue of [sub-paragraph \(3\)](#) is to be treated as entered in that list on the date on which the land was entered in the original unsuccessful nominations list.
- (5) This paragraph does not limit the power under section 92(10) to make any other transitional provision in connection with the coming into force of [paragraph 1](#) of this Schedule.
- (6) In this paragraph, “the relevant day” is the day on which paragraph 1 of this Schedule comes into force.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I508 Sch. 31 para. 2 not in force at Royal Assent, see [s. 108\(6\)](#)

PART 2

MINOR AND CONSEQUENTIAL AMENDMENTS RELATING TO PART 1

PROSPECTIVE

3 The Localism Act 2011 is amended as follows.

Commencement Information

I509 Sch. 31 para. 3 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

4 In Part 5 (community empowerment), at the end of the heading for Chapter 3, insert “(Wales)”.

Commencement Information

I510 Sch. 31 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

5 In section 87 (list of assets of community value)—
(a) in subsection (4), for “appropriate authority” substitute “Welsh Ministers”;
(b) in subsection (5), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I511 Sch. 31 para. 5 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

6 In section 88 (land of community value)—
(a) in subsection (3), for “appropriate authority” substitute “Welsh Ministers”;

(b) in subsection (4), for “appropriate authority considers” substitute “Welsh Ministers consider”.

Commencement Information
I512 Sch. 31 para. 6 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

7 In section 89 (Procedure for including land in list)—

- (a) in subsection (1)(b), for “appropriate authority” substitute “Welsh Ministers”;
- (b) in subsection (2)(b)—
 - (i) omit sub-paragraph (i);
 - (ii) in sub-paragraph (ii), omit “in Wales”;
- (c) in subsection (4), for “appropriate authority” substitute “Welsh Ministers”;
- (d) in subsection (5), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information
I513 Sch. 31 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

8 In section 91 (notice of inclusion or removal), in subsection (2)(d) for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information
I514 Sch. 31 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

9 In section 92 (review of decision to include land in list), in subsection (5), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information
I515 Sch. 31 para. 9 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

- 10 In section 95 (moratorium)—
- (a) in subsection (5)—
 - (i) in paragraph (e), for “appropriate authority” substitute “Welsh Ministers”;
 - (ii) in paragraph (j), for “appropriate authority” substitute “Welsh Ministers”;
 - (b) in subsection (6), in the definition of “community interest group” for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I516 Sch. 31 para. 10 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 11 In section 96 (meaning of “relevant disposal” etc in section 95), in subsection (7), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I517 Sch. 31 para. 11 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 12 In section 98 (informing owner of request to be treated as bidder), in subsection (3), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I518 Sch. 31 para. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 13 In section 99 (compensation), in subsection (1), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I519 Sch. 31 para. 13 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

- 14 In section 101 (enforcement)—
- (a) in subsection (1), for “appropriate authority” substitute “Welsh Ministers”;
 - (b) in subsection (3), for paragraphs (a) and (b) substitute—
 - “(a) a Measure or Act of Senedd Cymru, or
 - (b) an instrument made under such a Measure or Act.”;
 - (c) omit subsection (4).

Commencement Information

I520 Sch. 31 para. 14 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 15 Omit section 103.

Commencement Information

I521 Sch. 31 para. 15 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 16 In section 104 (Advice and assistance in relation to land of community value in Wales)—
- (a) in the heading, omit “in Wales”;
 - (b) in subsection (1)(a), omit “so far as applying to Wales”;
 - (c) in subsection (1)(b)(i), omit “in Wales”.

Commencement Information

I522 Sch. 31 para. 16 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 17 In section 106 (meaning of “local authority”)—
- (a) omit subsections (1) and (2);
 - (b) in subsection (3)—
 - (i) in the opening words, omit “in relation to Wales”;
 - (ii) in paragraph (a), omit “in Wales”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I523 Sch. 31 para. 17 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 18 In section 107 (meaning of “owner”), in subsection (6), for “appropriate authority” substitute “Welsh Ministers”.

Commencement Information

I524 Sch. 31 para. 18 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 19 In section 108 (interpretation), omit the definition of “appropriate authority”.

Commencement Information

I525 Sch. 31 para. 19 not in force at Royal Assent, see [s. 108\(6\)](#)

- 20 In section 235 (orders and regulations), after subsection (7)(g) insert—
“(ga) regulations under [section 86A\(5\)](#), [section 86L\(7\)](#), [86Z](#), [86Z4\(2\)](#) or [86Z5\(6\)](#).”.

Commencement Information

I526 Sch. 31 para. 20 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

SCHEDULE 32

Section 68

PROHIBITION OF PARKING ON FOOTWAYS AND VERGES

Prohibition of parking

- 1 (1) The Secretary of State may make regulations for the purpose of giving each English local transport authority the power to impose a prohibition on the parking of motor vehicles on the footways and verges which form part of the relevant highways in the authority’s area.
- (2) But parking regulations may not give an English local transport authority the power to impose a prohibition on parking in any place that is not in a civil enforcement area for parking contraventions under Part 2 of Schedule 8 to the Traffic Management Act 2004.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Parking regulations may make provision about the meaning of “parking” (and cognate expressions) for the purposes of parking prohibitions.
- (4) Parking regulations may amend an Act passed before, or in the same session as, this Act.
- (5) Parking regulations are subject to affirmative procedure.
- (6) Paragraphs 2 to 9 deal with particular kinds of provision that may be made by parking regulations.

Commencement Information

I527 Sch. 32 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Imposition of, and publicity for, a parking prohibition

- 2 Parking regulations may make provision about—
- (a) the process by which, and manner in which, the power to prohibit parking is exercisable;
 - (b) the manner in which the imposition of a parking prohibition may or must be publicised.

Commencement Information

I528 Sch. 32 para. 2 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Exclusions: roads etc

- 3
- (1) Parking regulations may exclude particular descriptions of relevant highways or parts of relevant highways from parking prohibitions (including parts of relevant highways designated by, or by virtue of, an Act or secondary legislation as a place where parking is permitted).
 - (2) Parking regulations may give an English local transport authority the power to exclude—
 - (a) particular relevant highways or parts of relevant highways, or
 - (b) particular parts of the authority’s area,
 from a parking prohibition.
 - (3) Parking regulations made in accordance with this paragraph may provide for an exclusion to apply only if particular conditions are met.

Commencement Information

I529 Sch. 32 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Exclusions: vehicles and usage

- 4
- (1) Parking regulations may exclude any of the following from parking prohibitions—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) particular descriptions of motor vehicles;
 - (b) motor vehicles which are used or parked for particular purposes or in particular circumstances.
- (2) Parking regulations made in accordance with this paragraph may provide for an exclusion to apply only if particular conditions are met.

Commencement Information

I530 Sch. 32 para. 4 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Traffic signs

- 5 (1) Parking regulations may make provision about traffic signs relating to parking prohibitions (“relevant traffic signs”).
- (2) Parking regulations made under sub-paragraph (1) may—
- (a) require traffic authorities to carry out functions in relation to relevant traffic signs (including provision giving English local transport authorities the power to give directions to traffic authorities to carry out such functions);
 - (b) may require co-operation among, or between, one or more of the following in respect of functions relating to relevant traffic signs—
 - (i) English local transport authorities;
 - (ii) traffic authorities;
 - (iii) local authorities.
- (3) This paragraph does not limit any power or duty relating to traffic signs arising under any other Act or secondary legislation; but that does not limit the provision that may be made under this paragraph.
- (4) In this paragraph—
- “local authority” means—
 - (a) a county council in England,
 - (b) a unitary district council, or
 - (c) a metropolitan district council;
 - “traffic sign” has the same meaning as in the Road Traffic Regulation Act 1984 (see section 64 of that Act).

Commencement Information

I531 Sch. 32 para. 5 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Defences

- 6 Parking regulations may provide for defences to contraventions of a parking prohibition.

Commencement Information

I532 Sch. 32 para. 6 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Consultation and guidance

- 7 (1) Parking regulations may require English local transport authorities to carry out consultation in connection with the exercise of functions under parking regulations.
- (2) Parking regulations—
- (a) may give the Secretary of State power to issue guidance;
 - (b) may require a person to whom the guidance is directed to have regard to it.

Commencement Information

I533 Sch. 32 para. 7 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Enforcement

- 8 (1) Schedule 7 to the Traffic Management Act 2004 (road traffic contraventions subject to civil enforcement) is amended in accordance with this paragraph.
- (2) In paragraph 4 (contraventions outside Greater London involving stationary vehicles), after sub-paragraph (2) insert—
- “(3) Outside Greater London there is a parking contravention in relation to a vehicle if it is parked in contravention of a prohibition imposed by an English local transport authority in accordance with regulations made under Schedule (*Prohibition of parking on footways and verges*) to the English Devolution and Community Empowerment Act 2026 (parking on footways and verges).”

Commencement Information

I534 Sch. 32 para. 8 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Repeal of existing legislation

- 9 Parking regulations may repeal an Act if, or to the extent that, it prohibits the parking of motor vehicles on footways and verges, or any similar part of a road, whether or not a relevant highway as defined in paragraph 11, in England, or any part of England, outside Greater London.

Commencement Information

I535 Sch. 32 para. 9 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Crown application

- 10 This Schedule applies to the parking of—
- (a) motor vehicles in the public service of the Crown that are required to be registered under the Vehicle Excise and Registration Act 1994, and
 - (b) motor vehicles belonging to, or used for the purposes of, a Minister of the Crown or Government department.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I536 Sch. 32 para. 10 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Interpretation

11 In this Schedule—

“carriageway” has the same meaning as in the Highways Act 1980 (see section 329(1) of that Act);

“cycle track” has the same meaning as in the Highways Act 1980 (see section 329(1) of that Act);

“English local transport authority” means—

(a) a local transport authority (which has the same meaning as in Part 2 of the Transport Act 2000 — see section 108(4) of that Act) in England, and

(b) the Council of the Isles of Scilly;

“footway” has the same meaning as in the Highways Act 1980 (see section 329(1) of that Act);

“highway maintainable at the public expense” has the same meaning as in the Highways Act 1980 (see section 328 of that Act);

“motor vehicle” has the same meaning as in the Road Traffic Regulation Act 1984 (see sections 136 to 140 of that Act);

“parking” includes stopping (and “parked” is to be construed accordingly);

“parking prohibition” means a prohibition on the parking of motor vehicles imposed by an English local transport authority through the exercise of a power conferred by parking regulations;

“parking regulations” means regulations made under paragraph [1\(1\)](#);

“relevant highway” means any length of highway maintainable at the public expense, but does not include any special road;

“special road” has the same meaning as in the Highways Act 1980 (see section 329(1) of that Act);

“unitary district council” means the council for a non-metropolitan district for which there is no county council;

“verge” means any part of a relevant highway which is not a carriageway, footway or cycle track.

Commencement Information

I537 Sch. 32 para. 11 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English
 Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 33

Section 88

EXTENSION OF THE GENERAL POWER OF COMPETENCE TO ENGLISH NATIONAL PARK AUTHORITIES AND THE BROADS AUTHORITY

Introduction

- 1 The Localism Act 2011 is amended in accordance with this Schedule.

Commencement Information

I538 Sch. 33 para. 1 in force at 29.6.2026, see s. 108(5)

Amendment of section 1

- 2 In section 1 (local authority's general power of competence), in subsection (1), after "CCA" (inserted by [Schedule 6](#)) insert " , or English National Park authority, and the Broads Authority, ".

Commencement Information

I539 Sch. 33 para. 2 in force at 29.6.2026, see s. 108(5)

Amendment of section 2

- 3 (1) Section 2 (boundaries of the general power) is amended as follows.
- (2) After subsection (2B) (inserted by [Schedule 6](#)) insert—
- “(2C) If exercise of a pre-commencement power of an English National Park authority, or of the Broads Authority, is subject to restrictions, those restrictions apply also to exercise of the general power so far as it is overlapped by the pre-commencement power.
- (2D) The general power does not enable an English National Park authority, or the Broads Authority, to do—
- (a) anything which the authority is unable to do by virtue of a pre-commencement limitation, or
 - (b) anything which the authority is unable to do by virtue of a post-commencement limitation which is expressed to apply—
 - (i) to the general power,
 - (ii) to all of the authority's powers, or
 - (iii) to all of the authority's powers but with exceptions that do not include the general power.”.
- (3) After subsection (5) (inserted by [Schedule 6](#)) insert—
- “(6) In this section, in relation to an English National Park authority or the Broads Authority—
- “post-commencement limitation” means a prohibition, restriction or other limitation expressly imposed by a statutory provision that—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English
Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) is contained in an Act passed after the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or
- (b) is contained in an instrument made under an Act and comes into force on or after the commencement of [section 88](#) of the English Devolution and Community Empowerment Act 2026;
“pre-commencement limitation” means a prohibition, restriction or other limitation expressly imposed by a statutory provision that—
 - (a) is contained in this Act, or in any other Act passed no later than the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or
 - (b) is contained in an instrument made under an Act and comes into force before the commencement of [section 88](#) of the English Devolution and Community Empowerment Act 2026;“pre-commencement power” means power conferred by a statutory provision that—
 - (a) is contained in this Act, or in any other Act passed no later than the end of the Session in which the English Devolution and Community Empowerment Act 2026 is passed, or
 - (b) is contained in an instrument made under an Act and comes into force before the commencement of [section 88](#) of the English Devolution and Community Empowerment Act 2026.”

Commencement Information

I540 [Sch. 33 para. 3](#) in force at 29.6.2026, see [s. 108\(5\)](#)

Amendment of section 3

- 4 In section 3 (limits on charging in exercise of general power), in subsection (1)(a), after “CCA” (inserted by [Schedule 6](#)) insert “, or English National Park authority, or the Broads Authority,”.

Commencement Information

I541 [Sch. 33 para. 4](#) in force at 29.6.2026, see [s. 108\(5\)](#)

Amendment of section 4

- 5 (1) Section 4 (limits on doing things for commercial purpose in exercise of general power) is amended in accordance with this paragraph.
- (2) In subsections (1), (2) and (3), after “CCA” (inserted by [Schedule 6](#)) insert “, or English National Park authority, or the Broads Authority,”.

Commencement Information

I542 [Sch. 33 para. 5](#) in force at 29.6.2026, see [s. 108\(5\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Amendment of section 5

- 6 (1) Section 5 (powers to make supplemental provision) is amended in accordance with this paragraph.
- (2) In subsections (1), (3) and (4) after “CCAs” (inserted by [Schedule 6](#)) insert “, or English National Park authorities, or the Broads Authority,”.
- (3) In subsections (5)(a) and (b) and (7)(a) after “CCAs” (inserted by [Schedule 6](#)) insert “, or English National Park authorities”.
- (4) In subsection (5)(c), after “CCA” (inserted by [Schedule 6](#)) insert “, or English National Park authority”.
- (5) After subsection (7) insert—
- “(7A) Before making an order under subsection (1), (2), (3) or (4) in relation to the Broads Authority, the Secretary of State must consult the Authority if the Secretary of State considers it appropriate.”

Commencement Information

I543 [Sch. 33 para. 6](#) in force at 29.6.2026, see [s. 108\(5\)](#)

Amendment of section 8

- 7 In section 8 (interpretation), after the definition of “combined authority” (inserted by [Schedule 6](#)) insert—
- ““English National Park authority” means a National Park authority for a National Park in England;”.

Commencement Information

I544 [Sch. 33 para. 7](#) in force at 29.6.2026, see [s. 108\(5\)](#)

SCHEDULE 34

Section 89(2)

THE LOCAL AUDIT OFFICE

PART 1

CONSTITUTION, PROCEEDINGS ETC

- 1 In the Local Audit and Accountability Act 2014, after Schedule 1 insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“SCHEDULE 1A

Section 1A(2)

LOCAL AUDIT OFFICE: CONSTITUTION, PROCEEDINGS ETC

Composition

- 1 (1) The Local Audit Office is to consist of—
 - (a) the Chair (who is to be a non-executive member),
 - (b) at least 5 other non-executive members,
 - (c) the Controller of Local Audit (being an executive member by virtue of paragraph 4), and
 - (d) any individuals who are executive members by virtue of paragraph 5.
- (2) The Secretary of State and the Office must, so far as practicable, exercise their powers so as to ensure that the number of non-executive members is at all times greater than the number of executive members.

Non-executive members: appointment and tenure

- 2 (1) The non-executive members (including the Chair) are to be appointed by the Secretary of State.
- (2) An employee of the Office may not be appointed.
- (3) Appointment is to be for a fixed term not exceeding 5 years.
- (4) An individual may be appointed no more than twice.
- (5) Subject to the other provisions of this Schedule, an individual is to hold office as a non-executive member in accordance with the terms of the individual’s appointment.
- (6) A non-executive member may resign by giving written notice to the Secretary of State.
- (7) The Secretary of State may by written notice remove a non-executive member from office on the grounds that—
 - (a) the member has without reasonable excuse failed to carry out the functions of the office, or
 - (b) in the opinion of the Secretary of State, the member is otherwise unable, unfit or unwilling to carry out those functions.
- (8) A non-executive member who becomes an employee of the Office ceases to be a non-executive member.

Non-executive members: remuneration

- 3 (1) The Local Audit Office must make, or make provision for, such of the following payments (in such amounts and in such circumstances) as the Secretary of State may determine.
- (2) The payments are those of—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) remuneration, pensions, allowances and gratuities in respect of an individual's service as a non-executive member, and
- (b) compensation in respect of an individual's ceasing to be a non-executive member.

(3) The Secretary of State may determine that a payment within sub-paragraph (2)(b) is to be made only in a case where the Secretary of State considers there to be special circumstances.

Controller of Local Audit

- 4
- (1) The Local Audit Office must employ an individual to act as its chief executive officer.
 - (2) That individual—
 - (a) is to have the title of the Controller of Local Audit, and
 - (b) is by virtue of the individual's employment an executive member of the Office.
 - (3) The Office must consult the Secretary of State before appointing the Controller.

Other executive members

- 5
- (1) The Local Audit Office may from time to time—
 - (a) designate for the purposes of this paragraph roles in which individuals are or are to be employed by the Office;
 - (b) revoke such a designation.
 - (2) The Office must consult the Secretary of State before making or revoking a designation.
 - (3) An individual employed by the Office in a designated role is by virtue of that employment an executive member of the Office.

Staff

- 6
- (1) The Local Audit Office may employ staff and make other arrangements for its staffing.
 - (2) That employment, or those arrangements, may be on whatever terms the Office considers appropriate (including terms as to remuneration, pensions or other financial matters).
 - (3) The Secretary of State may from time to time—
 - (a) designate for the purposes of sub-paragraph (4) roles in which individuals serve or are to serve as staff of the Office;
 - (b) revoke such a designation.
 - (4) The Office may not make a payment in respect of an individual's service in a designated role except in accordance with an agreement whose terms, so far as they relate to such payments, have been approved by the Secretary of State.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Committees

- 7
- (1) The Local Audit Office may appoint committees.
 - (2) A committee of the Office may appoint sub-committees.
 - (3) Members of a committee or sub-committee do not have to be members of the Office.
 - (4) Members of a sub-committee do not have to be members of the appointing committee.
 - (5) The Office may pay such remuneration and allowances as it may determine to any person who—
 - (a) is a member of a committee or a sub-committee, but
 - (b) is not a member of the Office or a member of its staff.

Delegation

- 8
- (1) The Local Audit Office may (subject to sub-paragraph (5)) delegate any of its functions to—
 - (a) a committee or sub-committee,
 - (b) a member of the Office, or
 - (c) a member of the Office's staff.
 - (2) A committee may delegate any of its functions to—
 - (a) a sub-committee appointed by it,
 - (b) a member of the committee, or
 - (c) a member of the Office's staff.
 - (3) A sub-committee may delegate any of its functions to—
 - (a) a member of the sub-committee, or
 - (b) a member of the Office's staff.
 - (4) A delegation under this paragraph—
 - (a) may be limited in extent or made subject to conditions, and
 - (b) does not prevent the delegator from exercising the function concerned.
 - (5) The Office may not delegate its function of—
 - (a) appointing the Controller of Local Audit,
 - (b) making or revoking the designation of a role for the purposes of paragraph 5, or
 - (c) adopting—
 - (i) a statement of accounts under paragraph 13,
 - (ii) a business plan or corporate strategy under paragraph 14, or
 - (iii) an annual report under paragraph 15.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Procedure

- 9 (1) The Local Audit Office may determine its own procedure (including quorum) and that of its committees and sub-committees.
- (2) The validity of any proceedings of the Office is not affected by any vacancy or defective appointment.

General power

- 10 The Local Audit Office may do anything it thinks appropriate for the purposes of, or in connection with, its functions.

Status

- 11 (1) The Local Audit Office is not to be regarded—
 - (a) as the servant or agent of the Crown, or
 - (b) as enjoying any status, immunity or privilege of the Crown.
- (2) The Office's property is not to be regarded as property of, or property held on behalf of, the Crown.
- (3) Service as a member, or a member of staff, of the Office is not service in the civil service of the State.

Seal and evidence

- 12 (1) The application of the Local Audit Office's seal must be authenticated by a signature of—
 - (a) a member of the Office, or
 - (b) another person authorised for that purpose by the Office.
- (2) A document purporting to be duly executed under the Office's seal or signed on its behalf—
 - (a) is to be received in evidence, and
 - (b) is to be taken to be executed or signed in that way, unless the contrary is shown.

Accounts

- 13 (1) The Local Audit Office must—
 - (a) keep proper accounts and proper records in relation to them, and
 - (b) prepare and adopt a statement of accounts in respect of each financial year.
- (2) The Office must send a copy of each statement of accounts to the Secretary of State and the Comptroller and Auditor General as soon as practicable after the end of the financial year to which the statement relates.
- (3) The Comptroller and Auditor General must—
 - (a) examine, certify and report on each statement of accounts, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) send a copy of each report and certified statement to the Secretary of State.

(4) The Secretary of State must lay before Parliament a copy of each such report and certified statement.

Business planning

14 (1) The Local Audit Office must have—

- (a) a business plan, and
- (b) a corporate strategy.

(2) The business plan is to relate to a single financial year and is to be published before the start of that year.

(3) The corporate strategy is to relate to a period of between 3 and 5 years and must be published before the expiry of the previous strategy.

(4) The Office may revise its business plan or corporate strategy, and must publish any revision.

Annual report

15 (1) As soon as reasonably practicable after the end of each financial year, the Local Audit Office must prepare and adopt a report on the exercise of its functions during that financial year.

(2) The Office must send the report to the Secretary of State.

(3) The Secretary of State must lay the report before Parliament.”

Commencement Information

I545 Sch. 34 para. 1 not in force at Royal Assent, see [s. 108\(6\)](#)

I546 [Sch. 34 para. 1](#) in force at 15.7.2026 for specified purposes by [S.I. 2026/812](#), [reg. 2\(2\)\(3\)](#)

PART 2

TRANSITIONAL PROVISION

Initial appointment of Controller of Local Audit

2 (1) For the purpose of constituting the Local Audit Office—

- (a) the Secretary of State must nominate an individual to be the first Controller of Local Audit;
- (b) the nominated individual is to become an executive member of the Office;
- (c) the Office must employ that individual to serve as its chief officer; and
- (d) the individual's position as executive member is then to continue under paragraph [4\(2\)\(b\)](#) of [Schedule 1A](#) to the Local Audit and Accountability Act 2014 (inserted by paragraph [1](#) of this Schedule).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) The Secretary of State may direct the Office as to the terms on which the nominated individual is to be employed.

Commencement Information

I547 Sch. 34 para. 2 not in force at Royal Assent, see [s. 108\(6\)](#)

I548 [Sch. 34 para. 2](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Initial business plans and corporate strategy

- 3 (1) The provision that may be made under section [108\(9\)](#)(transitional or saving provision in relation to commencement) includes provision disapplying or modifying the duty of the Local Audit Office under paragraph [14\(1\)\(a\)](#) and (2) (requirement for business plan) in relation to—
- (a) the financial year in which the Office is established, or
 - (b) the following financial year.
- (2) The first corporate strategy of the Office must be published as soon as reasonably practicable after it is established.

Commencement Information

I549 Sch. 34 para. 3 not in force at Royal Assent, see [s. 108\(6\)](#)

I550 [Sch. 34 para. 3](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Staff transfer schemes

- 4 (1) The Secretary of State may make one or more schemes under which individuals employed by—
- (a) the National Audit Office,
 - (b) The Financial Reporting Council Limited (a company limited by guarantee with the registered number 02486368), or
 - (c) Public Sector Audit Appointments Limited (a company limited by guarantee with the registered number 09178094),
- become employees of the Local Audit Office.
- (2) A scheme under sub-paragraph [\(1\)](#) is referred to in this paragraph as a “staff transfer scheme”.
- (3) A staff transfer scheme may make—
- (a) provision applying or modifying, or dealing with the same subject-matter as, any provision of the Transfer of Undertakings (Protection of Employment) Regulations 2006 ([S.I. 2006/246](#));
 - (b) supplementary, incidental or consequential provision.
- (4) A staff transfer scheme must allow each individual to whom it applies to choose not to become an employee of the Local Audit Office.
- (5) A scheme under sub-paragraph [\(1\)](#) may provide—
- (a) for the scheme to be modified by agreement after it comes into effect;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) for any such modifications to have effect from the date when the original scheme comes into effect.

Commencement Information

I551 Sch. 34 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

I552 [Sch. 34 para. 4](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Property transfer schemes

- 5 (1) The Secretary of State may make one or more schemes for the transfer of property, rights and liabilities from Public Sector Audit Appointments Limited (a company limited by guarantee with the registered number 09178094) (“PSAA”) to the Local Audit Office.
- (2) A scheme under sub-paragraph (1) is referred to in this paragraph as a “property transfer scheme”.
- (3) The things that may be transferred under a transfer scheme include—
- (a) property, rights and liabilities that could not otherwise be transferred;
 - (b) property acquired, and rights and liabilities arising, after the making of the scheme.
- (4) A transfer scheme may—
- (a) create rights, or impose liabilities, in relation to property or rights transferred;
 - (b) make provision about the continuing effect of things done by PSAA in respect of anything transferred;
 - (c) make provision about the continuation of things (including legal proceedings) in the process of being done by, on behalf of or in relation to PSAA in respect of anything transferred;
 - (d) make provision for references to PSAA in an instrument or other document in respect of anything transferred to be treated as references to the Local Audit Office;
 - (e) make provision for the shared ownership or use of property;
 - (f) make other consequential, supplementary, incidental or transitional provision.
- (5) A transfer scheme may provide—
- (a) for modifications by agreement;
 - (b) for modifications to have effect from the date when the original scheme came into effect.
- (6) In this paragraph, references to the transfer of property include the grant of a lease.

Commencement Information

I553 Sch. 34 para. 5 not in force at Royal Assent, see [s. 108\(6\)](#)

I554 [Sch. 34 para. 5](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PART 3

APPLICATION OF OTHER LEGISLATION

Public Records Act 1958 (c. 51)

6 In Part 2 of the Table in paragraph 3 of Schedule 1 to the Public Records Act 1958 (establishments and organisations whose records are public records), at the appropriate place insert—

“The Local Audit Office.”

Commencement Information

- I555** Sch. 34 para. 6 not in force at Royal Assent, see [s. 108\(6\)](#)
I556 [Sch. 34 para. 6](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Parliamentary Commissioner Act 1967 (c. 13)

7 In Schedule 2 to the Parliamentary Commissioner Act 1967 (departments etc subject to investigation), at the appropriate place insert—
“The Local Audit Office.”

Commencement Information

- I557** Sch. 34 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)
I558 [Sch. 34 para. 7](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

House of Commons Disqualification Act 1975 (c. 24)

8 In Part 2 of Schedule 1 to the House of Commons Disqualification Act 1975 (bodies all members of which are disqualified), at the appropriate place insert—
“The Local Audit Office.”

Commencement Information

- I559** Sch. 34 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)
I560 [Sch. 34 para. 8](#) in force at 15.7.2026 by [S.I. 2026/812](#), [reg. 2\(2\)](#)

Freedom of Information Act 2000 (c. 36)

9 In Part 6 of Schedule 1 to the Freedom of Information Act 2000 (other public bodies), at the appropriate place insert—
“The Local Audit Office.”

Commencement Information

- I561** Sch. 34 para. 9 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

I562 Sch. 34 para. 9 in force at 15.7.2026 by S.I. 2026/812, reg. 2(2)

Equality Act 2010 (c. 15)

- 10 In Part 1 of Schedule 19 to the Equality Act 2010 (authorities subject to the public sector equality duty), under the heading “Regulators”, at the appropriate place insert—

“The Local Audit Office.”

Commencement Information

I563 Sch. 34 para. 10 not in force at Royal Assent, see s. 108(6)

I564 Sch. 34 para. 10 in force at 15.7.2026 by S.I. 2026/812, reg. 2(2)

SCHEDULE 35

Section 90(2)

LOCAL AUDIT: REGISTRATION BODIES, REGISTERED PROVIDERS AND QUALIFICATIONS

Commencement Information

I565 Sch. 35 in force at Royal Assent for specified purposes, see s. 108(1)(6)

In the Local Audit and Accountability Act 2014, after [Schedule 1A](#) (inserted by [Schedule 34](#) to this Act) insert—

“SCHEDULE 1B

Section 6B(7)

EXTERNAL REGISTRATION BODIES

Provision of information to the Local Audit Office

- 1 (1) An external registration body must comply with any written request by the Local Audit Office to be provided with information.
- (2) Such a request may relate to information as it exists in the future (for instance, information about a future occurrence once it has occurred or about a future period once it has elapsed).
- (3) The Office may make such a request only if the Office reasonably requires the information concerned in connection with the performance of its functions.

Directions to secure compliance

- 2 (1) If the Local Audit Office considers that an external registration body has failed to comply with a requirement under—
 - (a) this Act, or
 - (b) an agreement under section [6B\(5\)](#),the Office may give the body a direction under this paragraph.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) A direction under this paragraph is one directing the body to take steps that the Office considers will—
 - (a) secure that the requirement in question is complied with, or
 - (b) mitigate the effect, or prevent the recurrence, of the failure of compliance.
- (3) Such a step—
 - (a) must be one that the body has the power to take;
 - (b) may consist of not doing something.
- (4) A direction under this paragraph must—
 - (a) explain the Office's reasons for giving the direction, and
 - (b) specify the time by which the direction must be complied with.

Financial penalties

- 3 (1) If the Local Audit Office considers that an external registration body has failed to comply with a requirement under—
 - (a) this Act, or
 - (b) an agreement under section 6B(5),
 the Office may impose a financial penalty on the body.
- (2) A financial penalty is imposed by giving the body a written notice requiring the body to pay the Office a financial penalty of a sum specified in the notice.
- (3) Such a notice must—
 - (a) explain the Office's reasons for imposing the penalty, and
 - (b) specify the time by which, and manner in which, the penalty must be paid.
- (4) An external registration body must, as soon as practicable after the end of a financial year, notify the Office of its total income in that year from fees charged under section 6A(5).
- (5) The amount of a penalty imposed on a body under this paragraph may not exceed 30% of the sum last notified by the body under sub-paragraph (4).

Directions and penalties: procedure etc

- 4 (1) Before giving a direction under paragraph 2 or imposing a penalty under paragraph 3, the Local Audit Office must—
 - (a) give the body a notice of intent, and
 - (b) consider any representations made by the body in response to (and in accordance with) that notice.
- (2) A notice of intent is a notice that—
 - (a) states the Office's intention to give the direction or impose the penalty,
 - (b) sets out the intended terms of the direction or of the notice imposing the penalty,
 - (c) explains the Office's reasons for intending to give the direction or impose the penalty, and
 - (d) specifies the time by which, and manner in which, representations may be made.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) Where the Office has given a direction under paragraph 2 or imposed a penalty under paragraph 3, the Office may by written notice given to that body—
 - (a) cancel the direction or penalty, or
 - (b) vary the direction, or the notice imposing the penalty, in any way that does not make it more onerous.
- (4) The Office must publish—
 - (a) a direction under paragraph 2,
 - (b) a notice imposing a penalty under paragraph 3, and
 - (c) any notice cancelling or varying such a direction or notice.
- (5) But it must do so only after the direction or penalty can no longer be cancelled or varied on appeal (ignoring any possibility of an appeal out of time).
- (6) If a penalty imposed under paragraph 3 is not paid in time—
 - (a) the penalty (or the unpaid part of it) carries interest at the rate for the time being specified in section 17 of the Judgments Act 1838;
 - (b) the Office may recover the penalty (or the unpaid part of it), with the interest, as a debt.

Directions and penalties: appeals

- 5 (1) An external registration body may appeal to the High Court against a direction given to it under paragraph 2 or a penalty imposed on it under paragraph 3.
- (2) The grounds on which an appeal may be brought are—
 - (a) that the failure of compliance on the grounds of which the direction was given or the penalty was imposed did not occur, or
 - (b) that any of the following is unreasonable—
 - (i) the decision to give the direction or impose the penalty;
 - (ii) any of the terms of the direction;
 - (iii) the amount of the penalty, or the time or manner of its payment.
- (3) If satisfied that any of those grounds is made out, the court must allow the appeal and do whichever of the following it considers appropriate—
 - (a) cancel the direction or penalty, or
 - (b) vary the direction or the notice imposing the penalty.
- (4) Otherwise, the court must dismiss the appeal.
- (5) The court may—
 - (a) make an interim order suspending the effect of a direction or penalty appealed against under this paragraph;
 - (b) if it allows an appeal under this paragraph against a penalty, make any order as to interest that it considers appropriate (including an order varying the effect of paragraph 4(6)(a)).

Compliance orders by the court

- 6 (1) This paragraph applies if the High Court is satisfied, on an application by the Local Audit Office, that an external registration body has failed to comply with a requirement under—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) this Act, or
 - (b) an agreement under section 6B(5).
- (2) The court may order the body to take steps that the court considers will secure that the requirement in question is complied with.
- (3) Such a step—
- (a) must be one that the body has the power to take;
 - (b) may consist of not doing something.
- (4) This court may not make an order under this paragraph in respect of the requirement to comply with a direction under paragraph 2 unless it is satisfied that the failure of compliance on the ground of which the direction was given did in fact occur.

Directions with respect to international obligations

- 7 (1) If it appears to the Secretary of State or the Local Audit Office—
- (a) that any action proposed to be taken by an external registration body would be incompatible with assimilated obligations or any other international obligations of the United Kingdom, or
 - (b) that any action which an external registration body has power to take is required for the purpose of implementing any such obligations,
- the Secretary of State or the Office may direct the body not to take or, as the case may be, to take the action in question.
- (2) A direction under this paragraph—
- (a) may include such supplementary or incidental requirements as the Secretary of State or the Office thinks necessary or expedient, and
 - (b) may be varied or cancelled by written notice to the body concerned.
- (3) A direction under this paragraph is enforceable by injunction issued by the High Court on the application of the Secretary of State or the Office.

Exemption from liability in damages

- 8 (1) No person within sub-paragraph (2) is to be liable in damages for anything done or omitted in the discharge or purported discharge of functions to which this sub-paragraph applies.
- (2) The persons within this subsection are—
- (a) an external registration body,
 - (b) an officer or employee of such a body, and
 - (c) a member of the governing body of such a body.
- (3) Sub-paragraph (1) applies to the functions of an external registration body so far as relating to, or to matters arising out of, any of the following—
- (a) rules and arrangements made for the purposes of Schedule 1C or any agreement under section 6B(5)(a), or
 - (b) any guidance or recommendation within sub-paragraph (4).
- (4) Guidance or a recommendation is within this sub-paragraph if—
- (a) it is issued or made by the external registration body to all or any class of the persons who are or are seeking to become—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (i) registered in the body’s local audit register, or
 - (ii) listed in accordance with paragraph 6 of [Schedule 1C](#) (list of firm’s lead partners), and
 - (b) it is relevant for the purposes of this Act, including any guidance or recommendation relating to entry in or removal from the register or list.
- (5) Sub-paragraph (1) does not apply—
- (a) if the act or omission is shown to have been in bad faith, or
 - (b) so as to prevent an award of damages in respect of the act or omission on the ground that it was unlawful as a result of section 6(1) of the Human Rights Act 1998 (acts of public authorities incompatible with Convention rights).

SCHEDULE 1C

Section 6C(1)

ELIGIBILITY AND REGULATION OF REGISTERED PROVIDERS

Introduction

- 1 (1) The following paragraphs set out the requirements that have effect in relation to a local audit register as provided by section [6C\(1\)](#).
- (2) In this Schedule as it applies in relation to a given register—
- “provider” means an individual or firm entered in that register;
 - “the registration body” means the body keeping that register.

Eligibility criteria and procedures

- 2 (1) The registration body must have in place—
- (a) criteria for being entered, and remaining, in the register, and
 - (b) procedures for entry in, and removal from, the register.
- (2) The procedures must allow for appeals to be made to a person who will determine the appeal independently of the maker of the decision appealed against.

Registration rules

- 3 (1) The registration body must secure that each provider is bound by rules determined by the body.
- (2) Those rules are referred to in this Schedule as “registration rules”.
- (3) Any changes in the body’s registration rules after its designation must be approved by the Local Audit Office.
- (4) The body must have arrangements for taking account, in framing its registration rules, of the cost to providers of complying with those rules and any other controls to which they are subject.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Professional qualifications

- 4 (1) The criteria and procedures in place under paragraph 2 must be designed to secure that—
- (a) an individual—
 - (i) may be entered in the register only if the individual meets the qualification requirement, and
 - (ii) is to be removed from the register as soon as possible after ceasing to meet that requirement;
 - (b) a firm—
 - (i) may be entered in the register only if the firm meets the qualified control requirement, and
 - (ii) is to be removed from the register before the end of the period of 3 months beginning with the day on which the firm ceases to meet that requirement.
- (2) See Part 1 of Schedule 1D for the requirements referred to in sub-paragraph (1).

Professional integrity and independence

- 5 (1) The registration rules must include rules designed to secure that—
- (a) audits under this Act are conducted properly and with integrity, and
 - (b) providers are not appointed as local auditors in circumstances in which they have an interest likely to conflict with the proper conduct of the audit.
- (2) The criteria and procedures in place under paragraph 2 must be designed to secure that a firm—
- (a) may be entered in the register only if the firm has in place adequate arrangements within sub-paragraph (3), and
 - (b) is to be removed from the register as soon as possible after ceasing to have such arrangements.
- (3) The arrangements within this sub-paragraph are arrangements to prevent a person to whom sub-paragraph (4) applies from being able to exert any influence over the way in which an audit under this Act is conducted in circumstances in which that influence would be likely to affect the independence or integrity of the audit.
- (4) This sub-paragraph applies to—
- (a) any person who is not a member of the firm, and
 - (b) any individual who is a member of the firm but does not meet the qualification requirement for the purposes of paragraph 4(1)(a).

Lead partners

- 6 (1) The registration body must secure that the register includes, for each provider that is a firm, a list of the individuals who may act as the lead partner for an audit carried out by the firm.
- (2) The registration body must have arrangements designed to secure that an individual appears in the list only if the individual—
- (a) meets the qualification requirement (see paragraph 1 of Schedule 1D),
 - (b) otherwise has the necessary competence to act as the lead partner for an audit, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) is bound by rules determined by the body (which are referred to in this Schedule as “lead partner rules”).
- (3) Any changes in the body’s lead partner rules after its designation must be approved by the Local Audit Office.
- (4) The registration body must have lead partner rules designed to secure that individuals acting as lead partners for audits under this Act maintain high standards of professional conduct.

Complaints procedures

- 7 (1) The registration body must have effective arrangements for the investigation of complaints against providers, so far as relating to their work in connection with audits under this Act.
- (2) The registration body must have effective arrangements for the investigation of complaints against itself, so far as relating to its functions as a registration body.

Meeting of claims

- 8 (1) The registration body must have in place registration rules or other arrangements designed to secure that providers take such steps as may reasonably be expected of them to secure that they are able to meet claims against them arising out of their work in connection with audits under this Act.
- (2) This may be achieved by professional indemnity insurance or other appropriate arrangements.

Monitoring and inspections

- 9 (1) The registration body must have in place—
 - (a) arrangements for monitoring compliance with its registration rules and lead partner rules,
 - (b) arrangements for the inspection of providers in connection with their work in connection with audits under this Act,
 - (c) registration rules designed to secure that providers co-operate with the monitoring and inspections, and
 - (d) lead partner rules designed to secure that individuals bound by the rules co-operate with the monitoring.
- (2) The arrangements relating to inspections must be designed to secure that each provider is inspected at least once every 6 years.
- (3) Those arrangements must include—
 - (a) provision for the results of any inspections not carried out by the registration body to be reported to the registration body, and
 - (b) in the case of an external registration body, provision for the results of any inspections not carried out by the Local Audit Office to be reported to the Office.

Enforcement

- 10 (1) The registration body must have in place—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) arrangements for the investigation of suspected breaches by providers or lead partners,
 - (b) registration rules and lead partner rules designed to secure that providers and lead partners co-operate with any investigations,
 - (c) arrangements for the imposition of sanctions in respect of breaches that are established, and
 - (d) registration rules and lead partner rules designed to secure that providers and lead partners are bound by any sanctions.
- (2) In sub-paragraph (1), “breaches” means breaches of requirements imposed by or under this Act (including by registration rules or lead partner rules).
- (3) The available sanctions must include financial penalties.
- (4) The arrangements and rules must allow for appeals to be made to a person who will determine the appeal independently of the maker of the decision appealed against.
- (5) The arrangements and rules must allow for the Local Audit Office to be able—
- (a) to determine that a particular case raises or appears to raise important issues affecting the public interest, and
 - (b) to assume enforcement responsibility in a case in which it has made such a determination.
- (6) For the purposes of sub-paragraph (5), the Office assumes enforcement responsibility if it assumes responsibility for the final decision (subject to any appeal) as to—
- (a) whether the requirement or rule in question has been breached, and
 - (b) if so, the sanction to be imposed.

Provision and publication of information

- 11 (1) The registration rules must require a provider to comply with any written request for the provision of information made by the registration body or (if different) the Local Audit Office for the purposes of its functions.
- (2) The registration rules must require a provider to comply with any general directions published from time to time by the Local Audit Office regarding the publication of information about providers.
- (3) That information may, for instance, include information regarding—
- (a) a provider’s ownership and governance,
 - (b) a provider’s internal controls with respect to the quality and independence of its audit work,
 - (c) a provider’s turnover, and
 - (d) the relevant authorities whose accounts a provider has audited under this Act.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 1D

Section 6D

PROFESSIONAL QUALIFICATIONS

PART 1

REQUIREMENTS FOR REGISTERED PROVIDERS

Qualification requirement for individuals

- 1 (1) This paragraph applies for the purposes of paragraph 4(1)(a) of [Schedule 1C](#).
- (2) An individual meets the qualification requirement if the individual—
 - (a) holds an appropriate qualification, or
 - (b) falls within paragraph 4 or 5 of this Schedule.

Qualified control requirement for firms

- 2 (1) This paragraph applies for the purposes of paragraphs 4(1)(b) and 6(2)(a) of [Schedule 1C](#).
- (2) A firm meets the qualified control requirement if—
 - (a) a majority of the members of the firm are qualified persons, and
 - (b) where the firm's affairs are managed by a board of directors, committee or other management body—
 - (i) a majority of that body are qualified persons, or
 - (ii) if the body consists of two persons only, at least one of them is a qualified person.
- (3) The following provisions apply for the purposes of sub-paragraph (2).
- (4) An individual is a qualified person if the individual—
 - (a) holds an appropriate qualification, or
 - (b) falls within paragraph 4 or 5 of this Schedule.
- (5) A firm is a qualified person if the firm—
 - (a) meets the criteria to become a registered local audit provider, or
 - (b) is eligible for appointment as a statutory auditor under Part 42 of the Companies Act 2006.
- (6) A majority of the members of a firm means—
 - (a) where under the firm's constitution matters are decided upon by the exercise of voting rights, members holding a majority of the rights to vote on all, or substantially all, matters;
 - (b) in any other case, members having such rights under the constitution of the firm as enable them to direct its overall policy or alter its constitution.
- (7) A majority of the members of the management body of a firm means—
 - (a) where matters are decided at meetings of the management body by the exercise of voting rights, members holding a majority of the rights to vote on all, or substantially all, matters at such meetings;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) in any other case, members having such rights under the constitution of the firm as enable them to direct its overall policy or alter its constitution.
- (8) Paragraphs 5 to 11 of Schedule 7 to the Companies Act 2006 (rights to be taken into account and attribution of rights) apply for the purposes of sub-paragraphs (6) and (7) as they apply for the purposes of section 1162 of that Act.

“Appropriate qualification”

- 3 (1) The Secretary of State may by regulations provide for a qualification to be an appropriate qualification for the purposes of paragraphs 1 and 2 if—
 - (a) it is a professional qualification in accountancy,
 - (b) it is obtained from a body established in the United Kingdom (whether a body corporate or an unincorporated association), and
 - (c) it meets, or the Secretary of State thinks that it meets, specified requirements.
- (2) The regulations may, in particular, provide for a qualification to be an appropriate qualification if it is recognised in accordance with the regulations.
- (3) Regulations under this paragraph that contain provision under sub-paragraph (2) may in particular—
 - (a) provide for the making (by the Secretary or State or otherwise) of an order (a “recognition order”) recognising a qualification;
 - (b) make provision about applications for a recognition order;
 - (c) provide for the giving of directions or imposition of requirements in connection with such applications;
 - (d) make provision about the circumstances in which the making of a recognition order may or must be refused;
 - (e) make provision about the steps to be taken on making or refusing to make a recognition order;
 - (f) provide for a recognition order to be revoked by a further order (a “revocation order”);
 - (g) make provision about the circumstances in which a revocation order may or must be made;
 - (h) make provision about the date on which a revocation order may or must take effect;
 - (i) provide for a revocation order to contain transitional provision;
 - (j) make provision about the steps to be taken by the person making a revocation order before or on making it.
- (4) The requirements that may be specified for a qualification to be an appropriate qualification or to be the subject of a recognition order include, in particular, requirements as to—
 - (a) the persons to whom the qualification is open;
 - (b) the course of instruction undertaken by persons to whom the qualification is awarded;
 - (c) the professional experience of such persons;
 - (d) the examinations passed by such persons;
 - (e) the practical training undertaken by such persons;

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (f) the rules and arrangements of the body offering the qualification for ensuring or monitoring compliance with other specified requirements.
- (5) Regulations under this paragraph may in particular—
 - (a) provide for exceptions to a specified requirement;
 - (b) confer power to give or withhold recognition or approval for the purposes of a specified requirement.
- (6) In this paragraph, “specified” means specified in regulations under this paragraph.

Cases in which an individual need not hold appropriate qualification: domestic cases

- 4 (1) An individual falls within this paragraph if any of the following sub-paragraphs applies in respect of the individual.
- (2) This sub-paragraph applies where the individual holds an appropriate qualification for the purposes of Chapter 2 of Part 42 of the Companies Act 2006 (eligibility of individuals and firms to act as statutory auditors) (see section 1219 of that Act).
- (3) This sub-paragraph applies where, immediately before 16 December 2014, the individual was qualified for appointment as an auditor under section 3 of the Audit Commission Act 1998 by virtue of the individual’s membership of a body listed in subsection (7) of that section.
- (4) This sub-paragraph applies where—
 - (a) before 16 December 2014, the individual began a course of study or practical training leading to a professional qualification in accountancy offered by a body listed in section 3(7) of the Audit Commission Act 1998,
 - (b) the person would have been qualified for appointment as an auditor under section 3 of that Act by virtue of subsection (5)(b) of that section if that qualification had been obtained before that date, and
 - (c) the person obtained that qualification within the period of 6 years beginning with that date.

Cases in which an individual need not hold appropriate qualification: overseas cases

- 5 (1) An individual falls within this paragraph if any of the following sub-paragraphs applies in respect of the individual.
- (2) This sub-paragraph applies where the individual—
 - (a) is eligible to conduct audits of the accounts of bodies corporate incorporated or formed under the law of a third country in accordance with the law of that country, and
 - (b) holds a professional qualification which covers all the subjects that—
 - (i) are covered by an appropriate qualification, and
 - (ii) are subjects of which knowledge is essential for the pursuit of the profession of local auditor.
- (3) This sub-paragraph applies where the individual is a specified state auditor who—
 - (a) holds professional qualifications obtained in a specified state that are comparable to an appropriate qualification, and
 - (b) has met a requirement to take an aptitude test or to complete an adaptation period, or to undertake both, imposed on the individual in accordance with

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Part 2 of the principal Recognition Regulations, if such a requirement is so imposed.

- (4) This sub-paragraph applies where the individual is an EEA auditor who, on or before 31 December 2020, was eligible for appointment as a local auditor by virtue of paragraph 6(1)(b) of Schedule 10 to the Companies Act 2006 as substituted by paragraph 28(3) of Schedule 5 to this Act.
- (5) This sub-paragraph applies where the individual has been authorised to act as a local auditor pursuant to the European Communities (Recognition of Professional Qualifications) Regulations 2007 ([S.I. 2007/2781](#)), and complies with the requirements of those Regulations that apply to a person acting as a local auditor.
- (6) In this paragraph—
 - “EEA auditor” has the meaning given by paragraph 20A(1) of Schedule 10 to the Companies Act 2006;
 - “the principal Recognition Regulations” means the Recognition of Professional Qualifications and Implementation of International Recognition Agreements (Amendment) Regulations 2023 ([S.I. 2023/1286](#));
 - “specified state” means one of the states specified in Schedule 1 to the principal Recognition Regulations;
 - “specified state auditor” means an individual who is eligible to conduct audits of the accounts of bodies corporate that are incorporated or formed under the law of a specified state in accordance with the law of that state;
 - “third country” means a country or territory outside the United Kingdom.

PART 2

RECOGNISED QUALIFYING BODIES

“Recognised qualifying body”

- 6 In this Act, “recognised qualifying body” means a body that offers a qualification that is an appropriate qualification by virtue of regulations under paragraph 3(1) of [Schedule 1C](#).

Fees

- 7 The Secretary of State may by regulations provide for the payment of fees by a body in respect of its—
 - (a) making an application that would result in its becoming a recognised qualifying body, or
 - (b) becoming such a body further to an application made by it, or
 - (c) remaining such a body, having become so further to an application made by it.

Directions to secure compliance with international obligations

- 8 (1) If it appears to the Secretary of State—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) that any action proposed to be taken by a recognised qualifying body would be incompatible with assimilated obligations or any other international obligations of the United Kingdom, or
 - (b) that any action which a recognised qualifying body has power to take is required for the purpose of implementing any such obligations,the Secretary of State may direct the body not to take or, as the case may be, to take the action in question.
- (2) A direction under this paragraph may include such supplementary or incidental requirements as the Secretary of State thinks necessary or expedient.
- (3) A direction under this paragraph is enforceable by injunction by the High Court on the application of the Secretary of State.

Delegation of functions

- 9 (1) The Secretary of State may by regulations—
- (a) provide for the Secretary of State's functions under paragraph 7 or 8 to be exercisable, concurrently with the Secretary of State, by another person designated in the regulations;
 - (b) make the designated person's ability to exercise the functions subject to exceptions or reservations;
 - (c) confer on the designated person such other functions supplementary or incidental to those under this paragraph as appear to the Secretary of State to be appropriate;
 - (d) make provision about the application of the Freedom of Information Act 2000 to the designated person.
- (2) Regulations under this paragraph do not have the effect that—
- (a) the designated person is to be regarded as acting on behalf of the Crown, or
 - (b) that its members, officers or employees are to be regarded as Crown servants.
- (3) Where regulations under this paragraph apply to the making of regulations under paragraph 7—
- (a) section 43(1) and (5) does not apply to regulations made by the designated person;
 - (b) the designated person may not make regulations without the approval of the Secretary of State;
 - (c) the Secretary of State may, after consultation with the body, by regulations vary or revoke any regulations made by the designated person;
 - (d) any regulations made by the designated person must be published immediately after they are made;
 - (e) a person is not to be taken to have contravened such regulations if the person shows that at the time of the alleged contravention the regulations had not been published;
 - (f) the production of a printed copy of regulations purporting to be made by the designated person on which is endorsed a certificate signed by or on behalf of that person and stating—
 - (i) that the regulations were made by the person,
 - (ii) that the copy is a true copy of the regulations, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (iii) that on a specified date the regulations were published, is evidence of the facts stated in the certificate;
- (g) a certificate purporting to be signed as mentioned in paragraph (f) is to be deemed to have been duly signed unless the contrary is shown;
- (h) any person wishing in any legal proceedings to cite regulations made by the designated person may require that person to cause a copy of them to be endorsed with a certificate as mentioned in paragraph (f).”

SCHEDULE 36

Section 99

LOCAL AUDIT: MINOR AND CONSEQUENTIAL AMENDMENTS

PART 1

AMENDMENTS OF THE LOCAL AUDIT AND ACCOUNTABILITY ACT 2014

PROSPECTIVE	
1	The Local Audit and Accountability Act 2014 is amended as follows.
Commencement Information I566 Sch. 36 para. 1 not in force at Royal Assent, see s. 108(6)	
PROSPECTIVE	
2	In the heading of Part 3, at the end insert “: health service bodies”.
Commencement Information I567 Sch. 36 para. 2 not in force at Royal Assent, see s. 108(6)	
3	(1) Section 7 (appointment of local auditor) is amended as follows. (2) In subsection (1), for “relevant authority” substitute “health service body”. (3) In subsection (2)— (a) in the words before paragraph (a), for “relevant authority” substitute “health service body”; (b) in paragraph (b), for “authority” substitute “body”. (4) In subsection (3), for “relevant authority” substitute “health service body”. (5) For subsection (5) substitute— “(5) A relevant health service body may only appoint as its local auditor— (a) the Local Audit Office, or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(b) a registered local audit provider.

(5A) The body must not appoint a person whom it has reason to think will be unable to act because of section 32B (independence requirement)."

(6) In subsection (6), in the words before paragraph (a), for "relevant authority" substitute "health service body".

(7) In subsection (7), for "under subsection (6)(b) or (c)" substitute "in accordance with subsection (6)".

(8) For subsection (8) substitute—

"(8) The Secretary of State may by regulations make provision about the appointment of a local auditor to audit the accounts of a health service body which is specified, or of a description specified, in the regulations.

(9) Regulations under subsection (8) may, in particular—

(a) make further provision about the operation of this Act or any provision made under it in relation to a health service body to which the regulations apply;

(b) provide for any provision of or made under this Act not to apply, or to apply with modifications, in relation to a health service body to which the regulations apply."

Commencement Information

I568 Sch. 36 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

- 4 (1) Section 8 (procedure for appointment) is amended as follows.
- (2) In subsection (1), for "relevant authority" substitute "health service body".
- (3) In subsection (2)—
- (a) in the words before paragraph (a), for "relevant authority" substitute "health service body";
- (b) in paragraph (c), for "period" substitute "financial year or years".
- (4) In subsection (3)(a), for "relevant authority" substitute "health service body".
- (5) In subsection (4)—
- (a) in the words before paragraph (a), for "relevant authority" substitute "health service body";
- (b) omit paragraph (a).
- (6) In subsection (5), for "relevant authority" substitute "health service body".
- (7) In subsection (6), for the words from "Schedule 3" to the end substitute "regulations under section 7(8)".

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I569 Sch. 36 para. 4 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 5 In section 9 (auditor panels)—
- (a) in subsection (1), for “relevant authority” substitute “health service body”;
 - (b) omit subsection (2).

Commencement Information

I570 Sch. 36 para. 5 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 6 (1) Section 10 (functions of auditor panels) is amended as follows.
- (2) In subsection (1)—
- (a) for “relevant authority’s” substitute “health service body’s”;
 - (b) for “authority” substitute “body”.
- (3) Omit subsections (2) and (3).
- (4) In subsection (4)—
- (a) for “relevant authority’s” substitute “health service body’s”;
 - (b) for “authority” substitute “body”.
- (5) In subsection (5)(a), for “relevant authority” substitute “health service body”.
- (6) In subsection (6)—
- (a) for “relevant authority’s” substitute “health service body’s”;
 - (b) for “authority”, in both places it occurs, substitute “body”.
- (7) In subsection (7), for “authority” substitute “health service body”.
- (8) In subsection (8)—
- (a) in paragraph (b)—
 - (i) for “relevant authority’s” substitute “health service body’s”;
 - (ii) for “authority’s”, in the remaining place it occurs, substitute “body’s”;
 - (b) in paragraph (c), for “relevant authority” substitute “health service body”.
- (9) In subsection (9), for “relevant authority” substitute “health service body”.
- (10) In subsection (10)—
- (a) in the words before paragraph (a), for “relevant authority” substitute “health service body”;
 - (b) omit paragraph (a).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(11) In subsection (11), for “relevant authority” substitute “health service body”.

(12) In subsection (13), for “relevant authority” substitute “health service body”.

Commencement Information

I571 Sch. 36 para. 6 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

7 Omit section 11 (relationship of relevant authority other than health service body with auditor panel).

Commencement Information

I572 Sch. 36 para. 7 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

8 Omit section 12 (failure to appoint local auditor by relevant authority other than health service body).

Commencement Information

I573 Sch. 36 para. 8 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

9 (1) Section 14 (limitation of local auditor’s liability) is amended as follows.
(2) In subsection (1)—
 (a) for “relevant authority” substitute “health service body”;
 (b) for “authority”, in the remaining place it occurs, substitute “body”.
(3) In subsection (6), for “relevant authority” substitute “health service body”.
(4) After subsection (7) insert—
 “(8) Before entering into a liability limitation agreement, a health service body must consult and take into account the advice of its auditor panel.”

Commencement Information

I574 Sch. 36 para. 9 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

10 Omit section 15 (further provision about limitation of liability).

Commencement Information

I575 Sch. 36 para. 10 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 11 (1) Section 16 (resignation and removal of local auditor) is amended as follows.
- (2) In subsection (1), in paragraphs (a) and (b), for “relevant authority” substitute “health service body”.
- (3) In subsection (2)—
- (a) in paragraph (c), for “relevant authority” substitute “health service body”;
 - (b) in paragraph (d)—
 - (i) for “authority’s” substitute “body’s”;
 - (ii) for “or of a recognised supervisory body” substitute “, the Local Audit Office or an external registration body”;
 - (c) in paragraph (e), for “relevant authority” substitute “health service body”.
- (4) In subsection (3)—
- (a) in paragraph (d)—
 - (i) for “relevant authority’s” substitute “health service body’s”;
 - (ii) for “or of a recognised supervisory body” substitute “, the Local Audit Office or an external registration body”;
 - (b) in paragraph (e), for “relevant authority” substitute “health service body”.
- (5) In subsection (4), leave out the words from “, in” to “body.”.
- (6) In subsection (5)—
- (a) in paragraphs (a) and (b), for “Secretary of State” substitute “Local Audit Office”;
 - (b) in paragraph (a), for “relevant authority” substitute “health service body”.
- (7) In subsection (7)—
- (a) for “a recognised supervisory body” substitute “the Local Audit Office or an external registration body”;
 - (b) for “body by a relevant authority” substitute “Office or body by a health service body”.

Commencement Information

I576 Sch. 36 para. 11 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

- 12 (1) Section 17 (appointment of auditor other than by audited body) is amended as follows.
- (2) In subsection (1), for “relevant authority” substitute “health service body”.
- (3) In subsection (3)—
- (a) in paragraph (a)—
- (i) for “relevant authorities” substitute “health service bodies”;
- (ii) for “an authority” substitute “a body”;
- (b) in paragraph (c), for “relevant authorities” substitute “health service bodies”.
- (4) In subsection (6), for “relevant authority” substitute “health service body”.
- (5) In subsection (7), for “authority” substitute “health service body”.
- (6) In subsection (8)(a), for “relevant authority” substitute “health service body”.
- (7) In subsection (9), for “relevant authority” substitute “health service body”.

Commencement Information

I577 Sch. 36 para. 12 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 13 Omit Part 4 (eligibility and regulation of local auditors).

Commencement Information

I578 Sch. 36 para. 13 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 14 In section 23(3) (recovery of expenses in connection with obstruction offences), for the words from “from” to the end substitute “under section [32A](#), so far as they are not recovered by any other means.”

Commencement Information

I579 Sch. 36 para. 14 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 15 In section 26(3) (recovery of costs in connection with questioning by elector), for the words from “from” to the end substitute “under section [32A](#).”

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I580 Sch. 36 para. 15 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 16 In section 27(7) (recovery of costs in connection with objection by elector), for “from the relevant authority” substitute “under section [32A](#)”.

Commencement Information

I581 Sch. 36 para. 16 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 17 In section 28(7) (recovery of costs in considering application for declaration of unlawfulness), for “from the relevant authority” substitute “under section [32A](#)”.

Commencement Information

I582 Sch. 36 para. 17 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 18 In section 31(6) (recovery of costs in considering application for judicial review), for “from the relevant authority” substitute “under section [32A](#)”.

Commencement Information

I583 Sch. 36 para. 18 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 19 In section 32(3) (consultation about proposed accounts and audit regulations)—
- (a) for paragraph (a) substitute—
 - “(a) the Local Audit Office,”;
 - (b) for paragraph (c) substitute—
 - “(c) any external registration body.”

Commencement Information

I584 Sch. 36 para. 19 not in force at Royal Assent, see [s. 108\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

PROSPECTIVE

20 After section 32 insert—

“Recoverable sums

32A Recovery of costs and expenses by local auditor

- (1) Subsection (2) applies in relation to the audit under this Act of the accounts of a relevant authority other than a health service body.
- (2) If the Local Audit Office is satisfied that, by virtue of any provision of this Part, costs or expenses are recoverable by the local auditor under this section, the Office must pay the amount of those costs or expenses to the local auditor.
- (3) Before being so satisfied, the Office must invite representations from the relevant authority concerned.
- (4) Subsection (5) applies in relation to the audit under this Act of the accounts of a health service body.
- (5) If, by virtue of any provision of this Part, costs or expenses are recoverable by the local auditor under this section, the local auditor may recover the amount of those costs or expenses from the health service body as a debt.”

Commencement Information

I585 Sch. 36 para. 20 not in force at Royal Assent, see [s. 108\(6\)](#)

21 After Part 5 insert—

“PART 5A

LOCAL AUDIT: FURTHER PROVISION

Independence of auditors

32B Independence requirement

- (1) A person (“P”) may not act as a local auditor if any of subsections (2), (4), (5) or (6) applies in relation to P and the relevant authority whose accounts are to be audited.
- (2) This subsection applies if—
 - (a) P is a member or officer of the relevant authority,
 - (b) where the relevant authority is a corporation sole, P is the holder of that office,
 - (c) P is a partner or employee of a person within paragraph (a) or (b), or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (d) P is a partnership of which a person within paragraph (a) or (b) is a partner.
- (3) In relation to a relevant authority that is an integrated care board, subsection (2)(a) has effect as if “or officer” were omitted.
- (4) This subsection applies if—
 - (a) the relevant authority is an NHS trust, and
 - (b) P is a director of that NHS trust.
- (5) This subsection applies if P is—
 - (a) a person elected or appointed—
 - (i) as an entity connected with the relevant authority,
 - (ii) to such an entity, or
 - (iii) to an office of such an entity,
 - (b) an employee of such an entity,
 - (c) a partner or employee of a person within paragraph (a) or (b), or
 - (d) a partnership of which a person within paragraph (a) or (b) is a partner.
- (6) This subsection applies if there exists a connection of a prescribed description between P and the relevant authority.
- (7) In subsection (6), “prescribed” means prescribed by regulations made by the Secretary of State.
- (8) A description of connection prescribed under subsection (6) may be direct or indirect (and so may involve, for instance, chains of connection leading from the relevant authority to P by way of one or more interposed persons).

32C Lack of independence arising after appointment

- (1) Subsection (2) applies if, at any time during the term of office of a local auditor, the auditor becomes prohibited from acting by section 32B.
- (2) The auditor must immediately—
 - (a) resign from office (with immediate effect), and
 - (b) give notice in writing to the relevant authority concerned that the auditor has resigned by reason of lack of independence.

Second audits

32D Second audits where first auditor ineligible

- (1) This section applies where a person appointed as a local auditor of the accounts of a relevant authority (“the first auditor”) was not an eligible person for any part of the period during which the audit was conducted.
- (2) The Local Audit Office may direct the relevant authority to retain an eligible person—
 - (a) to conduct a second audit of the accounts in question, or
 - (b) to review the first audit and to report (giving reasons) on whether a second audit of those accounts is needed.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) If a report under subsection (2)(b) states that a second audit is needed, the relevant authority must take such steps as are necessary for the carrying out of that audit.
- (4) If the first auditor is or was on a local audit register kept by an external registration body—
 - (a) the Local Audit Office must send to that body a copy of any direction under subsection (2), and
 - (b) the relevant authority must send to that body a copy of any report under subsection (2)(b).
- (5) A direction under subsection (2) may specify when the authority must comply with—
 - (a) the requirements of the direction, or
 - (b) any requirement of subsection (3) or (4)(b).
- (6) A person appointed under this section to conduct a second audit of the accounts of a parish meeting, or to review and report on the first audit of such accounts, must be appointed by the parish meeting itself (and not by its chairman on behalf of the parish meeting).
- (7) Where a second audit is carried out under this section, any statutory or other provision applying in relation to the first audit applies also, so far as practicable, in relation to the second audit.
- (8) If the first auditor accepted appointment, or acted as the local auditor, with knowledge of not being an eligible person, the relevant authority may recover from the first auditor any costs incurred by it in complying with the requirements of this section.
- (9) For the purposes of this section, a person is “eligible” if the person—
 - (a) is a registered local audit provider or the Local Audit Office, and
 - (b) is not prohibited by section 32B from acting as the local auditor of the relevant authority concerned.

Partnerships

32E Effect of appointing a partnership

- (1) This section applies where a partnership constituted under the law of—
 - (a) England and Wales,
 - (b) Northern Ireland, or
 - (c) any other country or territory in which a partnership is not a legal person,is appointed as a local auditor under section 6G or 7.
- (2) Unless a contrary intention appears, the appointment is an appointment of the partnership as such and not of the partners.
- (3) Where the partnership ceases, the appointment is to be treated as extending to—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) any appropriate partnership which succeeds to the practice of that partnership, or
 - (b) any other appropriate person who succeeds to that practice having previously carried it on in partnership.
- (4) For the purposes of subsection (3)—
 - (a) a partnership is to be regarded as succeeding to the practice of another partnership only if the members of the successor partnership are substantially the same as those of the former partnership, and
 - (b) a partnership or other person is to be regarded as succeeding to the practice of a partnership only if the partnership or person succeeds to the whole or substantially the whole of the business of the former partnership.
- (5) Where the partnership ceases and the appointment is not treated under subsection (3) as extending to any partnership or other person, the appointment may with the requisite consent be treated as extending to an appropriate partnership, or other appropriate person, that succeeds to—
 - (a) the business of the former partnership, or
 - (b) such part of it as is agreed by the appointing authority is to be treated as comprising the appointment.
- (6) The requisite consent is that of—
 - (a) the Local Audit Office, where the relevant authority to which the appointment relates is not a health service body, or
 - (b) where that authority is a health service body, the body.
- (7) For the purposes of this section, a partnership or other person is “appropriate” if the partnership or person—
 - (a) is a registered local audit provider, and
 - (b) is not prohibited by section 32B from acting as the local auditor of the relevant authority concerned.

Miscellaneous powers and duties

32F Power of Local Audit Office to obtain information from relevant authorities

- (1) A relevant authority must comply with any written request by the Local Audit Office to be provided with information.
- (2) Such a request may relate to information as it exists in the future (for instance, information about a future occurrence once it has occurred or about a future period once it has elapsed).
- (3) The Office may make such a request only if the Office reasonably requires the information concerned in connection with the performance of its functions.

32G Inspection of accounts by persons exercising regulatory functions

- (1) This section applies to a person who, further to arrangements made for the purposes of paragraph 9 or 10 of [Schedule 1C](#), carries out an inspection or

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

investigation concerning the audit under this Act of the accounts of a relevant authority.

- (2) The person may require the relevant authority to make available for inspection—
- (a) the accounts concerned, and
 - (b) the other documents relating to the authority that might reasonably be required by a local auditor for the purposes of auditing its accounts.

32H Duty of Local Audit Office to publish summaries of inspections

The Local Audit Office must, at least once in every calendar year, publish a report containing a summary of the results of the inspections of registered local audit providers that have been carried out further to arrangements made for the purposes of paragraph 9 of [Schedule 1C](#).

Offences of deception etc

32I False or misleading information

- (1) It is an offence for a person knowingly or recklessly to provide information that is false, misleading or deceptive in a material way—
- (a) for the purposes of, or in connection with, an application under the local audit provisions, or
 - (b) in purported compliance with any requirement having effect under those provisions.
- (2) In subsection (1), “the local audit provisions” means—
- (a) Parts [2A](#) to [5A](#) of this Act (including any regulations under any of those Parts),
 - (b) an agreement under section [6B\(5\)](#), and
 - (c) registration rules within the meaning of [paragraph 3](#) of [Schedule 1C](#).
- (3) A person who commits an offence under this section is liable—
- (a) on summary conviction, to imprisonment for a term not exceeding the general limit in a magistrates’ court or a fine (or both);
 - (b) on conviction on indictment, to imprisonment for a term not exceeding 2 years or a fine (or both).

32J Wrongful holding out

- (1) It is an offence for a person who is not a registered local audit provider to—
- (a) describe themselves as a registered local audit provider, or
 - (b) hold themselves out so as to indicate, or be reasonably understood to indicate, that they are a registered local audit provider.
- (2) It is an offence for a person who is not an external registration body to—
- (a) describe themselves as an external registration body, or
 - (b) hold themselves out so as to indicate, or be reasonably understood to indicate, that they are an external registration body.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) It is an offence for a person who is not a recognised qualifying body to—
 - (a) describe themselves as a recognised qualifying body, or
 - (b) hold themselves out so as to indicate, or be reasonably understood to indicate, that they are a recognised qualifying body.
- (4) A person who commits an offence under this section is liable on summary conviction to imprisonment for a term not exceeding the maximum term for summary offences or a fine (or both).
- (5) In subsection (4), “the maximum term for summary offences” means—
 - (a) if the offence is committed before the time when section 281(5) of the Criminal Justice Act 2003 comes into force, six months;
 - (b) if the offence is committed after that time, 51 weeks.”

Commencement Information

I586 Sch. 36 para. 21 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

- 22 In section 43(4) (orders and regulations subject to affirmative procedure)—
- (a) in paragraphs (d) and (e), for “smaller” substitute “category 2”;
 - (b) after paragraph (f) insert—
 - “(fa) regulations under section 7(8) (power to make provision about appointment arrangements for health service bodies),”;
 - (c) after paragraph (h) insert—
 - “(ha) regulations under section 33A(4) (power to apply enactments to certain audit committees),”;
 - (d) after paragraph (i) insert—
 - “(ia) regulations under section 43A(3) (power to amend definition of “connected entity”),”;
 - (e) after paragraph (j) insert—
 - “(ja) regulations under paragraph 9(1) of [Schedule 1D](#) (delegation of powers in respect of recognised qualifying bodies),”;
 - (f) omit paragraph (k);
 - (g) in paragraph (l), for “that Schedule” substitute “Schedule 4”;
 - (h) omit paragraph (m) (but not the “and” at the end).

Commencement Information

I587 Sch. 36 para. 22 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

- 23 After section 43 insert—

“43A Connected entities

- (1) For the purposes of this Act, an entity (“E”) is connected with a relevant authority at any time if E is an entity other than the relevant authority and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

the relevant authority considers that, in accordance with proper practices in force at that time—

- (a) the financial transactions, reserves, assets and liabilities of E are to be consolidated into the relevant authority’s statement of accounts for the financial year in which that time falls,
 - (b) the relevant authority’s share of the financial transactions, reserves, assets and liabilities of E is to be consolidated into the relevant authority’s statement of accounts for that financial year, or
 - (c) the relevant authority’s share of the net assets or net liabilities of E, and of the profit or loss of E, are to be brought into the relevant authority’s statement of accounts for that financial year.
- (2) In subsection (1), “entity” means any entity, whether or not a legal person.
- (3) The Secretary of State may by regulations amend subsection (1) or (2).
- (4) In subsection (1) as it applies in relation to a health service body, the reference to the relevant authority’s statement of accounts is to be read as a reference to the body’s accounts.”

Commencement Information

I588 Sch. 36 para. 23 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

PROSPECTIVE

- 24 (1) Section 44 (interpretation) is amended as follows.
- (2) In subsection (1)—
- (a) at the appropriate places insert—
 - ““advisory notice” has the meaning given by paragraph 8(1) of Schedule 8;”;
 - ““external registration body” means a body designated under section [6A\(2\)\(b\)](#);”;
 - ““firm” means any entity (whether or not a legal person) which is not an individual, including—
 - (a) a body corporate,
 - (b) a corporation sole, and
 - (c) a partnership or other unincorporated association,
 but does not include the Local Audit Office;”;
 - ““local audit register” has the meaning given by section [6A\(4\)](#);”;
 - ““registered local audit provider” has the meaning given by section [6A\(4\)](#);”;
 - (b) for the definition of “recognised qualifying body” substitute—
 - ““recognised qualifying body” has the meaning given by paragraph 6 of [Schedule 1D](#);”;
 - (c) omit the definition of “recognised supervisory body”.
- (3) Omit subsection (3).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(4) In subsection (4), for “paragraph 8 of Schedule 4” substitute “section [43A](#)”.

Commencement Information

I589 Sch. 36 para. 24 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

25 Omit Schedule 3 (further provision about appointment of local auditors).

Commencement Information

I590 Sch. 36 para. 25 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

26 (1) Schedule 4 (auditor panels) is amended as follows.

(2) In paragraph 1—

(a) in sub-paragraph (1)—

(i) in the words before paragraph (a), for “relevant authority (“R”)” substitute “health service body (“H”)”;

(ii) in paragraphs (a), (b) and (c), for “R” substitute “H”;

(iii) in paragraph (b), for “relevant authorities” substitute “health service bodies”;

(b) in sub-paragraph (2)—

(i) in the words before paragraph (a), and in paragraph (a), for “R” substitute “H”;

(ii) in paragraphs (a) and (b), for “R’s” substitute “H’s”;

(c) in sub-paragraph (3)—

(i) in paragraph (a), for “relevant authority other than R” substitute “health service body other than H”;

(ii) in paragraph (b), for “R” substitute “H”;

(iii) in paragraphs (b) and (c), “for “R’s” substitute “H’s”;

(iv) in paragraph (d), for “R” substitute “H”;

(d) in sub-paragraph (4), for “R”, in both places it occurs, substitute “H”;

(e) omit sub-paragraphs (5) and (6).

(3) Omit paragraph 2 and the preceding italic heading.

(4) Omit paragraph 3 and the preceding italic heading.

(5) In paragraph 4—

(a) in sub-paragraph (2)—

(i) in the words before paragraph (a), omit the words from “further” to “and”;

(ii) after paragraph (b) insert—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- “(ba) whether any of the members of an auditor panel must be independent and, if so, the proportion which must be independent;
- (bb) whether the chair of an auditor panel must be independent;
- (bc) provision about the meaning of “independent” for the purposes of paragraphs (ba) and (bb);”;
- (b) in sub-paragraph (3)—
 - (i) after “matters” insert “, except so far as relating to independence,”;
 - (ii) for “relevant authority’s” substitute “health service body’s”;
 - (iii) for “authority” substitute “body”.
- (6) Omit paragraph 6 and the preceding italic heading.
- (7) In paragraph 7, for “relevant authority” substitute “health service body”.
- (8) Omit paragraph 8 and the preceding italic heading.

Commencement Information

I591 Sch. 36 para. 26 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 27 Omit Schedule 5 (eligibility and regulation of local auditors).

Commencement Information

I592 Sch. 36 para. 27 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 28 (1) Schedule 6 (codes of audit practice and guidance) is amended as follows.
- (2) In paragraph 2—
- (a) in sub-paragraph (1), for “Comptroller and Auditor General” substitute “Local Audit Office”;
 - (b) in sub-paragraphs (2)(a) and (b) and (3), for “Comptroller and Auditor General” substitute “Office”.
- (3) In paragraph 3, for “Comptroller and Auditor General” substitute “Local Audit Office”.
- (4) In paragraph 4—
- (a) in sub-paragraph (1), for “Comptroller and Auditor General” substitute “Local Audit Office”;
 - (b) in sub-paragraphs (3), (4), (5) and (6), for “Comptroller and Auditor General” substitute “Office”.
- (5) In paragraph 5—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in sub-paragraph (1), for “Comptroller and Auditor General” substitute “Local Audit Office”;
 - (b) in sub-paragraphs (2), (5), (6) and (7), for “Comptroller and Auditor General”, in each place it occurs, substitute “Office”.
- (6) In paragraph 6(1), for “Comptroller and Auditor General” substitute “Local Audit Office”.
- (7) In paragraph 7, for “Comptroller and Auditor General”—
- (a) in the first place it occurs, substitute “Local Audit Office”;
 - (b) in the second place it occurs, substitute “Office”.
- (8) Omit paragraph 8 and the preceding italic heading.
- (9) In paragraph 9(1), for “Comptroller and Auditor General” substitute “Local Audit Office”.
- (10) In paragraph 10—
- (a) in sub-paragraph (1), for “Comptroller and Auditor General” substitute “Local Audit Office”;
 - (b) in sub-paragraph (4), for “Comptroller and Auditor General”, in each place it occurs, substitute “Office”.

Commencement Information

I593 Sch. 36 para. 28 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 29 (1) Schedule 7 (reports and recommendations) is amended as follows.
- (2) In paragraph 1, for sub-paragraphs (5) and (6) substitute—
- “(5) A local auditor may recover under section [32A](#) the reasonable costs of—
- (a) determining whether to make a public interest report (regardless of whether it is in fact made), and
 - (b) making a public interest report.”
- (3) In paragraph 2—
- (a) in sub-paragraph (3), after paragraph (a) insert—
“(aa) to the Local Audit Office,”;
 - (b) for sub-paragraphs (4) and (5) substitute—
“(4) A local auditor may recover under section [32A](#) the reasonable costs of—
 - (a) determining whether to make a recommendation (regardless of whether it is in fact made), and
 - (b) making a recommendation.”
- (4) In paragraph 3(2), after paragraph (a) insert—
“(aa) to the Local Audit Office,”.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I594 Sch. 36 para. 29 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 30 In Schedule 8 (advisory notices), in paragraph 3, for sub-paragraphs (5) and (6) substitute—
- “(5) A local auditor may recover under section [32A](#) the reasonable costs of—
- (a) determining whether to issue an advisory notice (regardless of whether it is in fact made), and
 - (b) issuing an advisory notice.”

Commencement Information

I595 Sch. 36 para. 30 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 31 In Schedule 11 (disclosure of information), in paragraph 1, for sub-paragraph (3) substitute—
- “(3) Those authorities are—
- (a) the Local Audit Office,
 - (b) an external registration body, or
 - (c) any person given functions by rules or arrangements made for the purposes of [Schedule 1C](#).”

Commencement Information

I596 Sch. 36 para. 31 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 32 In Schedule 12 (related amendments), omit paragraph 78 and the preceding italic heading.

Commencement Information

I597 Sch. 36 para. 32 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

- 33 Omit Schedule 13 (transitional provision concerning NHS bodies).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.
Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

Commencement Information

I598 Sch. 36 para. 33 not in force at Royal Assent, see [s. 108\(6\)](#)

PROSPECTIVE

PART 2

OTHER AMENDMENTS

Local Government, Planning and Land Act 1980 (c. 65)

- 34 In section 2(1A) of the Local Government, Planning and Land Act 1980 (application of duty to publish information to smaller authorities), in paragraph (c), for “smaller” substitute “category 2”.

Commencement Information

I599 Sch. 36 para. 34 not in force at Royal Assent, see [s. 108\(6\)](#)

Companies Act 2006 (c. 46)

- 35 In Part 1 of Schedule 11A to the Companies Act 2006 (persons to whom audit-related information may be disclosed free from the restriction in section 1224A of that Act), for paragraphs 17A to 17D substitute—
- “17E The Local Audit Office.
- 17F An external registration body within the meaning of the Local Audit and Accountability Act 2014.
- 17G Any person given functions by rules or arrangements made for the purposes of [Schedule 1C](#) of that Act (eligibility and regulation of registered local audit providers).”

Commencement Information

I600 Sch. 36 para. 35 not in force at Royal Assent, see [s. 108\(6\)](#)

Local Democracy, Economic Development and Construction Act 2009 (c. 20)

- 36 (1) LDEDCA 2009 is amended as follows.
- (2) In section 104(9) (which introduces [Schedule 5A](#)), omit “and audit committees”.
- (3) In section 104(9A) (which is inserted by [Schedule 5](#) to this Act and introduces [Schedule 5AA](#) to LDEDCA 2009), omit “and audit committees”.
- (4) In [Schedule 5A](#) (overview and scrutiny committees and audit committees of combined authorities)—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) in the heading, omit “and audit committees”;
 - (b) omit paragraph 4 and the preceding italic heading.
- (5) In Schedule 5AA (inserted by [Schedule 5](#) to this Act)—
- (a) in the heading, omit “and audit committee”;
 - (b) omit paragraph 9 and the preceding italic heading.

Commencement Information

I601 Sch. 36 para. 36 not in force at Royal Assent, see [s. 108\(6\)](#)

Levelling-up and Regeneration Act 2023 (c. 55)

- 37 (1) LURA 2023 is amended as follows.
- (2) In section 15(1) (which introduces Schedule 1), omit “and audit committees”.
- (3) In section 15(1A) (which is inserted by [Schedule 4](#) to this Act and introduces [Schedule 1A](#) to LURA 2023), omit “and audit committees”.
- (4) In section 70 (which amends Schedule 5A to LDEDCA 2009), omit subsection (1)(b).
- (5) In Schedule 1 (overview and scrutiny committees and audit committees of combined county authorities)—
- (a) in the heading, omit “and audit committee”;
 - (b) omit paragraph 4 and the preceding italic heading.
- (6) In [Schedule 1A](#) (inserted by [Schedule 4](#) to this Act)—
- (a) in the heading, omit “and audit committee”;
 - (b) omit paragraph 9 and the preceding italic heading.

Commencement Information

I602 Sch. 36 para. 37 not in force at Royal Assent, see [s. 108\(6\)](#)

SCHEDULE 37

Section 100

BUSINESS TENANCIES: RENT REVIEWS AND ARRANGEMENTS FOR NEW TENANCIES

Introduction

- 1 The Landlord and Tenant Act 1954 is amended in accordance with this Schedule.

Commencement Information

I603 Sch. 37 para. 1 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

New Schedules 7A and 7B

2 Before Schedule 8 of the Landlord and Tenant Act 1954 insert—

“SCHEDULE 7A

Section 54A

RENT REVIEWS

PART 1

KEY TERMS

“Business tenancy”

- 1 (1) A tenancy is a “business tenancy” at a particular time if, at that time, Part 2 of this Act—
 - (a) applies to the tenancy, or
 - (b) has the potential to apply to the tenancy.
- (2) For that purpose, Part 2 has the potential to apply to the tenancy at a particular time if, at that time—
 - (a) Part 2 cannot apply to the tenancy because—
 - (i) none of the property comprised in the tenancy is or includes premises which are occupied by the tenant, or
 - (ii) property comprised in the tenancy is or includes premises which are occupied by the tenant, but none of those premises are so occupied for the purposes of a business carried on by the tenant or for those and other purposes,
 - (b) the terms of the tenancy include terms (the “permitted business use terms”) which would permit the tenant to occupy the premises for the purposes of a business carried on by the tenant (whether the terms permit occupation for the purposes of business generally, a specific business or a specific kind of business) or for those and other purposes, and
 - (c) if the tenant were to occupy the premises in accordance with the permitted business use terms (and taking into account all other circumstances), Part 2 of this Act would apply to the tenancy.
- (3) For the purposes of sub-paragraph (2)(b), terms of the tenancy which—
 - (a) would prohibit the tenant from occupying the premises for some purposes, but
 - (b) would not prohibit the tenant from occupying the premises for other purposes,
 are to be regarded as terms which would permit the tenant to occupy the premises for the purposes which are not prohibited.
- (4) Sub-paragraph (2) must be construed as one with section 23(1).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

“Business tenancy with a rent review”

- 2 (1) A tenancy is a “business tenancy with a rent review” at a particular time if, at that time—
- (a) it is a business tenancy, and
 - (b) it is subject to rent review terms (whether contained in the instrument creating the tenancy or not).
- (2) In this Schedule “rent review terms” means terms under which an amount of rent payable under the tenancy will or may change during the term of the tenancy (“rent under review”).

PART 2

TRIGGERING AND OPERATION OF RENT REVIEWS

Application of this Part

- 3 (1) This Part of this Schedule applies to a tenancy at a particular time if—
- (a) at that time it is a business tenancy with a rent review,
 - (b) the tenancy was—
 - (i) granted, or
 - (ii) varied so that it is subject to rent review terms,after this Schedule came into force, and
 - (c) that grant or variation was not made under protected pre-commencement arrangements.
- (2) For that purpose “protected pre-commencement arrangements” means arrangements that were entered into before this Schedule came into force.
- (3) But arrangements under which the tenancy was granted are not protected pre-commencement arrangements if—
- (a) the tenancy is a new tenancy within the meaning of Schedule 7B,
 - (b) the arrangements are a tenancy renewal arrangement within the meaning of Schedule 7B, and
 - (c) the tenancy renewal arrangement was entered into on or after 17 March 2026,
- (and see paragraph 3(2) of Schedule 7B for the meaning of “new tenancy” and “tenancy renewal arrangement”).

Tenant to have power to trigger a rent review

- 4 (1) This paragraph applies if—
- (a) an action is necessary for a particular rent review to be initiated (a “trigger action”), and
 - (b) the rent review terms, or any other terms (whether contained in the instrument creating the tenancy or not), do not allow the tenant to take the trigger action.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) The tenant may initiate the particular rent review by giving the landlord notice in writing.
- (3) Notice under sub-paragraph (2) may not be given after the time when trigger action may be taken.

Tenant to have power to take action to enable rent review to operate effectively

- 5 (1) This paragraph applies if—
 - (a) an action is necessary for a particular rent review to operate effectively (an “operational action”), and
 - (b) the rent review terms, or any other terms (whether contained in the instrument creating the tenancy or not), do not allow the tenant to take the operational action.
- (2) The tenant may take the operational action.
- (3) If the tenant takes the operational action, the tenant must give the landlord notice in writing of the action within the period of seven days beginning with the day on which the action was taken.

PART 3

RENT REVIEW TERMS THAT ARE OF NO EFFECT

Application of this Part

- 6 (1) This Part of this Schedule applies to a tenancy at a particular time if—
 - (a) at that time it is a business tenancy with a rent review,
 - (b) at that time the rent review terms—
 - (i) do not specify new passing rent, and
 - (ii) include elements 1 and 2,
 - (c) the tenancy was—
 - (i) granted, or
 - (ii) varied so that it is subject to rent review terms that do not specify the new passing rent and include elements 1 and 2,
 after this Schedule came into force, and
 - (d) that grant or variation was not made under protected pre-commencement arrangements.
- (2) For that purpose “protected pre-commencement arrangements” means arrangements that were entered into before this Schedule came into force.
- (3) But arrangements under which the tenancy was granted are not protected pre-commencement arrangements if—
 - (a) the tenancy is a new tenancy within the meaning of Schedule 7B,
 - (b) the arrangements are a tenancy renewal arrangement within the meaning of Schedule 7B, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (c) the tenancy renewal arrangement was entered into on or after 17 March 2026,
(and see paragraph 3(2) of Schedule 7B for the meaning of “new tenancy” and “tenancy renewal arrangement”).

Rent review terms that “do not specify new passing rent”

- 7 Rent review terms “do not specify new passing rent” if they are such that an amount of rent under review that will be payable at a time during the term of the tenancy (the “new passing rent”)—
 - (a) is not known, and
 - (b) cannot be determined,at the time when the tenancy is granted or varied so that it includes the terms.

Elements 1 and 2

- 8 (1) This paragraph sets out elements 1 and 2.
 - (2) *Element 1*: an amount of rent (the “reference amount”) is determined by reference to—
 - (a) the effect of inflation or any other index or multiplier on the rent,
 - (b) the amount of either or both of the following—
 - (i) actual rent for premises;
 - (ii) a hypothetical market rent, or other notional rent, for premises, or
 - (c) the amount of the tenant’s turnover.
 - (3) The premises for which rent falling within sub-paragraph (2)(b) is, or is assumed to be, payable may be either or both of the following—
 - (a) the premises demised by the tenancy which is subject to the rent review terms;
 - (b) other premises (whether real or hypothetical).
 - (4) The reference in this paragraph to the amount of a notional rent for premises includes an amount calculated in accordance with the rent review terms on the basis of actual or assumed information or other assumptions.
 - (5) *Element 2*: the amount of the new passing rent—
 - (a) will be different from the reference amount, or
 - (b) could be different from the reference amount (whether or not the amount could, alternatively, be the reference amount).

Amount of new passing rent to be larger than reference amount

- 9 (1) This paragraph applies in relation to a particular rent review if the amount of the new passing rent determined in accordance with the rent review terms would be larger than the reference amount.
 - (2) That includes cases where the amount of the new passing rent would be—

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (a) smaller than the rent under review, but
- (b) still larger than the reference amount.
- (3) The rent review terms are of no effect to the extent that they would result in the new passing rent being larger than the reference amount.
- (4) The amount of the new passing rent is instead to be the same as the reference amount.

Exceptions

- 10 (1) The Secretary of State may, by regulations, provide for exceptions from paragraph 9 (whether an exception relates to the paragraph generally or to an aspect of the paragraph).
- (2) Regulations under this paragraph—
 - (a) may include transitional or saving provision;
 - (b) may make different provision for different purposes;
 - (c) are to be made by statutory instrument;
 - (d) may not be made unless a draft of the statutory instrument containing the regulations has been laid before Parliament and approved by a resolution of each House of Parliament.

PART 4

SUB-TENANCY REQUIRED TO INCLUDE RENT REVIEW TERMS THAT WOULD BE OF NO EFFECT

Application of this Part

- 11 (1) This Part of this Schedule applies to a tenancy (the “superior tenancy”) at a particular time if, at that time—
 - (a) the superior tenancy is a business tenancy,
 - (b) the superior tenancy requires or permits the grant of a sub-tenancy (the “authorised sub-tenancy”),
 - (c) the authorised sub-tenancy would, at the time of its grant, be a business tenancy with a rent review, and
 - (d) either—
 - (i) the superior tenancy requires the authorised sub-tenancy to include rent review terms, and that requirement can only be complied with by the inclusion of rent review terms which (on one or more particular rent reviews) would produce, or would be capable of producing, the result that is prohibited by paragraph 9(3), or
 - (ii) the superior tenancy permits the authorised sub-tenancy to include rent review terms, but rent review terms can only be within that permission if (on one or more particular rent reviews) they would produce, or would be capable of producing, the result that is prohibited by paragraph 9(3).

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (2) But this Part applies to the superior tenancy only—
- (a) if the superior tenancy was—
 - (i) granted, or
 - (ii) varied so that it is subject to rent review terms that do not specify new passing rent and include elements 1 and 2,before this Schedule comes into force, or
 - (b) if the superior tenancy is—
 - (i) granted, or
 - (ii) varied so that it is subject to rent review terms that do not specify new passing rent and include elements 1 and 2,after this Schedule comes into force and the grant or variation is made under arrangements entered into before then.

Modification of terms of superior tenancy

- 12
- (1) The superior tenancy has effect after this Schedule comes into force as if it requires, or as the case may be permits, the authorised sub-tenancy to include rent review terms of any kind which (on each particular rent review) would not produce, and would not be capable of producing, the result that is prohibited by paragraph 9(3).
 - (2) The actual rent review terms that are to be included in a particular authorised sub-tenancy are to be—
 - (a) agreed by the persons who are to be the landlord and tenant under that sub-tenancy, or
 - (b) determined in such other manner as they may agree.
 - (3) Accordingly, the landlord under the superior tenancy may not require the inclusion of particular rent review terms in the authorised sub-tenancy (unless that is what is agreed by the persons who are to be the landlord and tenant under the sub-tenancy).
 - (4) This paragraph does not prevent a superior tenancy from being varied or modified by the parties to it (and accordingly sub-paragraphs (1) to (3) are subject to any such variation or modification).

Interpretation

- 13
- (1) The following provision applies for the purposes of this Part of this Schedule.
 - (2) The superior tenancy permits the grant of a sub-tenancy, or the inclusion of particular rent review terms in a sub-tenancy, if granting the sub-tenancy, or including those terms, would not breach the terms of the superior tenancy.
 - (3) References to the superior tenancy, and references to the terms of the superior tenancy, include references to—
 - (a) the terms of any agreement relating to the superior tenancy, and

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (b) any document or communication from a party to the superior tenancy which gives or refuses consent for the grant of a category or description of sub-tenancy.
- (4) “Superior tenancy” has the meaning given in paragraph 11(1).
- (5) “Sub-tenancy” means a tenancy that is inferior to the superior tenancy (whether or not it is immediately inferior to that tenancy).
- (6) The “result that is prohibited by paragraph 9(3)” means the result that the new passing rent is larger than the reference amount.

PART 5

GENERAL PROVISION

Anti-avoidance

- 14 An agreement (whether contained in the instrument creating the tenancy or not) is void if, or to the extent that, it purports to require the tenant to make a payment in respect of any difference in an amount of rent which results from the operation of any other provision of this Schedule.

Interpretation

- 15 (1) In this Schedule—
 - “business tenancy” has the meaning given in paragraph 1;
 - “business tenancy with a rent review” has the meaning given in paragraph 2.
- (2) In this Schedule, in relation to a business tenancy with a rent review—
 - “elements 1 and 2” means element 1 and element 2 set out in paragraph 8;
 - “inflation” means a change in prices or costs (including a change in certain kinds of prices or costs) whether or not calculated by an official index; and here “prices or costs” includes rents;
 - “new passing rent” has the meaning given in paragraph 7;
 - “particular rent review” means a particular occasion when the relevant rent review terms operate or are to operate;
 - “reference amount” has the meaning given in paragraph 8(2);
 - “rent review terms” has the meaning given in paragraph 2(2);
 - “rent under review” has the meaning given in paragraph 2(2).
- (3) A reference in this Schedule to rent review terms that do not specify new passing rent has the meaning given in paragraph 7.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

SCHEDULE 7B

Section 54A

ARRANGEMENTS FOR RENEWAL OF TENANCIES: PROHIBITED TERMS

Application of this Schedule

- 1 This Schedule applies at a particular time if, at that time, conditions A to F are met.

Condition A: a business tenancy

- 2 (1) Condition A is met if Part 2 of this Act—
- (a) applies to the tenancy, or
 - (b) has the potential to apply to the tenancy.
- (2) In the following paragraphs of this Schedule—
- (a) the tenancy to which Part 2 applies, or has the potential to apply, is referred to as the “existing tenancy”;
 - (b) the premises let under the existing tenancy are referred to as the “relevant premises”.
- (3) For the purposes of this paragraph, Part 2 has the potential to apply to the existing tenancy if—
- (a) Part 2 cannot apply to the existing tenancy because—
 - (i) none of the relevant premises are occupied by the tenant, or
 - (ii) the relevant premises are or include premises which are occupied by the tenant, but none of those premises are so occupied for the purposes of a business carried on by the tenant or for those and other purposes,
 - (b) the terms of the tenancy include terms (the “permitted use terms”) which would permit the tenant to occupy relevant premises for the purposes of a business carried on by the tenant (whether the terms permit occupation for the purposes of business generally, a specific business or a specific kind of business) or for those and other purposes, and
 - (c) if the tenant were to occupy relevant premises in accordance with the permitted use terms (and taking into account all other circumstances), Part 2 of this Act would apply to the tenancy.
- (4) For the purposes of sub-paragraph (3)(b), terms of the existing tenancy which—
- (a) would prohibit the tenant from occupying relevant premises for some purposes, but
 - (b) would not prohibit the tenant from occupying relevant premises for other purposes,
- are to be regarded as terms which would permit the tenant to occupy relevant premises for the purposes which are not prohibited.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

(5) Sub-paragraph (3) must be construed as one with section 23(1).

Condition B: a tenancy renewal arrangement

3 (1) Condition B is met if the tenant under the existing tenancy is a party to a tenancy renewal arrangement.

(2) In this Schedule—

“new tenancy” means a new tenancy of the whole or a part of the relevant premises;

“tenancy renewal arrangement” means an arrangement under which the tenant under the existing tenancy—

- (a) can require the landlord or another person to grant a new tenancy, or
- (b) can be required by the landlord or another person to take a new tenancy.

Condition C: tenancy renewal arrangement on or after 17 March 2026

4 Condition C is met if the tenancy renewal arrangement is entered into on or after 17 March 2026.

Condition D: initial rent not known

5 Condition D is met if the rent payable at the start of the term of the new tenancy (the “initial rent”)—

- (a) is not known, and
- (b) cannot be determined,

at the time when the tenancy renewal arrangement is entered into.

Condition E: terms for determining the initial rent

6 Condition E is met if the tenancy renewal arrangement is subject to terms for determining the initial rent (the “rent determination terms”) (whether or not those terms are included in the same instrument as the tenancy renewal arrangement).

Condition F: method for determining the initial rent

7 (1) Condition F is met if the rent determination terms include elements 1 and 2 (whether or not they include any other elements).

(2) *Element 1:* an amount of rent (the “reference amount”) is determined by reference to—

- (a) the effect of inflation or any other index or multiplier on the rent under the existing tenancy,
- (b) the amount of either or both of the following—
 - (i) actual rent for premises;
 - (ii) a hypothetical market rent, or other notional rent, for premises, or
- (c) the amount of the tenant’s turnover.

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

- (3) The premises for which rent falling within sub-paragraph (2)(b) is payable may be either or both of the following—
 - (a) the premises demised by the existing tenancy;
 - (b) other premises (whether real or hypothetical).
- (4) The reference in this paragraph to the amount of a notional rent for premises includes an amount calculated in accordance with the rent determination terms on the basis of actual or assumed information or other assumptions (such as the use of rent determination terms which provide for a turnover rent so as to calculate an amount of notional rent on the basis of actual or assumed turnover).
- (5) *Element 2*: the amount of the initial rent—
 - (a) will be different from the reference amount, or
 - (b) could be different from the reference amount (whether or not the amount could, alternatively, be the reference amount).

Amount of initial rent to be larger than reference amount

- 8 (1) This paragraph applies in relation to the new tenancy if the amount of the initial rent determined in accordance with the rent determination terms would be larger than the reference amount.
- (2) That includes cases where the amount of the initial rent would be—
 - (a) smaller than the rent under the existing tenancy, but
 - (b) still larger than the reference amount.
- (3) The rent determination terms are of no effect to the extent that they would result in the initial rent being larger than the reference amount.
- (4) The amount of the initial rent is instead to be the same as the reference amount.

Exceptions

- 9 (1) The Secretary of State may, by regulations, provide for exceptions from paragraph 8 (whether an exception relates to the paragraph generally or to an aspect of the paragraph).
- (2) Regulations under this paragraph—
 - (a) may include transitional or saving provision;
 - (b) may make different provision for different purposes;
 - (c) are to be made by statutory instrument;
 - (d) may not be made unless a draft of the statutory instrument containing the regulations has been laid before Parliament and approved by a resolution of each House of Parliament.

Anti-avoidance

- 10 An agreement (whether contained in the tenancy renewal arrangement or not) is void if, or to the extent that, it purports to require the tenant to make

Status: Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation: There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026. (See end of Document for details)

a payment in respect of any difference in an amount of initial rent which results from the operation of any other provision of this Schedule.

Interpretation

- 11 In this Schedule, in relation to a tenancy—
- “existing tenancy” has the meaning given in paragraph 2(2);
 - “inflation” means a change in prices or costs (including a change in certain kinds of prices or costs) whether or not calculated by an official index; and here “prices or costs” includes rents;
 - “initial rent” has the meaning given in paragraph 5;
 - “new tenancy” has the meaning given in paragraph 3(2);
 - “reference amount” has the meaning given in paragraph 7(2);
 - “relevant premises” has the meaning given in paragraph 2(2);
 - “rent determination terms” has the meaning given in paragraph 6;
 - “tenancy renewal arrangement” has the meaning given in paragraph 3(2).”

Commencement Information

I604 Sch. 37 para. 2 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Crown application

- 3 In section 56 (application to the Crown), after subsection (6) insert—
- “(6A) Section 54A and Schedules 7A and 7B apply where the interest of the landlord, or any other interest in the land in question, belongs to His Majesty in right of the Crown or the Duchy of Lancaster or to the Duchy of Cornwall, or belongs to a Government department or is held on behalf of His Majesty for the purposes of a Government department, in like manner as if that interest were an interest not so belonging or held.”

Commencement Information

I605 Sch. 37 para. 3 in force at Royal Assent for specified purposes, see [s. 108\(1\)\(6\)](#)

Status:

Point in time view as at 15/07/2026. This version of this Act contains provisions that are prospective.

Changes to legislation:

There are currently no known outstanding effects for the English Devolution and Community Empowerment Act 2026.